

The Orissa Factories Rules, 1950

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State of Odisha - Act

The Orissa Factories Rules, 1950

ODISHA

India

The Orissa Factories Rules, 1950

Act 189 of 1950

Published on 8 August 1950

Commenced on 8 August 1950

[This is the version of this document from 8 August 1950.]

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The Orissa Factories Rules, 1950

Published vide Notification No. 94-Lab., dated 8th August, 1950, Orissa Gazette Extraordinary No. 189 of 1950

No. 94-Lab., dated 8th August, 1950. - In exercise of the powers conferred by Section 112 of the Factories Act, 1948 (LXIII of 1948), and all other provisions enabling it in this behalf, the Governor of Orissa is pleased to make the following rules, the same having been previously published as required under Section 115 of the said Act, namely :-

Chapter-I Preliminary

1.

Short title, extent and commencement.

(1)

These rules may be cited as the Orissa Factories Rules, 1950.

(2)

These rules shall extend to the States of Orissa.

(3)

These rules except Rules 29 to 33, 53, 63 to 77 and 96 shall come into force on the 8th August, 1950, and Rule 29 to 33, 53, 63 to 77 and 96 shall come into force on such dates as are specified therein.

2.

Definitions.

- in these rules unless there is anything repugnant in the subject or context-

(a)

"Act" means the Factories Act, 1948,

(b)

"Appendix" means an appendix appended to these rules;

(c)

"Artificial Humidification" means the introduction of moisture into the air of a room by any artificial means whatsoever, except the unavoidable escape of steam or water vapour into the atmosphere directly due to a manufacturing process : Provided that the introduction of air directly from outside through moistened mats or screens placed in openings at times when the temperature of the room is 80 degrees or more, shall not be deemed to be artificial humidification.

(d)

"Belt" includes any driving strap or rope-,

(e)

"Degrees" (of temperature) means degrees on the Fahrenheit scale;

(f)

"District Magistrate" includes such other official as may be appointed by the Government of Orissa in that behalf;

(f-i) "Form" means a form appended to these rules;

(g)

"Fume" includes gas, or vapour;

(h)

"Health Officer" means the Municipal Health Officer or District Health Officer or such other official as may be appointed by the State Government in that behalf;

(i)

"Hygrometer" means an accurate wet and dry bulb hygrometer conforming to the prescribed conditions as regards construction and maintenance

(j)

[* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

(k)

"Maintained" means maintained in an efficient state, in efficient working order and in good repair;

(l)

"Manager" means the person responsible to the occupier for the working of the factory for the purposes of the Act.

2A.

[Competent person.

[Inserted vide Orissa Gazette Extraordinary No. 1/1.1,2004-SRO 718-2003-LE/23.12.2003.]

(1)

The Chief Inspector may recognize any person as a 'Competent Person' within stich area and for such period as may be specified for the purposes of carrying out tests, examination, inspections and certification of buildings, hoists and lifts, lifting machines, chains, ropes and lifting tackles, pressure plants, confined spacte, ventilation system and such other processes or plants and equipments as stipulated inhale Act and these rules located in a factory, if such a person possesses the qualifications, experience and other requirements as set out in the Schedule, annexed to this rule.]

Schedule

(See Rule 2-A)

(Qualification and experience of Competent person)

Sl. No.

Section or Rules under which competency is recognised

Qualification required

Experience for the purpose

Facilities at his command.

1

2

3

4

5

1.

Rules made under Section 6 (Certificate of stability for buildings.)

Degree in Civil or Structural Engineering or equivalent.

(i) A minimum of 10 years experience in the design or construction of testing or repairs of structures;

(ii) Knowledge of non-destructive testing, various codes of practices that are current and the effect of the vibrations and natural forces on the stability of the building, and

(iii) Ability to arrive at a reliable conclusion with regard to the safety of the structure or the building.

2

Section 28 hoists and lifts

A degree in Electrical and/or Mechanical Engineering or its equivalent.

(i) A minimum experience of 7 years in design or erection or maintenance; or inspection and test procedure of lifts and hoists.

Facilities for lead testing, tensile testing, gauges equipments/ gadgets for measurement and any other equipment required for determining the safe working conditions of the Hoists and Lifts.

(ii) He shall be-

(a) Conversant with relevant codes of practices and test procedures that are current;

(b) conversant with other statutory requirements covering the safety of Hoists and Lifts;

(c) able to identify the defects and arrive at a reliable conclusion with regard to the safety of the Hoists and Lifts.

3

Section 29-Lifting Machinery, chains, ropes and lifting tackles.

Degree in Mechanical or Electrical. Metallurgical Engineering or its equivalent

(i) A minimum experience of 7 years in design or erection or maintenance, or testing, examination and inspection of lifting machinery, chains, ropes and lifting tackles.

Facilities for lead testing tensile testing, heat treatment, equipment/gadget for measurement, gauges and such other equipment to determine the safe working conditions of the lifting machinery, tackles.

(ii) He shall be-

- (a) conversant with the relevant codes of practices and test procedures that are current;
- (b) conversant with fracture machines and metallurgy of the material of construction;
- (c) conversant with heat treatment/stress relieving techniques as applicable to stress bearing components and parts of lifting machinery and lifting tackles;

4

Section 31 - 'Pressure Plant'

Degree in Chemical or Electrical or Metallurgical or Mechanical Engineering or its equivalent.

(1) A minimum experience of 10 years in design or erection or maintenance or Testing, examination and inspection of pressure plants.

Facilities for carrying out hydraulic test, non-destructive test, gauges equipment/gadgets for measurement and any other equipment or gauges to determine the safety in the use of pressure vessels.

(ii) He shall be-

- (a) conversant with the relevant codes of practices and test procedures relating to pressure vessels;
- (b) conversant with other statutory requirements concerning the safety of unfired pressure vessels and equipment operating under pressure;
- (c) conversant with the destructive testing techniques as are applicable to pressure vessels;
- (d) able to identify the defects and arrive at a reliable conclusion with regard to the safety of the pressure plant.

5

(i) Section 36 precautions against dangerous fumes.

Master's degree in Chemical Engineering.

A minimum of 7 years in collection, analysis of environmental samples and calibration of monitoring equipment.

Meters, instruments and devices duly calibrated certified for carrying out the tests and certification of safety in working in confined spaces.

6

Ventilation systems as required

under various schedules framed under Section 87, such as schedules on-

Degree in Mechanical or Electrical Engineering or equivalent.

(i) A minimum of 7 years in the design fabrication, installation, testing of ventilation system and systems used for extraction and collection of dusts fumes and vapours and other ancillary equipment.

(i) Grinding or glazing of metals and process incidental thereto;

(ii) He shall be conversant with relevant codes of practice and tests procedures that are current in respect of ventilation and a traction system for furnaces and shall be able to arrive

at a reliable conclusion with regard to effectiveness of the system.

(ii) Cleaning or smoothing, roughening, etc. of articles, by a jet of sand, metal shot, or grit, or other abrasive propelled by a blast of compressed air or steam.

(iii) Handling and processing of Asbestos.

(iv) Manufacturing of Rayon by viscost process.

|

Note-I - The Chief Inspector may relax the requirements of qualification in respect of a "Competent Person" if such person is exceptionally experienced and knowledgeable.

Note-II - The "Competent Person" recognised under this provision shall not be above the age of 62 and shall be physically fit for the purpose of carrying out the tests, examination and inspections.

(2)

The Chief Inspector may recognise an institution of repute, having persons possessing qualifications and experience as set out in the Schedule for the purpose of carrying out tests, examinations, inspections and certification of buildings, hoists and lifts, lifting machines, chains, ropes and lifting tackles, pressure plants, confined space, ventilation systems and such other process or plants and equipments as stipulated in the Act and these rules as a "Competent Person" within such area and for such period as may be specified.

(3)

The application for certificate of recognition as in [Form 34]

[Substituted vide O.G. Extraordinary No. 1165/21.7.2005, S.R.O. No. 312/2005/20.7.2005.]

shall accompany a registration fee Rs.5,000.00 (Rupees five thousand) only in shape of treasury challan under the head of account as notified by Government from time to time for each such applicant. The fees once paid is not refundable.

(4)

The Chief Inspector shall constitute a Committee of not less than three Officers of his Directorate, who shall examine the competence and the facility available at the disposal of the applicant and shall recommend for recognition within one month from the date of receipt of the application.

(5)

The Chief Inspector on receipt of an application in Form (s) from an applicant or an institution intending to be recognised as a "Competent Person" for the purposes of the Act and these rules shall register such application and within a period of sixty days of the date of receipt of the application, may either recognise the applicant as a "Competent Person" and issue a certificate of competency in the prescribed Form [35]

[Inserted vide O.G. Extraordinary No. 1165/21.7.2005, S.R.O. No. 312/2005/20.7.2005.]

or reject the application specifying the reason therefore.

(6)

Certificate of recognition so granted shall be valid for a period of one year from the date of issue and may be renewed on payment of Rs.2,000.00 (Rupees two thousand) only deposited in shape of treasury challan under the head of account as notified by Government from time to time. The fee once paid is not refundable.

(7)

The Chief Inspector may, after giving an opportunity to the competent person of being heard, revoke the certificate of competency;

if he has reasons to believe that a competent person-

(i)

has violated any condition stipulated in the certificates of competency; or

(ii)

has carried out a test examination and inspection or has acted in a manner inconsistent with the intent or the purpose of the Act or these rules.

(8)

The Chief Inspector may, for reasons to be recorded in writing require rectification of lifting machines, chains, ropes and

lifting tackles, pressure plants or ventilation systems as the case may be, which has been certified by a competent person outside the State.

Rules prescribed under Sub-section (1) of Section 6

3. [Approval of plans.

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22 .7.1987.]

(1)

The State Government or the Chief Inspector of Factories may require, for the purposes of the Act, submission of plans of any factory which was either in existence on the date of commencement of the Act or which has not been constructed or extended, such plans shall be drawn to scale showing-

(a)

the site of the factory and immediate surroundings including adjacent buildings and other structures, roads, drains, etc.;

(b)

the plan, elevation and necessary cross sections of the factory buildings indicating all relevant details relating to natural lighting ventilation and means of escape in case of fire and the position of the plants and machinery, aisles and passage ways ; and

(c)

such other particulars, as the State Government or the Chief Inspector of Factories, as the case may be, may require.

(2)

No site shall be used for the location of a factory or no building shall be constructed, reconstructed, extended or taken into use as a factory or part of a factory or any other extension of plant or machinery carried out in a factory unless previous permission in writing is obtained from the State Government or the Chief Inspector.

(3)

Application for permission shall be made in Form No. I which shall be accompanied by the following documents namely

(a)

a flow chart or the manufacturing process supplemented by a brief description of the process in its various stages;

(b)

plans in duplicate drawn to scale showing-

(i)

the site of the factory and immediate surroundings including adjacent buildings and other structures, roads, drains, etc.;

(ii)

the plan elevation and necessary cross sections of the various buildings indicating all relevant details relating to natural lighting, ventilation and means of escape in case of fires. The plans shall also clearly indicate the position of the plant and machinery, aisles and passage ways ; and

(c)

such other particulars if the Chief Inspector may require.

[Provided that the Occupier of every factory seeking permission under the provisions of the Orissa Industries (Facilitation) Act, 2004 may apply in the combined application Form for establishment of industries.]

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

[(3-a) The application referred to in Sub-rule (3) shall be accompanied by payment of a fee at the rate of 3 times the licence fee subject to a 'minimum of [Rs. 1500 (Rupees one thousand five hundred)]

[Inserted vide O.G.E.No. 357, dated 26.3.1998.]

only in case of original plan and at the rate of 50% of the licence fee subject to a maximum of [Rs. 20,000 (Rupees twenty thousand)]

[Substituted vide Orissa Gazette Extraordinary No. 1/1.1,2004-SRO 718-2003-LE/23.12.2003.]

only in case of extension plans, for the purpose of scrutiny and evaluation of such plans.]

(4)

If the Chief Inspector is satisfied that the plans are in consonance with the requirements of the Act he shall subject to such conditions as he may specify, approve them by signing and returning to the applicant one copy of each plan; or he may call for such other particulars as he may require to enable such approval to be given.

3A.

Certificate of stability.

- No manufacturing process of a factory shall be carried on in any building which has been constructed, reconstructed extended or taken into use as a factory or part of a factory until a certificate of stability in respect of that building, obtained from a competent person in Form No. I -A, has been sent by the occupier or manager of the factory to the Chief Inspector and accepted by him.

Note - A "competent person " is he who, by virtue of his qualification, experience and training, is capable of examining, certifying and making a full report on the condition of the stability of the building constructed reconstructed, extended or taken into use a factory or part of a factory and declared as such from time to time by the Chief Inspector.)

4. Application for registration and grant of licence.

- The occupier of every factory shall submit to the Chief Inspector an application in the prescribed Form No. 2, for the registration of the factory and grant of licence :

Provided that the occupier of premises in use as a factory on the date of the commencement of these rules shall submit such application within 30 days from the date of the commencement of these rules.

[Provided further that the occupier of a factory seeking registration and grant of licence under the provision of the Orissa Industries (Facilitation) Act, 2004 shall apply in the combined application Form for operation of industries.]

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

5. Grant of licence.

(1)

A licence for a factory shall be granted by the Chief Inspector in Form No. 4 prescribed for the purpose and on payment of the fees specified in the Schedule hereto.

[Schedule]

[Substituted vide Orissa Gazette Extraordinary No. 1/1.1.2004-SRO 718-2003-LE/23.12.2003.]

[See Rule 5(1)]

Total Amount of power installed (in K.W.)

Maximum number of person to be employed during
any one day of the year not exceeding

20

50

100

250

500

750

1,000

1,500

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Nil

400

600

1,000

1,500

2,500

3,500

4,000

6,000

Not exceeding 10

800

1,000

1,500

2,000

3,500

5,000

8,000

10,000

Exceeding 10 but not exceeding 50

1,000

1,500

2,000

3,500

6,000

10,000

12,000

15,000

Exceeding 50 but not exceeding 100

1,500

2,000

3,500

4,500

9,000

12,500

15,000

20,000

Exceeding 100 but not exceeding 200

2,000

3,500

4,000

6,000

12,500

15,000

20,000

22,000

Exceeding 200 but not exceeding 400

3,500

4,000

6,000

10,000

15,000

20,000

22,000

28,000

Exceeding 400 but not exceeding 800

4,000

5,000

7,500

12,000

18,000

22,000

28,000

35,000

Exceeding 800 but not exceeding 1500

5,000

7,500

12,000

16,000

22,000

28,000

35,000

37,500

Exceeding 1500 but not exceeding 4000

7,500

11,000

15,000

22,000

28,000

35,000

37,500

40,000

Exceeding 4000 but not exceeding 6000

11,000

15,000

20,000

28,000

35,000

37,500

40,000

50,000

Exceeding 600 but not exceeding 8000

15,000

20,000

28,000

32,000

37,500

40,000

50,000

55,000

Exceeding 8000 but not exceeding 25000

16,000

28,000

32,000

37,500

40,000

50,000

55,000

60,000

Exceeding 25000 but not exceeding 50000

28,000

30,000

36,000

40,000

50,000

55,000

60,000

70,000

Exceeding 50,000[but not exceeding 100000]

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

30,000

36,000

40,000

50,000

55,000

60,000

70,000

75,000

[Exceeding 100000 but not exceeding 200000

[Added vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

40,000

50,000

60,000

70,000

80,000

90,000

1,00,000

1,10,000

Exceeding 200000 but not exceeding 300000

50,000

60,000

70,000

80,000

90,000

1,00,000

1,10,000

1,20,000

Exceeding 300000 but not exceeding 400000

60,000

70,000

80,000

90,000

1,00,000

1,10,000

1,20,000

1,30,000

Exceeding 400000 but not exceeding 500000

70,000

80,000

90,000

10,000

1,10,000

120,000

1,30,000

1,40,000

Exceeding 500000 but not exceeding 600000

80,000

90,000

1,0,0000

1,10,000

1,20,000

130,000

1,40,000

1,50,000

Exceeding 600000 but not exceeding 700000

90,000

1,00,000

1,10,000

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140,000

1,50,000

1,60,000

Exceeding 700000 but not exceeding 800000

1,00,000

1,10,000

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1,70,000

Exceeding 800000 but not exceeding 900000

1,10,000

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1,80,000

Exceeding 900000 but not exceeding 1000000

1,20,000

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1,40,000

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1,60,000

1,70,000

1,80,000

1,90,000

Exceeding 1000000 but not exceeding 1500000

1,500,00

1,60,000

1,70,000

1,80,000

1,90,000

2,00,000

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2,20,000

Exceeding 1500000 but not exceeding 200000

1,70,000

1,80,000

1,90,000

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2,40,000

Exceeding 200000 but not exceeding 300000

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2,60,000

2,70,000

Exceeding 3000000

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2,70,000

2,80,000

2,90,000

3,00,000

Maximum number of person to be employed during
any one day of the year not exceeding

2,000

2,500

3,000

5,000

7,500

10,000

15,000

25,000

(10)

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[9]
[Added vide O.G.E.No. 1165, dated 21.7.2005-SRO 312/2005/20.7.2005.]
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(2)

Every licence granted or renewed under this Chapter shall remain in force up to the 31st of December of the year for which the licence is granted or renewed.

(3)

As soon as licence is granted to any factory for the first time necessary particulars in respect of that factory shall be maintained in Form No. 23.

(4)

[In case of factories found to be running without proper application for registration and/or renewal of licence, the fees payable shall be double the amount prescribed in the Schedule.]

[Substituted vide O.G.E.No. 357. dated 26.3.1998.]

6. Amendment of licence.

(1)

A licence granted under Rule 5 may be amended by the Chief Inspector.

(2)

[A licensee whose licence requires to be amended by virtue of increase in the number of persons employed or in the horse power installed or change in the name of the factory or any change in manufacturing process or all taken together shall submit to Chief inspector of Factories with an application in Form No.2 stating the nature of amendment.

(3)

The fee for amendment of a licence by virtue of increase in number of persons or in the horse power installed or change in the name of factory or any change in manufacturing process or all taken together shall be Rs.200/-in addition to the amount (if any) by which the fee that would have been payable if the licence had originally been issued in the amended form exceeds the fee originally paid for the licence.]

[Substituted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

7. Renewal of licence.

(1)

A licence may be renewed by the Chief Inspector.

(2)

Every application for the renewal of a licence shall be accompanied by the notice of occupation in the prescribed Form No. 2, and shall reach the Chief Inspector not less than 2 months before the date on which the licence expires [* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/97/22.7 1987.]

(3)

[(i) The same fee shall be charged for the renewal of licence as for the grant thereof. Provided that if the application for renewal is not received within the time specified in sub-rule (2) and received thereafter but within the date on which the licence expires, the licence shall be renewed only on payment of a fee 25 percent in excess of the fee ordinarily payable for the licence. If the application is received after the date on which the licence expires, the licence shall be renewed only on payment of a fee 100 percent in excess of the originally payable for licence.]

[Substituted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

(4)

[The occupier shall have the option to apply for renewal of licence for a term of five consecutive calendar years with five times of usual licence fee in vogue.

(5)

Refusal of licence - The Chief Inspector may refuse the renewal of licence on the ground that the applicant has been guilty of repeated contravention of safety provisions of the Act or Rules or both or the applicant has obtained the licence by fraud or by misrepresentation:

Provided that before refusing any licence, the applicant shall be given an opportunity to show cause as to why the licence shall not be refused.

(6)

Revocation of licence - The Chief Inspector may, at any time before expiry of the period for which the licence has been granted or renewed, revoke the licence on any of the grounds specified in sub-rule (5) above or if;

(i)

there is imminent danger to life and property in the factory due to explosive or inflammable dust, gas or fumes, and effective measures in his option have not been taken to remove the danger; and/or;

(ii)

employment of child worker below 14 years of age noticed; and/ or

(iii)

provisions prescribed in Chapter IVA of the Act are not complied;

Provided that before revoking the licence, the applicant shall be given an opportunity to show cause as to why the licence shall not be revoked.]

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26,9.2006.]

8. Transfer of licence.

(1)

The holder of a licence may, at an), time before the expiry of the licence, apply for permission to transfer his licence to another person.

(2)

Such application shall be made to the Chief Inspector who shall. If he approves of the transfer, enter upon the licence, under his signature an endorsement to the effect that the licence has been transferred to the person named.

(3)

A fee [two hundred rupees]

[Substituted vide Orissa Gazette Extraordinary No. 1/1.1.2004-SRO 718-2003-LE/23.12.2003.]

shall be charged on each such application.

9.

Procedure on death or disability of licensee.

- If a licensee dies or becomes insolvent, the person carrying on the business of such licensee shall not be liable to any penalty under the Act for exercising the powers granted to the licensee by the licence during such time as may reasonably be required allow him to make an application for the amendment of the licence under Rule 6 in his own name for the unexpired portion of the original licence.

10.

Loss of licence.

- Where a licence granted under these rules is lost or accidentally destroyed, a duplicate may be granted on payment of a fee of [two hundred rupees]

[Substituted vide Orissa Gazette Extraordinary No. 1/1.1.2004-SRO 718-2003-LE/23.12.2003.]

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[Rules prescribed under Sub-sections (1) and (4) of Section 7]

[Substituted vide Orissa Gazette Part III of 1972-SRO No. 696/1972.]

11.

Payment of fees.

(1)

Every application under these rules shall be accompanied by a treasury receipt showing that the appropriate fee has

been paid into the local treasury under the head of account [087-XX Labour and Employment (d) Fees realised under the Factories Act, 1948. Fees for realisation and grant or renewal of licence of Factories]

[Substituted vide Orissa Gazette Part 111/2.1,1976-SRO No. 1022/75/18.12.1975.]

,

(2)

If an application for the grant, renewal or amendment of a licence is rejected the fee paid shall be refunded to the applicant.

11A.

[Prohibiting running of a factory without a valid licence.

[Inserted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

- An occupier shall not use any premises as a factory or carry on any manufacturing process in a factory unless a licence has been issued in respect of such premises and is in force for the time being :

Provided that if a valid application for grant of licence has been submitted and the required fee has been paid, the premises shall be deemed to be licensed until such date as the Chief Inspector grants or renews the licence or refuses in writing to grant or renew the licence.]

12.

Notice of occupation.

- The notice of occupation shall be in "Form No. 2"

12A.

[Notice of change of manager.

[Substituted vide Orissa Gazette Part III of 1972-SRO No. 696/1972.]

- The notice of change manager shall be in Form No. 3.]

12AA.

[

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

(1)

Occupier of every factory shall submit a written statement of his policy at the time of registration in respect of safety and health of workers at work, except factories employing less than 50 workers provided that these are not covered in THE FIRST SCHEDULE under Section 2(cb) or carrying out processes or operations declared to be dangerous under Section 87 of the Act.

(2)

The safety and health policy shall contain or deal with the following, namely :-

(a)

declared intention and commitment of the top management to health, safety and environment and compliance, to all the relevant statutory requirements;

(b)

organisational set-up to carry out the declared policy, clearly assigning the responsibility at different levels; and

(c)

arrangements for making the policy effective and-

(3)

The policy shall specify the following, namely :-

(a)

arrangements for involving the workers;

(b)

intention of taking into account the health and safety performance of individuals at different levels while considering their career advancement;

(c)

fixing responsibility of the contractor, sub-contractors, transporters and other agencies entering the premises;

(d)

providing a resume of health and safety performance of the factory in its Annual Report;

(e)

relevant techniques and methods, such as safety audits and risk assessment for periodical assessment of the status on health, safety and environment and taking all the remedial measures;

(f)

stating its intention to integrate health and safety in all decisions including those dealing with purchase of plant, equipments, machinery and material as well as selection and placement of personnel; and

(g)

arrangements for informing, educating and training its employees at different levels and the public in the vicinity, wherever required.

(4)

A copy of the declared Health and Safety Policy signed by the Occupier shall be made available to the Inspector having jurisdiction over the factory and to the Chief Inspector.

(5)

The Policy shall be made widely known by,-

(a)

making copies available to all workers including contract workers, apprentices, transport workers, suppliers, etc.

(b)

displaying copies of the policy at conspicuous places; and

(c)

any other means of communication in a language understood by majority of workers.

(6)

The occupier shall revise the Safety Policy as often as may be appropriate, but it shall necessarily be revised under the following circumstances, namely :-

(a)

whenever any expansion or modification having implications on safety and health of persons at work is made; or

(b)

whenever new substance(s) or articles are introduced in the manufacturing process having implication on health and safety of persons exposed to such substances.]

Chapter-II The Inspecting staff

Rules Prescribed under Sub-section (1) of Section 8

12B.

Qualifications of an Inspector.

- No person shall be appointed as an Inspector for the purpose of the Act unless he possesses the qualifications hereunder :

(a)

He must not be less than 23 years or more than 35 years of age;

(b)

He must have -

(i)

had a good general education up to the Intermediate standard of a recognised University,

(ii)

secured a degree, or diploma equivalent to a degree of a recognised University, in any branch of Engineering, Technology or Medicine and preferably with practical experience of at least two years in a workshop or a manufacturing concern of good standing, and in the case of Medical Inspector an experience of at least two years in a public hospital or factory, medical department or alternatively a diploma in Industrial Medicine; and

(c)

Where for a particular post special knowledge to deal with special problems is required, the Government may, in addition to the basic qualifications, prescribe appropriate qualifications for such a post.

Rules prescribed under Section 9

13.

Powers of Inspectors.

- An Inspector shall, for the purpose of the execution of the Act, have power to do all or any of the following things, that

is to say :

(a)
to photograph any worker, to inspect, examine, measure, copy, photograph, sketch [seize]

[Inserted vide Orissa Gazette Part III/1971 -SRO No. 394/71/10.7.1971.]

or test, as the case may be, any building or room, any plant, machinery, appliance or apparatus; any register or document, or anything provided for the purpose of securing the health, safety or welfare of the workers employed in a factory;

(b)
in the case of an Inspector who is a duly qualified medical practitioner to carry out such medical examinations as may be necessary for the purposes of his duties under the Act;

(c)
to prosecute, conduct or defend before a Court any complaint or other proceeding arising under the Act or in discharge of his duties as an Inspector ;

Provided that the power under this rule of the District Magistrates and such other public officers as are appointed to be Additional Inspectors shall be limited to the following matters, namely :

Cleanliness (Section 11) -Overcrowding (Section 16), Lighting (Section 17), Drinking water (Section 18), Latrines and urinals (Section 19), Spittoons (Section 20), Precautions in the case of fire (Section 38), Welfare (Chapter V), Working hours of adults (Chapter-VI)-except the Power of exemption under the proviso to Section 62, Employment of young persons (Chapter-VII), Leave with wages (Chapter-VIII), and Display of notices (Section 108).

Rules prescribed under Sub-section (4) of Section 10

14.

Duties of Certifying Surgeon.

(1)
For purposes of the examination and certification of young persons who wish to obtain certificates of fitness, the Certifying Surgeon shall arrange a suitable time and place for the attendance of such persons, and shall give previous notice in writing of such arrangement to managers of factories situated within the local limits assigned to him.

(2)
The Certifying Surgeon shall issue his certificates in Form No. 5. The foil and counterfoil shall be filled in and the left thumb mark of the person in whose name the certificate is granted shall be taken on them. On being satisfied as to the correctness of the entries made therein and of the fitness of the person examined. He shall sign the foil and initial the counterfoil and shall deliver the foil to the person in whose name the certificate is granted. The foil so delivered shall be the certificate of fitness granted under Section 69. All counterfoils shall be kept by the Certifying Surgeon for a period of at least 2 years after the issue of the certificate.

(3)
The Certifying Surgeon shall, upon request by the Chief Inspector, carry out such examination and furnish him with such report as he may indicate for any factory or class or description of factories where-

(a)
cases of illness have occurred which it is reasonable to believe are due to the nature of the manufacturing process carried on, or other conditions of work prevailing therein; or

(b)
by reason of any change in the manufacturing process carried on, or in the substance used therein, or by reason of the adoption of any new manufacturing process or of any new substance for use in a manufacturing process, there is a likelihood of injury to the health of workers employed in that manufacturing process; or

(c)
young persons are or are about to be employed in any work which is likely to cause injury to their health.

(4)
For the purposes of the examination of persons employed in process covered by the rules relating to dangerous operations the Certifying Surgeon shall visit the factories within the local limits assigned to him at such intervals as are prescribed by the rules relating to such dangerous operations.

(5)
[At such visits, the Certifying Surgeon, after examining a worker shall issue a certificate of fitness in Form No. 30. The

record of examination and re-examination carried out shall be kept in the custody of the manager of the factory. The record of each examination carried out under Sub-rules (1) and (2), including the nature and the results of the tests, shall also be entered by the Certifying Surgeon in a health register in Form No. 31.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No 501/87/22.7.1997.]

(6)

If the Certifying Surgeon finds as a result of his examination that any person employed in such process is no longer fit for medical reasons to work in that process, he shall suspend such person from working in that process for such time as he may think fit and no person after suspension shall be employed in that process without the written sanction of the Certifying Surgeon in the Health Register.

(7)

The manager of a factory shall afford to the Certifying Surgeon facilities to inspect any process in which any person is employed or is likely to be employed.

(8)

The manager of a factory shall provide for the purpose of any medical examination which the Certifying Surgeon wishes to conduct at the factory (for his exclusive use on the occasion of an examination) a room which shall be properly cleaned and adequately ventilated and lighted and furnished with a screen, table (with writing materials) and chairs.

Chapter-III Health

Exemption under Sub-section (2) of Section 11

15.

Cleanliness of walls and ceilings.

(1)

Clause (d) of Sub-section (1) of Section 11 of the Act shall not apply to the class or description of factories or parts of factories specified in the schedule hereto :

Provided that they are kept in a clean state by washing, sweeping, brushing, dusting, vacuum-cleaning or other effective means :

Provided further that the said Clause (d) shall continue to apply -

(i)

as respects factories or parts of factories specified in Part 'A' of the said schedule. To work-rooms in which the amount of cubic space allowed for every person employed in the room is less than 500 cubic feet;

(ii)

as respects factories or part of factories specified in Part 'B' of the said schedule, to word-rooms in which the amount of cubic space allowed for every person employed in the room is less than 2,500 cubic feet;

(iii)

to engine houses, fitting shops, lunch-rooms, canteens, shelters, creches, cloak-rooms, rest-rooms and washplaces; and

(iv)

to such parts of walls, sides and tops of passages and staircases as are less than 20 feet above the floor or stairs.

(2)

If it appears to the Chief Inspector that any part of a factory, to which by virtue of Sub-rule (1), any of the provisions of the said Clause (d) do not apply, or apply as varied by Sub-rule (1), is not being kept in a clean state, he may by written notice require the occupier to whitewash or colourwash, wash-paint or varnish the same, and in the event of the occupier failing to comply with such requisition within two months from the date of the notice, Sub-rule (1) shall cease to apply to such part of a factory, unless the Chief Inspector otherwise determines.

Schedule 2

Part-A

Blast furnaces

Brick and tile works in which unglazed bricks or tiles are made

Cement works

Chemical works

Copper mills

Gas works

Iron and steel mills

Stone, slate and marble works

The following parts of factories :

Rooms used only for the storage of articles

Room in which the walls or ceilings consist of galvanised iron, glazed brick glass, slate asbestos, bamboo thatch.

Rooms in which the walls or ceilings consist of aluminium sheets.

Parts in which dense steam is continuously evolved in the process.

Parts in which pitch, tar or like material is manufactured or is used to a substantial extent, except in drush works. The parts of a glass factory known as the glass house. Rooms in which graphite is manufactured or is used to a substantial extent in any process.

Parts in which coal, coke, oxide or iron, ochre, lime or stone is crushed or ground.

Parts of walls, partitions, ceilings or tops of rooms which are at least 20 feet above the floor.

Ceilings or tops of rooms in night-works bleach-works or dyeworks, with the exception of finishing rooms or ware-houses.

Inside walls of oil mills below a height of 5 feet from the ground floor level.

Inside wall in tanneries below a height of 5 feet from the ground floor level where a wet process is carried on.

Part-B

Coach and motor body works

Electric generating or transforming station

Engineering works

Factories in which sugar is refined or manufactured

Foundries other than foundries in which brass casting is carried on Gun factories

Ship-building works

Those parts of factories where unpainted or unvarnished wood is manufactured.

Register prescribed under Sub-section (1) of Section 11

16.

[

[Omitted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

* * *]

Rules prescribed under Sub-section (2) of Section 12

17.

[Disposal of trade wastes and effluents.

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

- The arrangements made in every factory for the treatment of wastes and effluents due to the manufacturing processes carried on therein shall be in accordance with those approved by the Water and Air Pollution Board appointed under the Water (Prevention and Control of Pollution) Act, 1974 and the Air (Prevention and Control of Pollution) Act, 1981 and other appropriate authorities.]

17A.

[Ventilation and temperature.

[Inserted vide Orissa Gazette Part III/3.9.1976-SRO No. 840/76/12.8.1976.]

- 1. Limits of temperature and air movement. - in any factory the maximum wet bulb temperature of air in a work-room at a height of 1.5 metres (5 feet) above the floor level shall not exceed 30° C (86° F) and adequate air-movement of at least 30 metres per minute (100 feet per minute) shall be provided and in relation to dry bulb temperature the wet bulb temperature in the work-room at the said height shall not exceed that shown in the Schedule or as regards a dry bulb reading intermediate between the two dry-bulb readings that specified in relation to the higher of these two dry-bulb readings.]

Schedule 3

Dry-bulb temperature

Wet-bulb temperature

(°C)

(F)

(°C)
(F)
30
(86)
29.0
(84.2)
31
(87.8)
28.9
(84.4)
32
(89.6)
28.8
(83.8)
33
(91.4)
28.7
(83.6)
34
(93.2)
28.6
(83.5)
35
(95)
28.5
(83.4)
36
(96.8)
28.4
(83.2)
37
(98.6)
28.3
(83.0)
38
(100.4)
28.2
(82.7)
39
(102.2)
28.1
(82.6)
40
(104)
28.0
(82.5)
41
(105.8)
27.9
(82.3)
42

(107.6)

27.8

(82.1)

43

(109.4)

27.7

(81.9)

44

(111.2)

27.6

(81.7)

45

(113)

27.5

(81.5)

46

(114.8)

27.4

(81.3)

47

(116.6)

27.3

(81.1)

Provided that if the temperature measured with a thermometer inserted in a hollow globe of 15 cm (6") diameter created mat black outside and kept in the environment for not less than 20 minutes exceeds the Dry-bulb temperature of air, the temperature so recorded by the globe thermometer shall be taken in place of the dry-bulb temperature :

Provided further that when the reading of the wet-bulb temperature outside in the shade exceeds 27°C (180°F) the value of the wet bulb temperature allowed in the schedule for a given dry-bulb temperature may be correspondingly exceeded to the same extent :

Provided further that this requirement shall not apply in respect of factories covered by Section 15 and in respect of factories where the nature of work carried on involved production of excessively high temperature referred to in Clause (ii) of Sub-section (1) to which workers are exposed for short periods of time not exceeding one hour followed by an interval of sufficient duration in thermal environments not exceeding those otherwise laid down in this rule

Provided further that, the Chief Inspector, having due regard to the health of the workers, may in special and exceptional circumstances, by an order in writing exempt any factory or part of a factory from the, foregoing requirement, in so far as restricting the thermal conditions within the limits laid down in the schedule are concerned to the extent that he may consider necessary subject to such conditions he may specify.

2. Provision of Thermometers - (1) If it appears to the Inspector that in any factory, the temperature of air in a workroom is sufficiently high and is likely to exceed the limits prescribed in Rule I he may serve on the manager of the factory an order requiring him to provide sufficient number of whirling hygrometers or any other type of hygrometers and direct that the dry-bulb and wet-bulb reading in each such work room shall be recorded at such positions as approved by the Inspector twice during each working shift by a person especially nominated for the purpose by the Manager and approved by the Inspector.

(2)

If the Inspector has reason to believe that a substantial amount of heat is added inside the environment of a work room by radiation from walls of room or other solid surroundings, he may serve on the manager of the factory an order requiring him to provide one or more globe thermometers referred to in the first proviso in Rule 1 and further requiring him to place the globe thermometers at places specified by him and keep a record of the temperature in a suitable register.

3. Ventilation - (1) In every factory the amount of ventilating openings in a work room below the cases, shall, except where mechanical means of ventilation as required by Sub-rule (2) are provided, be of an aggregate area of not less

than 15 per cent of the floor area and so located as to afford a continued supply of fresh air :

Provided that the Chief Inspector may relax the requirements regarding the amount of ventilating openings if he is satisfied that having regard to the location of the factory, orientation of the work room, prevailing winds, roof height and the nature of manufacturing process carried on, sufficient supply of fresh air into the work room is afforded during most part of the working time :

Provided further that this requirement shall not apply in respect of work rooms of factories-

(i)

covered by Section 15; or

(ii)

in which temperature and humidity are controlled by refrigeration.

(2)

Where in any factory owing to special circumstances such as situation with respect to adjacent buildings and height of the building with respect to floor space the requirements of ventilation openings under Sub-rule (1) cannot be complied with or in the opinion of the Inspector the temperature of air in a work room is sufficiently high and is likely to exceed the limits prescribed in Rule 1, he may serve on the manager of the factory an order requiring him to provide additional ventilation either by means of room ventilators or by mechanical means.

(3)

The amount of fresh air supplied by mechanical means of ventilation in an hour shall be equivalent to at least six times the public capacity of the work room and shall be distributed evenly throughout the work room without dead air-pocket or undue draughts caused by high inlet velocities.

(4)

In regions where in summer (15th March-16th July) bulb temperatures of outside air in the shade during most part of the day exceed 35°C (95° F) and simultaneous wet-bulb temperatures are 25°C (67° F) or below and in the opinion of the Inspector the manufacturing process carried on in the work room of a factory permits thermal environment with relative humidity of 50 per cent or more, the Inspector may serve on the manager of the factory an order to have sufficient supply of outside air for ventilation cooled by passing it through water sprays either by means of unit type of, evaporative air coolers (desert coolers) or, where supply of outside air is provided by mechanical means of central air washing plants.)

[Rules prescribed under Section 14]

[Inserted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

17B.

Permissible levels of certain chemical substances in work environment.

- Without prejudice to the requirements in any other provisions of the Act or these rules, the requirements specified in the following Schedule shall apply to all factories :

Schedule 4

1. Definitions-Fox the purpose of this Schedule-

(a)

"mg/m³" means milligrams of a substance per cubic meter of air;

(b)

"mappcm" means million particles of a substance per cubic meter of air;

(c)

"ppm" means parts of vapour or gas per million parts of air by volume at 25°C and 760 mm of mercury pressure;

(d)

"time weighted average concentration" means the average concentration of a substance in the air at any work location in a factory computed from evaluation of giving adequate number of air samples taken at that location, spread over the entire shift on any day after giving weightage to the duration for which each such sample is collected and the concentration prevailing at the time of taking the sample;

Time Weighted average concentration = $C_1 T_1 + C_2 T_2 + \dots + C_n T_n$

$T_1 + T_2 + \dots + T_n$

Where C, represents the concentration of the substance, for duration T_n (in hours),

C₂ represents the concentration of the substance for duration T_n (in hours), and

C_n represents the concentration of, the substance for duration T_n (in hours);

(e)

"Work location" means a location in a factory at which a worker works or may be required to work at any time during any shift on any day.

2. Limit of concentrations of substances at work locations-

(i)

The time weighted average concentration of any substance listed in Table 1 or 2 of the Schedule at any work location in a factory during any shift on any day shall not exceed the limit of the permissible time weighted average concentration specified in respect of that substance:

Provided that in the case of a substance mentioned in Table 1 in respect of which a limit in terms of short term maximum concentration is indicated, the concentration of such a substance may exceed to permissible limit of the time weighted average concentration for the substance for short periods not exceeding fifteen minutes at a time, subject to the conditions that-

(a)

such periods during which the concentration exceeds the prescribed time weighted average concentration are restricted to not more than four per shift;

(b)

the time interval between any two such periods of higher exposure shall not be less than sixty minutes; and

(c)

at no time the concentration of the substance in the air shall exceed the limit of short term maximum concentration.

(ii)

In the case of any substance given in Table 3, the concentration of substance at any work location in a factory at any time during any day shall not exceed the limit of exposure for that substance specified in the said Table.

(iii)

In the cases where the word "skin" has been indicated against any substance mentioned in Tables I and 3 appropriate measures shall be taken to prevent absorption through cutaneous routes particularly skin, mucous membranes and eyes as the limits specified in these Tables are for conditions where the exposure is only through respiratory tract.

(iv)

(a)

In case the air at any work location contains a mixture of such substances mentioned in Table 1, 2 or 3, which have similar toxic properties, the time weighted concentration of each of these substances during the shift should be such that when these time weighted concentrations divided by the respective permissible time weighted average concentration specified in the above mentioned Table, and the fractions obtained are added together, the total shall not exceed unity, i.e.

$$\frac{C_1 L_1}{L_1} + \frac{C_2 L_2}{L_2} + \dots + \frac{C_n L_n}{L_n}$$

should not exceed unity. When C₁ C₂.....C_n are the time weighted concentration of toxic substance 1, 2 and respectively, determined after measurement at work location and L₁ L₂..... L_n are the permissible time weighted average concentration of the toxic substance 1, 2 and n respectively.

(b)

In case the air at any work location contains a mixture of substances, mentioned in Table 1, 2 or 3, and these do not have similar toxic properties, then the time weighted concentration of each of these substances shall not exceed the permissible time weighted average concentration specified in the above-mentioned Table, for that particular substance.

(c)

The requirement in Clauses (a) and (b) shall be in addition to the requirement in paragraphs 2 (i) and 2 (ii).

3. Sampling and evolution procedures -(1) Notwithstanding the provisions in any other paragraphs, the sampling and evaluation procedures to be adopted for checking compliance with the provisions in the Schedule shall be as per standard procedures in vogue from time to time.

(2)

Notwithstanding the provisions in paragraphs 5, the following conditions regarding the sampling and evaluation procedures relevant to checking compliance with the provisions in this Schedule are specified-

(a)

For determination of the number of particles per cubic meter in item 1 (a) (i) (1) in Table 2, samples are to be collected by standard or midjet impinger and the counts made by light field technique.

(b)

The percentage of quartz in the 3 formula given in 1 (a) (i) of Table 2 is to be determined from airborne samples.

(c)

For determination of number of fibres as specified in item 2 (a) of Table 2, the membrane filter method at 430 X magnification (4 mm objective) with phase contrast illumination should be used.

(d)

Both for determination of concentration and percentage of quartz for use of the formula given in item 1 (a) (1) (2) of Table 2, the fraction passing through a size selector with the following characteristics should only be considered.

Aerodynamic diameter (Unit density sphere)

Percentage allowed by size selector

2.0

90

2.5

75

3.5

50

5.0

25

10.0

0

4. Power to require assessment of concentration of substances - (1) An Inspector may, by an order in writing, direct the occupier or manager of a factory to get before any specified date, the assessment of the time weighted average concentration at any work location of any of the substances mentioned in Table 1, 2 or 3 carried out.

(2)

The results of such assessment as well as the method followed for air sampling and analysis for such assessment shall be sent to the Inspector within three days from the date of completion of such assessment and also a record of the same kept readily available for inspection by an Inspector.

5. Exemption - If in respect of any factory or a part of a factory, the Chief Inspector is satisfied that, by virtue of the pattern of working time of the workers at different work locations or on account of other circumstances, no worker is exposed, in the air at the work location, to a substance or substances specified in Table 1, 2 or 3 below to such an extent as is likely to be injurious to his health, the Chief Inspector may, by order in writing, exempt the factory or a part of the factory from the requirements in paragraph 2 subject to such conditions, if any, as he may specify therein.

Table- I

Substance

Permissible limits of exposure

Time weighted average concentration.

Short-term maximum Concentration.

ppm

mg/m³

ppm

mg/m³

1

2

3

4

5

Acetic Acid

...

10

25

15

7

Acrolein

...

0.1

0.25

0.3

0.8

Aldrin (Skin)

...

...

0.25

...

0.75

Ammonia

...

25

18

35

27

Aniline (Skin)

...

2

10

5

20

Anilidine (Opisomers Skin)

...

0.1

0.5

...

...

Arsenic & Compounds (as As)

...

...

0.2

...

...

Benzene

...

10

30

...

...

Bromine

...

0.1

0.7

0.3

2

2 Butanone (Methyl-Ethyl Ketone MEK)

...

200

590

300

885

n-Butyle Acetate

...

150

710

200

950

Sec./tert. Butyl Acetate

...

200

950

250

1190

Cadmium dust and salts (as Cd)

...

...

0.05

...

0.2

Calcium Oxide

...

...

2

...

...

Carbaryl (Sevin)

...

...

5

...

10

Carbofuran (Furadan)

...

...

0.1

...

...

Carbon disulphide (Skin)

...

20

60

30

90

Carbon monoxide

...

50

55

400

440

Carbon tetrachloride (Skin)

...

10

65

20

130

Carbonyl chloride (phosgene)

...

0.1

0.4

...

...

Chlordance (Skiri)

...

...

0.5

...

2

Chlorobenzene (monochloro-Bezene)

...

75

350

...

...

Chlorine

...

1

3

3

9

Bis-chloromethyl ether

...

0.001

...

...

...

Chromic acid and Chromites (as Cr.)

...

...

0.05

...

...

Chromium, Sel. Chormic Chromous

...

...

0.5

...

...

Salts (as Cr.)

...

...

...

...

...

Copper Fume

...

...

0.2

...

...

Cotton dust raw

...

...

0.2

...

0.6

Cresol, all isomers (Skin)

...

5

22

...

...

Cyanides (as CN)-(Skin)

...

...

5

...

...

Cyanogen

...

10

20

...

...

DDT (Dichlorodiphenyl trichloroethane)

...

...

1

...

3

Demeton skin

...

0.01

0.1

0.03

0.3

Diazinon-skin

...

...

0.1

...

0.3

Dibutyle Phthalate

...

...

5

...

10

Dichlorves (DD VP)-skin

...

0.01

1

0.3

3

Dield-rin-skin

...

...

0.25

...

0.75

Dinitro Benzene (all isomers-skin)

...

0.15

1

0.5

3

Dinitrotoluene-skin

...

...

1.5

...

4

Diphenyl

...

0.2

1.5

0.6

4

Endosulfan (Thinodan)-skin

?

?

0.1

?

0.3

Endrin-skin

...

...

0.1

...

0.3

Ethyl Acetate

...

400

1

...

...

Ethyl Amine

...

10

18

...

...

Ethyl Alcohol

...

1000

1900

...

...

Flourides (as F)

...

...

2.5

...

...

Flourine

...

1

2

2

4

Hydrogen cyanide-skin

...

10

11

15

16

Hydrogen Sulphide

...

10

15

15

27

Iron oxide from (Fe₂O₃ as Fe)

...

...

5

...

10

Isoamyl Acetate

...

100

525

125

655

Isobutyl Alcohol

...

100

360

125

450

Isoamyl Alcohol

...

50

150

75

225

Lead, inorg, fumes and dust (as Pb)

...

...

0.15

...

0.15

Linda-he-skin

...

...

0.5

...

1.5

Malathoion-skin

...

...

10

...

...

Manganese fume (as Mn)

...

...

1

...

3

Mercury (as Hg)

...

...

0.05

...

0.15

Mercury (aikyl)

...

0

0.01

0.003

0.03

Compounds skin) (as Hg)

...
...
...
...
...

Methyl Alcohol (methanol) skin

...
200
260
250
310

Methyl collosove-skin (2-methoxy ethanol)

...
25
80
35
120

Methyl isobutyl Ketone-skin

...
100
410
125
510

Napthalene

...
10
50
15
75

Nickel carbonyl (as Ni)

...
0.05
0.35

...
...

Nitric Acid

...
2
5
4
10

Nitric Oxide

...
25
30
35
45

Nitrobenzine-skin

...
1

5

2

10

Oil mist-mineral

...

...

5

...

10

Parathion-skin

...

...

0.1

...

0.3

Phenol-skin

...

5

19

10

38

Phroate (Thimet)-skin

...

...

0.05

...

...

Phosgene (Carbonyl chloride)

...

0.1

0.4

...

...

Phosphine

...

0.3

0.4

1

1

Phosphorus (Yellow)

...

...

0.1

...

0.3

Posphorus pentachloride

...

...

1

...

3

Phosphorus trichloride

...

0.5

3

...

...

Picric acid-skin

...

...

0.1

...

0.3

Pyridine

...

5

15

10

30

Sila-ne (Sillicon tetrahydrene)

...

0.5

0.7

1

1.5

Styrene, monomer (phenyl, othylene)

...

100

420

125

525

Sulfur dioxide

...

5

15

...

...

Sulfuric acid

...

...

1

...

...

Toluene (toluo) skin

...

100

375

1545

560

O-Toludine

...

5

22
 10
 44
 Trichloroethylene
 ...
 100
 535
 150
 800
 Vinyl chloride
 ...
 5
 10
 ...
 ...
 Welding Fumes (NOC)
 ...
 ...
 5
 ...
 ...
 Xylene (o-m-p-isomers) skin

...
 100
 435
 150
 655

Table-2

Substance

Permissible time-weighted average concentration.

1

2

1. Silica-

(a) Crystalline-

(i) Quartz-

(1) In terms of dust count

{|

1060% Quartz + 10| mppcm

|-

| (2) In terms of respirable dust

|

| {|

|-

| 10% respirable| Mg/m³quartz + 2

]|

|-

| (3) In terms of total dust

|

| {|

|-

| 30% quartz +| Mg/m³

}
(ii) Cristobalite
...
Half the limits given against quartz.
-
(iii) Tridymite
...
Half the limits given against quartz.
-
(iv) Silica fused
...
Same limit as for quartz.
-
(v) Tripoli
...
Same limit as in formula in item 2 given against quartz.
-
(b) Amorphous 705 mppcm.
-
2. Silicate having less than 1% free silica by weight-
-
(a) Asbestos (fibres longer than
5. microns) 2 fibres per cubic centimeter
|-
| (b) Mica
| ...
| 705 mppcm.
|-
| (c) Mineral wool fibre
| ...
| 10 mg/m³
|-
| (d) Perlite
| ...
| 1060 mppcm.
|-
| (e) Portland cement
| ...
| 1060 mppcm.
|-
| (f) Soap stone
| ...
| 705 mppcm.
|-
| (g) Talc (non-abostic form)
| ...

| 705 mppcm.

|-

| (h) Talc (fibrous)

| ...

| Same limit as for asbestos.

|-

| (i) Tromolite

| ...

| Same limit as for asbestos.

|-

| 3. Coal dust-

|

|

|-

| (1) For air born dust having less than 5% silicon dioxide by weight.

|

| 2mg/m³

|-

| (2) For air-borne dust having over 5% silicon dioxide against quartz.

|

| Same limit as prescribed by formula item

|}

Table-3

Permissible limit of exposure.

Substance

ppm

mg/m³

Acetic an hydride

...

5

20

O-Dichlorobenzene

...

50

300

Formaldehyde

...

2

3

Hydrogen Choloride

...

5

7

Manganese 1 Compounds (as Mn)

...

...

5

Nitrogen-dioxide

...

5

9

Nitroglycerine-skin

...

02

2

Potassium hydroxide

...

...

2

Sodium hydroxide

...

...

2

2, 4, 6 - Trinitrotoluene (TNT)

...

...

0.5

Rules prescribed under Sub-Section (1) of Section 15

18.

When artificial humidification not allowed.

- There shall be no artificial humidification in any room of a cotton spinning or weaving factory-

(a)

by the use of steam during any period when the dry-bulb temperature of that room exceeds 85 degrees;

(b)

at any time when the wet-bulb reading of the hygrometer is higher than specified in the following Schedule in relation to the drybulb reading of the hygrometer at that time ; or as regards it drybulb reading intermediate between any two dry-bulb readings indicated consecutively in the schedule when the dry-bulb reading does not exceed the wet-bulb reading to the extent indicated in relation to the lower of these two dry-bulb readings

Schedule 5

Dry Bulb

Wet Bulb

Dry Bulb

Wet Bulb

Dry Bulb

Wet Bulb

60.0

58.0

77.0

75.0

94.0

86.0

61.0

59.0

78.0

76.0

95.0

87.0

62.0

60.0

79.0

77.0
96.0
87.5
63.0
61.0
80.0
78.0
97.0
88.0
64.0
62.0
81.0
79.0
98.0
88.5
65.0
63.0
82.0
80.0
99.0
89.0
66.0
64.0
83.0
80.5
100.0
89.5
67.0
65.0
84.0
81.0
101.0
90.0
68.0
66.0
85.0
82.0
102.0
90.0
69.0
67.0
86.0
82.5
103.0
90.5
70.0
68.0
87.0
83.0
104.0
90.5

71.0
469.0
88.0
83.5
105.0
91.0
72.0
70.0
89.0
84.0
106.0
91.0
73.0
71.0
90.0
84.5
107.0
91.5
74.0
72.0
91.0
85.0
108.0
91.5
75.0
73.0
92.0
85.5
109.0
92.0
76.0
74.0
93.0
86.0
110.0
92.0

Provided, however, that Clause (b) shall not apply when the difference between the wet-bulb temperature as indicated by the hygrometer in the department concerned and the wet-bulb temperature taken with a hygrometer outside in the shade is less than 3.5 degrees.

19.

Provision of hygrometer.

- In all departments of cotton spinning and weaving mills wherein artificial humidification is adopted, hygrometers shall be provided and maintained in such positions as are approved by the Inspector. The number of hygrometers shall be regulated according to the following scale :

(a)

Weaving department-One hygrometer for departments witness than 500 looms, and one additional hygrometer for every 500 or part of 500 looms is excess of 500.

(b)

Other departments-One hygrometer for each room of less than 3.00.000 cubic feet capacity and one extra hygrometer for each 2.00.000 cubic feet or part thereof, in excess of this.

(c)

One additional hygrometer shall be provided and maintained outside each cotton spinning and weaving factory wherein artificial humidification is adopted, and in a position approved by the Inspector, for taking hygrometer shade readings.

20.

Exemption from maintenance of hygrometer.

- When the Inspector is satisfied that the limits of humidity allowed by the Schedule to Rule 18 are never exceeded, he may, for any department other than the weaving department, grant exemption from the maintenance of the hygrometer. The Inspector shall record such exemption in writing.

21.

Copy of Schedule to Rule 18 to be affixed near every hygrometer.

- At legible copy of the Schedule to Rule 18 shall be affixed near each hygrometer.

22.

Temperature to be recorded at each hygrometer.

- At each hygrometer maintained in accordance with Rule 19, correct wet and dry bulb temperatures shall be recorded thrice daily during each working day by competent persons nominated by the manager and approved by the Inspector. The temperature shall be taken between 7 a. m. and 9 a. m., between 11 a.m. and 1 p. m. but not in the rest interval and between 4 p. m., and 5.30 p.m. In exceptional circumstances, such additional readings and between such hours as the Inspector may specify, shall be taken. The temperatures shall be entered in humidity Register in the prescribed Form No. 6 maintained in the factory. At the end of each month, the persons who have taken the readings shall sign the Register and certify the correctness of the entries. The register shall always be available for inspection by the Inspector.

23.

Specifications of hygrometer.

(1)

Each hygrometer shall comprise two mercurial thermometers of wet-bulb and dry-bulb of similar construction, and equal in dimensions, scale and divisions of scale. They shall be mounted on a frame with a suitable reservoir containing water.

(2)

The wet-bulb shall be closely covered with a single layer of muslin kept wet by means of a wick attached to it and dropping into the water in the reservoir. The muslin covering and the wick shall be suitable for the purpose, clean and free from size or grease.

(3)

No part of the wet-bulb shall be within 3 inches from the dry-bulb or less than 1 inch from the surface of the water in the reservoir and the water reservoir shall be below it, on the side of it away from the dry-bulb.

(4)

The bulb shall be spherical and of suitable dimensions and shall be freely exposed on all sides to the air of the room.

(5)

The bores of the stems shall be such that the position of the top of the mercury column shall be readily distinguishable at a distance of 2 feet.

(6)

Each thermometer shall be graduated so to that accurate readings may be taken between 50 and 120 degrees.

(7)

Every degree from 50 up to 120 degrees shall be clearly marked by horizontal lines on the stem, each fifth and tenth degree shall be marked by longer marks than the intermediate degree and the temperature marked opposite each tenth degree, i. e., 50, 60, 70, 80, 90, 100, 110 and 120.

(8)

The markings as above shall be accurate, that is to say, at no temperature between 50 and 120 degrees, shall the indicated readings be in error by more than two-tenths of a degree.

(9)

A distinctive number shall be indelibly marked upon the thermometer.

(10)

The accuracy of each thermometer shall be certified by the National Physical Laboratory, London, or some competent authority appointed by the Chief Inspector and such certificate shall be attached to the Humidity Register.

24.

Thermometers to be maintained in efficient order.

- Each thermometer shall be maintained at all times during the period of employment in efficient working order so as to give accurate indications and in particular-

(a)

the wick and the muslin covering of the wet-bulb shall be renewed once a week;

(b)

the reservoir shall be filled with water which shall be completely renewed once a day. The Chief Inspector may direct the use of distilled water or pure rain water in any particular mill or mills in certain localities;

(c)

no water shall be applied directly to the wick or covering during the period of employment.

25.

An inaccurate thermometer not to be used without certificate.

- If an Inspector gives notice in writing that a thermometer is not accurate, it shall not, after one month from the date of such notice, be deemed to be accurate unless and until it has been re-examined as prescribed and a fresh certificate obtained which certificate shall be kept attached to the Humidity Register.

26.

Hygrometer not-to be affixed to wall, etc., unless protected by wood.

(1)

No hygrometer shall be affixed to a wall, pillar, or other surface unless protected therefrom by wood or other non-conducting material at least half an inch in thickness and distant at least one inch from the bulb of each thermometer.

(2)

No hygrometer shall be fixed at a height of more than 5 feet 6 inches from the floor to the top of thermometer stem or in the direct draughts from a fan, window, or ventilating opening.

27.

No reading to be taken within 15 minutes of renewal of water.

- No reading shall be taken for record on any hygrometer within 15 minutes of the renewal of water in the reservoir.

28.

How to introduce steam for humidification.

- In any room which steam pipes are used for the introduction of steam for the purpose of artificial humidification of the air, the following provisions shall apply-

(a)

The diameter of such pipes shall not exceed two inches and in the case of pipes installed after 1st day of January, 1949, the diameter shall not exceed one inch;

(b)

Such pipes shall be as short as is reasonably practicable;

(c)

All hangers supporting such pipes shall be separated from the bare pipes by an efficient insulator not less than half an inch in thickness:

(d)

No uncovered jet from such pipe shall project more than 4½ inches beyond the outer surface of any cover;

(e)

The steam pressure shall be as low as practicable and shall not exceed 70 lbs. per square inch;

(f)

The pipe employed for the introduction of steam into the air in a department shall be effectively covered with such non-conducting material, as may be approved by the Inspector in order to minimise the amount of heat radiated by them into the department.

Rules prescribed under Sub-section (4) of Section 17

29.

[* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987 SRO No. 501/97/22.7.1997.]

30.

Lighting of interior parts.

- [(1) The general illumination over those interior parts of a factory where persons are regularly employed shall be not less than six feet candles measured in the horizontal plane at a level of three feet above the floor :

Provided that in any such parts in which the mounting height of the light source for general illumination necessarily exceeds twenty-five feet measured from the floor or where the structure of the room or the position or construction of this fixed machinery or plant prevents the uniform attainment of this standard, the general illumination at the said level shall not be less than two feet candles and where the work is actually being done, the illumination shall be not less than six feet candles.]

[Substituted vide Orissa Gazette Part III/16.12.1977-SRO No. 834/77/28.11.1977.]

(2)

The illumination over those interior parts of the factory over which persons employed pass, shall, when or where a person is passing, be not less than 0.5 foot candles at floor level.

(3)

The standard specified in this rule shall be without prejudice to the provision of any additional illumination required to render the lighting sufficient and suitable for the nature of the work.

31.

Prevention of glare.

(1)

Where any source of artificial light in the factory is less than 16 feet above floor level, no part of the light source or of the lighting fitting having a brightness greater than 10 candles per square inch shall be visible to persons whilst normally employed within 100 feet of the source except where the angle of elevation from the eye to the source or part of the fitting as the case may be, exceeds 20.

(2)

Any local light, that is to say, an artificial light designed to illuminate particularly an area or part of the area of work of a single operative or small group of operatives working near each other, shall be provided with a suitable shade of opaque material to prevent glare or with other effective means by which the light source is completely screened from the eyes of every person employed at a normal working place, or shall be placed, that no such person is exposed to glare therefrom.

32.

Power of Chief Inspector to exempt.

- Where the Chief Inspector is satisfied in respect or any particular factory or part thereof or in respect of any description of work room or process that any requirement of Rules [30 and 31]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

is inappropriate or is not reasonably practicable, he may by order in writing exempt the factory or part thereof, or description of work room or process from such requirement to such extent and subject to such conditions as he may specify.

33.

[* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

Rules prescribed under Sub-section (4) of Section 8

34.

Quantity-of drinking water.

(1)

The quantity of drinking water to be provided for workers in every factory shall be at least as many gallons a day as there are workers employed in the factory and such drinking water shall be readily available at all times during working hours.

35.

Source of supply.

- The water provided for drinking shall be supplied-

(a)

from [* * *]

[Deleted vide Orissa Gazette Part III-A/18.11.1977.]

a public water supply system; or

(b)

from any other source approved in writing by the Health Officer.

36.

[Means of supply.

[Substituted vide Orissa Gazette Part III-A/18.11.1977.]

- If drinking water is not supplied directly from Taps either connected with public water-supply system or any other water supply system of the factory approved by the Health Officer it shall be kept in suitable vessels, receptacles or tanks fitted with taps and having dust proof cover placed on raised stands or platforms in shades and having suitable arrangement of drainage to carry away the spilt water. Such vessels or receptacles or tanks shall be kept clean and water renewed at least once everyday. All practicable measures shall be taken to ensure that the water is free from contamination.]

37.

Cleanliness of well or reservoir.

(1)

Drinking water shall not be supplied from any open well or reservoir unless it is so constructed, situated, protected and maintained as to be free from the possibility of pollution by chemical or bacterial and extraneous impurities.

(2)

Where drinking water is supplied from such well or reservoir the water in it shall be sterilised once a week or more frequently if the Inspector by written order so requires, and the date on which sterilising is carried out shall be recorded : Provided that this requirement shall not apply to any such well or reservoir if the water therein is filtered and treated to the satisfaction of the Health Officer before it is supplied for consumption.

38.

Report from Health Officer.

- The Inspector may, by order in writing, direct the manager to obtain, at such time or at such intervals as he may direct a report from the Health Officer as to the fitness for human consumption of the water supplied to the workers, and in every case to submit to the Inspector a copy of such report as soon as it is received from the Health Officer.

39.

Cooling of water.

- In every factory wherein more than two hundred and-fifty workers are ordinarily employed -

(a)

the drinking water supplied to the workers shall from the first April to the 30th September in every year, be cooled by ice or other effective method :

Provided that if ice is placed in the drinking water, the ice shall be clean and wholesome and shall be obtained only from a source approved in writing by the Health Officer;

(b)

the cooled drinking water shall be supplied in every canteen, lunch room and rest-room and also at conveniently accessible points throughout the factory which for the purpose of these rules shall be called "Water Centres";

(c)

the water centres shall be sheltered from the weather and adequately drained;

(d)

the number of water centres to be provided shall be "one centre" for every 150 persons employed at any one time in the factory :

Provided that in the case of a factory where the number of persons employed exceeds 500 it shall be sufficient if there, is one such "centre" as aforesaid for every 150 persons up to the first 500 and, one for every 500 persons thereafter;

(e)

every water centre shall be maintained in a clean and orderly condition;

(f)

[the means of supply of cooled drinking water shall be either directly through taps connected to water coolers or any other system for cooling of water, or by means of vessels, receptacles or tanks fitted with taps and having dust proof

covers and placed on raised stands or platforms in shade, and having suitable arrangement of drainage to carry away the spilt water. Such vessels, receptacles or tanks shall be kept clean and the water renewed at least once everyday:]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

[Provided further that the distance of the place of work of any worker shall not be more than fifty metres from the nearest water centre or any distance as may be specified by the Inspector]

[Inserted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

Rules prescribed under Sub-section (3) of Section 1

40.

Latrine accommodation.

- Latrine accommodation shall be provided in every factory on the following scale :

(a)

where females are employed there shall be at least one latrine for every 25 females:

(b)

where males are employed, there shall be at least one latrine for every 25 males : provided that, where the number of males employed exceeds 100, it shall be sufficient if there is one latrine for every 25 males up to the first 100, and one for every 50 thereafter.

In calculating the number of latrines required under this rule, any odd number of workers less than 25 or 50, as the case may be, shall be reckoned as 25 or 50.

41.

Latrines to conform to public health requirements.

- Latrines other than those connected with an efficient water-borne sewerage system shall comply with the requirements of the Public Health Authorities.

42.

Privacy of latrines.

- Every latrine shall be under cover and so partitioned off as to secure privacy, and shall have a proper door and fastenings.

43.

Signboards to be displayed.

- Where workers of both sexes are employed there shall be displayed outside each latrine block a notice in the language understood by the majority of the workers "For Men only" or "For Women only" as the case may be. The notice shall also bear the figure of a man or of a woman, as the case may be.

44.

Urinal accommodation.

- Urinal accommodation shall be provided for the use of male workers and shall not be less than 2 feet in length for every 50 males: provided that where the number of males employed exceeds 500 it shall be sufficient if there is one urinal for every 50 males up to the first 500 employed and one for every 100 thereafter.

In calculating the urinal accommodation required under this rule any odd number of workers less than 50 or 100, as the case may be, shall be reckoned 50 or 100.

45.

Urinals to conform to public health requirements.

- Urinals, other than those connected with an efficient water-borne sewerage system, and urinals in a factory wherein more than two hundred and fifty workers are ordinarily employed, shall comply with the requirements of the Public Health Authorities.

46.

Certain latrines and urinals to be connected to sewerage system.

- When any general system of underground sewerage with an assured water-supply for any particular locality is provided in a municipality, all latrines and urinals of a factory situated in such locality shall, if the factory is situated within 100 feet of an existing sewer, be connected with that sewerage system.

47.

White-washing, colour washing of latrines and urinals.

- The walls, ceilings and partitions of every latrine and urinal shall be whitewashed or colour-washed and the white-washing or colour washing shall be repeated at least once in every period of four months. The dates on which the whitewashing or colour-washing is carried out shall be entered in the prescribed Register (Form No. 7) :

Provided that this rule shall not apply to latrines and urinals, the walls, ceilings or partitions of which are laid in glazed tiles or otherwise finished to provide a smooth, polished, impervious surface and that they are washed with suitable detergents and disinfectant at least once in every period of four months.

48.

Construction and maintenance of drains.

- All drains carrying waste or sullage water shall be constructed in masonry or other impermeable material and shall be regularly flushed and the effluent disposed of by connecting such drains with a suitable drainage line :

Provided that, where there is no such drainage line, the effluent shall be deodorized and rendered innocuous and then disposed of in a suitable manner to the satisfaction of the Health Officer.

49.

Water taps in latrines.

(1)

Where piped water-supply is available a sufficient number of water taps, conveniently accessible provided in or near such latrine accommodation.

(2)

If piped water-supply is not available, sufficient quantity of water shall be kept stored in suitable receptacle's near the latrines.

Rules prescribed under Sub-section (2) of Section 20

50.

Number and location of spittoons.

- The number and location of the spittoons to be provided shall be to the satisfaction of the Inspector.

51.

Types of spittoons.

- The spittoons shall be either of the following types :

(a)

a galvanized iron container with a conical funnel-shaped cover. A layer of suitable disinfectant liquid shall always be maintained in, the container;

(b)

a container filled with dry clean sand and covered with a layer of bleaching powder;

(c)

any other type approved by the Chief Inspector.

52.

Cleaning of spittoon.

- The spittoon mentioned in Clause (a) of Rule 51 shall be emptied, cleaned and disinfected at least once everyday; and the spittoon mentioned in Clause (b) of Rule 51 shall be cleaned by scrapping out the top layer of sand as often as necessary or at least once everyday.

Chapter-IV Safety

Further precautions prescribed under Sub-section (2) of Section 21

53.

Further safety precautions.

(1)

Without prejudice to the provisions of Sub-section (1) of Section 21, in regard to the fencing of machines, the further precautions specified in the schedules annexed hereto shall apply to the machines noted in each schedule.

(2)

This rule shall come into force, in respect of any class or description of factories where machines noted in the said schedules are in use on such dates as the State Government may, by notification in the Official Gazette, appoint in this behalf.

[Schedule I]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

Textile machinery except machinery used in Jute Mills

1. Application-The requirements of this Schedule shall apply to machinery in factories engaged in the manufacture or processing of textiles other than Jute textiles but shall not apply to machinery in factories engaged exclusively in the manufacture of synthetic fibres.

2. Definitions-For the purposes of this Schedule-

(a)

"Calendar" means a set of heavy rollers mounted on vertical side frames and arranged to pass cloth between them. Calendars may have two to ten rollers or bowls, some of which can be heated;

(b)

"Card" means a machine consisting of cylinders of various sizes and in certain cases flats covered with card clothing and set in relation to each other so that fibres in staple form may be separated into individual relationship. The speed of the cylinders and their directions of rotation varies. The finished product is delivered as a sliver. Cards of different types are the revolving flat card, the roller and clearer card, etc.;

(c)

"Card clothing" means the material with which the surfaces of the cylinder, doffer, flats, etc. of a card are covered and consists of a thick foundation material made of either textile fabrics through which are pressed many fine closely spaced specifically bent wires, or mounted saw toothed wire;

(d)

"Comber" means a machine for combing fibres of cotton, wool, etc. The essential parts and device for feeding forward a fringe of fibres at regular intervals and an arrangement of combs or pins, which, at the right time pass through the fringe. All tangled fibres, short fibres and neps are removed and the long fibres are laid parallel;

(e)

"Combing machinery" means a general classification of machinery including combers, silver, lap machines, ribbon lap machines, and gill boxes, but excluding cards;

(f)

"Continuous bleaching range" means a machine for bleaching of cloth in rope or open-width form with the following arrangement. The cloth, after wetting out, passes through a squeeze, roll into a saturator containing a solution of caustic soda and then to an enclosed J-Box. A V-shaped arrangement is attached to the front part of the J-Box for uniform and repaid saturation of the cloth with steam before it is packed down in the J-Box. The cloth in a single strand rope form, passes over a guide roll down the first arm of the "V" and up the second. Steam is injected into the "V" at the upper end of the second arm so that the cloth is rapidly saturated with steam at this point. The J-Box capacity is such that cloth will remain hot for a sufficient time to complete the scouring action. It then passes a series of washers with a squeeze roll in between. The cloth then passes through a second set of saturator, J-Box and washer, where it is treated with the peroxide solution. By slight modification of the form of the unit the same process can be applied to open-width cloth;

(g)

"Embossing calender" means a calender with two or more rolls, one of which is engraved for producing figures or effects of various kinds on a fabric;

(h)

"Garnett machine" means any of a number of types of machines for opening hard twisted waste of wool, cotton, silk, etc. Essentially such machines consist of a licker-in or one or more cylinders, each having a complement worker and stripper rolls; and a fancy roll and doffer. The action of such machines is somewhat like that of a wool card, but it is much more severe in that the various rolls are covered with garnett wire instead of card clothing;

(i)

"Gillbox" means a machine used in the worsted system of manufacturing yarns. Its function is to arrange fibres in parallel order. Essentially, it consists of a pair of feed rolls and a series of flowers where the flowers move at a faster surface speed and perform a combing action;

(j)

"In running rolls" means any pair of rolls or drums between which there is a "nip;"

(k)

"Inter locking arrangement" a device that prevents the setting in motion of a dangerous part of a machine or the machine

itself while the guard, cover or door provided to safeguard against dangers open or unlocked, and which will also hold the guard, cover or door closed and locked while the machine or the dangerous part is in motion;

(l)

"Kier" means a large metal vat, usually a pressure type, in which fabrics may be boiled out, bleached, etc.;

(m)

"Loom" means a machine for effecting the inter locking of two series of Yarns crossing one another at right angles. The warp Yarns are wound on a warp beam and pass through heades and reeds. The filling is shot across in a shuttle and settled in place by reeds and slay and the fabric is wound on a cloth beam;

(n)

"Mule" means a type of spinning frame having a head stock and a carriage as its two main sections. The head stock is stationary. The carriage is movable and it carries the spindles which draft and spin the roving into yam. The carriage extends over the whole width of the machine and moves slowly towards and away from the head stock during the spinning operation;

(o)

"Mercerizing range" means a 3 bowl mangle a tanter frame and a number of boxes for washing and scouring. The whole set up in a straight line and all parts operate continuously. The combination is used to saturate the cloth with sodium hydroxide, stretch it which saturated and washing out most of the caustic before releasing tension;

(p)

"NIP" is the danger zone between two tolls or drums which, by virtue of their positioning and movement, create a nipping hazard;

(q)

"Openers and pickers" means a general classification of machinery which includes breaker pickers, intermediate pickers, finisher pickers, single process pickers, multiple process pickers, willow machines, card and picker waste cleaners, thread extractors, shredding machines, roving waste openers, shoddy pickers, bale breakers, feeders, vertical openers, lattice cleaners, horizontal cleaners and any similar machinery equipped with either cylinders, screen section, calender section, rolls or beaters used for the preparation of stock for further processing;

(r)

"Paddler" means a trough for a solution and two or more squeeze rolls between which cloth passes after being pressed through a mordant or dye bath;

(s)

"Plaiting machine" means a machine used to lay cloth into folds of regular length for convenience of subsequent process or use;

(t)

"Ribbon rapper" means a machine or a part of a machine used to prepare laps for feeding a cotton comb; its purpose is to provide a uniform lap in which the fibres have been straightened as much as possible;

(u)

"Roller printing machine" means a machine consisting of a large central cylinder or pressure bowl, around the lower part of the perimeter, of which is placed a series of engraved colour rollers (each having colour through), a furbisher roller, doctor blades, etc. The machine is used for printing fabrics;

(v)

"Rotary staple cutter" means a machine consisting of one or more rotary blades used for the purpose of cutting textile fibres into staple lengths;

(w)

"Stanforizing machine" means a machine consisting of a large steam heated cylinder and endless, thick woollen felt blanket which is in close contact with the cylinder for most of its perimeter and an electrically heated shoe which presses the cloth against the blanket while the latter is in a stretched condition as it curves a round feed-in roll;

(x)

"Shearing machine" means a machine used for shearing cloth. Cutting action is provided by a number of steel blades spirally mounted on a roller. The roller rotates in close contact with a fixed ledger blade. There may be from one to six such rollers on a machine;

(y)

"Singoing machine" means a machine which comprises of a heated roller, plate or an open gas flame. The cloth or yarn is rapidly passed over the roller or the plate or through the open gas flame to remove fuzz or hairiness by burning;

(z)

"Slasher" means a machine used for applying a size mixture to warp Yarns. Essentially, it consists of a stand for holding section beams, a size box, one or more cylindrical dryers or an enclosed hot airdryer and beaming and for winding the yarn on the loom beams;

(aa)

"Sliver rapper" means a machine or a part of a machine in which a number of parallel card slivers are drafted slightly laid side by side in a compact sheet, and wound into a cylindrical package;

(bb)

"Starch mangle" means a mangle that is used specifically for starching cotton goods. It commonly consists of two large rolls and a shallow open vat with several immersion rolls. The vat contains the starch solution;

(cc)

"Tenter frame" means a machine for drying cloth under tension. It essentially consists of a pair of endless travelling chains fitted with clips of fine pins and carried on tracks. The cloth is firmly held at the selvedges by two chains which diverge as they move forward so that the cloth is brought to the desired width;

(dd)

"Water mangle" means a calender having two or more rolls used for squeezing water from fabrics before drying. Water mangles also may be used in any other ways during the finishing of various fabrics; and

(ee)

"Warper" means a machine for preparing and arranging the Yarns intended for the warp of a fabric, specifically a beam warper.

3. General safety requirements - (1) Every textile machine shall be provided with individual mechanical or electrical means for starting and stopping such machine. Belt shifter on machine driven by belts and shafting shall be provided with a belt shifter lock or an equivalent positive locking device.

(2)

Stopping and starting handles or other control shall be of a such design and so positioned as to prevent the operators' hand or fingers from striking against any moving part or any other part of the machine.

(3)

All belts, pulleys, gears, chains, sprocket wheels and other dangerous moving parts of machinery which either form part of the machinery or are used in association with it, shall be securely guarded.

4. Openers and pickers - (1) In all opener or picker machinery beaters and other dangerous parts shall be securely fenced by suitable guards so as to prevent contact with them. Such guards and doors or covers of openings giving access to any dangerous part of the machinery shall be provided with inter-locking arrangement :

Provided that in the case of doors or covers of openings giving access to any dangerous part, other than beater covers instead of the interlocking arrangements, such openings may be so fenced by guards which prevent access to any such dangerous part and which is either kept positively locked in position or fixed in such a manner that it cannot be removed without the use of hand tools.

(2)

The feed rolls on all opener and picking machinery shall be covered with a guard designed to prevent the operator from reaching the nip while the machinery is in operation.

(3)

The lap forming rollers shall be fitted with a guard or cover which shall prevent access to the nip at the intake of the lap roller and fluted roller as long as the weightaged rack is down. The guard or cover shall be so locked that it cannot be raised until the machine is stopped and the machine cannot be started until the cover or guard is closed :

Provided that the foregoing provision shall not apply to the machines equipped with automatic lap forming devices :

Provided further that any such machine equipped with an automatic lap forming device shall not be used unless the automatic lap forming device is in efficient working order.

5. Cotton cards - (1) All cylinder doors shall be secured by an interlocking arrangement which shall prevent the door being opened until the cylinder has ceased to revolve and shall render it impossible to re-start the machine until the door has been closed :

Provided that the latter requirement in respect of the automatic locking device shall not apply while stripping or grinding operations are carried out:

Provided further that stripping or grinding operations shall be earned -out only by specially trained adult workers wearing tight fitting clothing whose names have been recorded in the register prescribed under Sub-section (1) of Section 22.

(2)

The lick-in shall be guarded so as to prevent access to the dangerous parts.

(3)

Every card shall be equipped with an arrangement that would enable the card cylinder to be driven by power during stripping or grinding operations without having to either shift the main belt to the fast pulley of the machine or to dismantle the inter-locking mechanism. Such an arrangement shall be used only for stripping or grinding operations.

6. Garnett machines-(1) Garnettlicker-ins shall be enclosed.

(2)

Garnett fancy rolls shall be enclosed by guards. These shall be installed in a way that keeps worker rolls reasonably accessible for removal or adjustment.

(3)

The underside of the gamett shall be guarded by a screen mesh or other forms of enclosures to prevent access.

7. Gill boxes-(1) The feed end shall be guarded so as to prevent fingers being caught in the pins of the intersecting fallers

(2)

All nips of in-running rolls shall be guarded by suitable nip guards conforming to the following specifications, namely :

Any opening which the guard may permit when fitted in position shall be so restricted with respect to the distance of the opening from any nip point through that opening and in any circumstances, the maximum width of the opening shall not exceed the following :

Distance of opening from nip point

Maximum width of opening

0 to 38 mm

6 mm.

39 to-63 mm

10 mm.

64 to 88 mm

13 mm.

89 to 140 mm

15 mm.

141 to 165 mm

19 mm.

166 to 190 mm

22 mm.

191 to 215 mm

32 mm.

8. Silver and ribbon rappers (cotton) - The calendar drums and the lap spool shall be provided with a guard to prevent access to the nip between the in-running rolls.

9. Speed frames-Jack box wheels at the head stock shall be guarded and the guard shall have interlocking arrangement.

10. Spinning mules-Wheels on Spinning mule carriages shall be provided with substantial wheel guards, extending to within 6 mm. of the rails.

11. Warpings Swiveled double-bar gates shall be installed on all warpings operating in excess of 41.0 metres per minutes These gates shall have interlocking arrangement, except for the purpose of inching or jogging :

Provided that the top and bottom bars of the gate shall be at least 1.05 and 0.53 metres high from the floor or working platform, and the gate shall be located 38 mm from the vertical tangent to the beam head.

12. Slasbers-(1) Cylinder dryers-(a) All open nips of in running rolls shall be guarded by nip guards conforming to the requirements in paragraph 7(2).

(b)

When slashers are operated by control levers, these levers shall be connected to a horizontal bar or treadle located not more than 170 cm above the floor to control the operation from any point.

(c)

Slashers operated by push-button control shall have stop and start button located at each end of the machine, and additional buttons located on both sides of the machine at the size box and the delivery end. If calender rolls are used, additional buttons shall be provided at both sides of the machine at points near the nips except when slashers are equipped with an enclosed dryer as in sub-paragraph (b).

(2)

Enclosed hot air dryer - (a) All open nips of the top squeezing rollers shall be guarded by nip guards conforming to the requirements in paragraph 7(2).

(b)

When slashers are operated by control levers, these levers shall be connected to a horizontal bar or treadle located not more than 170 cm. above the floor to control the operation from any point.

(c)

Slashers operated by push-button control shall have stop and start buttons located at each end of the machine and additional stop and start buttons located on both slides of the machines at intervals spaced not more than 1.83 meters on centres.

13. Looms-Each loom shall be equipped with suitable guards designed to minimise the danger from flying shuttles.

14. Valves of kiers, tanks and other containers - (1) Valve controlling the flow of steam, injurious gases or liquids into a kiet, or any other tank or container into which a person is likely to enter in connection with a process operation, maintenance or for any other purpose, shall be provided with a suitable locking arrangement to enable the said person to lock the valve securely in the closed position and retain the key with him before entering the kier tank or container.

(2)

Wherever boiling tanks, caustic tanks and any other containers from which liquids which are hot, corrosive or toxic may overflow or splash, are so located that the operator cannot see the contents from the floor or working area emergency shut off valves which can be controlled from a point not subject to danger of splash shall be provided to prevent danger.

15. Shearing machines-AW revolving blades on shearing machine shall be guarded so that the opening between the cloth surface and the bottom of the guard will not exceed 10 mm.

16. Continuous bleaching range (cotton and rayon)-The nip of all in-running rolls on open width bleaching machine rolls shall be protected with a guard to prevent the worker from being caught at the nip. The guard shall extend across the entire length of the nip.

17. Mercerizing range (piece goods)-(1) A stopping device shall be provided at each end of the machine.

(2)

A guard shall be provided at each end of the frame between the in-running chain and the clip opener.

(3)

A nip guard shall be provided for the in-running rolls of the mangle and washers and such guard shall conform to the requirements in paragraph 7(2).

18. Tenterframes-(1) A stopping device shall be provided at each end of the machine.

(2)

A guard shall be provided at each end of the machine frame at the in-running chain and clip opener.

19. Paddlers-Suitable nip guards conforming to the requirements in paragraph 7 (2) shall be provided to all dangerous in-running rolls.

20. Centrifugal extractors-(1) Each extractor shall be provided with a guard for the basket and the guard shall have interlocking arrangement.

(2)

Each extractor shall be equipped with a mechanically or electrically operated break to quickly stop the basket when the power driving the basket is shut off.

21. Squeezer or wringer extractor, water mangle starch mangle, back washer (worsted yarn) carding machines and decanting machines-All in-running rolls shall be guarded with nip guards, conforming to the requirements in paragraph 7(2).

22. Sanforizing and palmer machined-(1) Nip guards shall be provided on all accessible in-running rolls and these shall conform to the requirements in paragraph 7(2).

(2)

Access from the sides to the nips of in-running rolls shall be fenced by suitable side guards.

(3)

A safety trip rod, cable or wire centre cord shall be provided across the front and back of all plamer cylinders extending the length of the face of the cylinder. It shall operate readily whether pushed or-pulled. The safety trip shall riot be more than 170 cm. above the level at which the operator stands and shall be readily accessible.

23. Rope washers - (1) Splash guards shall be installed on all rope washers unless trip machine is so designed as to prevent the water at liquid from splashing the operator, the floor or working surface.

(2)

A safety trip rod, cable or wire centre cord shall be provided across the front and back of all rope washers extending the length of the face of the washer. It shall operate readily whether pushed or pulled. This safety trip shall be not more, than 170 cm. above the level on which the operator stands and shall be readily accessible.

24. Laundry washer tumbler or shaker-(1) Each drying tumbler, each double cylinder shaker or clothes tumbler and each washing machine shall be equipped with an interlocking arrangement which will, prevent the power operation of the inside cylinder when the outer door on the case or shell is open and which will also prevent the outer door or the case or shell from being opened without shutting off the power and the cylinder coming to a stop. This should not prevent the movement of the inner cylinder, by means of a hand operated mechanism or an inching device.

(2)

Each closed barrel shall also be equipped with adequate means for holding open the doors or covers of the inner and outer cylinders or shells while it is being leaded or unleaded.

25. Printing machine (roller type)-(1) All-in-running rolls shall be guarded by nip guards conforming to the requirements in paragraph 7(2).

(2)

The engrave roller gears and the large crown wheel shall be guarded.

26. Calenders-The nip at the in-running side of the rolls shall be provided with a guard extending across the entire length of the nip and arranged to prevent the fingers of the workers from being pulled in between the rolls or between the guard and the rolls and so constructed that the cloth can be fed into the rolls safely.

27. Rotary staple cutters-The cutter shall be protected by a guard to prevent hands reaching the cutting zone.

28. Plaiting machines-Access to the trap between the knife and card bar shall be prevented by a guard.

29. Hand baling machine-An angle iron handle stop guard shall be installed at right angle to the frame of the machine. The stop guard shall be so designed and so located that it will prevent the handle from travelling beyond the vertical position should the handle slip from the operator's hand when the pawl has been released from the teeth of the take-up gear.

30. Flat work ironer-Each flat work or collar ironer shall be equipped with a safety bar or other guard across the entire front of the feed or first pressure rolls, so arranged that the striking of the bar or guard by the hand of the operator or other person will stop the machine; The guard shall be such that the operator or other person cannot reach into the rolls without removing the guard. This may be either a vertical guard on all sides or a complete cover. If a vertical guard is used, the distance from the floor or working platform to the top of the guards shall he not less than 1.83 metres.

II

(Cotton ginning)

Line shaft-The line shaft or second motion in cotton ginning factories, when below floor level, shall be completely enclosed by a continuous wall or unclimbable fencing with only so many openings as are necessary for access to the shaft for removing cotton seed, clearing and oiling, and such openings shall be provided with gates or doors which shall be kept closed and locked.

III

(Wood-working machinery)

1. Definitions-For the purposes of this schedule-

(a)

Wood working machine means a circular saw, band saw, planning, machine, chain mortising machine or vertical spindle

moulding machine operating of wood or cork.

(b)

Circular saw means a circular saw working in a bench (including a rank bench) but does not include a pendulum or similar saw which is moved towards the wood for purpose of cutting operation.

(c)

Band saw means a band saw, the cutting portion of which runs in a vertical direction but does not include a log saw or band re-sawing machine.

(d)

Planing machine means a machine for over-hand planing or for thicknessing or for both operations.

2. Stopping and starting device-An efficient stopping and starting device shall be provided on every wood-working machine. The control of this device shall be in such a portion as to be readily and conveniently operated by the person in charge of the machine.

3. Space around machines-The space surrounding every wood-working machine on motion shall be kept free from obstruction.

4. Flood-The floor surrounding every wood-working machine shall be maintained in good and level condition and shall not be allowed to become slippery and as far as practicable shall be kept from chips or other loose material.

5. Training and supervision-(1) No person shall be employed at a wood-working machine unless he has been sufficiently trained to work that class of machine or unless he works under the adequate supervision of a person who has thorough knowledge of the working of the machine.

(2)

A person who is being trained to work a woodworking machine shall be fully and carefully instructed as to the dangers of the machine and the precautions to be observed to secure safe working of the machine.

6. Circular saws-Every circular saw shall be fenced as follows.

(a)

Behind and in direct line with the saw there shall be a driving knife, which shall have a smooth surface, shall be strong, rigid and easily adjustable and shall also conform to the following conditions:

(i)

The edge of the knife nearer the saw shall form an arc of a circle having a radius not exceeding the radius of the largest saw used on the bench.

(ii)

The knife shall be maintained as close as practicable, to the saw having regard to the nature of the work being done at the time, and at the level of the bench table the distance between the front edge of the knife and the teeth of the saw not exceeding half an inch.

(iii)

For a saw of a diameter of less than 24 inches the knife shall extend upwards from the bench table to within one inch of the top of the saw, and for a saw of a diameter of 24 inches or over shall extend onwards from the bench table to a height of at least nine inches.

(b)

The top of the saw shall be covered by a strong and easily adjustable guard with a flange at the said of the saw farthest from the fence. The guard shall be kept so adjusted that the said flang shall extend below the roots of tile teeth of the saw. The guard shall extend from the top of the riving knife to a point as low as practicable at the cutting edge of the saw.

(c)

the part of the saw below the bench table shall be protected by two plates of metal or other suitably material one on each side of the saw such plates shall not be more than six inches apart, and shall extend from the side of the saw outwards to a distance of not less than two inches beyond the teeth of the saw. Metal plates, if not based, shall be of a thickness of at least 1/10 inch, or if beaded be of a thickness of at least 1/20 inch.

7. Ptish sticks-A push stick or other suitable appliance shall be provided for use at every circular saw at every vertical spindle-moulding machine to enable the work to be done without unnecessary risk.

8. Band saws-Every band saw shall be guarded as follows :

(a)

Both sides of the bottom pully shall be completely encased by sheet or expanded metal or other suitable material.

(b)

The front of the top pully shall be covered with sheet or expanded metal or other suitable materials.

(c)

All portions of the blade shall be enclosed or otherwise securely guarded except the portion of the blade between the bench table and the top guide.

9. Planning machines-(1) A planning machine (other than a planning machine which is mechanically fed) shall not be used for overhand planning unless it is fitted with a cylindrical cutter block.

(2)

Every planning machine used for overhand planning shall be provided with a "bridge" guard capable of covering the full length and breadth of the cutting slot in the bench, and so constructed as to be easily adjusted both in a vertical and horizontal direction.

(3)

The feed roller or every planning machine used for thicknessing except the combined machine for over hand planning and thicknessing shall be provided with an efficient guard.

10. Vertical spindle moulding machines-(1) The cutter of every varietal spindle moulding machine shall be guarded by the most efficient guard having regard to the nature of work being performed.

(2)

The wood being moulded at a vertical spindle moulding machine shall, if practicable, be held in a jig or holder of such construction as to reduce as far as possible the risk of accident to the workers.

11. Chain mortising machines-The chain of every chain mortising machine shall be provided with a guard which shall enclose the cutters as far as practicable.

12. Adjustment and maintenance of guards-The guards and other appliances required under this schedule shall be-

(a)

maintained in an efficient state ;

(b)

constantly kept in position while the machinery is in motion and

(c)

so adjusted as enable the work to be done without unnecessary risk.

13. Exemptions-Paragraphs 6, 8, 9 and 10 shall not apply to any wood working machine in respect of which it can be proved that other safeguards are provided, maintained and used which render the machine as safe as it would be if guarded in the manner prescribed in this schedule.

IV

(Rubber mills)

1. Installation of machines-Mills for breaking down, cracking, grating, mixing refining and warming rubber or rubber compound shall be so installed that the top of the front roll is not less than forty six inches above the floor or working level; provided that in existing installations where the top of the front roll is below this height a strong rigid distance bar guards shall be fitted across the front of the machine in such position that the operator cannot reach the nip of the rolls.

2. Safety devices-(1) Rubber mills shall be equipped with-

(a)

hoppers so constructed or guarded that it is impossible for the operator to come into contact in any manner with the nip of the rolls

(b)

horizontal safety-trip rods or tight wire cawes across both front and rear, which will, when pushed or pulled, operate instantly to disconnect the power and apply the brakes, or to reverse the rolls.

(2)

Safety-trip rods or tight wire cables on rubber mills shall extend across the entire length of the face of the rolls and shall be located not more than sixty-nine inches above the floor or working level.

(3)

Safety-trip rods and tight wire cables on all rubber mills shall be examined and tested daily in the presence of the manager or other responsible person and if any defect is disclosed by such examination and test, the mill shall not be

used until such defect has been remedied.

Rules prescribed under Sub-section (2) of Section 23

54.

Employment of young persons on dangerous machines.

- The following machines shall be deemed to be of such dangerous character that young persons shall not work at them unless the provisions of Section 23 (1) are complied with :

Power presses other than hydraulic presses;

Milling machines used in the metal trades;

Guillotine machines

Circular saws;

Platen printing machines.

Rules framed under Section 28

55.

Exemption of certain hoists and lifts.

- [(1) A register shall be maintained to record particulars of examination of hoists of lifts and shall give particulars as shown in Form No. 7-A.]

[Substituted vide Orissa Gazette Part III/2.12.1967.]

(2)

In pursuance of the provisions of Sub-section (4) of Section 28 in respect of any class or description of hoist or lift specified in the first column of the following schedule the requirements of Section 28 specified in the second column of the said schedule and set opposite to that class or description of hoist or lift shall not apply.

Rules prescribed under Sub-section (2) of Section 29

55A.

No lifting machine and no chain, rope or lifting tackle except fibre rope or fibre rope sling, shall be taken into use in any factory for the first time in that factory unless it has been tested and all parts have been thoroughly examined by a competent person and certificate of such a test and examination specifying the safe working load or loads and signed by the person making the test and the examination, has been obtained and is kept available for inspection.

55B.

(a)

Every jib-crane so construed that the safe working load may be varied by the raising or lowering of the jib, shall have attached there to either an automatic indicator of safe working loads or an automatic jib angle indicator and a table indicating the safe working loads at corresponding inclinations of the jib or corresponding radii of the load.

(b)

A table showing the safe working loads of every kind and size of chain, rope or lifting tackle in use and in the case of a multiple sling the safe working load at different angles of the legs, shall be posted in the store, in which the chains, rope or lifting tackles are kept, and in prominent positions of the premises and no rope, chain or lifting tackle not shown in the table shall be used. The foregoing provisions of this sub-rule shall not apply in respect of any lifting tackle if the safe working load thereof, or in the case of a multiple sling, the safe working load at different angles of the legs is plainly marked upon it.

55C.

(A)

A register shall be maintained with the following columns to record particulars of examinations of lifting machines, chains, ropes and lifting tackles-

(i)

Name of occupier of factory;

(ii)

Address of the factory;

(iii)

Distinguishing number or mark, if any, and description sufficient to identify the lifting machine, chain, rope or the lifting tackle;

(iv)

Date when the lifting machine, chain, rope or lifting tackle was first taken into use in the factory;

(v)

Date and number of the certificate relating to any test and examination made under Rules 55-A and 55-G together with the name and address of the person who issued the certificate;

(vi)

Date of each periodical thorough examination made under Rule 55-F and the name of the examiner ;

(vii)

Date of annealing or other heat treatment of the chain and other lifting tackle made under Rule 55-E and by whom it was carried out;

(viii)

Particulars of any defects affecting the safe working load found at any such thorough examination or after annealing and of the steps taken to remedy such defects.

(B)

The register shall be kept readily available for inspection.

55D.

[(a)]

[Re-numbered vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

All rails on which a travelling crane moves and every track on which the carriage of a transporter or runway moves, shall be of proper size and of adequate strength and have an even running surface and every such rail or track shall be properly laid, adequately supported and properly maintained.

(b)

[(i) To provide access to rail tracks of overhead travelling cranes suitable passage-ways of at least 5 c. m. (20 inches) width with toe-boards and double hand rails 90 cm. (3 feet) high shall be provided along side, and clear of, the rail tracks of overhead travelling cranes, such that no moving part of the crane can strike persons on the ways and the passageway shall be at a lower level than the crane track, itself safe across ladders shall be provided at suitable intervals to afford access to these passageways, and from passage-ways to the, rail tracks.]

[Inserted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

(ii)

[The Chief Inspector of Factories may, for reasons to be specified in writing, exempt any factory in respect of any overhead travelling crane from the operation of any of provisions of Clause (i) subject to such conditions as he may specify.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

55E.

All chains and lifting tackle, except a rope sling shall, unless they have been subjected to such other heat treatment as may be approved by the Chief Inspector of Factories, be effectively annealed under the supervision of a competent person at the following intervals

(i)

All chains, slings, rings, hooks, shackles and swivels used in connection with molten metal or molten slag or when they are made of half inch bar or smaller, once at least in every six months.

(ii)

All other chains, rings, hooks, shackles and swivels in general use once at least in every twelve months :

Provided that chains and lifting tackle not in frequent use shall, subject to the Chief Inspector's approval, be annealed only when necessary. Particulars of such annealing shall be entered in a register prescribed under Rule 55-C.

55F.

Nothing in the foregoing Rule 55-E shall apply to the following classes of chains and lifting tackles :

(i)

Chains made of malleable cast iron;

(ii)

Plate link chains;

(iii)

Chains, rings, hooks, shackles and swivels made of steel or of any non-ferrous metal;

(iv)

Pitched chains, working on sprocket or pocked wheels;

(v)

Rings, hooks, shackles, and swivels permanently attached to pitched chains, pulley blocks or weighing machines;

(vi)

Hooks and swivels having screw threaded parts or ball bearing or other case hardened parts;

(vii)

Socket shackles secured to wire ropes white-metal capping;

(viii)

Bordeiux connection.

Such chains and lifting tackle shall be thoroughly examined by a competent person once at least in every twelve months, and particulars of the results of such examination entered in the register prescribed under Rule 55-C.

55G.

All lifting machines, chains, ropes and lifting tackle except a fibre rope or rope sling, which have been lengthened, altered or repaired by welding or otherwise, shall before being again taken into use, be adequately re-tested and re-examined by a competent person and a certificate of such test and examination be obtained and particulars entered in the register kept in accordance with Rule 55-C.

55H.

No person under 19 years of age and no person who is not sufficiently competent and reliable shall be employed as driver of a lifting machine whether driven by mechanical power or otherwise or to give signals to a driver.

55I.

"A competent person" for the purpose of these rules shall be the persons whose appointment has been approved by the Chief Inspector of Factories.

Schedule 9

Class or description of hoist or lift

Requirement which shall not apply

I

II

Hoist of lift mainly used for raising materials for charging blast furnaces or lime kilns

Hoists not connected with mechanical power and which are not used for carrying persons

Sub-section 1 (b) in so far as it requires a gate at the bottom landing; Subsection 1 (d); Sub-section 1(e)

Sub-section 1 (b) in so far as it requires the hoist way or lift way enclosure to be so constructed as to prevent any person or thing from being trapped between any part of the hoist or lift and any fixed structure or moving part; Sub-section 1 (e).

[Rules under Section 29 (1) (c) of the Factories Act, 1948]

[Inserted vide Orissa Gazette Part III-A/1976-SRO No. 917/76/27.8.1976.]

55J.

Stoppers on wheel track of travelling cranes.

- Where the Chief Inspector of Factories is satisfied that in a factory, due to short down or for any other reason, it is not practicable to maintain a minimum distance of twenty feet between the person employed or working on or near the wheel track of a travelling crane and the crane, he may, on the request of the manager, reduce the distance to such extent as he may consider necessary and also prescribe further precautions including appointment of suitable number of supervisors to ensure the safety of the persons while they are employed or working on or near the track.

Rules prescribed under Sub-section (2) of Section 31

56.

[Pressure vessel or plants.

[Inserted vide Orissa Gazette Part III-A/1976-SRO No. 917/76/27.8.1976.]

- 1. Interpretation - (a) "Design pressure" means the maximum pressure that a pressure vessel or plant is designed to withstand safely when operating normally-

(b)

"Maximum permissible working pressure" is the maximum pressure at which a pressure vessel or plant is permitted to be operated or used under this rule and is determined by the technical requirements of the process;

(c)

"Plant" means a system of piping that is connected to a pressure vessel and is used to contain a gas, vapour or liquid under pressure greater than the atmospheric pressure and includes the pressure vessel:

(d)

"Pressure vessel" means [a] vessel that maybe used for containing, storing, distributing, transferring, distilling, processing or otherwise handling any gas, vapour or liquid under pressure greater than the atmospheric pressure and includes any pipeline fitting or other equipment attached thereto or used in connection herewith ; and

(e)

"competent person" means a person who is in the opinion of the Chief Inspector, capable by virtue of his qualifications, training and experience of conducting a thorough examination and pressure tests, as required, on a pressure vessel or plant, and of making a full report on its condition.

2. Exceptions-Nothing in this rule shall apply to

(a)

[* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

;

(b)

vessels having an internal operating pressure not exceeding 1 Kg. F/Cm. (15 lbs/sq.-in);

(c)

steam boilers, steam and feed pipes and their fittings coming under the purview of Indian Boilers Act, 1923 (V of 1923)

(d)

metal bottles or cylinders used for storage or transport of co-pressed gases or liquefied or dissolved gases under pressure covered by the Gas Cylinder Rules, 1940 framed under the Indian Explosives Act, 1884 (IV of 1884);

(e)

vessels in which internal pressure is due solely to the static head of liquid;

(f)

vessels in which a nominal water capacity not exceeding 500 litres connected in a water-pumping system containing air that is compressed to serve as a cushion;

(g)

vessels for nuclear energy application;

(h)

refrigeration plant having a capacity of 3 tons or less of refrigeration in 24 hours; and

(i)

working cylinders of steam engines or prime movers, feed pumps and steam traps, turbine casings compressor cylinders; steam separators or dryers; steam strainers, steam de-super-heater, oil separators, air receivers for fire spinkler installations; air receivers of monotype machines @ provided the maximum working pressure of the air receiver does not exceed 1.33 Kg.f/cm.² (20 l bi/sq. inch) and the capacity 84.05 litres (3 cu ft.) air-receivers of electrical circuit breakers; air receivers of electrical relays air vessels on pumps, pipe coils, accessories of instruments and appliances, such as cylinders and piston assemblies used for operating relays and interlocking type of guards, vessels with liquids subjected to static head only and hydraulically operating cylinders other than any cylinder communicating with an air loaded accumulator.

3. Design and construction - Every pressure vessel or plant used in a factory -

(a)

shall be properly designed on sound engineering practice;

(b)

shall be of good construction, sound material, adequate strength and free from any patent defects; and

(c)

shall be properly maintained in a safe condition

Provided that the pressure vessel or plant in respect of the design and construction of which there is an Indian standard or a standard of the country of manufacture or any other law or regulation in force, shall be designed and constructed in accordance with the said standard law or regulation, as the case may be and a certificate thereof shall be obtained from the manufacture or from the competent person which shall be kept and produced as demanded by an Inspector.

4. Safety devices - Every pressure vessel shall be fitted with-

(a)

a suitable safety valve or other effective pressure relieving device of adequate capacity to ensure that the maximum permissible working pressure of the pressure vessel shall not be exceeded. It is to be met to operate at a pressure not exceeding the maximum permissible working pressure and when more than one protective device is provided, only one of the devices need be set to operate at the maximum permissible working pressure and the additional device shall be set to discharge at pressure not more than 5 per cent in excess of the maximum permissible working pressure;

(b)

a suitable pressure gauge with a dial range not less than 1.5 times the maximum permissible work in pressure, easily visible and designed to show at all times the correct internal pressure and marked with a prominent red mark at the maximum permissible working pressure of the pressure vessel;

(c)

a suitable nipple and globe valve connected for the exclusive purpose of attaching a test pressure gauge for checking the accuracy of the pressure gauge referred to in Clause (b) of this sub-rule;

(d)

a suitable stop valve or valves by which the pressure vessel may be isolated from other pressure vessels or plant or source of supply of pressure. Such a stop valve or valves shall be located as close to the pressure vessel as possible and shall be easily accessible; and

(e)

a suitable drain cock or valve at the lowest part of the pressure vessel for the discharge of the liquid or other substances that may collect in the pressure vessel.

Provided that it shall be sufficient for the purpose of this sub-rule if the safety valve or pressure relieving device, the pressure gauge and the stop valve are mounted on a pipeline immediately adjacent to the pressure vessel and where there is a range of two or more similar pressure vessels served by the same pressure lead, only one set of such mountings need be fitted on the pressure lead immediately adjacent to the range of pressure vessels, provided they cannot be isolated.

5. Pressure reducing devices-(a) Every pressure vessel which is designed for a working pressure less than the pressure at the source of supply, or less than the pressure which can be obtained in the pipe connecting the pressure vessel with any other course of supply, shall be fitted with a suitable pressure reducing valve or other suitable automatic device to prevent the maximum permissible working pressure of the pressure vessel being exceeded.

(b)

To further protect the pressure vessel in the event of failure of the reducing valve or device, at least one safety valve having a capacity sufficient to release all the steam, vapour or gas without undue pressure rise as determined by the pressure at the source of supply and size of the pipe connecting the source of supply, shall be fitted on the low pressure side of the reducing valve.

6. Pressure vessel or plant being taken into use-(a) No new pressure vessel or plant shall be taken into use in a factory after coming into force of this rule unless it has been hydrostatically tested by a competent person at a pressure at least 1.3 times the design pressure, and no pressure vessel or plant which has been previously used or has remained isolated or idle for a period exceeding two months or which has undergone alterations or repairs shall be taken into use in a factory unless it has been thoroughly examined by a competent person externally, tested by the competent person and internally if practicable, and has been hydrostatically tested by the competent person at a pressure which shall be 1.5 times the maximum Permissible working pressure :

Provided, however, that the pressure vessel or plants which is to be designed and constructed that it cannot be safely filled with water or liquid or is used in service ever, some traces of water cannot be tolerated shall be pneumatically tested at a pressure not less than the design pressure or the maximum permissible working pressure, as the case may

be ; provided further that the pressure vessel or plant which is lined with glass shall be hydrostatically or pneumatically as required at a pressure not less than the design pressure or maximum permissible working pressure as the case may be. Design pressure shall be not less than the maximum permissible working pressure and shall take into account the possible fluctuations of pressure during actual operation.

(b)

No pressure vessel or plant shall be used in a factory unless there has been obtained from the maker of the pressure vessel or plant or from the competent person a certificate specifying the design pressure or maximum permissible working pressure thereof and stating the nature of tests to which the pressure vessel or plant and its fittings (if any) have been subjected and every pressure vessel or plant so used in a factory shall be marked so as to enable it to be identified as to be the pressure vessel or plant to which the certificate shall be available for perusal by the Inspector.

(c)

No pressure vessel or plant shall be permitted to be operated or used at a pressure higher than its design pressure or maximum permissible working pressure as shown in the certificate.

7. In service test and examinations-Every pressure vessel or plant in service shall be thoroughly examined by a competent person -

(a)

externally, once in every period of six month ;

(b)

internally, once in every period of twelve months ; if by person of the construction of a pressure vessel or plant, a thorough internal examination is not possible, this examination may be replaced by a hydrostatic test which shall be carried out once in every period of two years :

Provided that for a pressure vessel or plant in continuous process which cannot be frequently opened, the period of internal examination may be extended to four years ; and

(c)

hydrostatically tested once in every period of four years

Provided that in respect of a pressure vessel or plant with thin walls, such as sizing cylinder made of copper or any other non-ferrous metal, periodic hydrostatic test may be dispensed with subject to the condition that the requirements laid down in Sub-rule (8) are fulfilled,

Provided further that when it is impracticable to carry out through external examination of any pressure vessel or plant every six months as required in Clause (a) of this sub-rule, or if owing to its construction and use a pressure vessel or plant cannot be hydrostatically tested as required in Clauses (b) and (c) of this sub-rule, a thorough external examination of the pressure vessel or plant shall be carried out at least once in every period of two years, and at least once in every period of four years a thorough systematic non-destructive test like ultrasonic test for metal thickness or other defects of all parts the failure of which might lead to eventual capture of the pressure vessel or plant shall be carried out.

8. Thin walled pressure vessel or plant-(a) In respect of any pressure vessel or plant of thin walls such as sizing cylinder made of copper or any other non-ferrous metal the maximum permissible working pressure shall be reduced at the rate of 5 per cent of the original maximum, permissible working pressure for every year of its use after the first five years and no such cylinder shall be allowed to continue to be used for more than twenty years after it was first taken into use.

(b)

If any information as to the date of construction, thickness of walls, or maximum permissible working pressure is not available, the age of such pressure vessel or plant shall be determined by the competent person in consultation with the Chief Inspector from the other particulars available with the matter.

(c)

Every new and second band vessel or plant of thin walls to which repairs likely to effect its strength or safety have been carried out shall be tested before use to at least 1.5 times its maximum permissible working pressure.

9. Report by competent person - (a) If during any examination any doubt arises as to the ability of the pressure vessel or plant to work safely until the next prescribed examination, the competent person shall enter in the prescribed register his observations, findings and conclusions with other relevant remarks with reasons and may authorise the pressure vessel or plant to be used and kept in operation subject to a lowering of maximum permissible working pressure, or to more frequent or special examination.

(b)

A report of the result of every examination or test carried out shall be completed in the prescribed Form No. 8 and shall be signed by the person making the examination or test, and shall be kept available for perusal by the Inspector at all hours when the factory or any part thereof is working.

(c)

When the report of any examination under this rule specified any condition for securing the safe working of any pressure vessel or plant, the pressure vessel or plant shall not be used unless the specified condition is fulfilled.

(d)

The competent person making report of any examination under this rule, shall within seven days of the completion of the examination, send to the Inspector a copy of the report in every case where the maximum permissible working pressure is reduced or the examination shows that the pressure vessel or plant or any part thereof cannot continue to be used with safety unless certain repairs are carried out or unless any other safety measure is taken.

10. Application of other laws-(a) The requirements of this rule shall be in addition to and without any prejudice to and not in derogation of the requirements of any other law in force.

(b)

Certificate or reports of any examination, or test of any pressure vessel or plant to which Sub-rules 7 to 9 do not apply, conducted or required to be conducted under any other law in force and other relevant record relating to such pressure vessel or plant, shall be properly maintained as required under the said law and shall be produced on demand by the Inspector.]

56A.

[Water sealed Gasholder.

[Inserted vide Orissa Gazette Part III of 1966-Notification. No. I-F.28/63-L.E.H.7.1.1966.]

(1)

The expression "Gasholder" means a water-sealed gasholder which has a storage capacity of not less than 141.5 cubic meters (5,000 cft.).

(2)

Every gasholder shall be of adequate material and strength, sound construction and properly maintained.-

(3)

When there is more than one gasholder in the factory every gasholder shall be marked in a Conspicuous position with a distinguishing number or letter.

(4)

Every gasholder shall be thoroughly examined externally by a competent person at least once in a period of twelve months.

(5)

In the case of gasholder of which any lift has been in use for more than ten years, the internal state of the sheeting shall, within one year of the coming into operation of these rules and thereafter at least once in every period of four years, examined by a competent person by means of electronic or other accurate devices :

Provided that if the above Chief Inspector is satisfied that such electronic or other accurate devices are not available he may permit the cutting of samples from the crown and the sides of the holder :

Provided further that if the above inspection raises a doubt, an internal visual examination shall be made.

(6)

All possible steps shall, be taken to prevent or minimise ingress of impurities in the gasholder.

No gasholder shall be repaired or demolished except under the direct supervision of a person, who by his training and experience and his knowledge of the necessary precautions against risks of explosion and of persons being overcome by gas, is competent to supervise such work.

(8)

(i)

All sample discs cut under Sub-rule (5) above, shall be kept readily available for inspection;

(ii)

A permanent register in prescribed Form 83 duly signed by the occupier or manager shall be maintained giving the following particulars:

(a)

The serial number of the gasholder, vide Sub-rule (3) above and the particulars of manufacturer, i.e., maker's name, date of manufacture, capacity, number of lifts, pressure thrown by holder, when full of gas;

(b)

The dates of inspection carried out as required under Rule 425 and by whom carried out;

(c)

The method of inspection used;

(d)

Date of painting etc.;

(e)

Nature of repairs and name of person carrying out repairs; and

(f)

Remarks.

(iii)

The results of examinations by a competent person carried out under Sub-rules (4) and (5) shall be in the prescribed Form No. 33.

(9)

A competent person for the purpose of these rules shall be the person, whose appointment has been approved by the Chief Inspector of Factories.]

Rules prescribed under Sub-section (2) of Section 34

57.

Excessive weights.

(1)

No Omitted vide [* * *]

[Orissa Gazette Part III/27.9.1974-SRO No. 693/74/ 13.9.1974.]

person shall, unaided by another person, lift, carry or move by hand or on head any material, article, tool or appliance exceeding the maximum limit in weight set out in the following Schedule:

[Schedule]

[Substituted Omitted vide Orissa Gazette Part III/27.9.1974-SRO No. 693/74/ 13.9.1974.]

Person

Maximum weight for material article, tool or appliance

(1)

(2)

(a)

Adult male

[50 kgs.]

[Substituted vide Orissa Gazette Extraordinary No. 1/1.1.2004-SRO 718-2003-LE/23.12.2003.]

(b)

Adult female

30 kgs.

(c)

Adolescent male

30 kgs.

(d)

Adolescent female

20 kgs.

(e)

Male child

16 kgs.

(f)

Female child

13 kgs.

(2)

No [* * *]

[Omitted vide Orissa Gazette Part III/27.9.1974-SRO No. 693/74/ 13.9.1974.]

person shall engage, in conjunction with lifting, carrying or moving by hand or on head, any material, article, tool or appliance, if the weight thereof exceeds the lowest weight fixed by the Schedule to Sub-rule (1) for any of the persons engaged, multiplied by the number of the persons engaged.

Rules prescribed under Section 35

58.

Protection of eyes.

- Effective screens or suitable goggles shall be provided for the protection of persons employed in the immediate vicinity of the following processes

(a)

the processes specified in Schedule annexed hereto, being processes which involve risk of injury to the eyes from particles or fragments thrown off in the course of the process;

(b)

the processes specified in Schedule II annexed hereto, being processes which involve risk of injury to the eyes by reason of exposure to excessive light [or infra red or ultra violet radiation.]

[Inserted vide Orissa Gazette Part III/25.11.1977-SRO No. 763/77/7.11.1977.]

I

Dry grinding of metals or articles of metals applied by hand in a revolving wheel or disc driven by mechanical power. Turning (external or internal) of non-ferrous metals or of cast iron, or article of such metals or such iron, where the work is done dry, other than precision turning where the use of goggles or a screen would seriously interfere with the work, or turning by means of hand tools.

Welding or cutting of metals by means of an electric oxyacetylene or similar process.

The following processes when carried on by means of hand tools or other portable tools.

Fettling of metal involving the removal of metal.

Cutting out or cutting off cold rivets or bolts from boiler or other plant, or from ships.

Chipping or scaling of boilers or ships plates.

Breaking or dressing of stone, concrete or slag.

[Schedule II

[Inserted vide Orissa Gazette Part III/25.11.1977-SRO No. 763/77/7.11.1977.]

1. Welding or cutting of metals by means of art electrical oxyacetylene or similar process.

2. All works on furnaces where there is risk of exposure to excessive light or infra red radiations.

3. Process such as railing casting or forging of metals where there is risk of exposure to excessive light or infra red radiations.

4. Any other process wherein there is a risk of injury to eyes from exposure to excessive light or ultra violet or infra red radiations.]

Rules prescribed under Sub-section (6) of Section 36

59.

Minimum dimensions of manholes.

- Every chamber, tank, vat, pipe, flue or other confined space, which persons may have to enter and which may contain dangerous fumes to such an extent as to involve risk of the persons being overcome thereby, shall, unless there is other effective means of egress, be provided with a manhole which may be rectangular, oval or circular in shape, and which shall-

(a)

in the case of a rectangular or oval shape, be not less than 16 inches long and 12 inches wide;

(b)

in the case of a circular shape, be not less than 16 inches in diameter.

Exemptions under Sub-section (5) of Section 37.

60.

Exemptions.

- The requirements of Sub-section (4) of Section 37 shall not apply to the following processes carried on in any factory -

(a)

the operation of repairing a water-sealed gas-holder by the electric welding process, subject to the following conditions-

(i)

the gas-holder shall contain only the following gasses, separately or mixed at a pressure greater than atmospheric pressure, namely, town gas, coke-oven gas, producer gas, blast furnace gas, or gases other than air, used in their manufacture :

Provided that this exemption shall not apply to any gasholder containing acetylene or mixture of gases to which acetylene has been added intentionally;

(ii)

welding shall only be done by the electric welding process and shall be carried out by experience operatives under the constant supervision of a competent person.

(b)

The operations of cutting or welding steel or wrought iron gas mains and services by the application of heat, subject to the following conditions:

(i)

the main, or service shall be situated in the open air, and it shall contain only the following gases, separately or mixed at a pressure greater than atmospheric pressure, namely, gas, coke oven gas, producer gas, blast furnace gas, or gases other than air used in their manufacture;

(ii)

the main or service shall not contain acetylene or any gas or mixture of gases to which acetylene has been added intentionally;

(iii)

the operation shall be carried out by an experienced person or persons and at least two persons (including those carrying out the operations) experienced in work on gas mains and over eighteen years of age shall be present during the operation;

(iv)

the side of the operation shall be free from any inflammable or explosive gas or vapour

(v)

where acetylene gas is used as a source of heat in connection with an operation, it shall be compressed and contained in a porous substance in a cylinder ; and

(vi)

prior to the application of any flame to the gas main or service, this shall be pierced or drilled and the escaping gas ignited.

(c)

The operation of repairing an oil tank on any ship by the electric welding process, subject to the following conditions

(i)

The only oil contained in the tank shall have a flash point of not less than 1,500 F (close test) and a certificate to this effect shall be obtained from a competent analyst;

(ii)

The analyst's certificate -shall be kept available for inspection, by an Inspector, or by any person employed. or working on the ship;

(iii)

The welding operation shall be carried out only on the exterior surface of the tank at a place (a) which is free from oil or oil leakage inflammable quantities, and (b) which is not less than one foot below the nearest part of the surface of the oil within the tank; and

(iv)

Welding shall be done only by the electric welding and shall be carried out by experienced operatives under the constant supervision of a competent person.

[Rules prescribed under Sections 38 and 41]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

61.

[Fire.

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

(1)

All processes involving serious explosion and flash fire hazards shall be located in segregated buildings where the equipment shall be so arranged that only a minimum number of employees are exposed to such hazards at any one time.

(2)

All industrial processes involving serious fire hazards shall be located in buildings or work places separated from one another by walls of fire-resistant construction.

(3)

Equipment and plant involving serious fire or flash fire hazards shall, wherever possible, be so constructed and installed that in case of fire, they can be easily isolated.

(4)

Ventilation ducts pneumatic conveyors and similar equipments involving a serious fire risk shall be provided with flame arresting or automatic fire extinguishing appliances.

(5)

In all work places having serious fire or flash hazards passages between Machines, installations or piles or material should be at least 90 cm. wide.

(6)

Buildings and plants shall be so laid out and roads, passage ways, etc., so maintained as to permit unobstructed access for fire fighting.

(7)

Protection from lightning shall be provided for-

(i)

buildings in which explosive or highly flammable substances are manufactured, used, handled or stored;

(ii)

storage tanks containing oils, paints or other flammable liquids;

(iii)

grain elevators; and

(iv)

buildings, tall chimneys or stacks where flammable gases, fumes, dust or lint are likely to be present.

(8)

All explosives shall be handled, transported, stored and used in accordance with the provisions in the India Explosives Act, 1884.

(9)

Wherever there is danger of fire or explosion from accumulation of flammable or explosive substance in air-

(a)

all electrical apparatus shall either be excluded from the area of risk or they shall be of such construction and so installed and maintained as to prevent the danger of their being a source of ignition;

(b)

effective measures shall be adopted for prevention of accumulation of static charges to a dangerous extent;

(c)

workers shall wear shoes without iron or steel nails or any other exposed ferrous materials which is likely to cause sparks by friction;

(d)

smoking, lighting or carrying of matches, lighters or smoking materials shall be prohibited;

(e)

transmission belts with iron fasteners shall not be used; and

(f)

all other precautions, as are reasonably practicable, shall be taken to prevent initiation of ignition from all other possible sources such as open flames, frictional sparks, overheated of machinery or plant, chemical or physical chemical and radiant heat.

(10)

Where materials are likely to induce spontaneous ignition, care shall be taken to avoid formation of air pockets and to ensure adequate ventilation.

(11)

Cylinders containing compressed gas may only be stored in open, if they are protected against excessive variation of temperature, direct rays of sun or continuous dampness. Such cylinders shall never be stored near highly flammable substances, furnaces or hot processes. The room where such cylinders are stored shall have adequate ventilation.

(12)

(a)

The quantity of flammable liquids in any workroom shall be the minimum required for the process or processes carried on in such room. Flammable liquids shall be stored in suitable containers with close fitting covers :

Provided that not more than twenty litres of flammable liquids having a flash point of 21° C or less shall be kept or stored in any work-room.

(b)

Flammable liquids shall be stored in closed containers and in limited quantities in well-ventilated rooms of fire resisting construction which are isolated from the remaining portion of the building by fire walls and self-closing fire doors.

(c)

Large quantities of such liquids shall be stored in isolated adequately ventilated building of fire resisting construction or in storage tanks, preferably undergrounds and at a distance from any building as required in the Petroleum Rules, 1976.

(d)

Effective steps shall be taken to prevent leakage of such liquids into basements, sumps or drains and to confine any escaping liquid within safe limits.

(13)

(a)

Effective steps shall be taken for removal or prevention of the accumulation in the air of flammable dust, gas, fume or vapour to an extent which is likely to be dangerous.

(b)

No waste material of a flammable nature shall be permitted to accumulate on the floors and shall be removed at least once in a day or shift, and more often, when possible. Such materials shall be placed in suitable metal containers with covers wherever possible.

(14)

(a)

In this sub-rule-

(i)

"horizontal exit" means arrangement which allows alternative egress from a floor area to another floor at or near the same level in an adjoining building or an adjoining part of the same building with adequate separation; and

(ii)

"travel distance" means the distance an occupant has to travel to reach an exit.

(b)

An exit may be a doorway, corridor, passage way to an internal or external stairway or to a verandah. An exit may also include a horizontal exit leading to an adjoining building at the same level.

(c)

Lifts, escalators and revolving doors shall not be considered as exit for the purpose of this sub-rule.

(d)

In every room of a factory exit sufficient to permit safe escape of the occupants in case of fire or other emergency, shall be provided which shall be free of any obstruction.

(e)

The exits shall be clearly visible and suitably illuminated with suitable arrangement, whatever artificial lighting is to be

adopted for this purpose, to maintain the required illumination in case of failure of the normal source of electric supply.

(f)

The exit shall be marked in a language understood by the majority of the workers.

(g)

Fire resisting doors or roller shutters shall be provided at appropriate places along the escape routes to prevent spread of fire and smoke, particularly at the entrance of lifts or stairs, where funnel or flue effect may be created including an upward spread of fire.

(h)

All exits shall provide continuous means of egress to the exterior of a building or to an exterior open space leading to a street.

(i)

Exits shall be so located that the travel distance on the floor shall not exceed 30 metres.

(j)

In case of those factories where high hazard materials are stored or used, the travel distance to the exit shall not exceed 22.5 metres and there shall be at least two ways of escape from every room, however small, except toilet rooms, so located that the points of access thereto are cut off or suitably shielded from areas of high hazard.

(k)

Wherever more than one exit is required for any room, space or floor, exits shall be placed as remote from each other as possible and shall be arranged to provide direct access in separate directions from any point in the area served.

(l)

The unit of exit width used to measure capacity of any exit shall be 50 centimetres. A clear width of 25 centimetres shall be counted as an additional half unit. Clear width of less than 25 centimetres shall not be counted for exit width.

(m)

Occupants per unit width shall be 50 for stairs and 75 for doors,

(n)

For determining the exit required, the occupant load shall be reckoned on the basis of actual number of occupants within any floor area or 10 square metres per person whichever is more.

(o)

There shall not be less than two exits serving every floor area above and below the ground floor, and at least one of them shall be an internal enclosed stairway.

(p)

Every building or structure used for storage only, and every section thereof considered separately, shall have access to at least one exit so arranged and located as to provide a suitable means of escape for any person employed therein, and in any such room wherein more than 10 persons may be normally present, at least two separate means of exits shall be available, as remote from each other as practicable.

(q)

Every storage area shall have access to at least one means of exit which can be readily opened.

(r)

Every exit doorway shall open into an enclosed stairway, a horizontal exit in a corridor or passageway providing continuous and protected means of egress.

(s)

No exit doorway shall be less than 100 centimetres in width. Doorway shall not be less than 200 centimetres in height.

(t)

Exit doorways shall open outwards, that is, away from the room but shall not obstruct the travel along any exit. No door, when opened, shall reduce the required width of stairway or landing to less than 90 centimetres. Overhead or sliding doors shall not be installed for this purpose.

(u)

An exit door shall not open immediately upon a flight of stairs. A landing equal to at least the width of the doorway shall be provided in the stairway at each doorway. The level of landing shall be the same as that of the floor which it serves.

(v)

The exit doorways shall be openable from the side which, they serve without the use of a key.

(w)

Exit corridors shall be of a width not less than the aggregate required width of exit doorway leading from there in the direction of travel to the exterior.

(x)

Where stairways discharge through corridors and passageways, the height of the corridors and passageways shall not be less than 2.4 metres.

(y)

Internal stairs shall be constructed of non-combustible materials throughout.

(z)

Internal stairs shall be constructed as a self-contained unit with at least one side adjacent to an external wall and shall be completely enclosed.

(aa)

A staircase shall not be arranged round a lift shaft unless the latter is totally enclosed by a material having a fire resistance rating not lower than that of the type of construction of the former.

(bb)

Hollow combustible construction shall not be permitted.

(cc)

The minimum width of an internal staircase shall be 100 centimetres,

(dd)

The minimum width of treads without nosing shall be 25 centimetres for an internal staircase. The treads shall be constructed and maintained in a manner to prevent slipping.

(ee)

The maximum height of a riser shall be 19 centimetres and the number of risers shall be limited to 12 per flight.

(ff)

Hand rails shall be provided with a minimum height of 100 centimetres and shall be firmly supported.

(gg)

The use of spiral staircase shall be limited to low occupant load and to a building of height of 9 metres unless they are connected to platforms such as balconies and terraces to allow escapees to pause. A spiral staircase shall not be less than 300 centimetres in diameter and have adequate head room.

(hh)

The width of a horizontal exit shall be same as per the exit doorways.

(ii)

The horizontal exit shall be equipped with at least one fire door of self-closing type.

(jj)

The floor area on the opposite or refuge side of a horizontal exit shall be sufficient to accommodate occupants of the floor areas served; allowing not less than 0.3 square metre per person. The refuge area shall be provided with exits adequate to meet the requirements of this clause. At least one of the exits shall lead directly to the exterior or street.

(kk)

Where there is difference in level between connected areas for horizontal exit, ramps not more than 1 in 8 slopes shall be provided. For this purpose steps shall not be used.

(ll)

Doors in horizontal exits shall be openable at all times.

(mm)

Ramps with a slope of not more than 1 in 10 may be substituted for the requirements of staircase. For all slopes exceeding 1 in 10 and wherever the use is such as to involve danger of slipping, the ramp shall be surfaced with non-slipping material.

(nn)

In any building not provided with automatic fire alarm, a manual fire alarm system shall be provided if the total capacity of the buildings is over five hundred persons or if more than twenty-five persons are employed above or below the ground floor, except that no manual fire alarm shall be required in one storey buildings where the entire area is undivided and all parts thereof are clearly visible to all occupants.

(15)

(a)

In every factory, there shall be provided and maintained adequate and suitable fire fighting equipment for fighting fires in the early stages, those being referred to as first-aid fire fighting equipment in this sub-rule,

(b)

The types of first-aid fire fighting equipment to be provided shall be determined by considering the different types of fire risks which are classified as follows

(i)

"Class A Fire" - fire due to combustible materials such as wood, textiles, paper, rubbish and the like;

(1)

"Light hazard" - occupancies like offices, assembly halls, canteens, rest-rooms ambulance rooms and the like;

(2)

"Ordinary hazard" - occupancies like saw mills, carpentry shop, small timber yards, book binding shops, engineering workshop and the like;

(3)

"Extra hazard" - occupancies like large timber yards, godowns, storing fibrous materials, flour mills, cotton mills, jute mills, large wood working factories and the like.

(ii)

"Class B fire"-inflammable liquids like oil, petroleum products, solvents, grease, paint, etc.

(iii)

"Class C fire"-fire arising out of gaseous substances.

(iv)

"Class D fire"-fire from relative chemicals, active metals and the like.

(v)

"Class E fire"-fire involving electrical equipment and delicate machinery and the like.

(c)

The number and types of first-aid fire fighting equipment to be provided shall be as per the following scales-

(i)

Class A fire-

(1)

Light hazard-One 9 litres water bucket for every 100 square metres of floor area or part thereof and one 9 litres water type (Soda-acid or gas pressure or bucket pump) extinguisher shall be provided for each 6 buckets or part thereof with a minimum of an extinguisher and two buckets per compartment of building. These equipments shall be so distributed over the entire floor areas that a person shall have to travel not more than 25 metres from any point to reach the nearest equipment.

(2)

Ordinary hazard-One 9 litres water bucket for every 100 square metres of floor area or part thereof and one 9 litre water types (Soda acid, gas pressure or bucket pump) extinguisher shall be provided for each six buckets or part thereof, with a minimum of 2 extinguishers and 4 buckets per compartment of the building. These equipments shall be so distributed over the entire floor area that a person shall have to travel not more than 15 metres from any point to reach the nearest equipment.

(3)

Extra hazard-The scale of equipment would be what is prescribed for ordinary hazard and in addition, such extra equipments as, in the opinion of the inspector, are necessary, having regard to the special nature of occupancy:

Provided that in special cases, the Inspector may, after taking into consideration the circumstances, authorise that the buckets prescribed in this clause may be dispensed with, where the number of the extinguishers provided is double of that what is prescribed.

(ii)

Class B Fire-There shall be at least one fire extinguisher either foam type or carbon dioxide or dry power type per 60 square metres of floor area and shall be so distributed that no person is required to travel more than 15 metres from any point to reach the nearest equipment. In addition to the requirements of extinguishers specified here, requirements as

laid down in Clause (1) shall also be provided.

(iii)

Class C Fire-Carbon dioxide or dry chemical power extinguishers shall be provided near each plant or group of plants.

(iv)

Class D Fire-Special dry power (Chloride based) type of extinguishers, or sand buckets, shall be provided on a scale as laid down for Class B fire. The Inspector may require a higher scale of portable equipment to be provided depending upon the risk involved.

(v)

Class E Fire-Carbon dioxide or dry power type extinguishers shall be provided near each plant or group of plants depending upon the risk involved.

(d)

The first-aid fire fighting equipments shall conform to the relevant Indian standards.

(e)

As far as possible the first-aid fire fighting equipment shall be similar in shape and appearance and shall have the same method of operation.

(f)

All first-aid fire fighting equipments shall be placed in conspicuous positions and shall be readily and easily accessible for immediate use. Generally, these equipments shall be placed as near as possible to the exits or stair landings or normal routes of escape.

(g)

All water buckets and bucket pump type extinguishers shall be filled with clean water. All sand buckets shall be filled with clean dry and fine sand.

(h)

All other extinguishers shall be charged appropriately in accordance with the instructions of the manufacturer.

(i)

Each first-aid fire fighting equipment shall be allotted a serial number by which the records shall be referred to. The following details shall be painted with white paint on the body of each equipment-

1. Serial number,
2. Date of last refilling, and
3. Date of last inspection.

(j)

First-aid fighting equipment shall be, placed on platforms or in cabinets in such a way that their bottom is 750 mm. above the floor level. Fire buckets shall be placed on hooks attached to a suitable stand or wall in such a way that their bottom is 750 mm. above the floor level. Such equipment if placed outside the building shall be under sheds or covers.

(k)

All extinguishers shall be thoroughly cleaned and recharged immediately after discharge. Sufficient refill material shall be kept readily available for this purpose at all times.

(l)

All first-aid fire fighting equipments shall be subjected to routine maintenance inspection and testing, to be carried out by properly trained persons. Periodicity of the routine maintenance, inspection and test shall conform to the relevant Indian Standards.

(16)

(a)

In every factory, adequate provision of water-supply for fire fighting shall be made and where the amount of water required in litres per minute, as calculated from the formula $A+B+C+D$ divided by 20 is 550. or more, power driven trailer pumps of adequate capacity to meet the requirement of water as calculated above shall be provided and maintained.

In the above formula-

A- the total areas in square metres of all floors including galleries in all buildings of the factory;

B- the total areas in square metres of all floors and galleries including open spaces in which combustible materials are handled or stored;

C- the total areas in square metres of all floors over 15 metres above ground level; and

D- the total area in square metres of all floors of all buildings other than those of fire resisting construction :

Provided that in areas where the fire risk involved does not require use of water, such areas under B, C, or D may, for the purpose of calculation, be halved :

Provided further that where the areas under B, C, or D are protected by permanent automatic fire fighting installations approved by any fire association of Fire Insurance Company, such are as may, for the purpose of calculation, be halved :

Provided also that where the factory is situated at not more than three kilometres from an established city or town fire service, the pumping capacity based on the amount of water arrived at by the formula above may be reduced by twenty-five per cent, but no account shall be taken of this reduction in calculating water-supply required under this clause.

(b)

Each trailer pump shall be provided with equipment as per the Schedule appended to this rule. Such equipment shall conform to the relevant Indian Standards.

(c)

Trailer pumps shall be housed in a separate shed or sheds which shall be situated close to a principal source of water supplies in the vicinity of the main risk of the factory.

(d)

In factories where the areas is such as cannot be reached by man-hauling of trailer pumps within reasonable time, vehicles with towing attachment, shall be provided at the scale of one for every four trailer pumps with a minimum of one such vehicle kept available at all times.

(e)

Water-supply shall be provided to give flow of water as required under Clause (a) for at least 100 minutes. At least fifty per cent of this water-supply or 450,000 litres, whichever is less, shall be in the form of static tanks of adequate capacities (not less than 450,000 litres each) distributed round the factory with due regard to the potential fire risks in the factory. Where piped supply is provided, the size of the main shall not be less than 15 centimetres diameter and it shall be capable of supplying a minimum of 4500 litres per minute at a pressure of not less than seven kilograms per square centimetre.

(f)

All trailer pumps including the equipment provided with them and the vehicles for towing them shall be maintained in good condition and subjected to periodical inspection and testing as required.

(17)

(a)

The first-aid and other fire fighting equipments to be provided as required in Sub-rules (15) and (16) shall be in charge of a trained responsible person.

(b)

Sufficient number of persons shall be trained in the proper handling of fire fighting equipments as referred to in Clause (a) their use against the types of fire for which they are intended to ensure that adequate number of persons are available for fire fighting both by means of first-aid fire fighting equipment and others. Wherever vehicles with towing attachment are to be provided as required in Clause (d) of Sub-rule (16), sufficient number of persons shall be trained in driving these vehicles to ensure that trained persons are available for driving them whenever the need arises.

(c)

Fire fighting drills shall be held at least once in every three months.

(18)

Automatic sprinklers and fire hydrants shall be in addition and not in substitution of the requirements in Sub-rules (15) and (16).

(19)

If the Chief Inspector is satisfied in respect of any factory or any part of the factory that owing to the exceptional circumstances such as in adequacy of water-supply or infrequency of the manufacturing process or for any other reasons to be recorded in writing all or any of the requirements of the rules are impracticable or not necessary for the protection of workers, he may, by order in writing which he may at his discretion revoke, exempt such factory or part of the factory from all or any of the provisions of the rules, subject to conditions as he may by such order prescribe.

Schedule 11

Equipments to be provided with trailer pump For light trailer pump of a capacity of 680 litres/minute

1.
 - Armoured suction hose of 9 metres' length, with wrenches
1.
 - Metal suction strainer
1.
 - Basket strainer
1.
 - Two-way suction collecting head
1.
 - Suction adaptor
10. - Unlined or rubber lined 70 mm. delivery hose of 25 metres length complete with quick release couplings.
 1. - Dividing breaching piece
 2. - Branch-piece with 15 mm. nozzles
1.
 - Diffuser nozzles
1. - Standpipe with blank cap
1. - Hydrant key
4. - Collapsible canvas buckets
1. - Fire hook (Preventor) with cutting edge
1. - 25 mm. manila rope of 30 metres' length
1. - Extension ladder of 9 metres' length (where necessary)
1. - Heavy axe
1. - Spade
1. - Pick axe
1. - Crowbar
1. - Saw
1. - Hurricane lamp
1. - Electric torch
1. - Pair rubber gloves

For large trailer pump of a capacity of 1,800 litres/minute

1. - Armoured suction hose of 9 metres' length with wrenches
1. - Metal strainer
1. - Basket strainer
1. - Three-way suction collecting head
1. - Suction adaptor
14. - Unlined or rubber lined 70 mm. delivery hose of 25 metres' length complete with quick release couplings.
 1. - Dividing breaching piece
 1. - Collecting breaching piece
 4. - Branch pipes with one 25 mm. two 20 mm. and one diffuser nozzle
 2. - Standpipe with black caps
 2. - Hydrant keys
 6. - Collapsible canvas buckets
 1. - Ceiling hook (preventor) with cutting edge
 1. - 50 mm. manila rope of 30 metres' length
 1. - Extension ladder of 9 metres' length (where necessary)
 1. - Heavy axe
 1. - Spade
 1. - Pick axe
 1. - Crowbar

- 1. - Saw
- 1. - Hurricane lamp
- 1. - Electric torch
- 1. - Pair rubber gloves

Note. - If it appears to the Chief Inspector of Factories that in any factory the provision of breathing apparatus is necessary, he, may, by order in writing, require the occupier to provide suitable breathing apparatus in addition to the equipment for light trailer pump or large trailer pump, as the case may be.]

[Rules prescribed under Section 40-B]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

61A.

Safety Officers.

(1)

Qualification-(a) A person shall not be eligible for appointment as a Safety Officer, unless he -

(i)

possesses a recognised degree in any branch of engineering or technology and has had practical experience of working in a factory for a period of not less than two years, or a recognised degree in Physics or Chemistry of a recognised diploma in any branch of engineering or technology and has had practical experience of working in a factory in a supervisory capacity for a period of not less than five years;

(ii)

possesses a degree or diploma in Industrial Safety recognised by the State Government in this behalf; and

(iii)

has adequate knowledge of Oriya language.

(b)

Notwithstanding the provisions contained in Clause (a), any Person who possesses a recognised degree or diploma in engineering or technology and has had, experience of not less than five years in a department of the Central or State Government which deals with the administration of Factories Act, 1948 or the Indian Dock Labourers Act, 1934 or possesses a recognised degree or diploma in Engineering or technology and has had experience of not less than five years full-time, or training, education, consultancy or research in the field of accident prevention in industry or in any institution, shall also be eligible for appointment as Safety Officer

Provided that the Chief Inspector may, subject to such conditions as he may specify grant exemption from the requirements of this sub-rule if, in his opinion, a suitable person possessing the necessary qualifications and experience is not available for appointment :

Provided further that in the case of a person who has been working as a Safety Officer for a period of not less than three years on the date of commencement of this rule, the Chief Inspector may, subject to such conditions as he may specify, relax all or any of the above said qualifications.

(c)

[A person possessing qualifications required under clauses (a) and (b) of sub-rule (1) shall only be appointed as Safety Officer on acceptance by the Chief Inspector on submission of details of his qualification and experience.]

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

(2)

(a)

Where the number of Safety Officer to be appointed in a factory as required by a notification in the Official Gazette exceeds one, one of them shall be designated as the Chief Safety Officer and shall have a status higher than that of the others. The Chief Safety Officer shall be in overall charge of the safety functions envisaged in Sub-rule (3), the other Safety Officer working under his control.

(b)

The Chief Safety Officer or the Safety Officer in the case of factories where only one Safety Officer is required to be appointed, shall be given the status of a senior executive and he shall work directly under the control of the Chief Executive of the factory. All other Safety Officers shall be given appropriate status to enable them to discharge their functions effectively.

(c)

The scale of pay and the allowances to be granted to the Safety Officers including the Chief Safety Officer and the other conditions of their service shall be the same as those of the other officers of corresponding status in the factory.

(d)

In the case of dismissal or discharge, a Safety Officer shall have a right to appeal to the State Government, whose decision thereon shall be final.

(3)

(a)

The duties of a Safety Officer shall be to advise and assist the factory management in the fulfilment of its obligations, statutory or otherwise, concerning prevention of personal injuries and maintaining a safe working environment. The duties shall include the following namely:

(i)

to advise the concerned departments in planning and organising measures necessary for the effective control of personal injuries;

(ii)

to advise on safety aspects in all job studies and to carry out detailed job safety studies of selected jobs;

(iii)

to check and evaluate the effectiveness of the action taken or proposed to be taken to prevent personal injuries;

(iv)

to advise the purchasing and stores departments in ensuring high quality and availability of personal protective equipment;

(v)

to provide advice on matters related to carrying out plant safety inspections;

(vi)

to carry out plant safety inspections in order to observe the physical conditions of work and the work practices and procedure followed by workers and to render advice on measures to be adopted for removing the unsafe physical conditions and preventing unsafe actions by workers;

(vii)

to render advice on matters related to reporting and investigation of industrial accidents and diseases;

(viii)

to investigate selected accidents;

(ix)

to investigate cases of dangerous occurrences and industrial diseases contracted reportable under Rules 97 and 98;

(x)

to advise on the maintenance of such records as necessary relating to accidents, dangerous occurrences and industrial diseases:

(xi)

to promote setting up safety committees and act as adviser and catalyst to such committees;

(xii)

to organise, in association with the concerned departments, campaigns, competitions, contests and other activities which will develop and maintain the interest of the workers in establishing and maintaining safe conditions of work and procedures; and

(xiii)

to design and conduct either independently or in collaboration with the training department, suitable training and educational programmes for the prevention of personal injuries.

(4)

The occupier of the factory shall provide each Safety Officer with such facilities, equipment and information as are necessary to enable him to discharge his duties effectively.

(5)

No Safety Officer shall be required or permitted to do any work which is inconsistent with or detrimental to the performance of the duties prescribed in Sub-rule (3).

62.

Safety Committee.

(1)

In every factory in which two hundred and fifty or more workers are ordinarily employed, there shall be constituted a Safety Committee for the purpose of keeping under review the measures taken to ensure the health and safety of workers and to undertake such coordinative functions as under the direction of the management assigned to it for promoting safety and health of workers.

(2)

The Safety Committee shall consist of equal number of representatives of the management and the employees, and the minimum number of representatives shall be six.

(3)

The representatives of the management shall include the Manager of the factory and the committee shall be headed by a Senior Official nominated by the occupier of the factory who, by his position and authority in the Organisation, can contribute effectively to the functions of the committee.

(4)

The Safety Committee shall meet as often as necessary but at least once a month.

(5)

Where, due to the size of the factory or any other reason, the functions referred to in Sub-rule (1) cannot be effectively carried out by one Safety Committee, the occupier of the factory shall establish further subcommittees as may be required and they shall function under the control and guidance of the aforesaid safety committee.

(6)

The provisions of Sub-rules (2) and (4) shall apply to subcommittees wherever such sub-committees are constituted.]

[Rules prescribed under Section 41]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

62A.

Fragile roofs-Provision of crawling board etc.

- In any factory, no person shall be required to work in and/or pass over near any roof or ceiling covered with fragile material through which he is likely to fall, in case it breaks or gives way, a distance of more than two metres, unless-

(a)

suitable and sufficient ladders, duck ladders or crawling, boards, which shall be securely supported, are provided and used;

(b)

a permit to work on the fragile roof is issued to him each time he is required to work thereon by a responsible person of the factory concerned.

62B.

Construction of buildings, etc.

- No building wall, chimney, bridges, tunnel, road gallery stairway, ramp, floor, platform, staging or other structure, whether of a permanent or temporary character shall be constructed, situated or maintained in any factory in such a manner as to cause risk or bodily injury.

62C.

Machinery and plant

- No machinery, plant or equipment shall be constructed, situated, operated or maintained in any factory in such a manner as to cause risk or bodily injury.

62D.

Methods of work

- No process or work shall be carried on in any factory in such a manner as to cause risk or bodily injury.

62E.

Stacking and storing of materials, etc.

- No materials or equipment shall be stocked or stored in such a manner as to cause risk or bodily injury.

62F.

Reaction vessels and kettle.

(1)

This rule shall apply to reaction vessels and kettles (hereinafter referred to as reaction vessels) which normally work at a pressure not above the atmospheric pressure but in which there is likelihood of pressure being created above the atmospheric pressure due to reaction getting out of control or any other circumstances.

(2)

In the event of the vessel being heated by electrical means a suitable thermostatic control device shall be provided to prevent the temperature exceeding the safe limit.

(3)

Where steam is used for heating purposes in a reaction vessel, it shall be supplied through a suitable pressure reducing valve or any other suitable automatic device to prevent the maximum permissible steam pressure being exceeded unless the pressure of the steam in the supply line itself cannot exceed the said maximum permissible pressure.

(4)

A suitable safety valve or rupture disc of adequate size old capacity shall be provided to effectively prevent the pressure being built up in the reaction vessel beyond the safe limit. Effective arrangements shall be made to ensure that the released, gases, fumes, vapours, liquids or dusts, as the case may be, are led away and disposed of through suitable pipes without causing any hazard where flammable gases or vapours are likely to be vented out from the vessel, and the discharge end shall be provided with a flame arrestor.

(5)

Every reaction vessel shall be provided with a pressure gauge having the appropriate range.

(6)

In addition to the devices as mentioned in the foregoing provisions, means to be provided for automatically stopping the feed into the vessel as soon as process conditions deviate from the normal limits to an extent which can be considered as dangerous.

(7)

Where necessary an effective system for cooling flooding or blanketing shall be provided, for the purpose of controlling the reaction and process conditions within the safe limits of temperature and pressure.

(8)

An automatic auditory and visual warning device shall be provided for clear warning whenever process conditions exceed the present limits. This device, wherever possible shall be integrated with automatic process correction systems.

(9)

A notice pointing out the possible circumstances in which pressures above atmospheric pressure may be built up in the reaction vessel, the danger involved and the precaution to be taken by the operators shall be displayed at a conspicuous place near the vessel.

62G.

Ovens and driers

(1)

The rule shall apply to ovens and driers, except those used in laboratories or kitchens of any establishment and those which have a capacity below 325 litres.

(2)

For the purpose of this rule, "oven" or "drier" means any enclosed structure, receptacle, compartment or box which is used for backing, drying or otherwise processing of any article or substance at a temperature higher than the ambient temperature of the air in the room or space in which the oven or drier is situated and in which a flammable or explosive mixture of air and a flammable substance is likely to be evolved within the enclosed structure receptacle, compartment or box or part thereof on account of the article of substance which is baked, dried or otherwise processed within it.

(3)

Electrical power supplied to every oven or drier shall be by means of a separate circuit provided with an isolation switch.

(4)

(a)

Every oven or drier shall be properly designed on sound engineering practice and be of good construction sound materials and adequate strength, free from any patent defects and safe if properly used.

(b)

No oven or drier shall be taken into use in a factory for the first time unless a competent person has thoroughly

examined all its parts and carried out the tests as are required to establish that the necessary safe systems and controls provided for safety in operation for the processed which to be used and a certificate of such examination and tests signed by that competent person has been obtained and is kept available for inspect, on.

(c)

All parts of an oven or drier that has undergone any alteration or repair which has the effect of modifying any of design characteristics, shall not be used unless a thorough examination and test as mentioned in Clause (b) have been carried out by a competent person and a certificate of such examination and tests signed by that competent person has been obtained and is kept available for inspection.

5. (a) Every oven or drier shall be provided with a positive and effective safety ventilation system using one or more motor-drive centriual falls so as to dilute any mixture of air and any flammable substance that may be formed within the oven or drier and maintain the concentration of the flammable substance in the air at a safe level of dilution.

(b)

The safe level of dilution referred to in Clause (a) shall be so as to achieve concentration of the concerned flammable substance in air of not more than twenty-five per cent of its lower explosive limit :

Provided that a level of concentration in air up to fifty per cent of the lower explosive limit of the concerned flammable substance may be permitted to exist subject to installation and maintenance of an automatic device which -

(i)

shows continuously the concentration of the flammable substance in air present in the oven or drier at any instance;

(ii)

sound an alarm when the concentration of the flammable substance in air in any part of the oven or drier reaches a level of fifty per cent of its lower explosive limit; and

(iii)

shuts down the heating system of the oven or drier automatically when the concentration in air of the flammable substance in any part of the oven or drier reaches a level of sixty per cent of its lower explosive limit, is provided to the oven or drier and maintained in efficient working condition.

(c)

No oven or drier shall be operated without its safety ventilation system working in an efficient manner.

(d)

No oven or drier shall be operated with a level of dilution less than what is referred to in Clause (b),

(e)

Exhaust ducts of safety ventilation system shall be so designed and placed that these ducts discharge the mixture of air and flammable substance away from the work rooms and not near windows or doors or other openings from where the mixture could re-enter the work rooms.

(f)

The fresh air admitted in the oven or drier by means of the safety ventilation system shall be circulated adequately by means of circulating fan or fans through parts of the oven or drier so as to ensure that there are no locations where the flammable substance can accumulate in the air or become pocketed to any dangerous degree.

(g)

Throttling dampers in any safety ventilation system shall be so designed by cutting away a portion of the damper otherwise that the system will handle at least the minimum ventilation rate required for safety when they are set in their maximum throttling position.

6. (a) Every oven or drier having an internal total space of not less than half cubic metre shall be provided with suitably designed explosion panels so as to allow release of the pressure of any possible explosion within the oven or drier through explosion vents. The area of openings to be provided by means of such vents together with the area of openings of any access doors which are provided with suitable arrangements for their release in case of an explosion shall not be less than 2.200 square centimetres for every one cubic metre of volume of the oven or drier. The design of the explosion panels and doors as above said shall be such as secure their complete release under an internal pressure of 0.25 Kg. per square centimetre.

(b)

The explosion releasing panels, shall as far as practicable, be situated at the roof of the oven or drier or at those portions of the wall where persons do not remain in connection with operation of the oven or drier.

7. Inter-locking arrangements-(a) In each oven or drier, efficient interlocking arrangement shall be provided and maintained to ensure that-

(i)

all ventilating fans and circulating fans whose failure would adversely affect the ventilation rate of flow pattern, are in operation before any mechanical conveyor that may be provided for feeding the articles or substances to be processed in the oven or drier is put into operation:

(ii)

failure of the ventilating or circulating fans automatically stops any conveyor as referred to in Clause (i) as may be provided, as well as stop the fuel supply by closing the shut off valve and shut off of the ignition in the case of gas or oil fired ovens, and in the case of electrically heated ovens, switch off the electrical supply to the heaters;

(iii)

the above said mechanical conveyor is set in operation before the above said shut off valve can be energised ; and

(iv)

the failure of the above said conveyor automatically closes the above said shut off valve in the case of oven and driers heated by gas oil or steam and deactivate the ignition system, or cut off the electrical heaters in the case of electrically heated ovens or furnaces.

(8)

Every oven or drier heated by oil gas, steam or electricity shall be provided with an efficient arrangement for automatic prevention consisting of at least three volume changes with fresh air by operation of the safety ventilation fans and the circulating fans (if used) so as to effect purging of the oven or drier of any mixture of air and a flammable substance before the heating system can be activated and before the conveyer can be placed in position.

(9)

Every oven or drier shall be provided with an automatic arrangement, to ensure that the temperature which does not exceed a safe upper present limit to be decided in respect of the particular processing being carried on.

(10)

Wherever materials are to be processed in ovens or driers in successive operations, suitable arrangement shall be provided to ensure that the operating temperatures necessary for safe operation at each stage are maintained within the design limits.

(11)

Effective arrangements shall be provided in every oven or drier to prevent dripping of combustible substances on electric heaters or burner flame used for heating.

12. (a) All parts of every oven and drier shall be properly maintained and thoroughly examined and the various controls as mentioned in this rule and the working of the oven or drier tested at frequent intervals to ensure its safe operation by a responsible person designated by the occupier or manager who, by his experience and knowledge of necessary precautions against risks of explosion, is fit to undertake such work.

(b)

A register shall be maintained in which the details of the various tests carried out from time to time under Clause (a) shall be entered and every entry made shall be signed by the person making the tests.

(13)

No person shall be assigned any task connected with operation of any oven or drier unless he has completed eighteen years of age and he is properly trained.

14. (a) Printed fabric shall be thoroughly dried by passing them over drying cans or through hot flue or other equally effective means, before the same is allowed to pass through polymerising machines.

(b)

Inter red ray heaters of polymerising machines shall be cut off while running the prints.

62H.

[Personal protective equipment.

[Substituted vide Orissa Gazette Extraordinary No. 769/14. 6. 1990-SRO No. 282/90/11.6.1990.]

- (I) The Inspector may having regard to the nature of the hazards involved in the work to be performed by the workers, order the occupier or the Manager in writing to supply to such workers personal protective equipment as may be found necessary.

(2)

All personal protective equipments provided to workers as required under any of the provisions of the Act or these rules including Sub-rule (1) shall conform to the relevant Indian Standards.]

62I.

[

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

- No vehicle shall ply exceeding the speed limit of 20 K.M./ Hour inside the factory premises].

62J.

[

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

Health record as required under Section 41C shall be maintained in Form No.31-A.]

Chapter-V Rules prescribed under Sub-section (2) of Section 42

63.

[Washing facilities.

[Rule 63 come into force with effect from the 1st April, 1953 vide Notification No 2132-Lab./11.4.1953.]

(1)

This rule shall come into force in respect of any class or description of factories on such dates as the State Government may, by notification in the Official Gazette, appoint in this behalf.]

(2)

there shall be provided and maintained in every factory for the use of employed persons adequate and suitable facilities for washing which shall include soap and nail brushes or other suitable means of cleaning and the facilities shall be conveniently accessible and shall be kept in a clean and orderly condition.

(3)

Without prejudice to the generality of the foregoing provisions the washing facilities shall include -

(a)

a trough with taps or jets at intervals of not less than two feet; or

(b)

wash-basins with taps attached thereto; or

(c)

taps on stand pipes; or

(d)

showers controlled by taps; or

(e)

circular troughs of the fountain type provided that the Inspector may, having regard to the needs and habits of the workers, fix the proportion in which the aforementioned types of facilities shall be installed.

(4)

(a)

Every trough and basin shall have a smooth, impervious surface and shall be fitted with a waste-pipe and plug.

(b)

The floor or ground under and in the immediate vicinity of every trough tap-jet, wash basin, stand-pipe and shower shall be so laid or finished as to provide a smooth impervious surface and shall be adequately drained.

(5)

For persons whose work involves contact with any injurious or noxious substance there shall be at least one tap for every fifteen persons and for persons whose work does not involve such contact the number of taps shall be as follows :

Number of workers

Number of taps

Up to

20

1

21 to 35

2

36 to 50

3

51 to 150

4

151 to 200

5

Exceeding 200 but not exceeding 500

5 plus one tap for every 50 or fraction of 50.

Exceeding 500

11 plus one tap for every 100 or fraction of 100.

(6)

If female workers are employed, separate washing facilities shall be provided and so enclosed or screened that the interiors are not visible from any place where persons of the other sex work or pass. The entrance to such facilities shall bear conspicuous notice in the language understood by the majority of the workers 'For Women Only' and shall also be indicated pictorially.

(7)

The water supply to the washing facilities shall be capable of yielding at least six gallons a day for each person employed in the factory and shall be from a source approved in writing by the Health Officer: provided that where the Chief Inspector is satisfied that such a yield is not practicable he may by certificate in writing permit the supply of a smaller quantity not being less than one gallon per day for every person employed in the factory.

Rules prescribed under Section 43

63A.

- All classes of factories mentioned in the schedule annexed hereto shall provide facilities for keeping clothing not worn during working hours and for the drying of wet clothing. Such facilities shall include the provision of arrangements approved by the Chief Inspector of Factories.

Schedule 12

Glass works, Engineering workshops, Iron and Steel Works

Oil Mills

Chemical works

Automobile workshops

Dying works

Rules prescribed under Sub-section (1) of Section 45

64.

[First-aid appliance.

[Substituted vide Orissa Gazette Part III/3.5.1974-SRO No. 292/74/ 19.4.1974.]

- The first-aid boxes or cupboards shall be distinctively marked with red cross on white background and shall contain the following equipment :

A. For factories in which the number of persons employed does not exceed ten, each first-aid box or cup board shall contain the following equipment:

(i)

Six small size sterilised dressings.

(ii)

Three medium size sterilised dressings.

(iii)

Three large size sterilised dressings.

(iv)

Three large size sterilised burn dressings.

(v)

One (60 ml.) bottle of certrimide solution (1 percent) or a suitable antiseptic solution.

(vi)

One (0 ml.) bottle or Mercurochrome solution (2 per cent) in water.

(vii)

One (30 ml.) bottle containing saf-volatile having the dose and mode of administration on the label.

(viii)

One pair scissors.

(ix)

One roll of adhesive plaster (2 cms. x 1 metre).

(x)

Six pieces of sterilized eye pads in separate sealed box.

(xi)

A bottle containing 100 tablets (each of 5 grains) of aspirin or any other analgesic.

(xii)

Polythene wash bottle ($\frac{1}{2}$ litre, e., 500 c. c.) for washing eyes.

(xiii)

A snake bite lancet.

(xiv)

One (30 ml.) bottle containing Potassium permanganate crystals.

(xv)

One copy of first-aid leaflet issued by the Director-General of Factory Advice Service and Labour Institutes, Government of India, Bombay

B. For factories in which mechanical power is used and in which the number of persons employed exceeds ten but does not exceed fifty, each first aid box or cupboard shall contain the following equipment :

(i)

Twelve small size sterilised dressings.

(ii)

Six medium size sterilised dressings.

(iii)

Six large size sterilised dressings.

(iv)

Six large size sterilised burn dressings.

(v)

Six (15 gm.) packets of sterilised cotton wool.

(vi)

One (120 ml.) bottle of cetrimide solution (one per cent) or a suitable antiseptic solution.

(vii)

One (120 ml.) bottle of Mercurochrome solution (two per cent) in water.

(viii)

One (60 ml.) bottle containing sal-volatile having the dose and mode of administration indicated on the label.

(ix)

One pair scissors,

(x)

Two rolls of adhesive plaster (2 cms. x 1 metre).

(xi)

Eight pieces of sterilised eye pads in separate sealed packets.

(xii)

One tourniquet.

(xiii)

One dozen safety pins.

(xiv)

A bottle containing 100 tablets (each of 5 grams) of aspirin or any other analgesic.

(xv)

One Polythene wash bottle ($\frac{1}{2}$ litre i.e., 500 c.c.) for washing eyes.

(xvi)

A snake bite lancet.

(xvii)

One (30 ml.) bottle containing Potassium Permanganate crystals.

(xviii)

One copy of the first-aid leaflet issued by the Director-General of Factory Advice Service and Labour Institutes, Government of India, Bombay.

C. For factories employing more than fifty persons each first-aid box cupboard shall contain the following equipment;

(i)

Twenty-four small sterilised dressings.

(ii)

Twelve medium size sterilised dressings.

(iii)

Twelve large size sterilised dressings.

(iv)

Twelve large size sterilised burn dressing.

(v)

Twelve (15 gm.) packets of sterilised cotton wool.

(vi)

One (299 ml.) bottle of cetrimide solution (one per cent) or a suitable antiseptic solution.

(vii)

One (200 ml.) bottle of Mercurochrome (2 per cent) solution in water.

(viii)

One (120 ml.) bottle of sal-volatile having the dose and mode of administration indicated on the label.

(ix)

One pair of scissors.

(x)

One roll of adhesive plaster (6 cms. x 1 metre).

(xi)

Two rolls of adhesive plaster (2 cms. x 1 metre).

(xii)

Twelve pieces of sterilised eye pads in separate sealed packets.

(xiii)

A bottle containing 100 tablets (each of 5 grains) of aspirin or any other analgesic.

(xiv)

One Polythene wash bottle (500 c. c.) for washing eyes;

(xv)

Twelve roller bandages 10 cms. wide.

(xvi)

Twelve roller bandages 5 cms. wide.

(xvii)

Six triangular bandages.

(xviii)

One tourniquet.

(xix)

A supply of suitable splints.

(xx)

Two packets of safety pins.

(xxi)

Kidney tray.

(xxii)

A snake bite lancet.

(xxiii)

One (30ml.) bottle containing Potassium Permanganate crystals.

(xxiv)

First-aid leaflet issued by the Directorate-General of Factory

Advice Service and Labour Institute, Government of India Bombay:

Provided that items (xiv) to (xxi) inclusive need not be included in the standard first-aid box or cupboard (a) where there is a properly equipped ambulance room; or (b) if at least one box containing such items and placed and maintained in accordance with the requirements of Section 45 is separately provided.

D. In lieu of the dressings required under items (i) and (ii), there may be substituted adhesive wound dressings approved by the Chief Inspector of Factories and other equipment or medicines that may be considered essential and recommended by the Chief inspector of Factories from time to time.]

64A.

[Notice regarding first-aid.

[Substituted vide Orissa Gazette Part III/3.5.1974-SRO No. 292/74/19.4.1974.]

- A notice containing the names of the persons working within the precincts of the factory who are trained in first-aid treatment and who are in charge of the first-aid boxes or cupboards shall be posted in every factory at a conspicuous place and near each such box or cupboard. The notice shall also indicate work-room where the said person shall be available. The name of the nearest hospital and its telephone number shall also be mentioned prominently in the said notice.]

Rules prescribed under Sub-section (4) of Section 45

65.

[Ambulance room.

[Substituted vide Orissa Gazette Part III/3.5.1974-SRO No. 292/74/19.4.1974.]

(1)

The ambulance room or dispensary shall be in charge of a qualified medical practitioner assisted by at least one qualified nurse and such subordinate staff as the Chief Inspector may direct.]

(2)

There shall be displayed in the ambulance room or dispensary a notice giving the name, address and telephone number of the medical practitioner in charge. The name of the nearest hospital and its telephone number shall also be mentioned prominently in the said notice.

(3)

The ambulance room or dispensary shall be separate from the rest of the factory and shall be used only for the purpose of first-aid treatment and rest. It shall have a floor area of at least 24 Sq. metres and smooth, hard and impervious walls and floors, shall be adequately ventilated and lighted by both natural and artificial means. An adequate supply of wholesome drinking water shall be laid on and the room shall contain at least-

(i)

A glazed sink with hot and cold water always available.

(ii)

A table with a smooth top at least 180 cms. x 105.

(iii)

Means for sterilising instruments.

(iv)

A couch.

(v)

Two stretchers.

(vi)

Two buckets of containers with close fitting lids.

(vii)

Two rubber hot water bags.

(viii)

A kettle and spirit stove or other suitable means of boiling water.

(ix)

Twelve plain wooden splints 900 mm. x 100 mm. x 6 mm.

(x)

Twelve plain wooden splints 350 mm. x 75 mm. x 6 mm.

(xi)

Six plain wooden splints 250 mm. x 50 mm. x 12 mm.

(xii)

Six woollen blankets.

(xiii)

Three pairs artery forceps.

(xiv)

One bottle of spiritus ammonia aromatics (120 ml.).

(xv)

Smelling salts (60 gms.)

(xvi)

Two medium size sponges, xvii) Six hand towels.

(xviii)

Four kidney trays.

(xix)

Four cakes of toilet, preferably antiseptic soap.

(xx)

Two glass tumblers and wine glasses.

(xxi)

Two clinical thermometers.

(xxii)

Tea spoons-Two

(xxiii)

Graduated (120 ml.) measuring glasses -Two.

(xxiv)

Minimum measuring glass-Two.

(xxv)

One wash bottle (1000 C.C.) for washing eyes.

(xxvi)

One bottle (one litre) carbolic lotion 1 in 20.

(xxvii)

Three chairs.

(xxviii)

One screen.

(xxix)

One electric hand torch.

(xxx)

Four first-aid boxes or cupboards stocked to the standards prescribed under C of Rule 64.

(xxxi)

An adequate supply of anti-tetanus toxoid.

(xxxii)

Injection Morphia, Pethidine, Atropine, Adrenaline, Coramine, Novacain-6 each xxxiii) Camphor liquid (60 ml.).

(xxxiv)

Tablets anti-spasmodic, anti-emetic (25 each).

(xxxv)

Syringes with needles 2 c. c., 5 c. c., 10 c.c. and 50 c.c.

(xxxvi)

Surgical scissors-Three.

(xxxvii)

Needle holder.

(xxxviii)

Saturing needles and materials.

(xxxix)

Dissecting forceps-Three.

(xl)

Dressing forceps-Three.

(xii)

Scalpels-Three.

(xlii)

Stethoscope -One.

(xlili)

Rubber bandage pleasure bandage,

(xliv)

Oxygen cylinder with necessary attachments.

(4)

The occupier of every factory to which these rules apply shall for the purpose of removing serious cases of accident or sickness, provide in the premises and maintain in good condition a suitable conveyance unless he had made arrangements for obtaining such a conveyance from a hospital.

Explanation - For the purposes of this rule "qualified medical practitioner" means a person holding a qualification granted by an authority specified in the Schedule to the Indian Medical Degrees Act, 1916 or in the Schedules to the Indian Medical Council Act, 1956.

65A.

[

[Re-numbered and inserted vide Orissa Gazette Part III/10.8.1973/SRO No. 719 of 1973.]

The Chief Inspector of Factories may, by an order in writing, exempt any factory from the requirements of Sub-section (4) of Section 45 of the Act subject to such conditions as he may specify in the said order if there is a hospital ambulance room or dispensary at or near the factory and the necessary arrangements are made to ensure immediate treatment of all injuries to workers occurring within the factory and for providing rest to the injured workers.]

Rules prescribed under Section 46

66.

[Canteens.

[Rules 66 to 71 came into force with effect from 1st September, 1954 (No. 3187-Lab. dated 8th June, 1954).]

(1)

Rules 66 to 72 shall come into force in respect of any class or description of factories on such dates as the State Government may, by notification in the Official Gazette appoint in this behalf.

(2)

The occupier of every factory notified by the State Government, and wherein more than two hundred and fifty workers are ordinarily employed shall provide in or near the factory an adequate canteen according to the standards prescribed in these rules.

(3)

The manager of a factory shall submit for the approval of the Chief Inspector plans and site plan, in duplicate, of the building to be constructed or adapted for use as a canteen.

(4)

The canteen building shall be situated not less than fifty feet from any latrine, urinal, boiler house, coal stocks, ash dumps and any other source of dust smoke or obnoxious fumes :

Provided that the Chief Inspector may in any particular factory relax the provisions of this sub-rule to such extent as may be reasonable in the circumstances and may require measures to be adopted to secure the essential purpose of this

sub-rule.

(5)

The canteen building shall be constructed in accordance with the plans approved by the Chief Inspector and shall accommodate at least a dining hall, kitchen, store room, pantry and washing places separately for workers and for utensils.

(6)

In a canteen the floor and inside walls up to a height of 4 feet from the floor shall be made of smooth hard impervious material the remaining portion of the inside walls shall be made smooth by cement plaster or in any other manner approved by the Chief Inspector.

(7)

The doors and windows of a canteen building shall be of fly proof construction and shall allow adequate ventilation.

(8)

The canteen shall be sufficiently lighted at all times when any persons have access to it.

(9)

(a)

In every canteen-

(i)

all inside walls of rooms and all ceilings and passages and staircases shall be lime-washed or colour washed at least once in each year or painted once in three years, dating from the period when last lime-washed or painted, as the case may be;

(ii)

all wood work shall be varnished or painted once in three years, dating from the period when last varnished or painted ; and

(iii)

all internal structural iron or steel work be varnished or painted once in three years, dating from the period when last varnished or painted ; provided that inside walls of the kitchen shall be lime washed once in every four months.

(b)

Records of date on which lime-washing, colour-washing, varnishing or painting is carried out shall be maintained in the prescribed Register (Form No. 7).

(10)

The precincts of the canteen shall be maintained in a clean and sanitary condition. Waste water shall be carried away in suitable covered drains and shall not be allowed to accumulate so as to cause a nuisance. Suitable arrangement shall be made for the collection and disposal of garbage.

67.

Dining hall.

(1)

The dining hall shall accommodate at a time at least 30 per cent of the working at time :

Provided that, in any particular factory or in any particular class of factories, the State Government may, by a notification in this behalf, alter the percentage of workers to be accommodated.

(2)

The floor area of the dining hall, excluding the area occupied by the service counter and any furniture except tables and chairs, shall be not less than 10 square feet per diner to be accommodated as prescribed in Sub-rule (1).

(3)

A portion of the dining hall and service counter shall be partitioned off and reserved for women workers in proportion to their number. Washing places for women shall be separated and screened to secure privacy.

(4)

Sufficient tables, chairs or benches shall be available for the number of diners to be accommodated as prescribed in Sub-rule (1).

68.

Equipment.

(1)

There shall be provided and maintained sufficient utensils, crockery, cutlery, furniture and any other equipment necessary for the efficient running of the canteen. Suitable clean clothes for the employees serving in the canteen shall also be provided and maintained.

(2)

The furniture, utensils and other equipment shall be maintained in a clean and hygienic condition. A service counter, if provided, shall have a top of smooth and impervious material. Suitable facilities including an adequate supply of hot water shall be provided for the cleaning of utensils and equipments.

69.

Prices to be charged.

(1)

Food, drink and other items served in the canteen shall be sold on a non-profit basis and the price charges shall be subject to the approval of the Canteen Managing Committee :

Provided that where the canteen is managed by a Co-operative Society registered under the Orissa Co-operative Societies Act, 1951, such society may be allowed to include in the charges to be made for the foodstuffs, served, a profit up to five per cent on its working capital employed in running the canteen.

[a. In computing the prices referred to in Sub-rule (1) the following items of expenditure shall not be taken into account, but shall be borne by the occupier-

(a)

the rent for the land and buildings;

(b)

the depreciations and maintenance charges of the building and equipment provided for the canteen;

(c)

the cost of purchase, repairs and replacement of equipment including furniture, crockery, cutlery and utensils;

(d)

the water charges and expenses for providing lighting and ventilation

(e)

the interest on the amount spent on the provision and maintenance of the building furniture and equipment provided for the canteen;

(f)

the cost of fuel required for cooking or heating food-stuffs or water; and

(g)

the wages of employees serving in the canteen and the cost of uniform if any provided to them.]

(2)

The charge per portion of foodstuff, beverages and any other item served in the canteen shall be conspicuously displayed in the canteen.

70.

Accounts.

(1)

All books of accounts, registers and any other documents used in connection with the running of the canteen shall be produced on demand to an Inspector of Factories.

(2)

The accounts pertaining to the canteen shall be audited once every twelve months, by registered accountants and auditors. The balance sheet prepared by the said auditors shall be submitted to the Canteen Managing Committee not later than two months after the closing of the audited accounts:

Provided that where the canteen is managed by a Co-operative Society registered under the Orissa Co-operative Societies Act, 1951 the accounts pertaining to such canteen may be audited in accordance with the provisions of the Orissa Co-operative Societies Act, 1951.

71.

Managing Committee.

(1)

The manager shall appoint a Canteen Managing Committee which shall be consulted from time to time as to-

(a)
the quality and quantity of foodstuffs to be served in the canteen

(b)
the arrangement of the menus

(c)
times of meals in the canteen; and

(d)
any other matter as may be directed by the Committee

Provided that where the canteen is managed by a Co-operative Society registered under the Orissa Co-operative Societies Act, 1951, it shall not be necessary to appoint a Canteen Managing Committee.

(2)
The Canteen Managing Committee shall consist of an equal number of persons nominated by the occupier and elected by the workers. The number of elected workers shall be proportion of for every 1,000 workers employed in the factory ; provided that in no case shall there be more than 5 or less than 2 workers on the Committee.

(3)
The manager shall determine and supervise the procedure for elections to the Canteen Managing Committee.

(4)
A Canteen Managing Committee shall be dissolved by the Manager two years after the last election, no account being taken of a by-election.]

[Inserted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO-No. 501/87/22.7.1987.]

72.

[* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No.501/87/22.7.1987.]

Rules prescribed under Section 112

72A.

[

[Inserted vide Orissa Gazette Part III/20.1.1978-SRO No. 25/78/7.1.1978.]

Annual Medical Examination for fitness of each member of the canteen staff who handles food-stuffs shall be carried out by the Factory Medical Officer or the Certifying Surgeon which should include the following:

(i)
Routine blood examinations

(ii)
Routine and bacteriological testing of faces and urine for germs of dysentery and typhoid fever:

(iii)
Any other examination including chest X-Ray that may be considered necessary by the Factory Medical Officer or the Certifying Surgeon.

Any person who, in the opinion of the Factory Medical Officer or the Certifying Surgeon, is unsuitable for employment on account of possible risk to the health of others shall not be employed as such staff.]

Rules prescribed under Section 47

73.

Shelters, rest room and lunch rooms.

(1)
This rule shall come into force in respect of any class or description of factories, on such dates as the State Government may, by notification in the Official Gazette, appoint in this behalf.

(2)
The shelters, or rest rooms and lunch rooms shall conform to the following standards and the manager of a factory shall submit for the approval of the Chief Inspector a site plan in duplicate of the building to be constructed or adopted :

(a)
The building shall be soundly constructed and all the walls and roofs shall be of suitable heat resisting materials and shall be waterproof. The floor and walls to a height of 3 feet shall be so laid or finished as to provide a smooth, hard and impervious surface.

(b)

The height of every room in the building shall be not less than 12 feet from floor level to the lowest part of the roof and there shall be at least 12 square feet of floor area for, every person employed ; provided that where it is impracticable owing to lack of space to provide 12 square feet of floor area for each person, such reduced floor area per person shall be provided as may be approved in writing by the Chief Inspector.

(c)

Effective and suitable provision shall be made in every room for securing and maintaining adequate ventilation by the circulation of fresh air and there shall also be provided and maintained sufficient and suitable natural or artificial lighting.

(d)

Every room shall be adequately furnished with chairs or benches with back rests.

(e)

Sweepers shall be employed whose primary duty is to keep the rooms, building and precincts thereof in a clean and tidy condition.

Rules prescribed under Sub-section (3) of Section 48

74.

[Creches.

[Rules 74 to 76 came into force with effect from 1st September, 1953 (No. 2922-Lab. dated the 14th May, 1953).]

(1)

Rules 74 to 77 shall come into force, in respect of any class or description of factories, on such dates as the State Government may, by notification in the Official Gazette, appoint in this behalf.

(2)

The creche shall be conveniently accessible to the mothers of the children accommodated therein and so far as is reasonably practicable it shall not be situated in close proximity to any part of the factory where obnoxious fumes, dust or odours are given off or in which excessively noise processes are carried on.

(3)

The building in which the creche is situated shall be soundly constructed and all the walls and roof shall be of suitable heat resisting materials and shall be waterproof. The floor and internal walls of the creche shall be so laid or finished as to provide a smooth impervious surface.

(4)

The height of the rooms in the building shall be not less than 12 feet from the floor to the lowest part of the roof and there shall be not less than 20 square feet of floor area for each child to be accommodated.

(5)

Effective and suitable provision shall be made in every part of the creche for securing and maintaining adequate ventilation by the circulation of fresh air.

(6)

The creche shall be adequately furnished and equipped and in particular there shall be one suitable cot or cradle with the necessary bedding for each child ; provided that for children over two years of age it will be sufficient if suitable bedding is made available, at least one chair or equivalent seating accommodation for the use of each mother while she is feeding or attending to her child, and sufficient supply of suitable toys for the older children.

(7)

A suitably fenced and shady open air play-ground shall be provide for the older children ; provided that the Chief Inspector may by order in writing exempt any factory from the compliance with the sub-rule if he is satisfied that there is not sufficient space available for the provisions of such play ground.

75.

Wash room.

(1)

There shall be in or adjoining the creche a suitable wash room for the washing of the children and their clothing. The wash room shall conform to the following standards

(a)

The floor and internal walls of the room to a height of 3 feet shall be so laid or finished as to provided a smooth impervious surface. The room shall be adequately lighted and ventilated and the floor shall be effectively drained and

maintained in a clean and tidy condition.

(b)

There shall be at least one basin or similar vessel for every four children accommodated in the creche at any one time together with a supply of water provided, if practicable, through taps from a source approved by the Health Officer. Such source shall be capable of yielding for each child a supply of at least five gallons of water a day.

(c)

An adequate supply of clean clothes, soap and clean towels shall be made available for each child while it is in the creche-

(2)

Adjoining the washing room referred to above, a latrine shall be provided for the sole use of the children in the creche. The design of latrine and the scale of accommodation to be provided shall either be approved by the Public Health Authorities, or where there is no such Public Health Authority, by the Chief Inspector of Factories.

76.

Supply of milk and refreshment.

- At least half a pint of clean pure milk shall be available for each child on everyday it is accommodated in the creche and the mother of such child shall be allowed in the course of her daily work two intervals of at least 15 minutes to feed that child. For children above two years of age there shall be provided in addition an adequate supply of wholesome refreshment.]

77.

Clothes for creche staff.

- The creche staff shall be provided with suitable clean clothes for use while on duty in the creche.

Chapter-VI Working hours of Adults Rules prescribed under Sub-section (2) of Section 53

78.

Compensatory holidays.

(1)

Except in the case of workers engaged in the work which for technical reasons must be carried on continuously throughout the day, the compensatory holidays to be allowed under Subsection (1) of Section 52 of the Act shall be spaced that not more than two holidays are given in one week.

(2)

The manager of the factory shall display, on or before the end of the month in which holidays are lost, a notice in respect of workers allowed compensatory holidays during the following month and of the dates thereof, at the place at which the notice of periods of work prescribed under Section 61 is displayed. Any subsequent change in the notice in respect of any compensatory holiday shall be made not less than three days in advance of the date of that holiday.

(3)

Any compensatory holiday or holidays to which a worker is entitled shall be given to him before he is discharged or dismissed and shall not be reckoned as part of any period of notice required to be given before discharge or dismissal.

(4)

(a)

The manager shall maintain a register in Form No. 9 :

Provided that, if the Chief Inspector of Factories is of the opinion that any muster-roll or register maintained as part of the routine of the factory or return made by the manager, gives in respect of any or all of the workers in the factory the particulars required for the enforcement of Section 52, he may, by order in writing, direct that such muster-roll or register or return shall, to the corresponding extent, be maintained in place of and be treated as the register or return required under this rule for that factory.

(b)

The register maintained under Clause (a) shall be preserved for a period of three years the last entry in it and shall be produced before the Inspector on demand.

Rules prescribed under Sub-section (5) of Section 59

79.

Muster.

- roll for exempted factories -The manager of every factory in which workers are exempted under Section 64 or 65 from

the provisions of Section 51 or 54 shall keep a [combined register of overtime working and payment]

[Substituted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

showing the normal piecework rate of pay, or the rate of pay per hour, of all exempted employees. In this muster-roll shall be correctly entered the overtime hours of work and payments therefor of all exempted workers. The [combined register of overtime working and payment]

[Substituted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

shall always be available for inspection.

79A.

The cash equivalent of the advantage accruing through the concessional sale to a worker of foodgrains and other articles shall be computed at the end of every wage period fixed under the provisions of the Payment of Wages Act, 1936.

79B.

For the purpose of computing cash equivalent of the advantage accruing through the concessional sale to a worker of foodgrains and other articles, the difference between the value of foodgrains and other articles at the average rates in the nearest market prevailing-during the wage period in which overtime was worked and value of foodgrains and other articles supplied at concessional rates shall be calculated and allowed for the number of overtime hours worked.

This rule shall not apply to any Federal Railway Factory whose alternative method of computation has been approved by the State Government.

79C.

Overtime slip.

- Period of overtime worked shall be entered in the overtime slip in duplicate, a copy of which duly signed by the manager or by a person duly authorised by him shall be given to the worker immediately after completion of the overtime work.

Notice prescribed under Sub-section (8) of Section 61

80.

Notice of periods of work for adults.

- The notice of period of work for adult workers shall be in Form No. 11.

Register prescribed under Sub-section (2) of Section 62

81.

Register of adult workers.

- The Register of adult workers shall be in Form No. 12.

[* * *]

[Deleted vide Orissa Gazette Extraordinary Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

Schedule 13

Section of the act empowering grant of exemption

Class of factory

Nature of exempted work

Extent of exemption

Remarks

1

2

3

4

5

64 (2)(a) and 64(3)

All Factories

Urgent repairs

Sections 51, 52, 54, 55, 56 and 61

(i) No worker shall be employed on such repair

for more than 15 hours on any one day, 39 hours during any three

consecutive days, or 66 hours during each period of seven

consecutive days commencing from his first employment on such repairs.

(ii) Within 24 hours of the commencement of the work, notice shall be sent to the Inspector describing the nature of the urgent repairs and the period probably required for their completion.

(iii) Exemption from the provisions of Section 54 shall apply only in the case of adult male workers.

64(2)(b) and 64 (3)

All factories

1. Work in the machine shop, the smithy or the foundry or in connection with the mill gearing, the electric driving or lighting apparatus, the mechanical or electrical lights or the steam or water pipe or pumps of a factory.

Sections 51, 54, 55, 56 and 61

2. Work of examining or repairing any machinery or other part of the plant which is necessary for carrying on the work in factory.

3. Work in boiler houses and engine rooms, such as lighting fires in order to raise steam or generate gas preparatory to the commencement of regular work in the factory.

Ordinance Factory

The work viz., firing gun, recovery of fired shells and demolition of blinds

Ditto

Ditto

62(2)(c) and 64 (3)

All factories

Work performed by drivers, on lighting, ventilating and humidifying apparatus. Work performed by fire pump-men.

Sections 51, 54, 55, 56, 56 and 61

The limits of work inclusive of overtime shall not exceed those mentioned in Sub-section (4) of Section 64.

Work of persons engaged in loading or unloading or transporting raw materials or finished articles in factories where such work is intermittent and mainly outside the factory premises

64 (2)(d) and 64 (3)

Oil tank installation

Work performed by workers in connection with pumping operations

Section 51, 52, 54, 55, 56 and 61

No worker shall be employed for more than 56 hours in any one week.

Hydro-electric public supply factories

Operation and maintenance of prime movers and auxiliaries, transformers and switches

Sections 52, 54 and 55

The limits of work inclusive of overtime shall not exceed those mentioned in Sub-section (4) of Section 64

Public electricity supply companies generating electricity from oil in internal combustion engines
The work of engine drivers and assistants, generator attendant, oilers and greasers, switchboard operators and pump-men

Ditto

Ditto

Electrical transforming factories

The work, viz., operation and maintenance of the transforming plant, switches and synchronous condensers
Sections 52, 54 and 55

The limits of work inclusive of overtime shall not exceed those mentioned in Subsection (4) of Section 64

Distilleries

Work on the extraction of sugar from various bases, fermentation of sugar juice from the cane, clarification, evaporation and boiling of the juice, curing of the massecutic,

Bagging

Ditto

Ditto

Sugar Factories

Extraction of the juice from the cane, clarification, evaporation and boiling of the juice, curing of the massecutic, Bagging

Ditto

Ditto

Chemical Factories

Work on the sulphur burners, chambers, concentrators and pumps; roasting furnace, the manufacture of hydrochloric and nitric acid, sulphates, sulphides, nitrates, superphosphates and chlorides, work on the steam

Ditto

Ditto

Vegetable oil hydrogeneration factories

The work, viz. refining, hydrogeneration bleaching, tittering, generation factories of hydrogen, hydro-generating and deodorising process; also compression of oxygen and the cylinder filing and work on the electrical power plant

Ditto

Ditto

Ice Factories

Work of the engine and compressor drivers and assistant and oilers

Ditto

Oil Mills

All work

Sections 54 and 55

Flour Mills

All work

Sections 52 and 55

Glass Factories

Work in attending to furnace.

Ditto

All work and process from mixing and process
from mixing of batch to removal of the manufactured glassware
from the lears

Section 52

Paper Factories

All work on paper making machinery and on the
generation and supply of power connected therewith

Sections 54 and 55

Work on choppers, digesters, kneaders,
strainers and washers, beaters, paper making machines, pumping
plant, reefers, cutters and power plant

Sections 52, 54 and 55

Rubber Type Factories

All works on curing process

Sections 55

Iron and Steel factories

All work on steel furnaces

Sections 51, 52, 54, 55 and 56

No worker shall be employed for more than 56
hours in any one week

Cement factories

All workers engaged in manufacture which is
essentially continuous

Sections 51, 52 and 55 (1)

(1) No workers shall be employed for more than
54 hours in any one week. The total number of hours of over-time
work shall not exceed 50 for any one quarter.

(2) Interval of at least half an hour for food
and rest shall be given on each working day to all persons
employed in such work.

(3) No worker shall be allowed to work on
consecutive weekly holidays.

(4) This exemption shall not apply in cases of
female workers.

64(2)(f))

Newspaper Printing Factories

Teleprinter service

Sections 51, 54 and 56

In the absence of a worker who has failed to
report for duty, a shift worker shall be allowed to work the
whole or part of a subsequent shift provided that -

(i) The next shift of the shift worker shall not
commence before a period of 16 hours has elapsed.

(ii) Within 24 hours of the commencement of the
subsequent shift notice shall be sent to the Inspector
describing the circumstances under which the worker is required
to work in the subsequent shift.

(iii) The exemption will be restricted to only

male adult worker.

64(2)(j)

All Factories

Loading and unloading of Railway Wagons,
Sections 51, 52, 54, 55 and 56

64(2)(d)

Ceramic Industry

Workers attending to kilns and furnaces in
ceramic and pottery industry

Sections 52 and 55

Aluminium factories

All adult male workers engaged in manufacture

which is essentially continuous

Sections 51, 52, 54, 55 and 56

1. (a) No worker shall be employed for more
than 10 hours on any one day; and

(b) The spread over inclusive of interval for
rest shall not exceed 12 hours in any one day:

Provided that for a period of six months from
the date of publication of notification of the Government of
Orissa in the Labour Department No. 55, dated the 6th January,
1959 in order to enable a shift worker to work the whole or a
part of subsequent shift in the absence of a worker who has
failed to report for duty, the above daily limitations may be
exceeded by six hours.

2. No worker shall be employed for more than 56
hours in any one week and the total number of hours of overtime
shall not exceed 50 for any quarter.

3. No worker shall be employed for more than 13
days of twenty-four consecutive hours.

Explanations-(1) The following shall be considered to be urgent repairs

(a)

Repairs to any part of the machinery, plant or structure of a factory which are of such nature that delay in their execution
would involve danger to human life or the stoppage of manufacturing process.

(b)

Breakdown repairs to the motive power, transmission or other essential plant of other factories, collieries, railway
dockyards, harbours, tramways, motor transport, gas, electrical generating and transmission, pumping or similar
essential or public utility services carried out in general engineering works and foundries and which are necessary to
enable such concerns to maintain their main manufacturing processes, production or service during normal working
hours.

(c)

Repairs to deep-sea ships and repairs to commercial air-craft done in a factory which are essential to enable such ships
or air-craft to leave port at proper time or continue their normal operations in a sea or air-worthy conditions, as the case
may be.

(d)

Repairs in connection with a change of motive power, for example, from steam to electricity or vice versa when such
work cannot possibly be done without stoppage of the normal manufacturing process.

(2)

Periodical cleaning is not included in the terms "cumining" or "repairing".

Chapter-VII Employment of young persons

Notice prescribed under-Sub-section (3) of Section 72

86.

Notice of periods of work for children.

- The notice of periods of work for child worker shall be in [Form No. 11.]

[Substituted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

Register prescribed under Sub-section (2) Section 13

87.

Registers of child workers.

- The Register of child workers shall be in [Form No. 12.]

[Substituted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

87A.

(1)

The certifying surgeon shall issue his certificate of fitness in Form No. 5. When a person to whom a certificate of fitness under Section 69 has been granted, loses such certificate, he may apply to the certifying surgeon for a copy of the same. The certifying surgeon after making enquiries from such person's employer (or if unemployed from such person's last employer) or from such other source as he may deem fit, may grant him a duplicate thereof. The word "Duplicate" shall be clearly written in red ink across such certificate and initialled by the certifying surgeon. The counterfoil in the bound book of forms shall be similarly marked "Duplicate" and initialled. Again in case of renewals of certificates the word "Renewed" shall be clearly written in red ink across such certificate and initialled by the Certifying Surgeon. The counterfoil in the bound book of forms shall be similarly marked "Renewed" and initialled.

(2)

A fee of one rupee shall be payable to the certifying surgeon by the occupier or the Manager for the issue of every certificate issued under Sub-rule (2) of Rule 14.

(3)

A fee of annas eight shall be payable to the certifying surgeon by the occupier or the Manager of the Factory for the issue of every duplicate or renewal of certificate.

(4)

The certifying surgeon shall maintain a Register in Form No. 5-A of all fee received for the issue of certificates or their duplicates or renewals and shall initial each entry made therein.

(5)

The certifying surgeon shall credit all the collection of fees made under this rule in the Government Treasury under the head "XXXVI-Miscellaneous-Miscellaneous Departments-Receipts under the Factories Act" and submit a copy of the chalan to the Chief Inspector.

87B.

For employment of children in factories the following conditions shall be fulfilled, namely :

1. Age-

(i)

A child must be over 14 years of age.

(ii)

An adolescent must be over 15 years and below 18 years of age.

2. Eye-sight-

Squint or any morbid condition of the eyes or the lids of either eye, unless is liable to the risk of aggravation will not be regarded as a cause of rejection.

3. General Health-

(i)

Hearing in each ear is good and that a candidate has no mental infirmity.

(ii)

His/her limbs hands, and feet are well-formed and developed and that there is free and perfect normal motion of his/her joints.

(iii)

His/her chest is well-formed and that his/her heart and lungs are sound.

(iv)

There is no evidence of any abdominal disease and that he/she does not suffer from any invertebrate skin disease.

(v)

The candidate does not bear any traces of acute or chronic disease pointing to an impaired constitution.

(vi)

He/she bears mark of vaccination.

(vii)

He/she has a proper degree of intelligence :

Provided that-

(1)

the candidates who are suffering from any physical deformity or heart affectations, noticeable anaemic, epilepsy, deafness, surpputating glands, hernia and pthisis should be rejected;

(2)

those suffering from curable diseases should be rejected until cured;

(3)

special attention should be paid to the presence of obvious signs of malnutrition and under-development.

87C.

(i)

The duties of a certifying surgeon appointed under Subsection (1) of Section 10 of the Act shall comprise the examination of young persons desirous of being employed and the re-examination of young persons in respect of whom a notice under Section 75 has been served upon the manager of who desires to be re-employed. Certificate of age and fitness shall be given only to such young persons as are found qualified.

(ii)

The certifying surgeon shall fix such date and place and time as may be mutually convenient for the attendance of persons wishing to obtain certificates of age and physical fitness. He shall give notice of the place, date and time thus fixed to the manager of the factory within the local limits for which he is appointed.

Rules prescribed under Section 80

87D.

The cash equivalent of the advantage accruing through the concessional sale of foodgrains and other articles payable to workers proceeding on leave shall be the difference between the value at the average rates in the nearest market prevailing during the month immediately preceding his leave and the value at the concessional rates allowed of foodgrains and other articles he is entitled to.

For the purpose of the cash equivalent monthly average market rate of food-grains and other articles shall be computed at the end of every month.

Chapter-VIII Leaves with wages

Rules prescribed under Sections 83 and 112

88.

Leave with wages register.

(1)

The Manager shall keep a register in Form No. 15 hereinafter called the Leave with Wages Register :

Provided that if the Chief Inspector is of the opinion that any muster-roll or Register maintained as part of the routine of the factory or return made by the Manager gives in respect of any or all of the workers in the factory, the particulars required for the enforcement of Chapter-VII of the Act, he may, by order in writing, direct that such muster-roll or register or return shall, to the corresponding extent, be maintained in place of and be treated as the register or return required under this rule in respect of that factory.

(2)

The Leave with Wages Register shall be preserved for a period of three years after the last entry in it and shall be produced before the Inspector on demand.

89.

Leave Book.

(1)

The Manager shall provide each worker who has become entitled to leave during a calendar year with a book in Form

No. 15 (hereinafter called the Leave Book) not later than the 31st January of the following calendar year. The leave book shall be the property of the worker and the Manager or his agent shall not demand it except to make entries of the dates or holidays or interruptions in service and shall not keep it for more than a week at a time :

Provided that in the case of a worker who is discharged or dismissed from service during the course of the year, i.e., who is covered under Subsection (3) of Section 79 of the Factories Act, 1948, the Manager shall issue an abstract from the 'Register of Leave with Wages' [Form No. 16] within a week from the date of discharge or dismissal, as the case may be.

(2)

If a worker loses his Leave Book, the Manager shall provide him with another copy on the payment of 15 naye paise and shall complete it from his record.

90.

Medical Certificate.

- If any worker is absent from work due to his illness and he wants to avail himself of the leave with wages due to him to cover the whole or part of the period of his illness under the provisions of Clause (7) of Section 79 of Chapter-VIII as revised by the Factories (Amendment) Act, 1954, he shall, if required by the manager, produce a medical certificate signed by a registered medical practitioner or by a registered or recognised Vaid or Hakim stating the cause of the absence and the period for which the worker is, in the opinion of such medical practitioner, Vaid or Hakim, unable to attend to his work or other reliable evidence to prove that he was actually sick during the period for which the leave is to be availed of.

91.

Notice to Inspector of involuntary unemployment.

- The Manager shall give, as soon as possible, a notice to the Inspector of every case of involuntary unemployment of workers, giving numbers of unemployed and the reason for their unemployment. Entries to this effect shall be made in that Leave with Wages Register and the Leave Book in respect of each worker concerned.

92.

Notice by worker.

- Before or at the end of every calendar year, a worker who may be required to avail of leave in accordance with Sub-section (8) of Section 79 of the Factories Act, 1948, may give notice to the Manager of his intention not to avail himself of the leave with wages falling due during the following calendar year. The Manager shall make an entry to that effect in the Leave with Wages Register and in the Leave Book of the worker concerned.

93.

Notice of leave with wages.

(1)

As far as circumstances permit, members of the same family, comprising husband, wife and children shall be allowed leave on the same date.

(2)

A worker may exchange the period of his leave with another worker, subject to the approval of the same date.

94.

Payment of wages if the worker dies.

- If a worker dies before he resumes work, the balance of his pay due for the period of leave with wages not availed of shall be paid to his nominee within one week of the intimation of the death of the worker. For this purpose each worker shall submit a nomination in the Form No. 28 duly signed by himself and attested by two witnesses. The nomination shall remain in force until it is cancelled or revised by another nomination.

95.

Register to be maintained in case of exemption under Section 84.

(1)

Where an exception is granted under Section 84, the Manager shall maintain a register showing the position of each worker as regard leave due, leave taken and wages granted.

(2)

He shall display at the main entrance of the factory, a notice giving full details of the system established in the factory for leave with wages and shall send a copy of it to the inspector.

(3)

No alteration shall be made in the scheme approved by the State Government at the time of granting exemption under Section 84 without its previous sanction.

Chapter-IX Special Provisions

Rules prescribed under Section 87

96.

[Dangerous [manufacturing processes or operations]

[Came into force w.e.f., 1.3.1954-No. 575-Lab.14.2.1954.]

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(1)

The following [manufacturing processes or operations]

[Substituted vide Orissa Gazette Extraordinary. No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

when carried on in any factory are declared to be dangerous operations under Section 87-

(1)

Manufacture of aerated water and processes incidental thereto.

(2)

Electrolyte plating or oxidation of metal articles by use of an electrolyte containing chromic acid or other chromium compounds.

(3)

Manufacture and repair of electric accumulators.

(4)

Glass manufacture.

(5)

Grinding or glazing of metals.

(6)

Manufacture and treatment of lead and certain compounds of lead.

(7)

Generation of gas from dangerous petroleum as defined in the Petroleum Act, 1934.

(8)

Cleaning or smoothing, roughening, etc., of articles, by a Jet of sand, metal shot or grit or other abrasive propelled by a blast of compressed air or stream.

(9)

Liming and tanning of raw hides and skins and processes incidental thereto.

(10)

Printing Presses and Type foundries (certain lead processes carried therein).

(11)

Manufacture of Pottery.

(12)

Chemical works.

(13)

[* * *]

(14)

Handling and processing of asbestos, manufacturing of any article of asbestos and any other processes of manufacture or otherwise in which asbestos is used in any form.

(15)

Manufacture of articles from refractory materials including manufacture of refractory bricks.

(16)

[Handling and manipulation of corrosive substance.]

[Inserted vide Orissa Gazette Part III of 1970.]

(17)

[Process of extracting oils and fats from vegetable and animal sources in Solvent Extraction Plants.]

[Substituted vide Orissa Gazette Part III-A/16.6.1978-Notification No. 7780/29.5.1978.]

(18)

[Manufacture or manipulation of Cereinogenic dye intermediates.

[Inserted vide Orissa Gazette Part III-No. 4 of 1983-SRO No. 41/83/6.1.1983.]

(19)

Manufacture or manipulation of manganese and its compounds.

(20)

Handling and use of Benzene.

(21)

Manufacture or manipulation of dangerous pesticides.]

(22)

[Processing of Cashew nuts.]

[Substituted vide Orissa Gazette Extraordinary. No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

(23)

Manufacturing process and operations in carbon-disulphate plants.

(24)

Operations involving high noise level.

(25)

Manufacture of rayon by viscose process.

(26)

Highly flammable liquids and flammable compressed gases.]

(2)

The provisions specified in the schedules annexed hereto shall apply to any class or description of factories wherein dangerous [manufacturing processes or operations]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

specified in each schedule are carried out.

(3)

This rule shall come into force in respect of any class or description of factories, wherein the said [manufacturing processes or operations]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

are carried on, on such dates as the State Government may by notification in the Official Gazette appoint in this behalf.

(4)

[(a) For the medical examination of workers to be carried out by the Certifying Surgeon as required by Schedule annexed to this rule, the occupier of the factory shall pay fees to the rate of ten rupees for examination of each worker every time he/she is examined.

(b)

The fees prescribed in Clause (a) shall be exclusive of any charges for biological, radiological or other tests which have to be carried out in connection with the medical examination. Such charges shall be payable by the occupier.

(c)

The fees to be paid for medical examination shall be paid to the local treasury under the Head of Account "087-Labour and Employment (d)-Fees realised under Factories Act".

(5)

Notwithstanding the provisions specified in the Schedules annexed to this rule, the Inspector may, by issue of orders in writing to the Manager or to the occupier or both, of the factory, direct them to carry out such measures and within such time, as may be specified in such order, with a view to removing conditions dangerous to the health of workers or to suspend any process where such process constitutes, in the opinion of the Inspector, imminent danger of poisoning or toxicity.

(6)

Any register or record of medical examination and tests connected therewith required to be carried out under any of the Schedules annexed hereto, in respect of any worker, shall be kept readily available to the Inspector and shall be preserved till the expiry of the year after the worker ceases to be in employment of the factory.]

[Inserted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

I

Manufacture of aerated waters and processes incidental thereto

1. Fencing of machines-All machines for filling bottles or syphons shall be so constructed, placed or fenced as to prevent as far as may be practicable, a fragment of bursting bottle or syphon from striking any person employed in the factory.

2. Face guards and gauntlets-(1) The occupier shall provide and maintain in good condition for the use of all persons engaged in filling bottles or syphons ;

(a)

suitable face-guards to protect face, neck and throat ; and

(b)

suitable gauntlets for both arms to protect the whole hand and arms:

Provided that-

(i)

paragraph 2 (1) shall not apply where bottles are filled by means of an automatic machine so constructed that no fragment of a bursting bottle can escape; and

(ii)

where a machine is so constructed that only one arm of the bottler at work upon it is exposed to danger, a gauntlet need not be provided for the arm which is not exposed to danger.

(2)

The occupier shall provide and maintain in good condition for the use of all persons engaged in corking, crowning, screwing, wiring, foiling, compulsory sighting, labelling bottles or syphons-

(a)

suitable face-guards to protect the face, neck and throat and

(b)

suitable gauntlets for both arms to protect the arm and at least half of the palm and the space between the thumb and forefingers.

3. Wearing of face guards and gauntlets-AW persons engaged in any of the processes specified in paragraph 2 shall, while at work in such processes, wear the face-guards and gauntlets provided under the provisions of the said paragraph.

II

Electrolytic Plating or Oxidation of metal articles by use of an Electrolyte containing Chromic acid or other Chromium compound

1. Definitions-For the purposes of this schedule-

(a)

"Electrolytic chromium process" means the electrolytic plating or oxidation of metal articles by the use of an electrolyte containing chromic acid or other chromium compounds.

(b)

"Bath" means any vessel used for an electrolytic chromium process or for any subsequent process.

(c)

"Employed" means in paragraphs 5, 7, 8, and 9 of this schedule, employed in any process involving contact with liquid from a bath.

(d)

[* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

2. Exhaust draught-An efficient exhaust draught shall be applied to every vessel in which an electrolytic chromium process is carried on. Such draught shall be provided by mechanical means and shall operate on the vapour or spray given off in the process as may be at the point of origin, The exhaust draught appliance shall be so constructed, arranged and maintained as to prevent the vapour or spray entering into any room or place in which work is carried on.

3. Prohibition relating to women and young persons-No woman, adolescent or child shall be employed or permitted to work at bath.

4. Floor of workrooms-The floor of every room containing a bath shall be impervious to water. The floor shall be

maintained in good and level condition and shall be washed down at least once a day.

5. Protective clothing - (1) The occupier of the factory shall provide and maintain in good and clean condition the following articles of protective clothing for the use of all persons employed on any process at which they are liable to come in contact with liquid from a bath and such clothing shall be worn by the persons concerned-

(a)

water-proof aprons and bibs, and

(b)

for persons actually working at a bath, loose-fitting rubber gloves and rubber boots or other water-proof footwear.

(2)

The occupier shall provide and maintain for the use of all persons employed suitable accommodation for the storage and adequate arrangements for the drying of the protective clothing.

6. Medical requisites-The occupier shall provide and maintain a sufficient supply of suitable ointment and impermeable water-proof plaster in a separate box readily accessible to the workers and used solely for the purpose of keeping the ointment and plaster.

7. [Medical facilities and records of examinations and tests - (1) The occupier of every factory in which electrolytic chrome process are carried on shall-

[Inserted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO. No. 501/87/22.7.1987.]

(a)

employ a qualified medical practitioner for medical surveillance of the workers employed therein whose appointment shall be subject to the approval of the Chief Inspector of Factories;

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a); and

(c)

maintain a sufficient supply of suitable ointment and impermeable water-proof plaster in a separate box readily accessible to the workers and used solely for the purpose of keeping the ointment and the plaster.

(2)

The medical practitioner shall examine all workers before they are employed in electrolytic chrome processes. Such examination shall include inspection of hands, forearms and nose and will be carried out at intervals of not more than one week.

(3)

The record of the examination referred to in Sub-paragraph (2) shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for inspection by the Inspector.

2. Medical examination by the Certifying Surgeon-(1) Every worker employed in the electrolytic chrome processes shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include tests for chromium in urine and nasal septum perforation. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for Such employment by the Certifying Surgeon.

(2)

Every worker employed in the said processes shall be re-examined by a Certifying Surgeon at least once In every three calendar months. Such re-examination shall, wherever the Certifying Surgeon considers appropriate, include tests as specified under Subparagraph (1).

(3)

The Certifying Surgeon after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of examination and re-examinations carried out shall be kept in the custody of the manager of the factory. The record of each examination carried out under Sub-paragraphs (1) and (2) including the nature and the results of the tests, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the inspector.

(5)

If any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said certificate and the health register. The entry of his findings in those documents, shall also include

the period for which he considers that the said person is unfit for work in the said processes.

(6)

No person who has been found unfit to work as said in Sub-paragraph (5) shall be re-employed or permitted to work in the said processes unless the Certifying Surgeon after further examination; again certifies him fit for employment in these processes.]

9. [* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987]

III

Manufacture and repair of electric accumulators

1. Savings-This Schedule shall not apply to the manufacture or repair of electric accumulators or parts thereof not containing lead or any compound of lead, or to the repair on the premises, of any accumulator forming part of a stationary battery.

2. Definitions-For the purposes of this Schedule -

(a)

"Lead process" means the melting of lead or any material containing lead, casting, pasting, lead burning, or any other work, including trimming, or any other abrading or cutting of pasted plates, involving the use, movement or manipulation of, or contact with, any oxide of lead.

(b)

"Manipulation of raw of oxide of lead" means any lead process involving any manipulation or movement of raw oxides of lead other than its conveyance in a receptacle or by means of an implement from one operation to another.

(c)

[* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987]

3. Prohibition relating to women and young persons-No woman or young person shall be employed or permitted to work in any lead process or in any room in which the manipulation of raw oxide or lead pasting is carried on.

4. Separation of certain processes-Each of the following processes shall be carried on in such a manner and under such conditions as to secure effectual separation from one another, and from any other process-

(a)

Manipulation of raw oxide of lead;

(b)

Pasting;

(c)

Drying of pasted plates;

(d)

Formation with lead during ("tacking") necessarily carried on in connection therewith;

(e)

Melting down of pasted plates.

5. Air space-In every room in which a lead process is carried on, there shall-be at least 500 cubic feet of air space for each person employed therein, and in computing this air space no height over 12 feet shall be taken into account.

6. Ventilation-Every work room shall be provided with inlets and outlets, of adequate size as to secure and maintain efficient ventilation in all parts of the room.

7. Distance between workers in pasting room-In every pasting room the distances between the centre of the working position of any paster and that of the paster working nearest to him shall not be less than five feet.

8. Floor of work rooms-(1) The floor of every room in a lead process is carried on shall be-

(a)

of cement or similar material so as to be smooth and impervious to water;

(b)

maintained in sound condition;

(c)

kept free from materials, plant, or other obstruction not required for or produced in the process carried on in the room.

(2)

In all such rooms other than grid casting shops the floor shall be cleaned daily after being thoroughly sprayed with water at a time when no other work is being carried on in the room.

(3)

In grid casting shops the floor shall be cleaned daily.

(4)

Without prejudice to the requirements of Sub-paragraphs (1), (2) and (3) where manipulation of raw oxide of lead or pasting is carried on, the floor shall also be-

(a)

kept constantly moisty while work is being done;

(b)

provided with suitable and adequate arrangements for drainage;

(c)

thoroughly washed daily by means of a hose pipe.

9. Work-benches-The work benches at which any lead process is carried on shall-

(a)

have a smooth surface and maintained in sound condition;

(b)

be kept from all materials or plant not required for, or produced in the process carried on thereat;

and all such work-benches other than those in grid casting shops shall-

(c)

be cleansed daily either after being thoroughly damped or by means of a suction cleaning apparatus at a time when no other work is being carried on thereat;

and all such work-benches in grid casting shops, shall-

(d)

be cleansed daily;

and every work-benches used for pasting shall-

(e)

be covered throughout with sheet lead or other impervious material;

(f)

be provided with raised edges;

(g)

be kept constantly moist while pasting is being carried on.

10. Exhaust draught-The following process shall not be carried on without the use of an efficient exhaust draught ;

(a)

Melting of lead or materials containing lead;

(b)

Manipulation of raw oxide of lead, unless done in an enclosed apparatus so as to prevent the escape of dust into the workroom;

(c)

Pasting;

(d)

Trimming, brushing, filing or any other abrading or cutting of pasted plates giving rise to dust;

(e)

Lead burning, other than-

(i)

"taking" in the formation room,

(ii)

chemical burning for the making of lead linings for cell cases necessarily carried on in such a manner that the application of efficient exhaust is impracticable.

Such exhaust draught shall be effected by mechanical means and shall operate on the dust or fume given off as nearly as may be at its points of origin, so as to prevent it entering the air of any room in which persons work.

11. Fumes and gases from melting pots-The products of combustion produced in the heating of any melting pot shall not be allowed to escape into a room in which persons work.

12. Container for dross-A suitable receptacle with tightly fitting cover shall be provided and used for dross as it is removed from every melting pot. Such receptacle shall be kept covered while in the work-room, except when dross is being deposited therein.

13. Container for lead waste-A suitable receptacle shall be provided in every work-room in which old plates and waste material which may give rise to dust shall be deposited.

14. Racks and shelves in drying room-The racks or shelves provided in any drying room shall not be more than 8 feet from the floor nor more than 2 feet in width; provided that as regards racks or shelves set or drawn from both sides the total width shall not exceed 4 feet.

Such racks or shelves shall be cleaned only after being thoroughly damped unless an efficient suction cleaning apparatus is used for this purpose.

15. [Medical facilities and records of examinations and tests-(1) The occupier of every factory in which manufacture and repair of electric accumulators are carried on shall-

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

(a)

employ a qualified medical practitioner for medical surveillance of the workers employed therein whose employment shall be subject to the approval of the Chief Inspector of Factories; and

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a)-

(2)

The record of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for inspection by the Inspector.

15.

-A. Medical examination by Certifying Surgeon-(1) Every worker employed in lead processes shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include tests for lead in urine and blood. ALA in urine, haemoglobin content stippling of cells and steadiness test. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit or such employment by the Certifying Surgeon.

(2)

Every worker employed in the said process shall be re-examined by a Certifying Surgeon at least once in every three calendar months. Such re-examination shall, wherever the Certifying Surgeon considers appropriate include tests specified in Sub-paragraph (1).

(3)

The Certifying Surgeon after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of examination and re-examinations carried out shall be entered in the certificate and the certificate shall be kept in the custody of the manager of the factory. The record of each examination carried out under Sub-paragraphs (1) and (2) including the nature and the results of the tests, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(6)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker he shall make a record of his findings in the said certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit for work in the said processes.

(6)

No person who has been found unfit to work as said in Subparagraph (5) above shall be re-employed or permitted to work in the said processes unless the Certifying Surgeon, after further examination, again certifies him fit for employment in those processes.]

16. Protective clothing-Protective clothing shall be provided and maintained in good repair for all persons employed in-

(a)
manipulation of raw oxide of lead)

(b)
pasting;

(c)
the formation room;

and such clothing shall be worn by the person concerned. The protective clothing shall consist of a water-proof apron and water-proof footwear; and also as regards persons employed in the manipulation of raw oxide of lead or in pasting, head coverings. The head coverings shall be washed daily.

17. Mess-room-There shall be provided and maintained for the use of all persons employed in a lead process and remaining on the premises during the meal intervals, a suitable mess-room, which shall be furnished with (a) sufficient tables and benches and (b) adequate means for warming food.

The mess-room shall be placed under the charge of a responsible person, and shall be kept clean.

18. Cloak-room-There shall be provided and maintained for the use of all persons employed in a lead process-

(a)
a cloak-room for clothing put off during working hours with adequate arrangements for drying the clothing, if wet. Such accommodation shall be separate from any mess-room.

(b)
Separate and suitable arrangement for the storage of protective clothing provided under paragraph 16.

19. Washing facilities-There shall be provided and maintained in a cleanly state and in good repair for the use of all persons employed in a lead process-

(a)
A wash place under cover, with either-

(i)
a trough with a smooth impervious surface fitted with a waste pipe without plug, and of sufficient length to allow of at least two feet for every five such persons employed at any one time, and having a constant supply of water from taps or jets above the trough at intervals of not more than two feet ; or

(ii)
at least one wash basin for every five such persons employed at any one time, fitted with a waste pipe and plug and having a constant supply-water laid down;

(iii)
a sufficient supply of clean towels made of suitable materials renewed daily which supply, in the case of pasters and persons employed in the manipulation of raw oxide of lead shall include a separate marked towel for each such worker or;

(iv)
a sufficient supply of soap of other suitable cleaning material and of nail brushes.

(b)
There shall in addition be provided means of washing in close proximity to the rooms in which manipulation of raw oxide of lead or pasting is carried on, it required by notice in writing from the Chief Inspector.

20. Time to be allowed for washing-Before each meal and before the end of the days work, at least ten minutes, in addition to the regular meal times, shall be allowed for washing to each person who has been employed in the manipulation of raw oxide of lead or in pasting ;

Provided that, if there be one basin of two feet or trough for each such person this paragraph shall not apply.

21. Facilities for bathing-Sufficient bath accommodation to the satisfaction of the Chief Inspector shall be provided for all persons engaged in the manipulation of raw oxide of lead or in pasting, and a sufficient supply of soap and clean towels.

22. Foods, drinks, etc., prohibited in work-rooms-No food, drink, pan and supari or tobacco shall be consumed or brought by any worker into any work-room in which any lead process is carried on.

IV Glass Manufacture

1. Exemption-If the Chief Inspector is satisfied in respect of any factory or any class of process that, owing to the special methods of work or the special conditions in a factory or otherwise, any of the requirements of this Schedule can be

suspended or relaxed without danger to the persons employed therein, or that the application of this Schedule or any part thereof is for any reason impracticable he may, by certificate in writing, authorise such suspension or relaxation as may be indicated in the certificate for such period and on such conditions as he may think fit.

2. Definitions - For the purpose of this Schedule-

(a)

"Efficient exhaust draught" means localised ventilation effected by mechanical means, for the removal of gas vapour, dust or fumes so as to prevent them (as far as practicable under the atmospheric conditions usually prevailing) from escaping into the air of any place in which work is carried on. No draught shall be deemed efficient which fails to remove smoke generated at the point where such gas vapour, fume or dust originate.

(b)

"Lead compound" means any compound of lead other than galena which when treated in the manner described below, yields to an aqueous solution of hydrochloric acid, a quantity of soluble lead compound exceeding, when calculated as lead monoxide, five per cent of the dry weight of the portion taken for analysis. The method of treatment shall be as follows :

A weighed quantity of the material which has been dried at 100° C. and thoroughly mixed shall be continuously shaken for one hour, at the common temperature with 1,000 times its weight of an aqueous solution of Hydrochloric acid containing 0.25 per cent by weight of Hydrogen chloride. This solution shall thereafter be allowed to stand for one hour and then filtered. The lead salt contained in the clear filtrate shall then be precipitated as lead sulphide and weighed as lead sulphate.

(c)

[* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

3. Exhaust draught-The following processes shall not be carried on except under an efficient exhaust draught or under such other conditions as may be approved by the Chief Inspector :

(a)

The mixing of raw materials to form a "batch".

(b)

The dry grinding glazing and polishing of glass or any article of glass.

(c)

All processes in which Hydrofluoric acid fumes or ammonical vapour are given off.

(d)

All processes in the making of furnace mould or "pots" including the grinding or crushing of used "pot".

(e)

All processes involving the use of a dry lead compound.

4. Prohibition relating to women and young persons - No woman or young person shall be employed or permitted to work in any of the operations specified in paragraph 3 or at any place where such operations are carried on.

5. Floors and work-benches-The floor and work-benches of every room in which a dry compound of lead is manipulated or in which any process is carried on giving off silica dust shall be kept moist and shall comply with the following requirements :

The floors shall be-

(a)

of cement or similar material, so as to be smooth and impervious to water;

(b)

maintained in sound condition; and

(c)

cleansed daily after being thoroughly sprayed with water at a time when no other work is being carried on in the room.

The work-benches shall-

(a)

have a smooth surface and be maintained in sound condition; and

(b)

be cleansed daily either after being thoroughly damped or by means of a suction cleaning apparatus at a time when no

other work is being carried on thereat.

6. Use of Hydrofluoric acid-The following provisions shall apply to rooms in which glass is treated with Hydrofluoric acid;

(a)
There shall be inlets and outlets of adequate size so as to secure and maintain efficient ventilation in all parts of the room :

(b)
The floor shall be covered with gutta-percha and be tight and shall slope gently down to a covered drain ;

(c)
The work places shall be so enclosed in projecting foods that opening required for bringing in the objects to be treated shall be as small as practicable; and

(d)
The efficient exhaust draught shall be so contrived that the gasses are exhausted downwards.

7. Storage and transport of Hydrofluoric acid-Hydrofluoric acid shall not be stored or transported except in cylinders or receptacles made of lead or rubber.

8. Blow-pipes-Every glass blower shall be provided with a separate blow-pipe bearing the distinguishing mark of the person to whom it is issued and suitable facilities shall be readily available to every glass blower for sterilising his blow-pipe.

9. Food, drinks, etc., prohibited in work-rooms-No food, drink, pan and supari or tobacco shall be brought into or consumed by any worker in any room or work-place wherein any process specified in paragraph 3 is carried on.

10. Protective clothing-The occupier shall provide, maintain in good repair and keep in a clean condition for the use of all persons employed in the processes specified in paragraph 3 suitable protective clothing, foot wear and goggles according to the nature of the work and such clothing, foot-wear, etc., shall be worn by the persons concerned.

11. Washing facilities - There shall be provided and maintained in a cleanly state and in good repair for the use of all persons employed in the processes specified in paragraph 3-

(a)
a wash place with either-

(i)
a trough with a smooth impervious surface fitted with a waste-pipe without plug, and of sufficient length to allow of at least two feet for every five such persons employed at any one time, and having a constant supply of water from taps of jets above the trough at intervals of not more than 2 feet; or

(ii)
at least one wash basin for every five such persons employed at any one time fitted with a waste-pipe and plug and having an adequate supply of water laid on or always readily available;
and

a sufficient supply of clean towels made of suitable material renewed daily with a sufficient supply of soap or other suitable cleansing material and nail brushes;

and
(b)
a sufficient number of stand-pipes with taps-the number and location of such stand-pipes shall be to the satisfaction of the Chief Inspector.

12. [Medical facilities and record of examinations and tests - (1) The occupier of every factory in which glass manufacturing processes are carried out shall -

(a)
employ a qualified medical practitioner for medical surveillance of the workers employed therein whose appointment shall be subject to the approval of the Chief Inspector of Factories ; and

(b)
provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a).

(2)
The records of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for inspection by the inspector.

12.

-A. Medical examination by Certifying Surgeon-(1) Every worker employed in processes specified in paragraph 2 shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include pulmonary function tests and in suspected cases chest X-ray as well as tests for lead in blood and urine. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the said processes shall be re-examined by a Certifying Surgeon at least once in every twelve calendar months. Such re-examination shall, wherever the Certifying Surgeon considers appropriate, include tests as specified in sub-paragraph (1).

(3)

The Certifying Surgeon after examining a worker shall issue a Certificate, of Fitness in Form 30. The record of examination and re-examination carried out shall be entered in the Certificate and the Certificate shall be kept in the custody of the manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2), including the nature and the results of the tests, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of worker, he shall make a record of his findings in the said certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit for work in the said processes.

(6)

No person who has been found unfit to work as said in sub-paragraph (5) shall be re-employed or permitted to work in the said processes unless the Certifying Surgeons, after further examination again certifies him fit for employment in those processes.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

V

Grinding or glazing of metals and process incidental thereto

1. Definitions-For the purpose of this schedule-

(a)

"Grindstone" means a grindstone composed of natural or manufactured sandstone but does not include a metal wheel or cylinder into which blocks of natural or manufactured sandstone are fitted.

(b)

"Abrasive wheel" means a wheel manufactured of bonded emery or similar abrasive.

(c)

"Grinding" means the abrasion, by aid of mechanical power, of metal by means of a grindstone or abrasive wheel.

(d)

"Glazing" means the abrading, polishing or finishing, by aid of mechanical power, of metal, by means of any wheel, buff, mop or similar appliance to which any abrading or polishing, substance is attached or applied.

(e)

"Racing" means the turning up, cutting or dressing of a revolving grindstone before it is brought into use for first time.

(f)

"Hacking" means the chipping of the surface of a grindstone by hack or similar tool.

(g)

"Rodding" means the dressing of the surface of a revolving grindstone by the application of a rod, bar or strip of metal to such surface.

2. Exceptions-(1) Nothing in this Schedule shall apply to any factory in which only repairs are carried on except any part thereof in which one or more persons are wholly or mainly employed in grinding or glazing of metals.

(2)

Nothing in this Schedule except paragraph 4 shall apply to any grinding or glazing of metals carried on intermittently and at which no person is employed for more than 12 hours in any week.

(3)

The Chief Inspector may by certificates in writing subject to such condition as he may specify therein, relax or suspend any of the provisions of this Schedule in respect of any factory, if owing to the special methods of work or otherwise such relaxation or suspension is practicable without clanger to the health or safety of the persons employed.

3. Equipment for removal of dust-No racing, dry grinding or glazing shall be performed without - ,

(a)

a hood or other appliance so constructed, arranged, placed and maintained as substantially to intercept the dust thrown off ; and

(b)

a duct of a adequate size, air tight and so arranged as to be capable of carrying away the dust, which duct shall be kept free from obstruction and shall be provided with proper means of access for inspection and cleaning, and where practicable, with a connection at the end remote from the fan to enable the Inspector to attach thereto any instrument necessary for ascertaining the pressure of air in the said duct;

(c)

a fan or other efficient means of producing a draught sufficient to extract the dust ;

Provided that the Chief Inspector may accept any other appliance that is in his opinion, as effectual for the interception, removal and disposal of dust thrown off as a hood, duct and fan would be.

4. Restriction on employment on grinding operations-Not more than one person shall at any time perform the actual process of grinding or glazing upon a grindstone, abrasive wheel or glazing appliance :

Provided that this paragraph shall not prohibit the employment of persons to assist in the manipulations of heavy or bulky articles at any such grindstone, abrasive wheel or glazing appliance.

5. Glazing-Glazing or other processes, except processes, incidental to wet grinding upon a grindstone shall not be carried on in any room in which wet grinding upon a grindstone is done.

6. Hacking aid rodding-Hacking or rodding shall not be done unless during the process either (a) an adequate supply of water is laid on at the upper surface of the grindstone ; or (b) adequate appliances for the interception of dust are provided in accordance with the requirements of paragraph 3.

7. Examination of dust equipment-(a) All equipment for the extraction or suppression of dust shall at least once in every six months be examined and tested by a competent person, and any defect disclosed by such examination and test shall be rectified as soon as practicable.

(b)

[A register containing particulars of such examinations and tests shall be kept in Form No. 24.]

[Substituted vide Orissa Gazette Part III-No. 4/1983-SRO No. 41/83/6.1.1983.]

[7-A. Medical facilities and record of examinations and tests-(1) The occupier of every factory in which grinding or glazing of metals are carried out, shall-

(a)

employ a qualified medical practitioner for medical surveillance of the workers employed therein whose appointment shall be subject to the approval of the Chief Inspector of Factories; and

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a) .

(2)

The record of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for inspection by the Inspector.

7.

-B. Medical examination by Certifying Surgeon-(1) Every worker employed in grinding or glazing of metal and processes incidental thereto shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include pulmonary function tests and, in suspected cases, chest X-rays. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the said processes shall be re-examined by a Certifying Surgeon at least once in every twelve calendar months. Such re-examination shall, wherever the Certifying Surgeon considers appropriate include tests as specified in sub-paragraph (1).

(3)

The Certifying Surgeon after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of examination and re-examinations carried out shall be entered in the Certificate and the Certificate shall be kept in the custody of the manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2), including the nature and the results of the tests, shall be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit for work in the said processes.

(6)

No person who has been found unfit to work as said in sub-paragraph (5) shall be re-employed or permitted to work in the said processes unless the Certifying Surgeon, after further examination, again certifies him fit for employment in those processes.]

[Inserted vide Orissa Gazette Extraordinary No.1089/29.7.1987-SRO No.501/87/22.7.1987.]

VI

Manufacture and treatment of lead and certain compounds of lead

1. Exemptions-Where the Chief Inspector is satisfied that all or any of the provisions of this Schedule are not necessary for the protection of the persons employed, he may by certificate in writing exempt any factory from all or any of such provisions, subject to such conditions as he may specify therein.

2. Definitions-For the purposes of this Schedule-

(a)

"Lead Compound" means any compound of lead other than galena which, when treated in the manner prescribed below, yields to an aqueous solution, of Hydrochloric acid, a quantity of soluble lead compound exceeding, when calculated as lead monoxide, five per cent of the dry weight of the portion taken for analysis. In the case of paints and similar products and other mixtures containing oil or fat the "dry weight" means the dry weight of the material remaining after the substance has been thoroughly mixed and treated with suitable solvents to remove oil, fats, varnish or other media.

The method of treatment shall be as follows :

A weighed quantity of the material which has been dried at 100° C and thoroughly mixed shall be continuously shaken for one hour, at the common temperature with 1,000 times its weight of an aqueous solution of Hydrochloric acid containing 0.25 per cent by weight of hydrogen chloride. The solution shall thereafter be allowed to stand for one hour and then filtered. The lead salt contained in the clear filtrate shall then be precipitated as lead sulphide and weighed as lead sulphate.

(b)

"Efficient Exhaust draught" means localised ventilation effected by heat or mechanical means for the removal of gas, vapour, dust or fumes so as to prevent them (as far as practicable under the atmospheric conditions usually prevailing from escaping into the air of any place in which work is carried on. No draught shall be deemed efficient which fails to remove smoke generated at the point where such gas, vapour, fumes or dust originate.

3. Application-This Schedule shall apply to all factories or parts of factories in which any of the following operations are carried on-

(a)

Work at a furnace where the reduction or treatment of zinc or lead ores is carried on.

(b)

The manipulation, treatment or reduction of ashes containing lead, the desilverising of lead or the melting of scrap lead

or zinc.

(c)

The manufacture of solder or alloys containing more than ten per cent of lead.

(d)

The manufacture of any oxide, carbonate, sulphate, chromate acetate, nitrate or silicate of lead.

(e)

Handling or mixing of lead tetraethyl.

(f)

Any other operation involving the use of a lead compound.

(g)

The cleaning of work rooms where any of the operations aforesaid are carried on.

4. Prohibition relating to women and young persons-No woman or young person shall be employed or permitted to work in any of the operations specified in paragraph 3.

5. Requirement to be observed-No person shall be employed or permitted to work in any process involving the use of lead compounds if the process is such that dust or fume from a lead compound is produced therein, or the persons employed therein are liable to be splashed with any lead compound in the course of their employment unless the provisions of paragraphs 6 to 14 are complied with.

6. Exhaust draught-Where dust, fume gas or vapour is produced in the process, provision shall be made for removing them by means of an efficient exhausted draught so contrived so to operate on the dust fume, gas or vapour as closely as possible to the point of origin.

7. [Medical facilities and records of examinations and tests - (1) The, occupier of every factory to which the Schedule applies shall -

(a)

employ a qualified medical practitioner for medical surveillance of the workers employed therein whose appointment shall be subject to the approval of the Chief Inspector of Factories; and

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a).

(2)

The record of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for inspection by the Inspector.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1989.]

8. [Medical examination by Certifying Surgeon-(1) Every worker employed in the processes referred to in paragraph 1 shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include test for lead in blood and urine. ALA in urine, haemoglobin content, stippling of cells and steadiness test. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the said processes shall be re-examined by a Certifying Surgeon at least once in every three calendar months. Such re-examination shall, wherever the Certifying Surgeon considers appropriate include tests specified in sub-paragraph (1).

(3)

The Certifying Surgeon, after examining a worker shall issue a Certificate of Fitness in Form 30. The record of examination and re-examinations carried out shall be entered in the Certificate and the Certificate shall be kept in the custody of the manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2), including the nature and the results of the test, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes

on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said Certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit for work in the said processes.

(6)

No person who has been found unfit to work as said in sub-paragraph (5) shall be re-employed or permitted to work in the said processes unless the Certifying Surgeon after further examination, again certifies him fit for employment in those processes.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1989.]

9. Food, drinks, etc., prohibited in work rooms-No food, drink, pan and supari or tobacco shall be brought into or consumed by any worker in any work-room in which the process is carried on and no person shall remain in any such room during intervals for meals or rest,

10. Protective clothing-Suitable protective overalls and head coverings shall be provided, maintained and kept clean by the factory occupier and such overalls and head coverings shall be worn by the persons employed.

11. Cleanliness of work-rooms, tools, etc.-The rooms in which the persons employed and all tools and apparatus used by them shall be kept in a clean state.

12. Washing facilities-(1) The occupier shall provide and maintain for the use of all persons employed suitable washing facilities consisting of -

(a)

a trough with a smooth impervious surface fitted with a waste pipe without plug and of sufficient length to allow at least two feet for every ten persons employed at any one time, and having a constant supply of clean water from taps or jets above the trough at intervals of not more than two feet; or

(b)

at least one wash-basin for every ten persons employed at any one time fitted with a waste pipe and plug and having a constant supply of clean water;

together with, in either case, a sufficient supply of nail brushes, soap or other suitable cleansing material and clean towels.

(2)

The facilities so provided shall be placed under the charge of a responsible person and shall be kept clean.

13. Mess-room or canteen-The occupier shall provide and maintain for the use of the persons employed, suitable arrangements for taking their meals. The arrangements shall consist of the use of a room separate from any workroom which shall be furnished with sufficient tables and benches, and unless a canteen serving hot meals is provided, adequate means of warming food. The room shall be adequately ventilated by the circulation of fresh air, shall be placed under the charge of a responsible person and shall be kept clean.

14. Cloak-room-The occupier shall provide and maintain for the use of persons employed, suitable accommodation for clothing not worn during working hours, and for the drying of wet clothing.

VII

Generation of gas from dangerous petroleum as defined in the Petroleum Act, 1934

1. Prohibition relating to women and young persons - No woman or young person shall be employed or permitted to work in or shall be allowed to enter any building in which the generation of gas from dangerous petroleum as defined in the Petroleum Act, 1934, is carried on.

2. Flame traps-The plant for generation of gas from dangerous petroleum as defined in the Petroleum Act, 1934, and associated piping and fittings shall be fitted with at least two efficient flame traps so designed and maintained as to prevent a flash back from any burner to the plant. One of these traps shall be fitted as close to the plant as possible. The plant and all pipes and valves shall be installed and maintained free from leaks.

3. Generating building or room-All plants for generation of gas from dangerous petroleum as defined in the Petroleum Act, 1934, erected after the coming into force of the provisions specified in the Schedule, shall be erected outside the factory buildings proper in a separate well-ventilated building (hereinafter referred to as the "generating building"). In the case of such plant erected before the coming into force of the provisions specified in this Schedule there shall be no direct communication between the room where such plants are erected (hereinafter referred to as "the generating room") and the remainder of the factory building. So far as practicable, all such generating rooms shall be constructed of fire-resisting materials.

4. Fire extinguishers-An efficient means of extinguishing petrol fires shall be maintained in an easily accessible position near the plant for generation of gas from dangerous petroleum as defined in the Petroleum Act, 1934.
5. Plant to be approved by Chief Inspector-Petrol gas shall not be manufactured except in a plant for generating petrol gas, the design and construction of which has been approved by the Chief Inspector.
6. Escape of petrol - Effective steps shall be taken to prevent petrol from escaping into any drain or sewer.
7. Prohibition relating to smoking, etc.-No person shall smoke or carry matches, fire or naked light or other means of producing a naked light or spark in the generating room or building or in the vicinity thereof and a warning notice in the language understood by the majority of the workers shall be posted in the factory prohibiting smoking and the carrying of matches, fire or naked light or other means of producing a naked light or spark into such room or building.
8. Access to petrol or container-No unauthorised person shall have access to any petrol or to a vessel containing or having actually contained petrol.
9. Electric fittings-All electric fittings shall be of flame-proof construction and all electric conductors shall either be enclosed in metal-conduits or be lead-sheathed.
10. Construction of doors-All doors in the generating room or building shall be constructed to open outwards or to slide and no door shall be locked or obstructed or fastened in such manner that it cannot be easily and immediately opened from the inside while gas is being generated and any person is working in the generating room or building.
11. Repair of containers-No Vessel that has contained petrol shall be repaired in a generating room or building and no repairs to any such vessel shall be undertaken unless live steam has been blown into the vessel and until the interior is thoroughly steamed out or other equally effective steps have been taken to ensure that it has been rendered free from petrol of inflammable vapour.

VIII

Cleaning or smoothing, roughening, etc., of articles, by a jet of sand, metal shot, or other abrasive propelled by a blast of compressed air or steam (Blasting Regulations)

1. Definitions-For the purposes of this Schedule -

"Blasting" means cleaning, smoothing, roughening or removing of any part of the surface of any article by the use as air abrasive of a jet of sand, metal shot or grit or other material, propelled by a blast of compressed air or steam,

"Blasting enclosure" means a chamber, barrel cabinet or any other enclosure designed for the performance of blasting therein. "Blasting enclosure" means a blasting enclosure in which any person may enter at any time in connection with any work or otherwise.

"Cleaning of castings" where done as an incidental or supplemental process in connection with the making of metal castings, means the freeing of the casting from adherent sand or other substance and includes the removal of cores and the general smoothing of a casting, but does not include the free treatment.

2. Prohibition of sand blasting-Sand or any other substance containing free silica shall not be introduced as an abrasive into any blasting apparatus and shall not be used for blasting :

Provided that this clause shall come into force two years after the coming into operation of this Schedule :

Provided further that no woman or young person shall be employed or permitted to work at any operation of sand blasting.

Precautions in connection with Blasting Operations

3. Blasting to be done in blasting enclosure-(1) Blasting shall not be done except in a blasting enclosure and no work other than blasting and any work immediately incidental thereto and clearing and repairing of the enclosure including the plants and appliances situated therein, shall be performed in a blasting enclosure. Every door, aperture and joint of blasting enclosure shall be kept closed and air tight while blasting is being done therein.

(2)

Maintenance of blasting enclosure-Blasting enclosure shall always be maintained in good condition and effective measure shall be taken to prevent dust escaping from such enclosures, and from apparatus connected therewith, into the air of any room.

(3)

Provision of separating apparatus-There shall be provided and maintained for and in connection with every blasting enclosure efficient apparatus for separating, so far as practicable abrasive which has been used for blasting and which is to be used again as an abrasive from dust or particles of other materials arising from blasting ; and no such abrasive shall be introduced into any blasting apparatus and use for blasting until it has been so separated :

Provided that this clause shall not apply, except in the case of blasting chambers, to blasting enclosures constructed or installed before the coming into force of this Schedule if the Chief inspector is of opinion that it is not reasonably practicable to provide such separating apparatus.

(4)

Provision of ventilating plant-There shall be provided and maintained in connection with every blasting enclosure efficient ventilating plant to extract by exhaust draught effected by mechanical means, dust produced in the enclosure. The dust extracted and removed shall be disposed of by such method and in such manner that it shall not escape into the air of any room; and every other filtering device situated in a room in which persons are employed, other than persons attending to such bag or other filtering or settling device, shall be completely separated from the general air of that room in an enclosure ventilated to the open air.

(5)

Operation of ventilating plant-The ventilating plant provided for the purpose of sub-paragraph (4) shall be kept in continuous operation whenever the blasting enclosure is in use whether or not blasting is actually taking place therein, and in the case of a blasting chamber, it shall be in operation even when any person is inside the chamber for the purpose of cleaning.

4. Inspection and examination - (1) Every blasting enclosure shall be specially inspected by a competent person at least once in every week in which it is used for blasting every blasting enclosure, the apparatus connected therewith and the ventilating plant, shall be thoroughly examined and in the case of ventilating plant, tested by a competent person at least once in every month.

(2)

Particulars of the result of every such inspection, examination and test shall forthwith be entered in a register, which shall be kept in a form approved by the Chief Inspector and shall be available for inspection by any workman employed in or in connection with blasting in the factory. Any defect found on any such inspection, examination or test shall be immediately reported by the person carrying out the inspection, examination or test to the occupier, manager or other appropriate person and without prejudice to the foregoing requirements of this Schedule, shall be removed without avoidable delay.

5. Provision of protective helmet, gauntlets and overalls-(1) There shall be provided and maintained for the use of all persons who are employed in a blasting chamber, whether in blasting or in any work connected therewith or in cleaning such a chamber, protective helmets of a type approved by a certificate of the Chief Inspector ; and every such person shall wear the helmet provided for this use whilst he is in the chamber and shall not remove it until he is outside the chamber.

(2)

Each protective helmet shall carry distinguishing mark indicating the person by whom it is intended to be used and no person shall be allowed or required to wear a helmet not carrying his mark or a helmet which has been worn by another person and has not since been thoroughly disinfected.

(3)

Each protective helmet when in use shall be supplied with clean and not unreasonably cold air at a rate of not less than six cubic feet per minute.

(4)

Suitable gauntlets and overalls shall be provided for the use of all persons while performing blasting or assisting at blasting and every such person shall while so engaged wear the gauntlet and overall provided.

6. Precautions in connection with cleaning and other work-(1) Where any person is engaged upon cleaning of any blasting apparatus or blasting enclosure or of any apparatus or ventilating plant connected therewith or the surroundings thereof or upon any other work in connection with any blasting apparatus or blasting enclosure or with any apparatus or ventilators plant connected therewith so that he is exposed to the risk of inhaling dust which has arisen from blasting. All practicable measures shall be taken to prevent such inhalation.

(2)

In connection with any cleaning operation referred to in Clause 5, and with the removal of dust from filtering or settling devices all practicable measures shall be taken to dispose of the dust in such a manner that it does not enter the air of any room. Vacuum cleaners shall be provided and used wherever practicable for such cleaning operations.

7. Storage accommodation for protective wear-Adequate and suitable storage accommodation for the helmets, gauntlets

and overalls required to be provided by Clause 5 shall be provided outside and conveniently near to every-blasting enclosure and such accommodation shall be kept clean. Helmets, gauntlets and overalls when not in actual use shall be kept in this accommodation.

3. Maintenance and cleaning of protective wear-All the helmets, gauntlets, overalls and other protective devices or clothings provided and worn for the purposes of this Schedule; shall be kept in good condition and so far as is reasonably practicable shall be cleaned on every week day in which they are used. Where dust arising from the cleaning of such protective clothing or devices is likely to be inhaled, all practicable measures shall be taken to prevent such inhalation. Vacuum cleaners shall, wherever practicable, be used for removing dust from such clothing and compressed air shall not be used for removing dust from any clothing.

9. Maintenance of vacuum cleaning plant-Vacuum cleaning plant used for the purpose of this Schedule shall be properly maintained.

[9-A. Medical facilities and records of examinations and test-(1) The occupier of every factory to which the Schedule applies, shall-

(a)

employ a qualified medical practitioner for medical surveillance of the workers employed therein whose employment shall be subject to the approval of the Chief Inspector of Factories; and

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a).

(2)

The record of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for the inspection by the Inspector.

9.

-B. Medical examination by Certifying Surgeon-(1) Every worker employed in any of the processes to which this Schedule applies shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include pulmonary function test and chest X-ray. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the said processes shall be re-examined by a Certifying Surgeon at least once in every twelve calendar months and such re-examination shall, wherever the Certifying Surgeon considers appropriate, include pulmonary function test and chest X-ray once in every three years.

(3)

The Certifying Surgeon, after examining a worker, shall issue a Certificate of Fitness in form 30. The record of examination and re-examinations carried out shall be entered in the Certificate and the Certificate shall be kept in the custody of the manager of the factory. The record of each examination carried under sub-paragraphs (1) and (2), including the nature and the results of the tests, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said Certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit for work in the said processes.

(6)

No person who has been found unfit to work in the said processes as said in sub-paragraph (5)- shall be re-employed or permitted to work unless the Certifying Surgeon after further examination, again certifies him fit for employment in those processes.]

[Inserted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

10. Restrictions in employment of young persons-(1) No person under 18 years of age shall be employed in blasting or assisting at blasting or in any blasting chamber or in the cleaning of any blasting apparatus or any blasting enclosure or

any apparatus or ventilating plant connected therewith or be employed on maintenance or repair work at such apparatus, enclosure or plant.

(2)

No person under 18 years of age shall be employed to work regularly within twenty feet of any blasting enclosure unless the enclosure is in a room and he is outside that room where he is effectively separated from any dust coming from the enclosure.

11. Power to exempt or relax-(1) If the Chief Inspector is satisfied that in any factory or any class of factory, the use of sand or other substance containing free silica as an abrasive in blasting is necessary for a particular manufacture or process (other than the process incidental or supplemental to making of metal castings) and that the manufacture or process cannot be carried on without the use of such abrasive or that owing to the special conditions or special method of work or otherwise any requirement of this Schedule can be suspended either temporarily or permanently, or can be relaxed without endangering the health of the persons employed or that application of any of such requirements is for any reason impracticable or inappropriate, he may, with the previous sanction of the State Government, by an order in writing exempt the said factory or class of factory from such provisions of this Schedule, to such extent and subject to such conditions and for such period as may be specified in the said order.

(2)

Where an exemption has been granted under Sub-clause (1) a copy of the order shall be displayed at a notice board at a prominent place at the main entrance or entrances to the factory and also at the place where the blasting is carried on.

IX

Liming and tanning of raw hides and skins and processes incidental thereto

1. Cautionary notices-(1) Cautionary notices as to anthrax in the form specified by the Chief Inspector shall be affixed in prominent positions in the factory where they may be easily and conveniently read by the persons employed.

(2)

A copy of warning notice as to anthrax in the form specified by the Chief Inspector shall be given to each person employed when he is engaged, and subsequent if still employed, on the first day of each calendar year;

(3)

Cautionary notices as to the effects of chrome on the skin shall be affixed in prominent positions in every factory in which chrome solutions are used and such notices shall be so placed as to be easily and conveniently read by the persons employed.

(4)

Notices shall be affixed in prominent places in the factory stating the position of the "First Aid" box or cupboard and the name of the person in charge of such box or cupboard.

5. ["Medical facilities and records of examination and tests-(1) The occupier of every factory to which this Schedule applies, shall-

(a)

employ a qualified practitioner for medical surveillance of the workers employed therein whose employment shall be subject to the approval of the Chief Inspector of Factories;

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a);

(c)

arrange for inspection of the hands of all the persons keeping in contact with chromium substances to be made twice a week; and

(d)

provide and maintain and supply suitable ointment and plaster in a box readily accessible to the workers and solely used for the purpose of keeping the ointment and the plaster.

(2)

The record of the medical examinations, and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories-which shall be kept readily available for inspection by the Inspector.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

6. [Medical examination by Certifying Surgeon - (1) Every worker employed in any of the processes to which this

Schedule applies shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include skin test for dermatitis and detection of anthrax bacillus from local lesion by gram stain. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the said processes shall be re-examined by a Certifying Surgeon at least once in every twelve calendar months. Such re-examination shall, wherever the Certifying Surgeon considers appropriate, include tests as specified in sub-paragraph (1).

(3)

The Certifying Surgeon, after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of examination and re-examinations carried out shall be entered in the Certificate and shall be kept in the custody of the manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2), including the nature and the results of the tests, shall be entered by the Certifying Surgeon in a health Register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said Certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit for work in the said processes.

(6)

No person who has been found unfit to work as said in sub-paragraph (5) shall be re-employed or permitted to work in the said processes, unless the Certifying Surgeon after further examination, again certifies him fit for employment in those processes.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

2. [Protective clothing-The occupier shall provide and maintain in good condition the following articles of protective clothing :

(a)

Water proof, footwear, leg coverings, aprons and gloves for persons employed in processes involving contact with chrome solutions, including the preparation of such solutions;

(b)

Gloves and boots for persons employed in lime yard; and

(c)

Protective footwear, aprons and gloves for persons employed in processes involving the handling of hides or skins, other than in processes specified in Clauses (a) and (b) ;

Provided that-

(i)

the gloves, aprons, leg coverings or boots, may be of rubber or leather, but the gloves and boots to be provided under Sub-clauses (a) and (b) shall be of rubber;

(ii)

the gloves may not be provided to persons fleshing by hand or employed in processes in which there is no risk of contact with lime, sodium sulphide or other caustic liquor.]

3. Washing facilities, mess-room and cloak-room-There shall be provided and maintained in a cleanly state and in good repair for the use of all persons employed-

(a)

a trough with a smooth impervious surface fitted with a waste pipe without plug, and of sufficient length to allow at least two feet for every ten persons employed at any one time, and having a constant supply of water from taps or jets above the through at intervals of not more than two feet; or

(b)

at least one wash basin for every ten such persons employed at any one time, fitted with a waste pipe and plug and having a constant supply of water; together with, in either case, a sufficient supply of nail brushes, soap or other suitable

cleaning material, and clean towels;

(c)

a suitable mess-room, adequate for the number remaining on the premises during the meal intervals, which shall be furnished with (1) sufficient tables and benches; and (2) adequate means for warming food and for boiling water.

The mess-room shall (1) be separated from any room or shed in which hides or skins are stored, treated or manipulated; (2) be separated from the cloak room; and (3) be placed under the charge of a responsible person;

(d)

[The occupier shall provide and maintain, for the use of all persons employed, suitable accommodation for clothing put off during working hours and another accommodation for protective clothing and shall also make adequate arrangements for drying up the clothing in both the cases, if wet. The accommodation so provided shall be kept clean at all times and placed under the charge of a responsible person.]

[Substituted vide Orissa Gazette Part III/5.7.1968.]

4. Food, drinks etc., prohibited in work-rooms-No food, drink, pan and supari or tobacco shall be brought into or consumed by any worker in any work-room or shed in which hides or skins are stored, treated or manipulated.

5. First-aid arrangements-The occupier shall-

(a)

arrange for an inspection of the hands of all persons coming into contact with chrome solutions to be made twice a week by a responsible person;

(b)

provide and maintain a sufficient supply of suitable ointment and impermeable waterproof plaster in a box readily accessible to the worker and used solely for the purpose of keeping the ointment and plaster.

X

Printing Presses and Type Foundries-(Certain lead processes carried therein)

1. Exemption-Where the Chief Inspector is satisfied that all or any of the provisions of this Schedule are not necessary for the protection of persons employed he may, by certificate in writing, exempt any factory from all or any of such provisions subject to such conditions as he may specify therein. Such certificate may at any time be revoked by the Chief Inspector.

2. Definitions-in these regulations-

"Lead material" means material containing not less than five per cent of lead.

"Lead process" means-

(a)

the melting of lead or any lead material for casting and mechanical composing; and

(b)

the recharging of machines with used lead material; or

(c)

any other work including removal of dross from melting pots, cleaning of plungers; and

(d)

manipulation, movement or other treatment of lead material.

"Efficient exhaust draught" means localised ventilation effected by heat or mechanical means, for the removal of gas, vapour, dust or fumes so as to prevent them from escaping into the air of any place in which work is carried on. No draught shall be deemed efficient which fails to remove gas, vapour, fume or dust at the point where they originate.

3. Exhaust draught - None of the following processes shall be carried on except with an efficient exhaust draught :

(a)

melting lead material or slugs;

(b)

heating lead material so that vapour containing lead is given off;

or, unless carried on in such a manner as to prevent free escape of gas, vapour, fumes or dust into any place in which work is carried on;

or, unless carried on in electrically heated and thermostatically controlled melting post.

Such exhaust draught shall be effected by mechanical means and so contrived as to operate on the dust, fume, gas or vapour given off as closely as may be at its point of origin.

4. Prohibition relating to women and young persons-No woman or young person shall be employed or permitted to work in any lead process.

5. Separation of certain processes - Each of the following processes shall be carried on in such a manner and under such conditions as to secure effectual separation from one another and from any other process-

- (a) melting of lead or any lead material;
- (b) casting of lead ingots;
- (c) mechanical composing.

6. Container for dross - A suitable receptacle with tightly fitting cover shall be provided and used for dross as it is removed from every melting pot. Such receptacle shall be kept covered while in the workroom near the machine except when the dross is being deposited therein.

7. Floor of work-room-The floor of every work-room where lead process is carried on shall be-

- (a) of cement or similar material so as to be smooth and impervious to water;
- (b) maintained in sound conditions; and
- (c) shall be cleaned throughout daily after being thoroughly damped with water at a time when no other work is being carried on at the place.

8. Mess-room-There shall be provided and maintained for the use of all persons employed in a lead process and remaining on the premises during the meal intervals a suitable mess-room which shall be furnished with sufficient tables and benches.

9. Washing facilities-There shall be provided and maintained in a cleanly state and in good repair for the use of all persons employed in a lead process-

- (a) a wash place with either-
 - (i) a trough with smooth impervious surface fitted with a waste pipe without plug, and of sufficient length to allow at least two feet for every five such persons employed at any one time and having a constant supply of water from taps or jets above the trough at intervals of not more than 2 feet; or
 - (ii) at least one wash basin for every five such persons employed at any one time, fitted with a waste pipe and plug and having an adequate supply of water laid on or always available; and
- (b) a sufficient supply of clean towels made of suitable material renewed daily with a sufficient supply of soap or other suitable cleaning material.

10. [Medical facilities and records of examinations and tests-(1) The occupier of every factory to which this Schedule applies, shall-

- (a) employ a qualified medical practitioner for medical surveillance of the workers employed therein whose employment shall be subject to the approval of the Chief Inspector of Factories; and
- (b) provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a).

(2) The record of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for inspection by the inspector.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

10A.

[Medical examination by Certifying Surgeon-Every worker employed in a lead process shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include tests for lead in urine and blood, ALA in urine, haemoglobin, stippling of cells and steadiness test. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the said process shall be re-examined by a Certifying Surgeon at least once in every six calendar months such reexamination shall, whenever the Certifying Surgeon considers appropriate, include tests as specified in sub-paragraph (1).

(3)

The Certifying Surgeon, after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of examination and re-examinations carried out shall be entered in the Certificate and the Certificate shall be kept in the custody of the manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2), including the nature and the results of the tests, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said process on the ground that continuance therein would involve special danger to the health of the worker, he shall make record of his findings in the said certificate and the health register. The entry of his findings in those documents shall include the period for which he considers that the said person is unfit for work in the said processes.

(6)

No person who has been found unfit to work as said in sub-paragraph (5) shall be re-employed or permitted to work in the said processes unless the Certifying Surgeon, after further examination again certifies him fit for employment in those processes.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

11. Food, drinks, etc., prohibited in work-rooms-No food, drink, pan and supari or tobacco shall be consumed or brought by any worker into any work-room in which any led process is carried on.

XI

Manufacture of Pottery

1. Definitions-For the purposes of this Schedule, unless the context otherwise requires-

(a)

"Pottery" includes earthenware, stoneware, porcelain, China tiles and any other articles made from clay or from a mixture containing clay and other materials such as quartz, flint, feldspar and Gypsus.

(b)

"Efficient exhaust draught" means localised ventilation effected by mechanical or other means for the removal of dust or fume so as to prevent it from escaping into the air of any place in which work is carried on. No draught shall be deemed efficient which fails to remove effectively dust or fume generated at the point where dust or fume originates.

(c)

"Fetting" includes scalloping, towing, sand papering, sand sticking, brushing or any other process of cleaning of pottery ware in which dust is given off.

(d)

"Leadless glaze" means a glaze which does not contain more than one per cent of its dry weight of a lead compound calculated as lead monoxide.

(e)

"Low solubility glaze" means a glaze which does not yield to dilute Hydrochloric acid more than five per cent of its dry weight of a soluble lead compound calculated as lead monoxide when determined in the manner described below :

A weighed quantity of the material which has been dried at 100° C and thoroughly mixed shall be continuously shaken for one hour at the common temperature with 1,000 times its weight of an aqueous solution of Hydrochloric acid containing 0.25 per cent by weight of Hydrogen Chloride.

This solution shall thereafter be allowed to stand for one hour and then filtered. The lead salt contained in the clear

filtrate shall then be precipitated as lead sulphide and weighed as lead sulphate.

(f)

"Ground or powdered flint or quartz" does not include natural sands.

(g)

"Potter's shop" includes all places where pottery is formed by pressing or by any other process and all places where shaping, fettling or other treatment of pottery articles prior to placing for the biscuit fire is carried on.

2. Efficient exhaust draught-The following processes shall not be carried on without the use of an efficient exhaust draught, namely :

(i)

All processes involving the manipulation or use of a dry and unfitted lead compound.

(ii)

The fettling operations of any kind, whether on green-ware or biscuit; provided that this shall not apply to the wet fettling and to the occasional finishing of pottery articles without the aid of mechanical power.

(iii)

The shifting of clay dust or any other material for making tiles or other articles by pressure, except where-

(a)

this is done in a machine so enclosed as to effectually prevent the escape of dust; or

(b)

the material to be shifted is so damp that no dust can be given off.

(iv)

(a)

The pressing of tiles from clay dust, an exhaust opening being connected with each press;

(b)

The pressing from clay dust of articles other than tiles unless the material is so damp that no dust is given off.

(v)

(a)

The fettling of tiles made from clay dust by pressure, except where the fettling is done wholly on, or with, damp material,

(b) The fettling of other articles made from clay dust, unless the material is so damp that no dust is given off.

(vi)

The process of loading and unloading of sugars where handling and manipulation of ground and powdered flint, quartz, alumina or other materials are involved.

(vii)

The brushing of earthenware biscuit, unless the process is carried on in a room provided with an efficient general mechanical ventilation or other ventilation which is certified by the Inspector of Factories as adequate having regard to all the circumstances of the case.

(viii)

Fettling of biscuit ware which has been fired in powdered flint or quartz except where this is done in machines so enclosed as to effectually prevent the escape of dust.

(ix)

Ware cleaning after the application of glaze by dipping or other process.

(x)

Crushing and dry grinding of materials for pottery bodies and saggars, unless carried on in machines so enclosed as to effectively prevent the escape of dust or is so damp that no dust can be given off.

(xi)

Sieving or manipulation of powdered flint, quartz, clay grog or mixture of these materials unless it is so damp that no dust can be given off.

(xii)

Grinding of tiles on a power-driven wheel unless an efficient water spray is used on the wheel.

(xiii)

Lifting and conveying of materials by elevators and conveyors unless they are effectively enclosed and so arranged as to prevent escape of dust into the air in or near to any place in which persons are employed.

(xiv)

The preparation of weighing out of flow material, lawning of dry colours dusting and colour blowing.

(xv)

In mould making unless the bins or similar receptacles used for holding plaster of Paris are provided with suitable covers.

(xvi)

The manipulation of calcined material unless the material has been made and remains so wet that no dust is given off.

3. Each of the following processes shall be carried on in such a manner and under such conditions so as to secure effectual separation from one another, and from other wet processes :

(a)

Crushing and dry grinding or sieving of materials, fettling, pressing of tiles, drying of clay and green-ware loading and unloading of saggars;

(b)

All processes involving the use of a dry lead compound.

4. No glaze which is not a leadless glaze or a low solubility glaze shall be used in a factory in which pottery is manufactured.

5. No woman or young person shall be employed or permitted to work in any of the operations specified in paragraph 2 or at any place where such operations are carried on.

6. The potter's wheel (Jolly and Jaggery) shall be provided with screens or so constructed as to prevent clay scrapings being thrown off beyond the wheel.

7.

(1)

All practical measures shall be taken by damping or otherwise to prevent dust arising during cleaning of floors.

(2)

Damp saw dust or other suitable material shall be used to render the moist method effective in preventing dust rising into the air during the cleaning process which shall be carried out after work has ceased.

8. The floors of potter's shops, slip houses, dipping houses and ware cleaning rooms shall be hard, smooth and impervious and shall be thoroughly cleaned daily by a moist method by an adult male.

9. [Medical facilities and records of examinations and tests-(1) The occupier of every factory in which manufacture of pottery is carried on shall-

(a)

employ a qualified medical practitioner for medical surveillance of the workers employed therein whose employment shall be subject to the approval of the Chief Inspector of Factories; and

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a).

(2)

The record of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for inspection by the Inspector.

10. Medical examination by Certifying Surgeon-(1) Every worker employed in any processes mentioned under paragraph 2, shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include tests for lead in urine and blood, ALA in urine, haemoglobin content, stippling of cells and pulmonary function tests and chest X-ray for workers engaged in processes mentioned in Clauses (i) and (xiv) of paragraph 2 and pulmonary function tests and chest X-ray for the others. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for such employment by the Certifying Surgeon.

(2)

All persons employed in any of the processes included under Clauses (i) and (xiv) of paragraph 2, shall be examined by a Certifying Surgeon once in every three calendar months. Those employed in any other processes mentioned in the remaining clauses of paragraph shall be examined by a Certifying Surgeon once in every twelve calendar months. Such examinations in respect of all the workers shall include all the tests as specified in sub-paragraph (1) except chest X-ray which will be once in three years.

(3)

The Certifying Surgeon, after examining a worker, shall issue Certificate of Fitness in Form 30. The record of examinations and re-examinations carried out shall be entered in the Certificate and the Certificate shall be kept in the custody of the manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2), including the nature and the result of the tests, shall also be entered by The Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker, he shall make record of his findings in the said Certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit for work in the said processes.

(6)

No person who has been found unfit to work as said in sub-paragraph (5) shall be re-employed or permitted to work in the said processes, unless the Certifying Surgeon, after further examination again certified him fit for employment in those processes.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

11. Protective equipment-(1) The occupier shall provide and maintain suitable overalls and head coverings for all persons employed in processes included under paragraph 2.

(2)

The occupier shall provide and maintain suitable aprons of waterproof or similar material which can be sponged daily, for the use of the dippers, dippers' assistants, throwers, jolly workers, casters, mould makers and filter press and pug mill workers.

(3)

Aprons provided in pursuance of paragraph 11 (2) shall be thoroughly cleaned daily by the wearers by sponging or other wet process. All overalls and head coverings shall be washed, cleaned and mended at least once a week, and this washing, cleaning and mending shall be provided for by the occupier.

(4)

No person shall be allowed to work in emptying sacks of dusty materials, weighing out and mixing of dusty materials and charging of ball mills and plungers without wearing a suitable and efficient dust respirator.

12. Washing facilities-The occupier shall provide and maintain, in a cleanly state and in good repair for the use of all persons employed in any of the process specified in paragraph 2 a wash place under cover, with either-

(a)

(i)

a trough with smooth impervious surface fitted with a waste pipe, without plug, and of sufficient length to allow at least two feet for every five such persons employed at any one time, and having a constant supply of clear water from taps or lets above the trough at intervals of not more than two feet; or

(ii)

at least one tap or stand pipe for every five such persons employed at any one time and having a constant supply of clean water, and such tap or stand pipe being spaced not less than 4 feet apart; and

(b)

a sufficient supply of clean towels made of suitable materials changed daily, with sufficient supply of nail brushes and soap.

13. Time allowed for washing-Before each meal and before the end of the days' work at least ten minutes in addition to the regular meal time, shall be allowed for washing to each person employed in any of the processes mentioned in paragraph 2.

14. Mess-room-(1) There shall be provided and maintained for use of all persons remaining within the premises of the potter's shop during the rest intervals, a suitable mess-room providing accommodation of 10 square feet per head and furnished with-

(i)

a sufficient number of tables and chairs or benches with back rest;

(ii)

arrangements for washing utensils;

(iii)

adequate means for warming food;

(iv)

adequate quantity of drinking water.

(2)

The room shall be adequately ventilated by the circulation of fresh air placed under the charge of a responsible person and shall be kept clean.

15. Food, drinks, etc., prohibited in work-rooms-No food, drinks, pan and supari, or tabacco shall be brought into or consumed by any worker in any work-room in which any of the processes mentioned in paragraph 2 are carried on and no person shall remain in any such room during intervals for meals or rest.

16. Cloak-room, etc.-There shall be provided and maintained for the use of all persons employed in any of the processes mentioned in paragraph 2 :

(a)

a cloak-room for clothing put off during working hours and such accommodation shall be separate from any mess-room;

(b)

separate and suitable arrangements for the storage of protective equipment prescribed under paragraph 11.

17. These rules shall not apply to a factory in which any of the following articles, but no other pottery, are made, namely :

(a)

unglazed or salt glazed bricks and tiles; and

(b)

architectural terra cotta made from plastic clay either unglazed or glazed with a leadless glaze only.

18. Exemption-If in respect of any factory the Chief Inspector of Factories is satisfied that all or any of the provisions of these rules are not necessary for the protection of the persons employed in such factory he may, by a certificate in writing, exempt such factory from all or any of such provisions, subject to such conditions as he may specify therein. Such certificate may at any time be revoked by the said Chief Inspector without assigning any reasons.

XII

Manufactures in chemical works and processes incidental thereto

Definitions-"Chemical work" means any factory or such parts of any factory as are named in Annexure I to these rules.

"Breathing apparatus" means (1) a helmet or face-piece with necessary connections by means of which a person using it in poisonous, asphyxiating or irritant atmosphere breathes ordinary air, or (2) any other suitable apparatus approved in writing by the Chief Inspector.

"Life-belt" means a belt made of leather or other suitable material which can be securely fastened round the body, with a suitable length of rope attached to it, each of which is sufficiently strong to sustain the weight of a man.

"Efficient exhaust draught" means a localised ventilation effected by mechanical or other means for the removal of gas, vapour fume, or dust to prevent it from escaping into the air of any place in which work is carried on.

"Surgeon" means a Certifying Surgeon appointed under Section 10 of the Factories Act, 1948 (63 of 1948).

"Suspension" means suspension by written certificate in the Health Register signed by the Surgeon, from employment in any process mentioned in the certificate.

"Bleaching powder" means the bleaching powder commonly called chloride of lime.

"Chlorate" means chlorate or perchlorate,

"Caustic" means hydroxide of potassium or sodium.

"Chrome pot" means a metal pot fixed over a furnace or flue and surrounded by brickwork, such as is commonly used for concentrating caustic liquor, whether such pot be used for concentrating or boiling caustic or other liquor.

"Chrome process" means the manufacture of chromate or bichromate of potassium or sodium or the manipulation, movement or other treatment of these substances in connection with their manufacture.

"Nitro or Amino process" means the manufacture of nitro or amino derivatives of phenol and of benzene or its homologues and the making of explosives with the use of any of these substances.

Exceptions-If the Chief Inspector is satisfied in respect of any factory or any process that, owing to the special conditions or special methods of work, or by reason of the infrequency of the process or for other reasons all or any of the requirements of those rules are not necessary for the protection of persons employed in any factory or process, he may, by order in writing (which he may in his discretion revoke) exempt such factory or process from all or-any of the provisions of these rules, subject to such conditions as he may, by such order, prescribe.

Part-1

Applying to all the works in Annexure I

General

1. House-keeping-(a) Every part of the ways, works, machinery and plant shall be maintained in a clean and tidy condition.

(b)

Any spillage of materials shall be cleaned up without delay.

(c)

Floors, platform, stairways, passages and gangways shall be kept free of temporary obstructions.

(d)

There shall be provided easy means of access to all parts of the plant to facilitate cleaning, maintenance and repairs.

2. Improper use of chemicals-(a) No chemicals or solvents shall be used by workers for any purposes apart from the processes for which they are supplied.

(b)

Workers shall be instructed on the possible dangers arising from such misuse. These instructions shall further be displayed in bold letters in prominent places in different sections.

3. Storage of food-(a) No food, tobacco, pan or similar article shall be stored or consumed on or near any part of the plant.

(b)

Testing-Workers shall be instructed on the possible dangers arising from the testing of materials, or of the use for drinking purposes of any vessel used in or in connection with the manufacture of chemicals. These instructions shall further be displayed in bold letters in prominent places in different sections.

4. Process hazards - Before commencing any large-scale experimental work, or any new manufacture, all possible steps shall be taken to ascertain definitely all the hazards involved both from the actual operations and the chemical reactions. The properties of the raw materials used, the final products to be made and any by-products arising during manufacture, shall be carefully studied and provisions shall be made for dealing with any hazards including effects on workers which may arise during manufacture.

The design of the buildings and plant shall be based on the information so obtained.

5. Unauthorised personnel - (a) Unauthorised persons shall not be permitted to enter any section of the factory or plant where there are special dangers.

(b)

Visitors-Visitors shall be provided, where necessary, with suitable safety equipment and shall be accompanied round dangerous plant by a responsible official.

6. Instruments-All instruments such as pressure gauges, thermometers, flow meters and weighing machines shall be tested at regular intervals by competent person and records of these tests shall be kept in a register.

7. Cocks and valves-Suitable valves shall be provided in all service lines at sufficiently short intervals for convenience in blanking off, etc. All cocks and valves shall be operated at least once a month, and tested periodically by a competent person; and records of these tests shall be kept in a register. A plan of service installations shall be kept readily available for perusal.

8. Manholes-No manhole shall be opened for entry until effective fencing has been erected round it.

9. Emergency instructions-Simple and special instructions shall be framed to ensure that effective measures will be carried out in cases of emergency, to deal with escapes of inflammable, poisonous or deleterious gases, vapours, liquids, or dusts. These instructions shall further be displayed in bold letters in prominent places in the different sections. All workers shall be trained and instructed in the action to be taken in such emergencies, and in the general hazards of their employment.

10. Precaution of reaction mixtures-Suitable arrangements shall be made to ensure that no foreign matter of any sort

can fall into reaction mixtures.

11. Electrical apparatus-Electrical plant, fittings and conductors shall, if exposed to a damp or corrosive atmosphere be adequately protected. Periodic tests shall be carried out on all circuits.

12. Place of work - (a) Workers shall only be allowed in those places in which they have been given orders to work.

(b)

In dangerous sections of a factory, the number of workers shall be kept to a minimum compatible with the need of the process.

13. Packing, storage and transport of chemicals-Chemicals shall be packed and stored in containers suitable for the purpose and of adequate strength for storage or transport. All such containers shall be suitably labelled so that they will be stored and transported in such a manner as to ensure that, in the event of a spillage they will neither produce a reacting mixture, nor cause the development of toxic or fire risks in contact with other products in its vicinity, or with walls, floors, or dust thereon.

Fire and explosion risks

14. Site-(a) Buildings and plant shall be sited with due regard to the danger which may arise from the processes involved, and in particular shall be spaced at distances which are deemed safe for the fire and explosive risks connected with the processes in adjacent buildings. Due consideration shall be given to the effect of processes carried out in adjacent factories.

(b)

Isolation of buildings-Where special dangers exist, separate building shall be used for the different parts of a process. They shall be spaced at sufficient distances apart and shielded to prevent damage to each other in the event of fire or explosion, and shall be safeguarded by the provision of suitable blow-out pannels or roots. Where the risk of fire or explosion is considerable, the building shall be divided by blast or protective screen walls.

(c)

Fire resistance-No combustible materials shall be used in the erection of working buildings, unless there are special reasons necessitating their use, when they shall be rendered fire-resistant. The roof shall be of light fire-resistant construction and floors shall be of impervious fire-resistant material and shall be regularly maintained in such condition.

15. Dangers of ignition (including lighting installations)-(a) No internal combustion engine, and no electric motor or other electric equipment, capable of generating sparks or otherwise causing combustion shall be installed or used in a building or danger zone. Electric conductor shall be fitted with screwed steel conduct.

(b)

All hot exhaust pipes shall be installed outside a building and other hot pipes shall be suitably protected.

(c)

Portable electric hand lamps shall not be used unless of an intrinsically safe type, and portable electric tools connected by flexible wires shall not be used, unless of the flame-proof type.

(d)

Where an inflammable atmosphere may occur the soles of footwear worn by workers shall have no metal on them, and the wheels of trucks or conveyors shall be of conducting non-sparking materials. Adequate precautions shall be taken to prevent the ignition of explosive or inflammable substances by sparks emitted from locomotives or other vehicles operated in the factory or on public lines.

(e)

No electric arc lamp or naked light, fixed or portable, shall be used and no person shall have in his possession any match or any apparatus of any kind for producing a naked light or spark in or on, or about any part of tire factory where there is liability to fire or explosion from inflammable gas, vapour or dust, and all incandescent electric lights in such parts shall be in double air-tight glass covers.

(f)

Prominent notices in the language understood by the majority of the workers and legible by day and by night, prohibiting smoking, the use of naked lights, and the carrying of matches or any apparatus for producing a naked light or spark, shall be affixed at the entrance of every room or place where there is the risk of fire or explosion from inflammable gas, vapour or dust. In the case of illiterate workers the contents of the notices shall be fully and carefully explained to them when they commence work in the factory for the first time and again when they have completed one week at the factory.

(g)

Non-sparking tools-A sufficient supply of spades, scrapers and pails made from non-sparking material shall be provided for the use of persons employed in cleaning out or removing residues from any chamber, still, tank, or other vessel where an inflammable or explosive danger may occur.

(Note-The risk is not always obvious and arise, for example, through the production of hydrogen in acid tanks).

16. Static electricity - (a) All machinery and plant, particularly, pipe lines and Belt drives, on which static electricity is likely to accumulate, shall be effectively earthed. Receptacles for inflammable liquids shall have metallic connection to the earthed supply tanks to prevent static sparking. Where necessary, humidity shall be controlled.

(b)

Mobile tank wagons shall be earthed during filling and discharge and precautions shall be taken to ensure that earthing is effective before such filling or discharge takes place.

(c)

Lighting condition-Lighting protection apparatus shall be fitted where necessary, and shall be maintained in good condition.

17. Process heating-The method providing heat for a process shall be as safe as possible and where the use of naked flame is necessary, the plant shall be so constructed as to prevent any escaping inflammable gas, vapour or dust coming into contact with the flame, or exhaust gases, or other hot agency likely to cause ignition. So far as practicable, the heating medium shall be automatically controlled at a pre-determined temperature below the danger temperature.

18. Escape of materials-(a) Provision shall be made in all plant, sewers, drains, flues, ducts culverts and buried pipes to prevent the escape and spread of any liquid, has vapour, fume or dust likely to give rise to fire or explosion, both during normal working and in the event of accident or emergency.

(b)

If escape occurs, such substances shall be removed expeditiously and efficiently at the point of liberation. The effluent shall be trapped and rendered safe outside the danger area.

19. Leakage of inflammable liquids-(a) Provision shall be made to confine by means of bound walls, sumps, etc., possible leakages from vessels from containing inflammable liquids.

(b)

Adequate and suitable fixed fire-fighting appliances shall be installed in the vicinity of such vessels.

20. Cleaning of empty container - (a) All empty containers which have held inflammable liquids, and metal containers which have held sulphuric acid shall be rendered permanently safe as soon as practicable, and shall not be repaired or destroyed until such cleaning has been completed.

(b)

Storage of combustible materials-Combustible and inflammable materials shall not be stored in close proximity to chemicals which are liable to cause ignition.

(c)

Rubbish shall be removed from buildings without delay and placed in special metal containers provided with close fitting lids. The contents shall be removed daily and suitably dealt with. Waste products containing inflammable or explosive materials shall not be placed on rubbish heaps but shall be destroyed in an appropriate manner.

21. Installing of pipe lines for inflammable liquids-All pipe lines for the transport of inflammable liquids shall be protected from breakage, shall be arranged so that there is no risk of mechanical damage from vehicles and shall be so laid that they drain throughout without the collection of deposits at any part. All flanged joints, bends and other connections shall be regularly inspected. Cocks and valves shall be so constructed that explosive residues cannot collect therein. The open and closed positions of all cocks and valves shall be clearly indicated on the outside.

22. Packing of reaction vessels-Packing and jointing materials for reaction vessels (including covers, manhole covers and exhaust pipes) and in pipe lines and high or low temperature insulating materials shall not contain materials which are combustible or which react with the products of the plant.

23. Safety valves-Every still and every closed vessel in which gas is evolved or into which gas is passed, and in which the pressure is liable to rise to a dangerous degree, shall have attached to it a pressure gauge, and a proper safety valve or other equally efficient means to relieve the pressure, maintained in good condition. Nothing in these rules shall apply to metal bottles or cylinders used for the transport of compressed gasses.

24. Vigorous or delayed reactions-Suitable provision, such as automatic and distant control shall be made for controlling the effects of unduly vigorous or delayed reactions. Automatic flooding or blanketing shall be provided for in the event of

an accident.

25. Examination, testing and repair of plant-Examination, testing and repair of plant parts which have been in contact with explosive and inflammable material, or which is under pressure, shall only be carried out under proper supervision.

26. Alarm systems-(a) Gravity or pressure feed systems of supplying inflammable materials to the various parts of the buildings or plant shall be fitted with alarm systems, automatic cut-offs or other devices to prevent overcharging or otherwise endangering the plant.

(b)

The amount of inflammable material taken into a building in bulk containers at any one time shall be kept as low as practicable.

(c)

Adequate steps shall be taken to prevent the escape of inflammable and explosive vapours from any container into the atmosphere of any building.

Gas, vapour, fume or dust risks

27. Escape of gases, etc.-(a) Effective steps shall be taken to prevent the escape of dangerous gases, vapours, fumes or dust from any part of the plant by the total enclosure of the process involved or by the provision of efficient exhaust draught. Effective arrangements shall be made to ensure that in the event of failure of the control measure provided in compliance of the forgoing, the process shall stop immediately.

(b)

In the event of any such escape, provision shall be made to trap the materials and render them safe.

28. Danger due to effluent - (a) Adequate precautions shall be taken to prevent the mixing of effluents which may cause dangerous or poisonous gases to be evolved.

(b)

Effluents which may contain or give rise in the presence of other effluents to such gases shall be provided with independent drainage systems to ensure that they may be trapped and rendered safe.

29. Staging -(a) Staging shall not be erected over any open vessel unless the vessel is so constructed and ventilated to prevent the remission of vapour or fumes about such staging.

(b)

Where such staging is provided to give access to higher levels in large plants, effective means shall be provided at all levels with direct means of access to the outside of the room or building and thence to ground level.

(c)

Such staging shall be fitted with suitable handrails and toe boards, and the floors and staging shall be impervious and easily cleaned.

30. Instructions as regards risk-Before commencing work, every workers shall be fully instructed oh the properties of the materials they have to handle, and of the dangers arising from any gas, fume, vapour or dust which may be evolved during the process. Workers shall also be instructed in the measures to be taken to deal with such an escape in the event of emergency.

31. Breathing apparatus-(a) There shall be provided in every factory where dangerous gas or fume is liable to escape a sufficient supply of-

(i)

breathing apparatus of an approved make for the hazards involved;

(ii)

Oxygen and suitable means of its administration; and

(iii)

Life-belts.

The breathing apparatus and other appliances required by this rule shall-

(i)

be maintained in good order and kept in an ambulance room or in some other place approved in writing by the Chief Inspector; and

(ii)

be thoroughly inspected once every month by a competent person, appointed in writing by the occupier, and a record of their condition shall be entered in a book provided for that purpose, which shall be produced when required by an

Inspector.

(b)

Workers shall be trained, and given a periodic refresher course, in the use of breathing apparatus and respirators.

(c)

Respirators shall be kept properly labelled in clean dry light-proof cabinets, and if liable to be affected by fumes, shall be protected by suitable containers. Respirators shall be dried and cleaned after use and shall be periodically disinfected.

32. Treatment of persons-In every room or place wherever required in writing by the Chief Inspector there shall be affixed the official cautionary notice regarding grasing and burns. Such notices shall be legible by day and by night and shall be printed in the language understood by the majority of the workers.

33. Personal protective equipment - (a) Suitable protective clothing shall be provided for the use of operatives-

(i)

when operating valves or cocks controlling fluids which, by their nature, pressure or temperature would be highly dangerous if a blow-out occurred or when cleaning chokes in systems containing such fluids if pressure is likely to exist behind the chokes;

(ii)

when there is danger of injury by absorption through the skin during the performance of normal duties or in the event of emergency;

(iii)

whenever there is the risk of injury in handling corrosive substances, hot or cold articles and sharp or rough objects; and

(iv)

when there is the risk of poisonous materials being carried away on their clothes.

(b)

There shall be provided for the use of all persons employed in the processes specified in Annexure-II to these rules an adequate supply of suitable protective equipment including gloves, overalls and protective foot-wear, and of goggles and respirators. Respirators shall be of a type approved in writing by the Chief Inspector.

(c)

Protective equipment shall be provided and stored in the appropriate place for use during abnormal conditions in an emergency.

(d)

Arrangements shall be made for the proper and efficient cleaning of all such protective equipments.

34. Cloak rooms-There shall be provided and maintained for the use of all persons employed in the processes specified in Annexure II to these rules a suitable cloak room, for clothing put off during working hours and a suitable place separate from the cloak room, for the storage of overalls or working clothes. The accommodation so provided shall be placed in charge of a responsible person, and shall be kept clean.

35. Special bathing accommodation-(a) There shall be provided for the use of all persons employed in the processes specified in Annexure III to these rules separate sanitary conveniences and sufficient and suitable bathing facilities which shall be to the satisfaction of the Chief Inspector.

(b)

A bath register shall be kept containing the names of fell persons employed in these processes and an entry of the date when each person takes a bath.

36. Entry into vessels-(a) Before any person enters, for any purpose except that of rescue, any absorber, boiler, culvert, drain, flue gas purifier, sewer, still, tank, tower vitriol chamber or other place where there is reason to apprehend the presence of dangerous gas or fume a responsible person appointed in writing by the occupier for the purpose, shall personally examine such place and shall certify in writing in a book kept for the purpose either that such place is isolated and sealed from every source of such gas or fume and is free from danger, or that it is not so isolated and sealed and free from danger. No person shall, enter any such place which is certified not to be so isolated and sealed and free from danger unless he wears a breathing apparatus, and (where there are no cross stays or obstructions likely to cause entanglement) a life-belt, the free end of the rope attached to which shall be left with a man outside whose sole duty shall be to keep watch and to draw out the wearer if he appears to be affected by gas or fume. The belt and rope shall be so adjusted and worn that the wearer can be drawn up head foremost through any manhole or opening.

(b)

A person entering for the purpose of rescue in any such place for which a clearance certificate has been issued shall wear a breathing apparatus and a life-belt in the manner specified.

37. Examination and repair of plant-Where poisonous materials are likely to be present the examination and repair and plant and piping shall only be done under the supervision of a competent person, and after the plant and piping has been thoroughly cleaned and ventilated. When opening vessels and breaking joints in pipe lines, respirators, goggles and protective clothing shall be worn to the extent required by the competent person.

38. Storage of acid carboys - Carboys containing nitric acid or "mixed acid" shall be stored in open-sided sheds detached from other buildings, and placed on a flooring of sandstone, bricks, or other suitable inorganic material. A passageway shall be provided and kept free from obstruction between every four rows of such carboys. An ample supply of water shall be available for washing away spilt acid and all precautions shall be taken to prevent workers being exposed to fumes.

Corrosive or deleterious substances risks

39. Buildings - All buildings and plant shall be sited with due regard to possible dangers from accidental liberation or splashing of corrosive and deleterious liquids, and shall be so designed as to facilitate through washing and cleaning. The construction of staging and other parts of buildings shall be carried out with materials impervious and resistant to corrosion so far as practicable.

40. Leakage - (a) All plant shall be so designed and constructed as to obviate the escape of corrosive liquid. Where necessary separate buildings, rooms, or protective structures shall be used for the dangerous stages of the process and the buildings shall be so designed as to localise any escape of liquid.

(b)

Catch pits, bund walls, or other suitable precautions shall be provided to restrict the serious effects of such leakages. Catch pits shall be placed below joints in pipe-lines where there is danger involved to maintenance and other workers from such leakage.

(c)

Passages and work-stations shall not be situated directly below any part of plant where there is risk of escape of dangerous liquid. Access to such part shall, so far as practicable, be prohibited, and danger notices shall be affixed at suitable points.

41. Precautions against escape - Adequate precautions shall be taken to prevent the escape of corrosive or deleterious substances and means shall be provided for rendering safe any such escape.

42. Drainage-Adequate drainage shall be provided and shall lead to special treatment tanks where deleterious material shall be neutralised or otherwise rendered safe before it is discharged into ordinary drain or sewers.

43. Covering of vessels-(a) Every fixed vessel or structure containing any dangerous material, and not so covered as to eliminate all reasonable risk of accidental immersion in it of any portion of the body of a worker, shall be so constructed that there is no foothold on the top of the sides.

(b)

Such vessel shall, unless its edge is at least three feet above the adjoining ground or platform, be securely fenced to a height of at least three feet above such adjoining ground or platform.

(c)

No plank or gangway shall be placed across or inside any such vessels, unless such plank or gangway is at least 18 inches wide, and is securely fenced on both sides by rails, spaced at 9 inches apart to a height of at least 3 feet, or by other equally efficient means.

(d)

Where such vessels adjoin and the space between them clear of any surrounding brick or other work, is either less than 18 inches in width or is 18 or more inches in width, but is not securely fenced on both sides to a height of at least three feet, secure barriers shall be so placed as to prevent passage between them :

Provided that paragraph (b) of this rule shall not apply to-

(i)

saturators used in the manufacture of Sulphate of Ammonia; and

(ii)

that part of the sides of brine evaporating pans which require raking, drawing or filling.

44. Ventilation-Adequate ventilation shall be provided and maintained at all times in rooms or buildings where dangerous

gas, vapour, fume or dust may be evolved.

45. Means of escape-Adequate means of escape from rooms or buildings in the event of a leakage of corrosive liquid shall be provided and maintained.

46. Treatment of personnel-In all places where strong acids or dangerous corrosive liquids are used-

(a)

there shall be provided for use in an emergency-

(i)

adequate and readily accessible means of drenching with cold water, persons and the clothing of persons, who have become splashed with, such liquid;

(ii)

adequate special arrangements to deal with any person who has been splashed with poisonous material that can be absorbed through the skin;

(iii)

a sufficient number of eye-wash bottles, filled with distilled water or other suitable liquid, kept in boxes or cupboards conveniently situated and clearly indicated by a distinctive sign which shall be visible at all times.

(b)

Except where the manipulation of such corrosive liquids is so, carried on as to prevent risk of personal injury from splashing or otherwise, there shall be provided for those who have to manipulate such liquid sufficient and suitable goggles and gloves or other suitable protection for the eyes and hands. If gloves are provided, they shall be collected, examined and cleaned at the close of the day's work and shall be repaired or renewed when necessary.

47. Maintenance-(a) Before any examination- or repairs are carried out on plant or pipelines, a competent person shall issue a clearance certificate permitted such examination or repairs.

(b)

Adequate precautions shall be taken to liberate any packets of gas or liquid which may have been formed in pipe-lines, and which may cause corrosive spray at the point where dismantling takes place.

48. Washing facilities-(1) There shall be provided and maintained in any factory for the use of employed persons adequate and suitable facilities for washing which shall include soap and nail brushes or other suitable means of cleaning and the facilities shall be conveniently accessible and shall be kept in a clean and orderly condition.

(2)

If female workers are employed separate washing facilities shall be provided and so enclosed or screened that the interiors are not visible from any place where persons of the other sex work or pass. The entrance to such facilities shall bear conspicuous notice in the language understood by the majority of the workers "For women only" and shall also be indicated pictorially.

49. Mess-room facilities - In every factory there shall be provided and maintained for the use of those remaining on the premises during the rest intervals, suitable and adequate mess-room or canteen accommodation which shall be furnished with sufficient tables and chairs or benches with back rests and where sufficient drinking water is available.

50. Ambulance room-(a) (i) In every factory in which more than 250 persons are employed on the process for which these rules apply there shall be provided and maintained in good order an Ambulance Room.

(ii)

The Ambulance Room shall be a separate room used only for the purpose of treatment and rest. It shall have a floor space of not less than 100 square feet, and smooth, hard and impervious walls and floor, and shall be provided with ample means of natural and artificial lighting. It shall contain all items shown in Annexure IV.

(iii)

Where persons of both sexes are employed, arrangements shall be made at the Ambulance Room for their separate treatment.

(iv)

The Ambulance Room shall be placed under the charge of a qualified nurse or other person trained in First Aid, who shall always be readily available during working hours, and shall keep a record of all cases of accidents or sickness treated in the room.

(b)

In every factory there shall be provided and maintained in good condition a suitably constructed ambulance van of the

removal of serious cases of accident or sickness, unless arrangements have been made with a hospital or other place in telephonic communication with the factory for obtaining such a carriage immediately when required.

51. Medical personnel-There shall be whole time Medical Officer in every factory employing 250 persons or more.

52. Medical examination-In manufacture, processing, formulation or use of-

(i)

Hexathyl tetra phosphate;

(ii)

Tetraothyle Pyrophosphate;

(iii)

O.O. Diethyl O.P. nitrophenyle, thiophosphate (Parathion);

(iv)

Nicotine, nicotine sulphate;

(v)

Mercury derivatives;

(vi)

Methyle Bromide;

(vii)

Cyanides;

(viii)

Arsenical derivatives;

(ix)

Chrome process compounds;

(x)

Nitro or amino process compounds.

(a)

A Health Register containing the names of all persons employed in the manufacture, processing, formulation or use of the above chemicals shall be kept in a form approved by the Chief Inspector;

(b)

No person shall be newly employed for more than fourteen days without a certificate of fitness granted after examination by the Certifying Surgeon by a signed entry in the Health Register;

(c)

Every person shall be examined by the Certifying Surgeon once in three months on a date or dates of which due notice shall be given to all concerned;

(d)

Every person so employed shall present himself at the appointed time for examination by the Certifying Surgeon as provided in (b) and (c) of this rule;

(e)

The Certifying Surgeon shall have power of suspension as regards all persons employed and no person after suspension shall be employed without written sanction from the Certifying Surgeon entered in the Health Register.

53. Duties of workers-Every person employed shall-

(a)

report to his foreman any defect in any fencing, breathing apparatus, appliance or other requisite provided in pursuance of these rules, as soon as he becomes aware of such defect;

(b)

use of articles, appliances or accommodation required by these rules for the purpose for which they are provided;

(c)

wear the breathing apparatus and life-belt where required under Rule 36 (a) and (b).

54. No person shall-

(a)

remove any fencing provided in pursuance of Rule 43 unless duly authorised ; or

(b)

stand on the edge or on the side of any vessel to which Rule 43 applies;

(c)

pass or attempt to pass any barrier erected in pursuance of Rule 43;

(d)

place across or inside any vessel to which Rule 43 applies any plank or gangway which does not comply with that rule or make use of any such plank or gangway while in such position;

(e)

take a naked light or any lamp or matches or any apparatus for producing a naked light or spark into or smoke in, any part of the works where there is liability to explosion from inflammable gas, vapour or dust;

(f)

use of metal spade, scraper or pail when cleaning out or removing the residues from any chamber, still, tank or other vessel which has contained sulphuric acid or hydrochloric acid or other substance which may cause evolution of arseniuretted hydrogen;

(g)

remove from a First Aid box or cupboard or from the Ambulance Room any First Aid appliance or dressing-except for the treatment of injuries in the works.

Annexure I

"Chemical works" means any work or that part of a work in which-

1. The manufacture or recovery of any of the following is carried

(a)

Carbonates, chromates, chlorates, oxides or hydroxides of potassium, sodium, iron, aluminium, cobalt, nickel, arsenic, antimony, zinc or magnesium;

(b)

Ammonia and the hydronide and salts of ammonium;

(c)

Sulphurous, sulphuric, nitric, hydrochloric, hydrofluoric, hydriodic hydrosulphuric, boric, phosphoric, oxalic, arsenious, arsenic, lactic, acetic, tartaric or citric acids and their metallic or organic salts; and

(d)

Cyanogen compounds.

2. A wet process is carried on-

(a)

for the extraction of metal from ore or from any by-product or residual material; or

(b)

in which electric energy is used in any process of chemical manufacture.

3. Alkali waste or the drainage therefrom is subject to any chemical process for the recovery of sulphur, or, for the utilisation of any constituent of such waste or drainage.

4. Carbon bisulphide is made or hydrogen sulphide is evolved by the decomposition of metallic sulphides or hydrogen sulphide is used in the production of such sulphides.

5. Bleaching powder is manufactured or chlorine gas is made or issued in any process of chemical manufacture.

6. (a) Gas tar or coal tar or any compound product or residue of such tars is distilled or is used in any process of chemical manufacture.

(b)

Synthetic colouring matters or their intermediates are made.

7. Refining of crude shale oil or any process incidental thereto is carried out.

8. Nitric acid is used in the manufacture of nitro compounds.

9. Explosives are made with the use of nitro compounds.

10. Insecticides which may be phosphorus, nicotine, mercury, naphthalene, cyanogen, arsenic, flourine, copper, benzene and ethane compounds, derivatives and methyl bromide are manufactured, mixed, bonded and packed.

The following insecticides and pesticides have been declared to be poisonous, vide Government of India, Ministry of Home Affairs, Notification No. 28.2-1958-P-IV, dated the 8th August, 1958 :

Insecticides-

(1)

Parathion

(2)

Tetraethyl pyrophosphate

Rodenticides-

Alpha naphthyl Thiourea

Fungicides-

(1)

Ethory ethyl Mercury chloride

(2)

Ethyl Mercury phoshpate

(3)

Phenyl Mercury acetate

(4)

Ethyl Mercury chloride

(5)

Phenyl Mercury chloride

(6)

Phenyl Mercury urea.

Funigrants-

(1)

Methyl Bromide

(2)

Cyanides, viz., the following Liquid Hydrocyanic acid Sodium cyanide

Potasium cyanide

Calcium cyanide

Preparation-

Any preparation containing any of the aforesaid poisons.

Annexure II

1. A nitro or amino process (overalls or suits or working clothes and protective footwear).

2. Grinding raw materials in chrome process (overall suits).

3. The crystal department and in packing in a chrome process (protective coverings).

4. Packing in a chrome process (respirators).

5. Any room or place in which chlorate is crystallised, ground or packed (clothing of woollen material and boots or overshoes, the soles of which have no metal on them).

6. Any room in which caustic is ground or crushed by machinery (goggles and gloves or other suitable protection for the eyes and hands).

7. Bleaching powder chambers, or in packing charges drawn from such chambers (suitable respirators).

8. Drawing off of molten sulphur from sulphur pots in the process of carbon disulphide manufacture (overalls, faceshields, gloves and footwear of fireproof material).

9. (a) Manufacture, mixing, blending and packing of insecticides which are phosphorous, nicotine, naphthalene, cyanogen arsenic, fluorine, mercury and copper compounds or derivatives and methyl bromide (rubber aprons, chemical type goggles and suitable respirators and in addition rubber gloves and boots for phosphorus and nicotine derivatives, synthetic rubber aprons, gloves and boots when working with oil solutions; and washable working clothes laundered daily).

(b)

Manufacture, mixing, blending and packing of insecticides which are derivatives of benzene or ethane (rubber aprons, and suitable respirators; separate work clothes, laundered frequently).

Annexure III

1. A nitro or amino process.

2. The crystal department and the packing room in a chrome, process.

3. The process of distilling gas or coal-tar (other than blast furnace tar) and any process of chemical manufacture in which such tar is used.

4. The manufacture, mixing, blending and packing of the insecticides mentioned in Annexure 1.

Annexure IV

Part-I (i) A glazed sink with hot and cold water always available.

(ii)

A table with a smooth top.

(iii)

Means for sterilising instruments.

(iv)

A couch.

(v)

Stretcher.

(vi)

Two buckets or containers with close-fitting lids.

(vii)

Tow rubber hot water bags.

(viii)

A kettle and spirit stove or other suitable means for boiling water.

(ix)

Twelve plain wooden splints, 36" x 4" x ¼".

(x)

Twelve plain wooden splints, 14" x 3" x ¼".

(xi)

Six plain wooden splints, 10" x 2" x ½".

(xii)

Three woollen blankets.

(xiii)

One pair artery forceps.

(xiv)

One bottle of brandy.

(xv)

Two medium size sponges.

(xvi)

Three hand towels.

(xvii)

Two kidney trays.

(xviii)

Four carbolic soaps.

(xix)

Two glass tumblers and two wine glasses.

(xx)

Two clinical thermometers.

(xxi)

Graduated measuring glass with teaspoon.

(xxii)

One eye bath.

(xxiii)

One bottle (2.lbs.) carbolic lotion 1 in 20.

(xxiv)

Two chairs.

(xxv)

One screen.

(xxvi)

One electric hand torch.

(xxvii)

An adequate supply of anti-tetanus serum.

(xxviii)

Two first aid boxes, each containing (a) 24 small sterilized dressings, (b) 12 medium size sterilized dressings, (c) 12 large size sterilized dressings, (d) 12 large size sterilized burn dressings, (e) 12 half ounce packets sterilized cotton wool, (f) one snake bit lancet, (g) one pair scissors, (h) two (1 oz.) bottles of potassium permanganate crystals, (i) one (4 oz.) bottle containing a two per cent alcoholic solution of iodine, (j) one (4 oz.) bottle of sal-volatile having the dose and mode of administration indicated on the label, (k) 1 copy of the first aid leaflet issued by the Chief Advisor of Factories, Government of India.

Part-II

Applying to works or parts thereof in which

I. Caustic pots are used; or

II. Chlorate or bleaching powder is manufactured; or

III. (a) Gas tar or coal tar is distilled or is used in any process of chemical manufacture ; or

(b)

A nitro or amino process is carried on ; or

(c)

A chrome process is carried on ; or

IV. Crude shale oil is refined or processes incidental thereto are carried on ; or

V. Nitric acid is used in the manufacture of nitro compounds ; or

VI. The evaporation of brine in open pans and the stoving of salt are carried on ; or

VII. The manufacture or recovery of hydro-fluoric acid or any of its salts is carried on ; and

VIII. Work at a furnace where the treatment of zinc ores is carried on.

IX. Insecticides mentioned in Annexure I are manufactured, mixed, blended or packed.

1. Entry of gas tar or coal tar still-Before any person enters a gas tar or coal tar still for any purpose except that of rescue, it shall be completely isolated from adjoining tar stills, either by disconnecting-

(a)

the pipe leading from the swan neck to the condenser worm, or

(b)

the waste gas pipe fixed to the worm or receiver;

and in addition, blank flanges shall be inserted between the disconnected parts, and the pitch discharge pipe or cock at the bottom of the still shall be disconnected.

2. Entry into bleaching powder chambers-No person shall enter a chamber for the purpose of withdrawing the charge of bleaching powder unless and until-

(i)

the chamber is efficiently ventilated ; and

(ii)

the air in the chamber has been tested and found to contain not more than 2.5 grains of free chlorine gas per cubic foot.

A register containing details of all such tests shall be kept in a form approved by the Chief Inspector of Factories.

3. Special precautions for nitro and amino processes-In a nitro or amino process-

(a)

If crystallised substances are broken or any liquor agitated by hand, means shall be taken to prevent, as far as practicable, the escape of dust or fume into the air of any place in which any person is employed. The handles of all implements used in the operations shall be cleansed daily.

(b)

Cartridges shall not be filled by hand except by means of suitable scoop.

(c)

Every drying stove shall be efficiently ventilated to the outside air in such a manner that hot air from the stove shall not be drawn into any work-room.

(d)

No person shall enter a stove to remove the contents until a free current of air has been passed through it.

(e)

Every vessel containing nitro or amino derivatives of phenol or of benzene or its homologues shall, if steam is passed into or around it, or if the temperature of the contents be at or above the temperature of boiling water be covered in such a way that steam or vapour shall be discharged into the open air at a height of not less than 25 feet from the ground or the working platform, and at a point where it cannot be blown back again into the work-room.

4. Precautions during caustic grinding, etc. - (a) Every machine used for grinding or crushing caustic shall be enclosed ; and

(b)

where any of the following processes are carried on-

(i)

grinding or crushing of caustic;

(ii)

packing of ground caustic;

(iii)

grinding, sieving, evaporating or packing in a chrome process;

(iv)

crushing, grinding or mixing of material or cartridge filling in a nitro or amino process;

an efficient exhaust draught shall be provided;

(v)

the insecticides mentioned in Annexure I are manufactured, mixed, blended or packed.

Explanatory note

The insecticides which belong to the highly toxic group are the following:

Hexaethyl tetra phosphate ; Tetra ethyl pyrophosphate ; O.O Diethyl O-P-nitrophenyl thiophosphate (parathion) ; and Nicotine, Nicotine sulphate, Mercury derivatives Methylbromide; cyanides.

The active chemical in these insecticides can be quickly and easily absorbed through the unbroken skin ; poisoning can occur from breathing the vapour of the active chemical or dusts impregnated with these chemicals; minute amounts if accidentally swallowed are quite likely to be fatal.

The plant requirements for ensuring safety to the workers are--

(1)

Instruct all personnel with regard to properties and characteristic (Draft chemical Rule 30 ensures this).

(2)

Enclosure and ventilation on all mixing, blending and packing operations (Draft chemical work Rule 27 meets this requirement).

(3)

Full protective clothing, including natural rubber gloves, boots and aprons .(Synthetic rubber when working with oil solutions) include a provision to this effect in Annexure II.

(4)

Washable working clothes laundered daily (To be added to Annexure II).

(5)

Separate locker for street clothing (Draft chemical works Rule 34 ensures this).

(6)

Respiratory protection and chemical type goggles (To be provided in Annexure II).

(7)

No food or smoking on the job (Draft chemical works Rule 3 covers this).

(8)

Excellent personnel hygiene (Draft chemical works Rule 35 covers this).

(9)

Proper labelling and antidote and suggestions to doctor for treatment (This can be covered by issue of a cautionary notice).

The following insecticides belong to the moderately toxic group :

Hexachlor-hexahydro-dimethauo-napathalen (aldrin).

Hexachlor-epoxy-octahydro-dimethenonphtholene (dieldrin). Arsenate of lead and calcium ; copper arsenite ; copper arsenate (paris green) and Sodiumfluor aluminat (cryelite).

They require all the general precautions as for the highly toxic group excepting that rubber boots and gloves may be dispensed with excepting when working with oil solutions.

The following belong to the slightly toxic group :

Benzene hexachloride (gammexane or B.H.C.)

Dichloro-diphenyl Dichloro ethane (D.D.D.)

Dichloro diphenyl-trichloro ethane (D.D.T.)

Tetrachloro-diphenyl ethane (T.D.E.)

General precautions are-

(1)

in the various operations, where there is derstiness use filter type respirators;

(2)

use separate work clothes, frequently laundered;

(3)

do not consume food etc., in the work-rooms;

(4)

have daily showers after work.

5. Chlorate manufacture-(a) Chlorate shall not be crystallised, ground or packed except in a room or place not used for any other purpose, the floor of which room or place shall be of cement or other smooth, impervious and incombustible material, and shall be thoroughly cleansed daily.

(b)

Wooden vessels shall not be used for the crystallisation of chlorate, or to contain crystallised or ground chlorate ; provided that this regulation shall not prohibit the packing of chlorate for sale into wooden casks or other wooden vessels.

6. Restrictions on the employment of young persons and women - (a) Persons under 18 years of age and women shall not be employed in any process in which hydro-fluoric acid fumes or ammonical vapours are given off or in any of the following operations ;

(i)

evaporation of brine in open pans;

(ii)

stoving of salt;

(iii)

work at a furnace where the treatment of zinc ores is carried on; and

(iv)

the cleaning of work-rooms where the process mentioned in (iii) is carried on.

(b)

No person under 18 years of age shall be employed in a chrome process or in a nitro or amino process in which the following materials are used or where the vapour of such materials is given off :

Carbon bisulphide, chlorides of sulphur, benzene;

Carbon tetrachloride, trichlorethiène; and

Carbon chlorine compound, or any mixture containing any of such materials.

7. Dates of employees-Every person employed-

(a)

in a process to which Rule 33 applies shall wear the protective clothing, footwear, respirators, goggles or gloves provided under Rule 33 and shall deposit overalls or suits or working clothing so provided as well as clothings put off during hours, in the places provided under Rule 34.

(b)

in a process to which Rule 35 applies shall carefully wash the hands and face before partaking of any food or leaving premises;

(c)

in any processes to which Part-II of these rules applies shall use the protective appliances supplied in respect of any process which he is engaged.

XIII

Compression of oxygen and hydrogen produced by the electrolysis of water

1. The room in which electrolyser plant is installed be separate from the plant for storing and compressing the oxygen and hydrogen and also the electric generator room.

2. [(a) The purity of oxygen and hydrogen shall be tested by a competent person at least once in every shift at following points :

(i)

in the electrolysis room;

(ii)

at the gas holder inlet ; and

(iii)

at the suction end of compressor.

(b)

The purity figures shall be entered in the register and signed by the person carrying out such tests :

Provided, however, that if the electrolyser plant is fitted with automatic recorder of purity of oxygen and hydrogen with alarm lights, it shall be sufficient if the purity of the gases is tested at the suction and of the compressor only.]

[Substituted vide Orissa Gazette Part III/17.9.1976-SRO No. 891/76/27.8.1976.]

3. The oxygen and hydrogen gas shall not be compressed, if their purity as determined under Clause (2) above falls below 98 per cent at any time.

4. In addition to the limit switch in the gas-holder, a sensitive negative pressure switch shall be provided in or adjacent to the suction main for hydrogen close to the gas holder and between the holder and the hydrogen compressor to switch off the compressor motor in the event of the gas holder being emptied to the extent as to cause vacuum.

5. The bell of any gas holder shall not be permitted to go within 30 cm. (12 in) of its lowest position when empty, and a visual and an audible warning signal shall be fitted to the gas holder to indicate that this limit is reached.

6. The water and caustic soda used for making dye shall be chemically pure within pharmaceutical limits.

7. Electrical connections at the electrolyser cells and at the electric generator terminals shall be so constructed as to preclude the possibility of wrong connections leading to the reversal of polarity and in addition an automatic device shall be provided to cut off power in the event of reversal of polarity owing to wrong connections either at the switch board or at the electric generator terminals.

8. Oxygen and hydrogen gas pipes shall be painted with distinguishing colours and in the event of leakage at the joints of the hydrogen gas pipe, the pipe after re-connection shall be purged of all air before drawing in hydrogen gas.

9. All electrical wiring and apparatus in the electrolyser room shall be of flame-proof construction or enclosed in flame-proof fitting and no naked light or flame shall be allowed to be taken either in the electrolyser room or where compression and filling of the gases is carried on and such warning notices shall be exhibited in prominent places.

10. No part of the electrolyser plant and the gas holders and compressor shall be subjected to welding, brazing soldering or cutting until steps have been taken to remove any explosive substance from that part and render the part safe for such operations and after the completion of such operations no explosive substance shall be allowed to enter that part until the metal has cooled sufficiently to prevent risk of explosion.

11. No work or operation, repair or maintenance shall be undertaken except under the direct supervision of a person who, by his training, experience and knowledge of the necessary precautions against risk of explosion is competent to supervise such work. No electric generator after erection or repair shall be switched on to the electrolyzers unless the same is certified by the competent persons under whose direct supervision erection or repairs are carried on to be in a safe condition and the terminals have been checked for the polarity as required by Rule 7.

12. Every part of the electrolyser plant and the gas holders and compressor shall have a regular schedule of overhaul and checking and every defect noticed shall be rectified forthwith.

[Schedule XIV]

[Substituted vide Orissa Gazette Extraordinary No 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

Handling and processing of Asbestos, manufacture of any article of Asbestos and any other processes of manufacture or otherwise in which Asbestos is used in any form

1. Application-This Schedule shall apply to all factories or parts of factories in which any of the following processes is carried on-

- (a) breaking, crushing, disintegrating, opening, grinding, mixing or selving of asbestos and any other processes involving handling and manipulation of asbestos incidental thereto;
- (b) all processes in the manufacture of asbestos textiles including preparatory and finishing processes; .
- (c) making of insulation slabs or sections, composed wholly or partly of asbestos, and processes incidental thereto;
- (d) making of repairing of insulating mattresses, composed wholly or partly of asbestos, and processes incidental thereto;
- (e) manufacture of asbestos cardboard and paper;
- (f) manufacture of asbestos cement goods;
- (g) application of asbestos by spray method;
- (h) sawing, grinding, turning, abrading and polishing in dry state of articles composed wholly or partly of asbestos;
- (i) cleaning of any room, vessel, chamber, fixture or appliance for the collection of asbestos dust; and
- (j) any other processes in which asbestos dust is given off into the work environment.

2. Definitions-For the purpose of this Schedule-

- (a) "asbestos" means any fibrous silicate mineral and any admixture containing actionlite, amosite, anthophyllite, dhrysolite, crocidolite tremolite or any mixture thereof, whether crude, crushed or opened;
- (b) "asbestos textiles" means yarn or cloth composed of asbestos or asbestos mixed with any other material;
- (c) "approved" means approved for the time being by the Chief Inspector;
- (d) "breathing apparatus" means a helmet or face piece with necessary connection by means of which a person using it breathes air free from dust, or any other approved apparatus;
- (e) "efficient exhaust draught" means localised ventilation by mechanical means for the removal of dust so as to prevent dust from escaping into air of any place in which work is carried on. No draught shall be deemed to be efficient which fails to control dust produced at the point where such dust originates;
- (f) "preparing" means crushing, disintegrating, and any other processes in or incidental to opening, of asbestos;
- (g) "protective clothing" means overalls and head covering, which (in either case) will, when worn, exclude asbestos dust.

3. Tools and equipment-Any tools or equipment used in processes to which this Schedule applies shall be such that they do not create asbestos dust above the permissible limit or are equipped with efficient exhaust draught.

4. Exhaust draught-(1) An efficient exhaust draught shall be provided and maintained to control dust from the following processes and machines-

- (a)

manufacture and conveying machinery, namely ;

(i)

preparing, grinding or dry mixing machines;

(ii)

carding, card waste and ring spinning machines, and looms;

(iii)

machines or other plant bed with asbestos; and

(iv)

machines used for the sawing, grinding, turning, drilling abrading or polishing in the dry state, of articles composed wholly or partly of asbestos;

(b)

cleaning and grinding of the cylinders or other parts of a carding machine;

(c)

chambers, hoppers or other structures into which loose asbestos is delivered or passes;

(d)

work-benches for asbestos waste sorting or for other manipulation

(e)

work places at which the filling or emptying of sacks, skips or other portable containers, weighing or other process incidental thereto which is effected by hand, is carried on;

(f)

sack cleaning machines;

(g)

mixing and blending of asbestos by hand; and

(h)

any other process in which dust is given off into the work environment.

(2)

Exhaust ventilation equipment provided in accordance with sub-paragraph (1) shall, while any work of maintenance or repair to the machinery, apparatus or other plant or equipment in connection with which it is provided is being carried on, be kept in use so as to produce an exhaust draught which prevents the entry of asbestos dust into the air of any work place.

(3)

Arrangements shall be made to prevent asbestos dust discharged from exhaust apparatus being drawn into the air of any work-room.

(4)

The asbestos bearing dust removed from any work-room by the exhaust system shall be collected in suitable receptacles or filter bags which shall be isolated from all work areas.

5. Testing and examination of ventilating systems-(1) All ventilating systems used for the purpose of extracting or suppressing dust as required by this Schedule shall be examined and inspected once every week by a responsible person. It shall be thoroughly examined and tested by a competent person once in every period of twelve months. Any defects found by such examinations or test shall be rectified forthwith.

(2)

A register containing particulars of such examination and tests and the state of the plant and the repairs or alterations, if any, found to be necessary shall be kept and shall be available for inspection by an Inspector.

6. Segregation in case of certain process-Mixing or blending by the hand of asbestos or making or repairing of insulating mattresses composed wholly or partly of asbestos shall not be carried on in any room in which any other work is done.

7. Storage and distribution of loose asbestos-(1) All loose asbestos shall, while not in use be kept in suitable closed receptacles which prevent the escape of asbestos dust therefrom and such asbestos shall not be distributed within a factory except in such receptacles or in a totally enclosed system of conveyance.

8. Asbestos sacks-(1) All sacks used as receptacles for the purpose of transport of asbestos within the factory shall be constructed of impermeable materials and shall be kept in good repair.

(2)

A sack which has contained asbestos shall not be cleaned by hand beating but by a machine complying with paragraph 3.

9. Maintenance of floors and work places-(1) In every room in which any of the requirements of this Schedule apply-

(a)

the floors, work-benches, machinery and plant shall be kept in a clean state and free from asbestos debris and suitable arrangements shall be made for the storage of asbestos not immediately required for use; and

(b)

the floors shall be kept free from any materials, plant or other articles not immediately required for the work carried on in the room, which would obstruct the proper cleaning of the floor.

(2)

The cleaning as mentioned in Sub-rule (1) shall, so far as is practicable, be carried out by means of vacuum cleaning equipment so designed and constructed and so used that, asbestos dust neither escapes nor is discharged into the air of any work place.

(3)

When the cleaning is done by any method other than that mentioned in sub-paragraph (2), the persons doing cleaning work and any other person employed in that room shall be provided with respiratory protective equipment and protective clothing.

(4)

The vacuum cleaning equipment used in accordance with provisions of sub-paragraph (2), shall be properly maintained and after each cleaning operation, its surfaces kept in clean state and free from asbestos waste and dust.

(5)

Asbestos waste shall not be permitted to remain on the floor or other surfaces at the work place at the end of the working shift and shall be transferred without delay to suitable receptacles. Any spillage of asbestos waste occurring during the course of the work at any time shall be removed and transferred to the receptacles maintained for the purpose without delay.

10. Breathing apparatus and protective clothing-(I) An approved breathing apparatus and protective clothing shall be provided and maintained in good conditions for use of every person employed -

(a)

In chambers containing loose asbestos;

(b)

in cleaning, dust settling or filtering chambers or apparatus;

(c)

in cleaning the cylinders, including the doffer cylinders, or other parts of a carding machine by means of hand-strickles; and

(d)

in filling, beating, or levelling in the manufacture or repair of insulating mattresses; and

(e)

in any other operation or circumstance in which it is impracticable to adopt technical means to control asbestos dust in the work environment within the permissible limit.

(2)

Suitable accommodation in conveniently accessible position shall be provided for the use of persons, when putting on or taking off breathing apparatus and protective clothing provided in accordance with this rule and for the storage of such apparatus and clothing when, not in use.

(3)

All breathing apparatus and protective clothing when not in use shall be stored in the accommodation provided in accordance with sub-paragraph (2).

(4)

All protective clothing in use shall be de-dusted under an efficient exhaust draught or by vacuum cleaning and shall be washed at suitable intervals. The cleaning schedule and procedure shall be such as to ensure the efficiency, in protecting the wearer.

(5)

All breathing apparatus shall be cleaned and disinfected at suitable intervals and thoroughly inspected once every month by a responsible person.

(6)

A record of the cleaning and maintenance and of the condition of the breathing apparatus shall be maintained in a register provided for that purpose which shall be readily available for inspection by an Inspector.

(7)

No person shall be employed to perform any work specified in sub-paragraph (1) for which breathing apparatus is necessary to be provided under that sub-paragraph unless he has been fully instructed in the proper use of that equipment.

(8)

No breathing apparatus provided in pursuance of sub-paragraph (1) which has been worn by a person shall be worn by another person, unless it has been thoroughly cleaned and disinfected since last being worn and the person has been fully instructed in the proper use of that equipment.

11. Separate accommodation for personal clothing-A separate accommodation shall be provided in a conveniently accessible/position for all persons employed in operations to which this Schedule applies for storing of personal clothing. This shall be separated from the accommodation provided under sub-paragraph (2) of paragraph 10 to prevent contamination of personal clothing.

12. Washing and bathing facilities-(1) There shall be provided and maintained in a clean state and in good repair for the use of all workers employed in the processes covered by the Schedule, adequate washing and bathing places having a constant supply of water under cover at the rate of one such place for every fifteen persons employed.

(2)

The washing places shall have standpipes placed at intervals of not less than one metre.

(3)

Not less than one half of the total number of washing places shall be provided with bath rooms.

(4)

Sufficient supply of clean towels made of suitable material shall be provided :

Provided that such towels shall be supplied individually for each worker if so ordered by the Inspector.

(5)

Sufficient supply of soap and nail brushes shall be provided.

13. Mess room-(1) There shall be provided and maintained for the use of all workers employed in the factory covered by this Schedule, remaining on the premises during the rest intervals, a suitable mess room which shall be furnished with-

(a)

sufficient tables and benches with back rest; and

(b)

adequate means for warming food.

(2)

The mess room shall be placed under the charge of a responsible person and shall be kept clean.

14. Prohibition of employment of young persons-No young person shall be employed in any of the process covered by this Schedule.

15. Prohibition relating to smoking-No person shall smoke in any area where processes covered by this Schedule are carried on. A notice in the language understood by majority of the workers shall be posted in the plant prohibiting smoking at such areas.

16. Cautionary notices-(1) Cautionary notices shall be displayed at the approaches and along the perimeter of every asbestos processing area to warn all persons regarding-

(a)

hazards to health from asbestos dust;

(b)

need to use appropriate protective equipment;

(c)

prohibition of entry to unauthorised persons, or authorised person but without protective equipment.

(2)

Such notices shall be in the language understood by majority of the workers.

17. Air monitoring-To ensure the effectiveness of the control measures, monitoring of asbestos fibre in air shall be carried out once at least in every shift and the record of the results so obtained shall be entered in a register specially maintained for the purpose.

18. Medical facilities and records of medical examinations and tests-(1) The occupier of every factory or part of the factory to which this Schedule applies, shall-

(a)

employ a qualified medical practitioner for medical surveillance of the workers covered by this Schedule whose employment shall be subject to the approval of the Chief Inspector of Factories;

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a).

(2)

The record of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief inspector of Factories, which shall be kept readily available for inspection by the Inspectors.

19. Medical examination by Certifying Surgeon - (1) Every worker employed in the processes specified in paragraph 1 shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include pulmonary function tests, tests for detecting asbestos fibres in sputum and chest X-ray. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the process referred to sub-paragraph (1) shall be re-examined by a Certifying Surgeon at least once in every twelve calendar months. Such examinations shall, wherever the Certifying Surgeon considers appropriate, include all the tests specified in sub-paragraph (1) except chest X-ray which will be carried out once in three years.

(3)

The Certifying Surgeon, after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of examination and re-examination carried out shall be entered in the certificate and the certificate shall be kept in the custody of the manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2), including the nature and the results of the tests, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit to work in the said processes.

(6)

No person who has been found unfit to work as said in sub-paragraph (5) shall be re-employed or permitted to work in the said processes, unless the Certifying Surgeon, after further examination, again certifies him fit for employment in those processes.

20. Exemptions - If in respect of any factory, the Chief Inspector is satisfied that owing to the exceptional circumstances or infrequency of the processes or for any other reason, all or any of the provisions of this Schedule is not necessary for protection of the workers in the factory, the Chief Inspector may, by a certificate in writing, which he may at his discretion revoke at any time, exempt such factory from all or any of such provisions subject to such conditions, if any, as he may specify therein.

[Schedule XV]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

Manipulation of stone or any other material containing free silica

1. Application-This Schedule shall apply to all factories or parts of factories in which manipulation of stone or any other

material containing free silica is carried on.

2. Definitions-For the purpose of this Schedule-

(a)

"manipulation" means crushing, breaking, chipping, dressing, grinding, sieving, mixing grading or handling of stone or any other material containing free silica or any other operation involving such stone or material;

(b)

"stone or any other material containing free silica" means a stone or any other solid material containing not less than five per cent by weight of free silica.

3. Precautions in manipulation-No manipulation shall be carried out in a factory or part of a factory unless one or more of the following measures, namely: .

(a)

damping the stone or other material being, processed,

(b)

providing water spray,

(c)

enclosing the process,

(d)

isolating the process, and

(e)

providing localised exhaust ventilation,

(f)

are adopted so as to effectively control the dust in any place in the factory where any person is employed at a level equal to or below the maximum permissible level for silica dust as laid down in Table 2 appended to Rule 17-B :

(g)

Provided that such measures as above said are not necessary if the process or operation itself is such that the level of dust created and prevailing does not exceed the permissible level referred to.

4. Maintenance of floors-(1) All floors or places where fine dust is likely to settle on and whereon any person has to work or pass shall be of impervious material and maintained in such condition that they can be thoroughly cleaned by a moist method or any other method which would prevent dust being airborne in the process of cleaning.

(2)

The surface of every floor of every work-room or place where any work is carried on or where any person has to pass during the course of his work, shall be cleaned to dedust once at least during each shift after being sprayed With water or by any other suitable method so as to prevent dust being airborne in the process of cleaning.

5. Prohibition relating to young persons-No young person shall be employed or permitted to work in any of the operations involving manipulation or at any place where such operations are carried on.

6. Medical facilities and records of examinations and tests-(1) The occupier of every factory to which this Schedule applies, shall-

(a)

employ a qualified medical officer for medical surveillance of the workers employed therein whose employment shall be subject to the approval of the Chief Inspector of Factories; and

(b)

provide to the said medical officer all the necessary facilities for the purpose referred to in Clause (1).

(2)

The record of medical examination and appropriate tests carried out by the said medical officer shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for inspection by the Inspector.

7. Medical examination by Certifying Surgeon-(1) Every worker employed in the processes specified in paragraph 1, shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such medical examination shall include pulmonary function tests and chest X-ray. No worker shall be allowed to work after fifteen days, unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the said processes shall be re-examined by a Certifying Surgeon at least once in every twelve months. Such examination shall, wherever the Certifying Surgeon considers appropriate, include all the tests as specified in sub-paragraph (1) except chest X-ray which will be once in three years.

(3)

The Certifying Surgeon, after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of re-examination carried out shall be entered in the Certificate and the Certificate shall be kept in the custody of the Manager of the Factory. The record of each examination carried out under sub-paragraphs (1) and (2), including the nature and the results of the tests, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit for work in the said processes.

(6)

No person who has been found unfit to work as said in Sub-paragraph (5), shall be re-employed or permitted to work in the said processes, unless the Certifying Surgeon, after further examination, again certifies him fit for employment in those processes.

8. Exemptions - If in respect of any factory, the Chief Inspector is satisfied that owing to the exceptional circumstances or the frequency of the processes or for any other reason, all or any of the provisions of this Schedule is not necessary for protection of the workers in the factory, the Chief Inspector may, by a certificate in writing, which he may in his discretion revoke at any time, exempt such factory from all or any of such provisions subject to such conditions, if any, as he may specify therein.

[Schedule XVI]

[Inserted vide Orissa Gazette Part III of 1970-SRO No. 88/70/9.2.1970.]

Handling and manipulation of corrosive substances

1. . Definitions-For the purpose of this Schedule-

(a)

"Corrosive operation" means an operation of manufacturing, storing, handling, processing, packing or using any corrosive substance in a factory.

(b)

"Corrosive substance" includes sulphuric acid, nitric acid, hydrochloric acid, hydrofluoric acid, carboric acid, phosphoric acid, liquid chlorine, liquid bromine, ammonia, sodium hydroxide and potassium hydroxide and a mixture thereof and any other substance, which the State Government by notification in the Official Gazette specify to be a corrosive substance.

2. Flooring-The floor of every work-room of a factory, in which corrosive operation is carried on, shall be made of impervious, corrosive and fire resistant material and shall be so constructed as to prevent collection of any corrosive substance. The surface of such flooring shall be smooth and cleaned as often as necessary and maintained in a sound condition.

3. Protective equipment-(a) The occupier shall provide for the use of all persons, employed in any corrosive operation, suitable protective wear for hands and feet, suitable aprons, face shields chemical safety goggles and respirators. The equipments shall be maintained in good order and shall be kept clean and hygienic condition by suitably treating to get rid of the ill effects of any absorbed chemicals and by disinfecting. The occupier shall also provide suitable protective creams and other preparations, wherever necessary.

(b)

The protective equipment and preparations provided shall be used by the persons employed in any corrosive operations.

4. Water facilities-Where any corrosive operation is carried on, there shall be provided, as close to the place of such operation as possible, a source of clean water, at a height of 210 cms. (7 Ft.), from a pipe of 1.25 cm. (½ inch) diameter and fitted with a quick acting valve, so that in case of injury to the workers by any corrosive substance, the injured part

can be thoroughly flooded with water. Whenever necessary in order to ensure continuous water-supply, a storage tank having a minimum length, breadth and height of 210 cms., 120 cms. and 60 cms. respectively or such dimensions, as are approved by the Chief Inspector shall be provided as the source of clean water.

5. Cautionary notice-A cautionary notice in the following form and printed in the language which majority of the workers employed understand shall be displaced prominently, close to the place, where any of the operations mentioned in paragraph 2 above, is carried out and where it can be easily and conveniently read by the workers. If any worker is illiterate, effective steps shall be taken to explain, carefully to him the contents of the notice so displayed.

Cautionary Notice

Danger

Corrosive substances cause severe burns and vapours thereof, may be extremely hazardous. In case of contact, immediately flood the part affected with plenty of water for at least 15 minutes.

6. Transport-(a) Corrosive substances shall not be filled, moved, or carried except in containers and when they are to be transported, they shall be included in crates of sound construction and sufficient strength.

(b)

A container with a capacity of (11.5 litres), 2½ gallons or more of a corrosive substance, shall be placed in a receptacle or crate, and then carried by more than one person at a height below the waist line, unless a suitable rubber wheeled truck is used for the purpose.

(c)

Containers for corrosive substances shall be plainly levelled.

7. Device for handling corrosives-(a) Suitable tilting or lifting device shall be used for emptying jars, carboys and other containers of corrosive.

(b)

Corrosive substance shall not be handled by bare hands but by means of a suitable scoop or other device.

8. Opening of valves-Valves fitted to containers holding a corrosive substance shall be opened with a great care if they do not work freely they shall not be forced open. They shall be opened by a worker suitably trained for the purpose.

9. Cleaning tanks, stills, etc.-(a) In cleaning out or removing residues from stills or other large chambers used for holding any corrosive substance, suitable implements made of wood or other materials shall be used to prevent production of arseniuretted hydrogen (Arsine).

(b)

Whenever it is necessary, for the purpose of cleaning or other maintenance work for any worker to enter chamber, tank, vat, pit or other confined space, where a corrosive substance had been stored, all possible precautions, required under Section 36 of the Factories Act, 1948 shall be taken to ensure the workers' safety.

(c)

Wherever possible, before repairs are undertaken to any part of equipment in which a corrosive substance was handled such equipment or part thereof shall be freed of any adhering corrosive substance by adopting suitable methods.

10. Storage-(a) Corrosive substances shall not be stored in the same room with other chemicals such as turpentine, carbides, metallic powders and combustible materials, the accidental mixing with which may cause a reaction which is either violent or gives rise to toxic fumes and gases.

(b)

Pumping or filling overhead tanks, receptacles, vats or other containers for storing corrosive substances, shall be so-arranged, that there is no possibility of any corrosive substance overflowing and causing injury to any person.

(c)

Every container having a capacity of twenty litres or more and every pipeline, valves, and fittings used for storing or carrying corrosive substances shall be thoroughly examined every year for finding out any defects and such defects shall be removed forthwith. A register shall be maintained of every such examination made and shall be produced before the Inspector, whenever required.

11. Fire extinguishers and fire-fighting equipment-An adequate number of suitable type of fire extinguishers or other fire-fighting equipment depending on the nature of chemicals stored, shall be provided. Such extinguishers or other equipment shall be regularly tested and refilled. Clear instructions as to how the extinguishers or other equipment should

be used, printed in the language which majority of the workers employed understand, shall be affixed near each extinguisher or other equipment.

12. Exemption-If in respect of any factory, on an application made by the Manager, the Chief Inspector is satisfied, that owing to the exceptional circumstances, or the infrequency of the process for any other reasons to be recorded by him in writing all or any of the provisions of this Schedule, are necessary for the protection of the persons employed therein, he may, by a certificate in writing which he may at any time revoke, exempt the factory from such of the provisions and subject to such conditions, as he may specify therein.

[Schedule XVII]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

Solvent extraction plants

1. Definitions-(a) "Solvent extraction plant" means the plant in which the process of extracting vegetable oils from oil-cakes by the use of solvents is carried on;

(b)

"solvent" means an inflammable liquid such as pentene, hexene and heptane used for the recovery of vegetable oils;

(c)

"flame-proof" enclosure as applied to electrical machinery or apparatus means an enclosure that will withstand when covers or other process doors, are properly secured, an internal explosion of the flammable gas or vapour which may enter or which may originate inside the enclosure without suffering damage and without communicating internal inflammation or explosion to the external flammable gas or vapour;

(d)

"competent person" for the purpose of this Schedule shall be at least a Member of the Institution of Engineers (India) or an Associate Member of the said Institution with ten years' experience in a responsible position as may be approved by the Chief Inspector ;

Provided that a Graduate in Mechanical Engineering or Chemical Technology with specialised knowledge of oils and fats and with a minimum experience of five years in a solvent extraction plant shall also be considered to be a competent person :

Provided further that the State Government may accept any other qualifications if in its opinion they are equivalent to the qualifications aforesaid.

(2)

Location and layout-(a) No solvent extraction plant shall be permitted to be constructed or extended to within a distance of thirty metres from the nearest residential locality.

(b)

A 1.5 meter high continuous wire fencing shall be provided around the solvent extraction plant up to a minimum distance of fifteen metres from the plant.

(c)

No person shall be allowed to carry any matches or an open flame or fire inside the area bound by the fencing.

(d)

Boiler house and other buildings where open flame processes are carried on shall be located at least thirty metres' away from the solvent extraction plant.

(e)

If godowns and preparatory processes are at less than three metres' distance from the solvent extraction plant, it shall be at least fifteen metres' distance from the plant and a continuous barrier wall of non-combustible material of 1.5 metres' high shall be erected at a distance of not less than fifteen metres' from the solvent extraction plant so that it extends to (at least thirty metres' of vapour travel around its ends from the plants to) the possible sources of ignition.

3. Electrical installations-(a) All electrical metres' and wiring and other electrical equipments installed or housed in a solvent extraction plant shall be of flame proof construction.

(b)

All metal parts of the plant and building including various tanks and containers where solvents are stored or are present and all parts of electrical equipment not required to be energised shall be properly bounded together and connected to earth so as to avoid accidental rise in the electrical potential of such parts above the earth potential.

(4)

Restriction on smoking - Smoking shall be strictly prohibited with fifteen metres' distance from solvent extraction plant. For this purpose "No smoking" signs shall be permanently displayed in the area.

(5)

Precautions against friction-(a) All coils and equipments including ladders, chains and other lifting tackles required to be used in solvent extraction plants shall be of non-sparking type.

(b)

No machinery or equipment in a solvent extraction plants shall be belt-driven unless the belt used is of such type that it does not permit accumulation of static electricity to a dangerous level.

(c)

No person shall be allowed to enter and work in a solvent extraction plant by wearing clothes made of nylon or such other fibre that can generate static electrical charge, or wearing footwear which is likely to cause sparks by friction.

6. Fire-fighting apparatus - (a) Adequate number of portable fire extinguishers suitable for use against flammable liquid fires shall be provided in the solvent extraction plants.

(b)

An automatic water spray sprinkler system on a wet pipe or open head deluge system with sufficient supply of storage water shall be provided over solvent extraction plant and throughout the building housing such plant.

7. Precautions against power failure-Provision shall be made or the automatic cutting off of steam in the event of power failure and also for emergency overhead water-supply for feeding water by gravity to condensers which shall come into play automatically with the power failure.

8. Magnetic separators-Oil-cake shall be fed to the extractor by a conveyor through a hopper and a magnetic separator shall be provided to remove any pieces of iron during its transfer.

9. Venting-(a) Tanks containing solvents shall be protected with emergency venting to relieve excessive internal pressure in the event of fire.

(b)

All emergency relief vents shall terminate at least six metres' above the ground and be so located that vapours will not re-enter the building in which solvent extraction plant is located.

10. Waste water - Processed waste water shall be passed through a flash evaporator to remove any solvent before it is discharged into sump.

11. Ventilation-This solvent extraction plant shall be well ventilated and if the plant is housed in a building, the building shall be provided with mechanical ventilation with provision for at least six air changes per hour.

12. House keeping-(a) Solvents shall not be stored in an area covered by solvent extraction plant except in small quantities which shall be stored in approved "safety cans."

(b)

Waste materials such as, oil rags, other wastes and absorbants used to wipe off solvent, and paints and oils shall be deposited in approved containers and removed from the premises at least once a day.

(c)

Space within the solvent extraction plant and within fifteen metres' from the plant shall be kept free from any combustible materials and any spills of oil or solvent, shall be cleaned up immediately.

13. Examination and repairs-(a) The solvent extraction plant shall be examined by a competent person to determine any weakness of corrosion and wear once in every twelve months. Report of such examination shall be supplied to the Inspector with his observation as to whether or not the plant is in safe condition to work.

(b)

No repairs shall be carried out to the machinery or plant except under the direct supervision of the competent person.

(c)

Facility shall be provided for purging the plant with inert gas or steam before opening for cleaning or repairs and before introducing solvent after repairs.

14. Operating Personnel-The operation of the plant and machinery in the solvent extraction plant shall be in the charge of such duly qualified and trained person as are certified by the competent person to be fit for the purpose and no other person shall be allowed to operate the plant and machinery.

15. Employment of women and young persons-No woman or young person shall be employed in the solvent extraction plant.

16. Vapour detection-A suitable type of combustible gas indicator shall be provided and maintained in good working order and schedule of routine sampling of atmosphere at various locations as approved by the Chief Inspector shall be drawn out and entered in a register maintained for the purpose.

17. Exemption - If in respect of any factory, the Chief Inspector is satisfied that owing to the exceptional circumstances or infrequency of the process or for any other reason, all or any of the provisions of this Schedule is not necessary for the protection of workers in the factory, the Chief Inspector may, by a certificate in writing which he may, at his discretion, revoke at any time exempt such factory from all or any of such provisions subject to such conditions, if any, as he may specify therein.]

[Schedule XVIII]

[Inserted vide Orissa Gazette Part III No. 4/1983-SRO No. 41/83/6.1.1983.]

Manufacture or manipulation of carcinogenic dye intermediates

1. Application-This Schedule shall apply in respect of all factories or any part thereof where processes in which the substances mentioned in paragraphs 3 and 4 are formed, manufactured, handled or used and the process incidental thereto in the course of which these substances are formed are carried on. The processes indicated in this paragraph shall be referred to as "the said processes" and such a reference shall mean any or all the processes described in this paragraph.

2. Definitions-For the purpose of this Schedule the following definitions shall apply unless the context otherwise requires-

(a)
"controlled substances" means chemical substances mentioned in paragraph 4 of this Schedule;

(b)
"first employment" means first employment in the said process and also re-employment in such process following cessation of employment for a continuous period exceeding three calendar months;

(c)
"efficient exhaust draught" means localised ventilation effected by mechanical means for the removal of gas, vapour, dust or fume so as to prevent them from escaping into the air of any place in which work is carried on. No draught shall be deemed to be efficient which fails to remove smoke generated at the point where such gas, vapour, fume or dust originates;

(d)
"prohibited substances" means chemical substances mentioned in paragraph 3 of this Schedule.

3. Prohibited substances - For the purpose of this Schedule the following chemical substances shall be classified as prohibited substances except when these substances are present or are formed as by-product of a chemical reaction in a total concentration not exceeding one per cent-

(a)
Beta naphthylamine and its salts;

(b)
Benzidine and its salts;

(c)
4-Amino diphenyle and its salts;

(d)
4-Nitro diphenyl and its salts; and

(e)
any substance containing any of these compounds.

4. Controlled substances-For the purpose of this Schedule the following chemical substances shall be classified as "controlled substances" ;

(a)
Alpha-naphthylamine or alpha-naphthylamine containing not more than one per cent of beta-naphthylamine either as a by-product of chemical reaction or otherwise and its salts;

(b)
Otho-tolidine and its salts;

(c)

Dianisidine add its salts;

(d)

Dichlorobenzidine and its salts;

(e)

Auramine;

(f)

Mangnata.

5. Prohibition of employment-No person shall be employed in the said processes in any factory in which any prohibited substance is formed, manufactured, processed handled or used except as exempted by the Chief Inspector as stipulate in paragraph 23.

6. Requirements for processing or handling controlled substances - (1) Wherever any of the controlled substances referred to in paragraph 4 are formed, manufactured, processed, handled or used, all practical steps shall be taken to prevent inhalation, ingestion or absorption of the said controlled substances by the workers while engaged in processing that substances and its storage or transport within the plant or in cleaning or maintenance of the concerned equipment, plant, machinery and storage areas.

(2)

As far as possible all operations shall be carried out in a totally enclosed system. Wherever such enclosure is not possible, efficient exhaust draught shall be applied at the point where the controlled substances are likely to escape into the atmosphere during the process.

(3)

The controlled substances shall be received in the factory in tightly close containers and shall be kept so except when these substances are in process or in use. The controlled substances shall leave the factory only in tightly closed containers of appropriate type. All the containers shall be plainly labelled to indicate the contents.

7. Personal protective equipment - (1) The following items of personal protective equipments shall be provided and issued to every worker employed in the said processes :

(a)

long trousers and shirts or overalls with full sleeves and head coverings. The shirt or overall shall cover the neck completely.

(b)

Rubber gun boots.

(2)

The following items of personal protective equipments shall be provided in sufficient numbers for use by workers employed in the aid processes when there is danger of injury during the performance of normal duties or in the event of emergency-

(a)

rubber hand gloves;

(b)

rubber aprons;

(c)

airline respirators or other suitable respiratory protective equipment.

(3)

It shall be the responsibility of the Manager to maintain ail items of personal protective equipments in a clean and hygienic condition and in good repair.

8. Prohibition relating to employment of women and young persons-No woman or young person shall be employed or permitted to work in any room in which the said processes are carried on.

9. Floors of work-room-The floor of every work-room in which the said processes are carried on shall be (a) smooth and impervious to water; provided that asphalt or tar shall not be used in the composition of the floor; (b) maintained in a state of good repair ; (c) with a suitable slope for easy draining and provided with gutters; and (d) thoroughly washed daily with the drain water being let into a sewer through a closed channel.

10. Disposal of empty containers-Empty containers used for holding controlled substances shall be thoroughly cleaned of their contents and treated with an inactivating agent before being discarded.

11. Manual handling-Controlled substances shall not be allowed to be mixed, filled, emptied or handled except by means of a scoop with a handle. Such scoop shall be thoroughly cleaned daily.

12. Instructions regarding risk-Every worker on his first employment in the said processes shall be fully instructed on the properties of the toxic chemicals to which he is likely to be exposed, of the dangers involved and the precautions to be taken. Workers shall also be instructed on the measures to be taken to deal with an emergency.

13. Cautionary placards-Cautionary placards in the form specified in Appendix attached to this Schedule and printed in the language of the majority of the workers employed in the said processes shall be affixed in prominent places frequented by them in the factory, where the placards can be easily and conveniently read. Arrangements shall be made by the manager to instruct periodically all such workers regarding the precautions contained in the cautionary placards.

14. [Medical facilities and records of examinations and tests-(1) The occupier of every factory to which this Schedule applies shall-

(a)

employ a qualified medical practitioner for medical surveillance of the workers employed therein whose employment shall be subject to the approval of the Chief Inspector of Factories; and

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a).

(2)

The record of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for inspection by the Inspector.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

15. Medical examination by the Certifying Surgeons-(1) Every worker employed in the said processes shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include tests for detection of methemoglobin in blood (Haematological tests). Parantrophol in urine pulmonary function tests and C. N. S. tests. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the said processes shall be re-examined by a Certifying Surgeon at least once in every six calendar months and such re-examination shall, wherever the Certifying Surgeon considers appropriate, include all the tests specified in sub-paragraph (1).

(3)

The Certifying Surgeon, after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of examination and re-examination carried out shall be entered in the Certificate and the Certificate shall be kept in the custody of the manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2), including the nature and the results of these tests, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The certificate of fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit to work in the said processes.

(6)

No person who has been found unfit to work as said in sub-paragraph (5) shall be re-employed or permitted to work in the said processes unless the Certifying Surgeon, after further examination again Certifies him fit for employment in those processes.

16. Obligations of the workers-It shall be the duty of the persons employed in the said processes to submit themselves for the medical examination including exfoliative cytology of urine by the Certifying Surgeon or the qualified medical practitioner as provided for under these rules.

17. Washing and bathing facilities-(1) The following washing and bathing facilities shall be provided and maintained in a

clean state and in good repair for the used of all workers employed in the said processes :

(a)

A wash place under cover having constant supply of water and provided with clean towels, soap and nail brushes and with at least one stand pipe for every five such workers.

(b)

56 per cent of the stand pipes provided under Clause (a) shall be located in bath rooms where both hot and cold water shall be made available during the working hours of the factory and for one hour thereafter.

(c)

The washing and bathing facilities shall be in close proximity of the area housing the said processes.

(d)

Clean towels shall be provided individually to each worker.

(e)

In addition to the taps mentioned under Clause (a) one stand pipe in which warm water is made available shall be provided on each floor.

(2)

Arrangement shall be made to wash factory uniforms and other work clothes everyday.

18. Food, drinks, etc., prohibited in work-room-No worker shall consume food, drink, pan, supari or tobacco or shall smoke in any workroom in which the said processes are carried on and no worker shall remain in any such room during intervals for meals or rest.

19. Cloak room-There shall be provided and maintained in a clean state in good repair for the use of the workers employed in the said processes (a) a cloak room with lockers having two compartments one for streets clothes and the other for work clothes ; and (b) a place separate from the locker room and the mess-room, for the storage of protective equipments provided under paragraph 7. The accommodation so provided shall be under the care of a responsible person and shall be kept clean.

20. Mess room-There shall be provided and maintained for the use of workers employed in the said processes who remain on the premises during the meal intervals a mess room which shall be furnished with tables and benches and provided with suitable means for warming food ; provided that where a canteen or other proper arrangement exists for the workers to take their meals, the requirement of a mess-room shall be dispensed with.

21. Time allowed for washing-Before the end of each shift 30 minutes shall be allowed for bathing for each worker who is employed in the said processes. Further, at least 10 minutes shall be allowed for washing before each meal in addition to the regular time allowed for meals.

22. Restriction on age of persons employed-No worker under the age of 40 years shall be engaged in the factory in the said processes for the first time after the date on which the schedule comes into force.

23. Exemptions-Prohibited substances-(1) The Chief Inspector may by certificate in writing (which he may at his discretion revoke at any time) subject to such conditions, if any, as may be specified therein, exempt any process in the course of which any of the prohibited substances is formed, processed, manufactured, handled or used, from the provisions of paragraph 5 if he is satisfied that the process is carried out in a totally enclosed and hermetically sealed system in such manner that the prohibited substance is not removed from the system except in quantities no greater than that required for the purpose of control of the processes or such purposes as is necessary to ensure that the product is free from any of the prohibited substances.

(2)

The Chief Inspector may allow the manufacture, handling or use of benzidine hydrochloride ; provided that all the processes in connection with it are carried out in a totally enclosed system in such a manner that no prohibited substance other than benzidine hydrochloride is removed therefrom except in quantities no greater than that required for the purpose of control of the processes or such purposes as is necessary to ensure that the product is free from prohibited substances and that adequate steps are taken to ensure that benzidine hydrochloride is, except while not in a totally enclosed system, kept wet with not less than one part of water to two parts of benzidine hydrochloride at all times.

24. Exemption (General)-If in respect of any factory the Chief Inspector is satisfied that owing to the exceptional circumstances or infrequency of the processes or for any other reason, all or any of the provisions of this Schedule is not necessary for the protection of the workers in the factory the Chief Inspector may by a certificate in writing (which he may at his discretion revoke at any time) exempt such factory from all or any of such provisions subject to such

conditions, if any, as he may specify therein.

Appendix

Cautionary Placard Notice

Carcinogenic dye intermediates

1. Dye intermediates which are nitro or amino derivatives or aromatic hydrocarbons are toxic. You have to handle these chemicals frequently in this factory.
2. Use the various items of protective wear to safeguard your own health.
3. Maintain scrupulous cleanliness at all time. Thoroughly wash hands and feet before taking meals. It is essential to take a bath before leaving the factory.
4. Wash off any chemical falling on your body with soap and water. If splashed with a solution on the chemical remove the contaminated clothing immediately. These chemicals are known to produce cyanosis. Contact the medical officer or appointed doctor immediately and get his advice.
5. Handle the dye intermediates only with long handled scoops, never with bare hands.
6. Alcoholic drinks should be avoided as they enhance the risk of poisoning by the chemicals.
7. Keep your food and drinks away from work place. Consuming food, drinks or tobacco in any form at the place of work is prohibited.
8. Serious effects from work with toxic chemicals may follow after many years. Great care must be taken to maintain absolute cleanliness of body, clothes, machinery and equipment.

XIX

Manufacture or manipulation of manganese and its compounds

1. Definitions-For the purpose of this Schedule-

(a)

"Manganese process" means processing, manufacture or manipulation of manganese or any compound of manganese or any ore or any mixture containing manganese.

(b)

"First employment" means first employment in any manganese process and includes also re-employment in any manganese process following any cessation of employment for a continuous period exceeding three calendar months.

(c)

"Manipulation" means mixing, blending, filling, emptying, grinding, sieving, drying, packing, sweeping or otherwise handling of manganese, or a compound of manganese or an ore or mixture containing manganese.

(d)

"Efficient exhaust ventilation" means localised ventilation effected by mechanical means for the removal of dust or fume or mist at its source of origin so as to prevent it from escaping into the atmosphere of any place where any work is carried on. No draught shall be deemed to be efficient which fails to remove the dust or fume or mist at the point where it is generated and fails to prevent it from escaping into and spreading into the atmosphere of a work place.

2. Application-This Schedule shall apply to every factory in which or in any part of which any manganese process is carried on.

3. Exemption-If in respect of any factory, the Chief Inspector is satisfied that owing to any exceptional 'circumstances, or frequency of the process or for any other reasons, application of all or any of the provisions of this Schedule is not necessary for the protection of the persons employed in such factory, he may by an order in writing which he may at his discretion revoke, exempt such factory from all or any of the provisions of such condition; and for such period as he may specify in the said order.

4. Isolation of a process-Every manganese process which may give rise to dust, vapour or mist containing manganese shall be carried on in totally enclosed system or otherwise effectively isolated from other processes so that other plants and processes and other parts of the factory and persons employed on other processes may not be affected by the same.

5. Ventilation of process-No process in which any dust, vapour or mist containing manganese is generated shall be carried out except under an efficient exhaust ventilation which shall be applied as near to the point of generation as practicable.

6. [Medical facilities and records of examination and tests-(1) The occupier of every factory to which this Schedule applies shall-

(a)

employ a qualified medical practitioner for medical surveillance of the workers employed therein whose employment shall be subject to the approval of the Chief Inspector of Factories ; and

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a).

(2)

the record of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories which shall be kept readily available for inspection by the Inspector.

6.

-A. Medical examination by Certifying Surgeon-(1) Every worker employed in any manganese process shall be medically examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include tests for detection of serum calcium, serum phosphate and manganese in blood and urine and also include steadiness tests and other neuro-muscular co-ordination tests. No worker shall be allowed to work after fifteen days of his first employment in the factory, unless certified for such employment by the Certifying Surgeon.

(2)

Every worker employed in a manganese process shall be re-examined by a Certifying Surgeon at least once in every three calendar months and such examination shall, wherever the Certifying Surgeon considers appropriate, include all the tests in Sub-paragraph (1).

(3)

The Certifying Surgeon, after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of examination and re-examination carried out shall be entered in the Certificate and the Certificate shall be kept in the custody of the Manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2), including the nature and the results of these testes, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that the worker is no longer fit for employment in the said process on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said certificate and health register, the entry of his findings in those documents shall also include the period for which he considers that the said person is unfit to work in the said process.

(6)

No person who has been found unfit to work as said in sub-paragraph (5) shall be re-employed or permitted to work in the said process, unless the Certifying Surgeon, after further examination, again certifies him fit for employment in those processes.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

7. Personal protective equipment-(1) The occupier of the factory shall provide and maintain in good and clean condition suitable overalls and head coverings for all persons employed in any manganese process and such overalls and head coverings shall be worn by the persons while working on a manganese process.

(2)

The occupier of the factory shall provide suitable respiratory protective equipment for use by workers in emergency to prevent inhalation of dust fumes or mists. Sufficient number of complete sets of such equipment shall always be kept near the work place and the same shall be properly maintained and kept always in a condition to be used readily.

(3)

The occupier shall provide and maintain for the use of all persons employed suitable accommodation for the storage and make adequate arrangements for cleaning and maintenance of personal protective equipments.

8. Prohibition relating to women and young persons-No woman or young person shall be employed or permitted to work in any manganese process.

9. Food, drinks prohibited in the work-rooms-No food, drinks, pan and supari or tobacco shall be allowed to be brought into or consumed by any worker in any work-room in which any manganese process is carried on.

10. Mess-room-There shall provided and maintained for the use of the persons employed in a manganese process a suitable mess-room which shall be furnished with sufficient tables and benches and adequate means for warming of food. The mess-room shall be placed under the charge of a responsible person and shall be kept clean provided that where a canteen or other proper arrangements exist for the workers to take their meals, the requirements of a mess-room shall be dispensed with.

11. Washing facilities-There shall be provided and maintained in a clean state and in good condition, for the use of persons employed on manganese process a wash place under cover with either-

(1)

a trough with a smooth impervious surface fitted with a waste pipe without plug. The trough shall be of sufficient length to allow at least sixty centimetres for every ten such persons employed at any one time and having a constant supply of water from taps or jets above the trough at intervals of not more than 60 centimetres or at least one wash basin for every five such persons employed at any one time, fitted with a waste pipe and plug and having a constant supply of water; and

(2)

sufficient supply of rope or other suitable cleaning material and nail brushes and clean towels.

12. Cloak room-If the Chief Inspector so requires there shall be provided and maintained for the use of persons employed in manganese process a cloak room for clothing put off during working hours with adequate arrangement for drying the clothing.

13. Cautionary placard and instructions-Cautionary notices in the following form and printed in the language of the majority of the workers employed shall be affixed in prominent places in the factory where they can be easily and conveniently read by the workers and arrangement shall be made by the occupier to instruct periodically all workers employed in a manganese process regarding the health hazards connected with their duties and the best preventive measure and methods to protect themselves. The notices shall always be maintained in a legible condition.

Cautionary Notice

Manganese and manganese compound

1. Dust, fumes and mists of manganese and compounds are toxic when inhaled or when ingested.
2. Do not consume food or drink near the work place.
3. Take good wash before taking meals.
4. Keep the working area clean.
5. Use the protective clothings and equipments provided.
6. When required to work in situations where dusts, fumes or mists are likely to be inhaled, use respiratory protective equipment provided for the purpose.
7. If you get severe headaches, prolonged sleeplessness or abnormal sensation on the body report to the manager who would made arrangements for your examination and treatment.

XX

Manufacture, handling and usage of benzene and substances containing benzene

1. This Schedule shall apply in respect of factories or parts thereof in which benzene or substances containing benzene are manufactured, handled, or used.

2. Definitions-Fox the purpose of this Schedule-

(a)

"substances containing benzene" means substances wherein benzene content exceed 1 per cent by volume;

(b)

"substitute" means a chemical with his harmless or less harmful than benzene and can be used in place of benzene;

(c)

"enclosed system" means a system which will not allow escape of benzene vapours to working atmosphere;

(d)

"efficient exhaust draught" means localised ventilation effected by mechanical means for the removal of gases, vapours and dust or fumes so as to prevent them from escaping into the air of any work-room. No draught shall be deemed to be efficient if it fails to remove smokes generated at the point where such gases, vapours fumes, or dusts originate.

3. Prohibition and substitution-(a) Use of benzene and substances containing benzene is prohibited in the following process :

(1)

Manufacture of varnishes, paints and thinners;

(2)

Cleaning and greasing operations.

(b)

Benzene or substances containing benzene shall not be used as a solvent or dilute unless the process in which it is used is carried on in an enclosed system or unless the process is carried on in a manner which is considered equally safe as if it were carried out in an enclosed system.

(c)

Where suitable substitutes are available they shall be used instead of benzene or substances containing benzene. This provision, however, shall not apply to the following processes :

(1)

Production of benzene;

(2)

Process where benzene is used for chemical synthesis;

(3)

Motor spirits (used and fuel).

(d)

The Chief Inspector may subject to confirmation by the State Government permit exemption from the percentage laid down in Clause 2 (a) and also from the provisions of Sub-clause (c) temporarily under conditions and within limits of time to be determined after consultation with the employers and workers concerned.

4. Protection against inhalation-(a) The process involving the use of benzene or substances containing benzene shall as far as practicable be carried out in an enclosed system.

(b)

Where however it is not practicable to carry out the process in an enclosed system the work-room in which benzene or substances containing benzene are used be equipped with an efficient exhaust draught or other means for removal of benzene vapours to prevent their escape into the air of the work-room so that the concentration of benzene in the air does not exceed 25 parts per million by volume or 80 mg/m.

(c)

Air analysers for the measurement of concentration of benzene vapours in air shall be carried out every 8 hours or at such intervals as may be directed by the Chief Inspector at places where process involving use of benzene is carried on and the result of such analysis shall be recorded in a register specially maintained for this purpose. If the concentration of benzene vapours in air as measured by air analysis, exceeds 25 parts per million by volume or 80 mg/m. The Manager shall forthwith report the concentration to the Chief Inspector stating the reasons for such increase.

(d)

Workers who for special reasons are likely to be exposed to concentration of benzene in the air of the work-room exceeding the maximum referred to in Clause (b) shall be provided with suitable respirators or face masks. The duration of such exposure shall be limited as far as possible.

5. Measures against skin contact-(a) Workers who are likely to come in contact with liquid benzene or liquid substances containing benzene shall be provided with suitable gloves, aprons, boots and where necessary, vapour tight chemical goggles, made of material not affected by benzene or its vapours.

(b)

The protective wear referred to in Sub-clause (a) shall be maintained in good condition and inspected regularly.

6. Prohibition relating to employment of women and young persons-No woman or young person shall be employed or permitted to work in any work-room involving exposure to benzene or substance containing benzene.

7. Labelling-Every container holding benzene shall have the word "Benzene" and approved danger symbols clearly visible on it and shall also display information on benzene content, warning about toxicity and warning about inflammability of the chemical.

8. Improper use of benzene-(a) The use of benzene or substances containing benzene by workers for cleaning their hands or their work clothing shall be prohibited.

(b)

Workers shall be instructed on the possible dangers arising from such misuse.

9. Prohibition of consuming food, etc., in work-room-No worker shall be allowed to store or consume food or drink in the workroom in which benzene or substances containing benzene are manufactured, handled or used. Smoking and chewing tobacco or pan shall be prohibited in such work-rooms.

10. Instructions as regards risks-Every worker on his first employment shall be fully instructed on the properties of benzene or substances containing benzene which he has to handle and of the dangers involved. Workers shall also be instructed on the measures to be taken to deal within an emergency.

11. Cautionary notices-Cautionary notices in the form specified in Appendix and presented in the language easily read and understood by the majority of the workers shall be displayed in prominent places in the work-rooms where benzene or substances containing benzene are manufactured, handled or used.

12. Washing facilities, cloak-room and mess-room-In factories in which benzene or substances containing benzene are manufactured, handled or used the occupier shall provide and maintain in clean state and good repairs-

(a)

washing facilities under cover of the standard of at least one tap for every 10 persons having constant supply of water with soap and clean towel provided individually to each worker if so ordered by the Inspector;

(b)

cloak-room with lockers for each worker having two compartments, one for street clothing and one for work clothing;

(c)

a mess-room furnished with tables and benches with means for warming food ; provided that where a canteen or other proper arrangement exists for the workers to take their meals, the requirements of a mess-room shall be dispensed with.

13. [Medical facilities and records of examinations and tests-(1) The occupier of every factory to which this Schedule applies, shall-

(a)

employ a qualified medical practitioner for medical surveillance of the workers employed therein whose employment shall be subject to the approval of the Chief Inspector of Factories; and

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a).

(2)

The record of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for inspection by the Inspector.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

14. Medical examination by the Certifying Surgeon-(1) Every worker employed in processes mentioned in paragraph (1) shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include tests for detection of phenol in urine and determination of urinary sulphide ratio and C. N. S. and haematological tests. No worker shall be allowed to work after fifteen days of his first employment in the factory, unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the said processes shall be re-examined by a Certifying Surgeon at least once in every twelve calendar months and such examination shall, wherever the Certifying Surgeon considers appropriate, include all the tests specified in sub-paragraph (1). Further, every worker shall also be examined once in every three calendar months by the factory Medical Officer.

(3)

The Certifying Surgeon, after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of examination and re-examination carried out shall be entered in the certificate and the certificate shall be kept in the custody of the Manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2) including in the nature and the results of these tests, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit to work in the said processes.

(6)

No person who has been found unfit to work as said in sub-paragraph (5) shall be re-employed or permitted to work in the said processes unless the Certifying Surgeon, after further examination, again certifies him fit for employment in those processes.

Appendix

Cautionary Notice

(a)

Hazards-(i) Benzene and substances containing benzene are harmful; (ii) prolonged or repeated breathing of benzene vapours may result in acute or chronic poisoning; (iii) benzene can also be absorbed through skin which may cause skin and other diseases.

(b)

Preventive measures-(i) Avoid breathing of benzene vapours; (ii) avoid prolonged or repeated contact of benzene with skin; (iii) remove benzene soaked or wet clothing promptly; (iv) if at any time you are exposed to high concentration of benzene vapours and exhibit the signs and symptoms such as dizziness, difficulty in breathing, excessive excitation and losing of consciousness, immediately inform your factory manager; (v) keep all the containers of benzene closed; (vi) handle, use and process benzene and substances containing benzene carefully in order to prevent their spillage on floor; (vii) maintain good house-keeping.

(c)

Protective equipment-(i) Use respiratory protective equipment in places where benzene vapours are present in high concentration; (ii) in emergency, use self-generating oxygen mask or oxygen or air cylinder masks; (iii) wear hand gloves, aprons, goggles and gum boots to avoid contact of benzene with your skin and body parts.

(d)

The first aid measure in case of acute benzene poisoning-(i) If liquid benzene enters eyes, flush thoroughly for at least 15 minutes with clean running water and immediately secure medical attention; (ii) in case of unusual exposure to benzene vapour call a physician immediately. Until he arrives do the following :

If the exposed person is conscious-

(a)

move him to fresh air in open;

(b)

lay down without pillow and keep him quiet and warm.

If the exposed person is unconscious-

(a)

lay him down preferably on the left side with head low;

(b)

remove any false teeth, chewing gum, tobacco or other foreign objects which may be in his mouth;

(c)

provide him artificial respiration in case difficulty is being experienced in breathing;

(d)

in case of shallow breathing or cyanosis (blueness of skin, lips, ears, finger nail, beds) he should be provided with medical oxygen or oxygen carbon dioxide mixture. If needed he should be given artificial respiration. Oxygen should be administered by a trained person only.

XXI

Manufacture or manipulation of dangerous pesticides

1. Application-This Schedule shall apply in respect of all factories or any part thereof in which the process of manufacture or manipulation of dangerous pesticides (hereinafter referred to as the said manufacturing process) is carried on.

2. Definitions-For the purpose of this Schedule-

(a)

"dangerous pesticides" means any product proposed or used for controlling, destroying or repelling any pest or for preventing growth or mitigating effects of such growth including any of its formulation which is considered toxic under and is covered by the Insecticides Act, 1968 and the rules made thereunder and any other produces as may be notified from time to time by the State Government;

(b)

"manipulation" includes mixing, blending, formulating, filling, emptying, packing or otherwise handling;

(c)

"efficient exhaust draught" means localised technical ventilation for removal of smoke, gas, vapour, dust, fume or mist so as to prevent them from escaping into the air of any work-room in which work is carried on. No exhaust draught shall be considered efficient if it fails to remove smoke generated at the point where such gas, fume, dust, vapour or mist originates from the process;

(d)

"first employment" shall mean first employment in any manufacturing process to which this Schedule applies and shall also include re-employment in the said manufacturing process following any cessation of employment for a continuous period exceeding three calendar months ; and

(e)

[* * *]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

3. Instruction to workers-Every worker on his first employment shall be fully instructed on the properties including dangerous properties of the chemicals handled in the said manufacturing process and the hazards involved. The employee shall also be instructed about the measures to be taken to deal with any emergency. Such instructions shall be repeated periodically,

4. Cautionary notices and placards-Cautionary notices and placards in the form specified in Appendix to this Schedule and printed in the language of the majority of the workers shall be displayed in all work places in which the said manufacturing, process is carried on so that they can be easily and conveniently read by the workers. Arrangements shall be made by the occupier and the Manager of the factory to periodically instruct the workers regarding health hazards arising in the said manufacturing process and methods of protection. Such notices shall include brief instruction regarding the periodical clinical tests required to be undertaken for protecting the health of the workers.

5. Prohibition relating to employment of women or young persons-No woman or young person shall be employed or permitted to work in any room in which the said manufacturing process is carried on or in any room in which dangerous pesticide is stored.

6. Food, drinks and smoking prohibited-(1) No food, drink, tobacco, pan or supari shall be brought into or consumed by any worker in any work-room in which the said manufacturing process in carried out.

(2)

Smoking shall be prohibited in any work-room in which the said manufacturing process is carried out.

7. Protective clothing and protective equipment-(1) Protective clothing consisting of long pants and shirts or overalls with long sleeves and head coverings shall be provided for all workers employed in the said manufacturing process.

(2)

(a)

Protective equipment consisting of rubber gloves, gum boots, rubber aprons, chemical safety goggles and respirators shall be provided for all workers employed in the said manufacturing process.

(b)

Gloves, boots and aprons shall be made from synthetic rubber where a pesticide contains oil.

(3)

Protective clothing and equipments shall be worn by the workers supplied with such clothing and equipments.

(4)

Protective clothing and equipments shall be washed daily from inside and outside of the workers handle pesticides containing, nicotine or phosphorous and shall be washed frequently if handling other pesticides.

(5)

Protective clothing and equipment shall be maintained in good repair.

8. Floors and work benches-(1) Floors in every workroom where dangerous pesticides are manipulated shall be of cement or other impervious material giving a smooth surface.

(2)

Floors shall be maintained in good repair, provided with adequate slope leading to a drain and thoroughly washed once a day with hose pipe.

(3)

Work benches where dangerous pesticides are manipulated shall be made of smooth, non-absorbing material preferably stainless steel and shall be cleaned at least once daily.

9. Spillage and waste-(1) If a dangerous pesticide during its manipulation splashes or spills on the work bench, door or on the protective clothing, work by a worker, immediate action shall be taken for thorough decontamination or such areas or articles.

(2)

Cloths, rags, papers or other material soaked or soiled with a dangerous pesticide shall be deposited in a suitable receptacle with tight fitting cover. Contaminated waste shall be destroyed by burning at least once a week.

(3)

Suitable deactivating agents, where available shall be kept in a readily accessible place for use while attending to a spillage.

(4)

Easy means of access shall be provided to all parts of the plant for cleaning maintenance and repairs.

10. Empty containers used for dangerous pesticides-Containers used for dangerous pesticides shall be thoroughly cleaned of their contents and treated with an inactivating agent before being discarded or destroyed.

11. Manual handling-(1) A dangerous pesticide shall not be required or allowed to be manipulated by hand except by means of a long handled scoop.

(2)

Direct contact of any part of the body with a dangerous pesticide during its manipulation shall be avoided.

12. Ventilation - (1) In every work-room of area where a dangerous pesticide is manipulated, adequate ventilation shall be provided at all times by the circulation of fresh air.

(2)

Unless the process is completely enclosed, the following operations during manipulation of a dangerous pesticide shall not be undertaken without an efficient exhaust draught :

(a)

emptying a container holding a dangerous pesticide;

(b)

blending a dangerous pesticide;

(c)

preparing a liquid or powder formulation containing a dangerous pesticide ; and

(d)

changing or filling a dangerous pesticide into a container, tank, hopper or machine or small size containers.

(3)

In the event of a failure of the exhaust draught provided or the above operation the said operations shall be stopped forthwith.

13. Time allowed for washing-(1) Before each meal and before the end of the days work at least ten minutes in addition to the regular rest, interval shall be allowed for washing to each worker engaged in the manipulation of dangerous pesticides.

(2)

Every worker engaged in the manipulation of dangerous pesticides shall have a thorough wash before consuming any food and also at the end of the day's work.

14. Washing and bathing facilities-(1) There shall be provided and maintained in a clean state and in good repair for the use of all workers employed in the factory where the said manufacturing process is carried on adequate washing and bathing places having a constant supply of water under cover at the rate of one such place for every 5 persons employed.

(2)

The washing places shall have stand pipes spaced at intervals of not less than one metre.

(3)

Not less than one half of the total number of washing places shall be provided with bath rooms.

(4)

Sufficient supply of clean towels made of suitable materials shall be provided :

Provided that such towels shall be supplied individually for each worker, if so ordered by the Inspector.

(5)

Sufficient supply of soap and nail brushes shall be provided.

15. Cloak room - There shall be provided and maintained for the use of all workers employed in the factory where the said manufacturing processes carried on-

(a)

a cloak room for clothing put off during working hours with adequate arrangements for drying clothing if wet ; and

(b)

separate and suitable arrangements for the storage of protective clothing provided under paragraph 7.

16. Mess-room -(1) There shall be provided and maintained for the use of all workers employed in the factory in which the said manufacturing process is carried on and remaining on the premises during the rest intervals, a suitable mess-room which shall be furnished with -

(a)

sufficient tables and benches with back rest ; and

(b)

adequate means for warming food.

(2)

The mess room shall be placed under the charge of a responsible person and shall be kept clean ; provided that where a canteen or other proper arrangement exist for the workers to take their meals, the requirements of a mess-room shall be dispensed with.

17. Manipulation not to be undertaken-Manufacture or manipulation of a pesticide shall not be undertaken in any factory unless a certificate regarding its dangerous nature or otherwise is obtained from the Chief Inspector.

18. [Medical facilities and records of examinations and tests-(1) The occupier of every factory to which this Schedule applies shall.

(a)

employ a qualified medical practitioner for medical surveillance of the workers employed therein whose employment shall be subject to the approval of the Chief Inspector of Factories ; and

(b)

provide to the said medical practitioner all the necessary facilities for the purpose referred to in Clause (a).

(2)

the record of medical examinations and appropriate tests carried out by the said medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories, which shall be kept readily available for inspection by the Inspector.

19. Medical examination by Certifying Surgeon-(1) Every worker employed in the processes mentioned in paragraph 1 shall be examined by the Certifying Surgeon within fifteen days of his first employment. Such examination in respect of Halogenated Pesticides shall include tests for determination of the chemical in blood and in fat tissues. EEG abnormalities and memory tests. In respect of organo phosphorous compounds, such examinations shall include test for depression of cholineste-rase in plasma and red blood cells. No worker shall be allowed to work after fifteen days of his first employment in the factory, unless certified fit for such employment by the Certifying Surgeon-

(2)

Every worker employed in the said process shall be re-examined by a Certifying Surgeon at least once in every six calendar months. Such examination shall, wherever the Certifying Surgeon considers appropriate, include the tests specified in Sub-paragraph (1) further every worker employed in the said process shall also be examined once in every three months by the factory medical officer.

(3)

The Certifying Surgeon, after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of examination and re-examination carried out shall be entered in the certificate and the certificate shall be kept in the custody of the Manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2) including the nature and the results of these tests, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit to work in the said processes.

(6)

No person who has been found unfit to work as said in sub-paragraph (5) shall be re-employed or permitted to work in the said processes, unless the Certifying Surgeon, after further examination again certifies him fit for employment in those processes.]

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/87/22.7.1987.]

20. Exemption-If in respect of any factory the Chief Inspector is satisfied that owing to the exceptional circumstances or the infrequency of the said manufacturing process or for any other reasons which he shall record in writing all or any of the provisions of this Schedule are not necessary for the protection of the workers employed in the factory he may, by a certificate in writing, exempt such factory from all or any of the provisions on such conditions as he may specify therein. Such certificate may at any time be revoked by the Chief Inspector after recording his reason therefor.

Appendix

Cautionary Notice

Insecticides and pesticides

1. Chemicals handled in this plant are poisonous substances.
2. Smoking, eating food or drinking, chewing tobacco in this area is prohibited. No food stuff or drink shall be brought in this area.
3. Some of these chemicals may be absorbed through skin and may cause poisoning.
4. A good wash shall be taken before meals.
5. A good wash shall be taken at the end of the shift.
6. Protective clothing and equipment supplied shall be used while working in this area.
7. Containers of pesticides shall not be used for keeping food stuff.
8. Spillage of the chemicals on any part of the body or on the floor or work bench shall be immediately washed away with water.
9. Clothing contaminated due to splashing shall be removed immediately.
10. Scrupulous cleanliness shall be maintained in this area.
11. Do not handle pesticides with bare hands, use scoops provided with handle.
12. In case of sickness like nausea, vomiting, giddiness, the Manager should be informed who will make necessary arrangements for treatment.
13. All workers shall report for the prescribed medical tests regularly to protect their own health.]

[Schedule XXII]

[Inserted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/22.7.1987.]

Processing of cashewnuts

1. Application-This Schedule shall apply to all factories in which roasting, scrubbing and shelling of cashewnuts or extracting oil from cashewnuts or cashewnuts shells are carried on.
2. Prohibition of employment of women and young persons-No woman or young person shall be employed in any processes specified in paragraph 1 except in shelling of roasted cashewnuts.
3. Protective clothing and equipment-The occupier shall provide and maintain for the use of all persons employed in roasting and scrubbing of cashewnuts or extracting oil from cashewnuts or cashewnuts shells-

(a)

suitable rubber or washable leather gloves;

(b)

suitable types of impervious aprons with sleeves to cover body down to knees and shoulders; and

(c)

suitable types of footwear to afford protection to feet and legs against cashewnut oil and for the workers employed in cashewnut shelling, either-

(d)

a protective ointment containing 10 per cent of shells, 55 per cent of alcohol, 10 per cent of sodium perborate, 5 per cent of carbitol and 20 per cent talc ; or

(e)

sufficient quantity of kaolin and coconut oil ; and

(f)

any other material or equipment which the Chief Inspector of Factories may deem to be necessary for the protection of the workers.

4. Use of protective clothing and equipment - Every person employed in processes specified in paragraph 1 shall make use of protective clothing and equipment supplied and arrangements shall be made by the occupier to supervise its use, maintenance and cleanliness.

5. Disposal of shells, ashes or oil of cashewnuts-(1) Shells, ashes or oil of cashewnuts shall not be stored in any room in which workers are employed and shall be removed at least twice a day to any pit or enclosed place in the case of shells and ashes and to closed containers kept in a separate room in the case of oil.

(2)

No worker shall be allowed to handle shells or oil of cashewnuts without using the protective clothing or equipment provided under paragraph 3 above.

6. Floors of work-rooms-The floor of every work-room in which processes specified in paragraph 1 are carried on shall be of a hard material so as to be smooth and impervious and of even surface and shall be cleaned daily, and spillage of any cashewnut oil in any work-room shall be washed with soap and cleaned immediately.

7. Seating accommodation-Workers engaged in shelling of cashewnut shall be provided with adequate seats or work benches which shall be cleaned daily.

8. Rest-room - (1) There shall be provided and maintained for the use of all persons employed in processes specified in paragraph 1, a suitable rest-room furnished with sufficient tables and chairs or benches.

(2)

Separate lockers shall be provided where food, etc. shall be stored by workers before it is consumed in the rest-room,

9. Food, drinks, etc. prohibited in work-rooms - No food, drink, pan, supari or tobacco shall be brought or consumed by any worker in any room in which processes specified in paragraph 1 are carried out and no person shall remain in any such room during intervals for meals or rest.

10. Washing facilities-Where roasting, scrubbing and shelling of cashewnuts or extracting oil from cashewnut or cashewnut shells is carried on, there shall be provided and maintained in a clean state and good repair washing facilities, with a sufficient supply of soap, coconut oil, brushes and towels at the scale of one tap or stand pipe for every ten workers, and the taps or stand pipes shall be space not less than 1.2 metres apart.

11. Time allowed for washing-Before each meal and before the end of the day's work, at least ten minutes, in addition to the regular meal times, shall be allowed for washing to each person employed in process specified in paragraph 1.

12. Smoke or gas produced by roasting cashewnuts-Where smoke or gas is produced in the operation of roasting provision shall be made for removing the smoke or gas through a chimney of sufficient height and capacity or by such other arrangements as may be necessary to prevent the gas or smoke escaping into the air or any place in which workers are employed.

13. Storage of protective equipment-A suitable room or a portion of the factory suitably partitioned off shall be provided exclusively for the storage of all the protective equipment supplied to the workers and no such equipment shall be stored in any place other than the room or places so provided.

14. Medical facilities and records of examinations and tests - (1) The occupier of every factory to which this Schedule applies, shall-

(a)

employ a qualified medical practitioner for medical surveillance of the workers employed therein whose employment shall be subject to the approval of the Chief Inspector of Factories ; and

(b)

provide to the medical practitioner all the necessary facilities for the purpose referred to in Clause (a).

(2)

The said medical practitioner shall inspect daily the hands and feet of all the persons employed in the processes specified in paragraph 1.

(3)

The record of such examinations carried out by a medical practitioner shall be maintained in a separate register approved by the Chief Inspector of Factories which shall be kept readily available for inspection by the Inspector.

(4)

The First-aid Box maintained shall also contain Burrough's solution (1 : 20) and aqueous solution of tannic acid (10%) for treatment of cases of dermatitis.

15. Medical examination by certifying surgeon-(1) Every worker employed in the process specified in paragraph 1 shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include skin test for dermatitis and no worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the said processes shall be re-examined by a Certifying Surgeon at least once in every three calendar months. Such examinations shall, wherever the Certifying Surgeon considers appropriate, include asking test of dermatitis.

(3)

The Certifying Surgeon after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of examination and re-examinations carried out shall be entered in the Certificate and the Certificate shall be kept in the custody of the Manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2), including the nature and the results of these tests, shall also be entered by the Certifying Surgeon in the health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that a worker is no longer fit for employment in the said processes on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said certificate and the health register. The entry of his findings in those documents shall also include the period for which he considers that the said person is unfit to work in the said processes.

(6)

No person who has been found unfit to work as said in sub-paragraph (6) shall be re-employed or permitted to work in the said processes, unless the Certifying Surgeon after further examination again certifies him fit for employment in these processes.

16. Exemption - The Chief Inspector of Factories may grant exemptions from the operation of any of these where he is satisfied that their observance is not necessary for safeguarding the health of the workers.

XXIII

Manufacturing process or operations in carbon disulphide plants

1. Application - This Schedule shall apply to all electric furnaces in which carbon disulphide is generated and all other plants where carbon disulphide after generation is condensed, refined and stored. This Schedule is in addition to and not in derogation of any of the provisions of the Act and Rules made thereunder.

2. Construction, installation and operation - (1) The buildings in which electric furnaces are installed and carbon disulphide after generation is condensed and refined shall be segregated from other parts of the factory and shall be of open type to ensure optimum ventilation and the plant layout shall be such that only a minimum number of workers are exposed to the risk of any fire or explosion at any one time.

(2)

Every electric furnace and every plant in which carbon disulphide is condensed, refined and stored with all their fittings

and attachments shall be of good construction, sound material and adequate strength to sustain the internal pressure to which the furnace or the plant may be subjected to and shall be designed that carbon disulphide liquid and gas are in closed system during their normal working.

(3)

The electric furnace supports shall be firmly grouted about sixty centimetres in concrete or by other effective means.

(4)

Every electric furnace shall be installed and operated according to manufacturer's instructions and these instructions shall be clearly imparted to the personnel in charge of construction and operation.

(5)

The instructions regarding observance of correct furnace temperature sulphur dose, admissible current of power consumption and periodical checking of charcoal level shall be strictly complied with.

3. Electrodes-(1) Where upper ring electrodes made of steel are used in the electric furnace they shall be of seamless tube construction and shall have arrangement for being connected to cooling water system through a siphon built in the electrodes or through a positive pressure water-pump.

(2)

The arrangement for cooling water referred to in sub-paragraph (1) shall be connected with automatic alarm system which will actuate in the event of interruption of cooling water in the electrodes and give visible and audible alarm signals in the control room and simultaneously stop power supply for the furnace operation and stop the further supply of water. The alarm system and the actuating device shall be checked everyday.

4. Maintenance of charcoal level-When any electric furnace is in operation it shall be ensured that the electrodes are kept covered with charcoal bed.

5. Charcoal separators-A cyclone type of charcoal separator shall be fitted on the off-take pipe between the electric furnace and sulphur separator to prevent entry of pieces of charcoal into the condensers and piping.

6. Rupture discs and safety seal-(1) At least two rupture discs of adequate size which shall blow off at a pressure twice the maximum operating pressure shall be provided on each furnace and shall either be mounted directly on the top of the furnace or each through an independent pipe, as close as possible to the furnace.

(2)

A safety water seal shall be provided and tapped point from a between the charcoal separator and the sulphur separator.

7. Pyrometer and manometers-(1) Each electric furnace shall be fitted with adequate number of pyrometers to give an indication of the temperature as correctly as reasonably practicable at various points in the furnace. The dials for reading the temperatures shall be located in the control room.

(2)

Monometers or any other suitable devices shall be provided for indicating pressure-

(a)

in the off-take pipe before and after the sulphur separators; and

(b)

in primary and secondary condensers.

8. Check valves-All piping carrying carbon disulphide shall be fitted with check valves at suitable positions so as to prevent gas from flowing back into any electric furnace in the event of its shut down.

9. Inspection and maintenance of electric furnaces - (1) Every electric furnace shall be inspected internally by a competent person.

(a)

before being placed in service after installation;

(b)

before being placed in service after reconstruction or repairs; and

(c)

periodically every time the furnace is opened for cleaning or dishing or for replacing electrodes.

2. When an electric furnace is shut down for cleaning or dishing:

(a)

the brick lining shall be checked for continuity and any part found defective remove;

- (b)
after removal of any part of the lining referred to in Clause (a) the condition of the shell shall be closely inspected ; and
- (c)
any plates forming shell found corroded to the extent that safety of the furnace is endangered shall be replaced.
10. Maintenance of records-The following hourly records shall be maintained in a log book
- (a)
manometer readings at the points specified in sub-paragraph 7(2);
- (b)
gas temperature indicated by pyrometers and all other vital points near the sulphur separator and primary and secondary condensers;
- (c)
water temperature and flow of water through the siphon in the electrodes; and
- (d)
primary and secondary voltages and current and energy consumed.
11. Electrical apparatus, wiring and fittings-All buildings in which carbon disulphide is refined or stored shall be provided with electrical apparatus, wiring and fittings which shall afford adequate protection from fire and explosion.
12. Prohibition relating to smoking-No person shall smoke or carry matches' fire of naked light or other means of producing a naked light or spark in buildings in which carbon disulphide is refined or stored, and a notice in the language understood by a majority of the workers shall be posted in the plant prohibiting smoking and carrying of matches, fire or naked light or other means of producing naked light or spark into such rooms.
13. Means of escape-Adequate means of escape shall be provided and maintained to enable persons to move to a safe place as quickly as possible, in case of an emergency. At least two independent staircases of adequate width shall be provided in every building housing the at reasonable intervals at opposite ends. These shall always be kept clear of all obstructions and so designed as to afford easy passage.
14. Warning in case of fire-There shall be adequate arrangements for giving warnings in case of fire or explosion which shall operate on electricity and in case of failure of electricity by some mechanical means.
15. Fire-fighting equipment-(1) Adequate number of suitable fire extinguishers or other fire-fighting equipment shall be kept in constant readiness for dealing with risks involved and depending on the amount and nature of materials stored.
- (2)
Clear instructions as to how the extinguishers or other equipment shall be used printed in the language which the majority of the workers employed understand shall be affixed to each extinguisher or other equipment and the personnel trained in their use.
16. Bulk sulphur - (1) Open or semi-enclosed spaces for storage of bulk sulphur shall be sited with due regard to the danger which may arise from sparks given off by nearby locomotives etc. and precautions shall be taken to see that flames, smoking and matches and other sources of ignition do not come in contact with the clouds of dust arising during handling of bulk sulphur.
- (2)
All enclosure for bulk sulphur shall be of non-combustible construction, adequately ventilated and so designed as to provide a minimum of ledges on which dust may lodge.
- (3)
The bulk sulphur in the enclosures shall be handled in such a manner as to minimise the formation of dust clouds and no flame, smoking and matches or other sources of ignition shall be employed during handling, and non-sparking tools shall be used whenever sulphur is shovelled or otherwise removed by hand.
- (4)
No repairs involving flames, heat and use of hand or power tools shall be made in the enclosure where bulk sulphur is stored.
17. Liquid sulphur-Open flames, electric sparks and other sources of ignition, including smoking and matches, shall be excluded from the vicinity of molten sulphur.
18. Training and supervision - (1) All electric furnaces and all plants in which carbon disulphide is condensed, refined or stored shall be under adequate supervision at all times while the furnaces and plant are in operation.
- (2)

Workers in charge of operation and maintenance of electric furnaces and the plants shall be properly qualified and adequately trained.

19. Washing facilities-(1) The occupier shall provide and maintain in a clean state and in good repair, for the use of all persons employed, wash place under cover with at least one tap or stand-pipe, having a constant supply of clean water for every five such persons, the taps or stand-pipes being spaced not less than one hundred and twenty centimetres apart with a sufficient supply of soap and clean towels, provided that towels shall be supplied individually to each worker if so ordered by the Inspector.

(2)

All the workers employed in the sulphur storage, handling and melting operations shall be provided with a nail brush.

20. Personal protective equipment-(1) Suitable and protective clothing consisting of overalls without pockets, gloves and foot-wear shall be provided for the use of operatives ;

(a)

when operating valves or cocks controlling, fluids etc.;

(b)

drawing off of molten sulphur from sulphur pots ; and

(c)

handling charcoal or sulphur.

(2)

Suitable respiratory protective equipment shall be provided and stored in the appropriate place for use during abnormal conditions or in an emergency.

(3)

Arrangements shall be made proper and efficient cleaning of all such protective equipment.

21. Cloak-room-There shall be provided and maintained for the use of all persons employed in the processes a suitable cloak-room for clothing put off during work hours and a suitable place separate from the cloakroom for the storage of overalls or working clothes. The accommodation so provided shall be placed in the charge of a responsible person and shall be kept clean.

22. Unauthorised persons-Only maintenance and repair personnel persons directly connected with the plant operation and those accompanied by authorised persons shall be admitted in the plant.

XXIV

Operations involving High Noise Levels

1. Application-This Schedule shall apply to all operations in any manufacturing process having high noise level.

2. Definition - For the purpose of this Schedule-

(a)

"Noise" means any unwanted sound;

(b)

"High noise level" means any noise level measured on the A-weighted scale is 90 dB or above;

(c)

"Decibel" means one-tenth of "Bela" which is the fundamental division of a logarithmic scale used to express the ratio of two specified or implied quantities, the number of "Bela" denoting such a ratio being the logarithm to the base of 10 of this ratio. The noise level (or the sound pressure level) corresponds to a reference pressure of 20×10^{-6} newtons per square metre or 0.0002 dynes per square centimetre which is the threshold of hearing ; that is, the lowest sound pressure level necessary to produce the sensation of hearing in average healthy listeners. The decibel in abbreviated form is dB;

(d)

"Frequency" is the rate of pressure variations expressed in cycles per second or hertz;

(e)

'dBA" refers to sound level in decibels as measured on a sound level meter operating on the A-weighting network with slow meter response ;

(f)

"A-Weighting" means making graded adjustments in the intensities of sound of various frequencies for the purpose of the noise measurements, so that the sound pressure level measured by an instrument reflects the actual response of the

human ear to the sound measured.

3. Protection against noise-(1) In every factory suitable engineering control or administrative measures shall be taken to ensure, so far as is reasonably practicable, that no worker is exposed to sound levels exceeding the maximum permissible noise exposure levels specified in Tables 1 and 2.

Table-1

Permissible exposure in cases of continuous noise

Total time of exposure (continuous or of a short-terms exposures) per day in hours

Sound pressure level in d-BA number

(1)

(2)

8

90

6

92

4

95

3

97

1½

100

1

102

¾

105

½

107

¼

110

115

Notes-1. No exposure, in excess of 115 dBA is to be permitted.

2. For any period of exposure falling in between any figure and the next higher or lower figure as indicated in Column (1), the permissible sound pressure level is to be determined by extrapolation on a proportionate basis.

Table-2

Permissible exposure levels of impulsive or impact noise

Peak sound in pressure level dB

Permitted number of impulses or impact per day

(1)

(2)

140

100

135

315

130

1,000

125

3,160

120

10,000

Notes-1 - No exposures in excess of 140 dBA peak sound pressure level is permitted.

2. For any peak sound pressure level falling in between any figure and the next higher or lower figure as indicated in

Column (1), the permitted number of impulses or impacts per day is to be determined by extrapolation on a proportionate basis.

(2)

For the purposes of this Schedule, if the variations in the noise level involve maxima at interval of one second or less, the noise is to be considered as a continuous one and the criteria given in Table 1 could apply, in other cases, the noise is to be considered as impulsive or impact noise and the criteria given in Table 2 would apply.

(3)

When the daily noise exposure is composed of two or more periods of noise exposure at different levels their combine defect shall be considered, rather than the individual effect of each. The mixed exposure shall be considered to exceed the limit value if the sum of the fractions

$C_1T_1 + C_2T_2 + \dots + C_nT_n$ exceeds unity

Where, the C, C2, etc. indicate the total time of actual exposure at a specified noise level and T, T2, etc. denote the time of exposure permissible at that level. Noise exposure of less than 90 dBA may be ignored in the above calculation.

(4)

Where it is not possible to reduce the noise exposure to the levels specified in sub-paragraph (1) by reasonably practicable engineering control or administrative measures, the noise exposure shall be reduced to the greatest extent feasible by such control measures, and each worker so exposed shall be provided with suitable ear protectors so as to reduce the exposure of noise to the levels specified in sub-paragraph (1).

(5)

Where the ear protectors provided in accordance with sub-paragraph (2) and worn by a worker cannot still attenuate the noise reaching near his ear, as determined by subtracting the attenuation value in dBA of the ear protectors concerned from the measured sound pressure level, to a level permissible under Table 1 or Table 2, as the case may be, the noise exposure period shall be suitable reduced to correspond to the permissible noise exposures specified in sub-paragraph (1).

(6)

(a)

In all cases where the prevailing sound levels exceed the permissible levels specified in sub-paragraph (1), there shall be administered an effective hearing conservation programme which shall include among other hearing conservation measures, pre-employment and periodical auditory surveys conducted on workers exposed to noise exceeding the permissible levels, and rehabilitation of such workers either by reducing the exposure to the noise levels or by transferring them to places where noise levels are relatively less or by any other suitable means.

(b)

Every worker employed in areas where the noise exceeds the maximum permissible exposure levels specified in sub-paragraph (1) shall be subjected to an auditory examination by a Certifying Surgeon within fourteen days of his first employment and thereafter, shall be re-examined at least once in every twelve months. Such initial and periodical examination shall include tests which the Certifying Surgeon may consider appropriate, and shall include determination of auditory threshold for pure tones of 125, 250, 500, 1,000, 2,000, 4,000 and 8,000 cycles per second.

XXV

Manufacture of rayon by viscose process

1. Definitions-For the purpose of this Schedule-

(a)

"approved" means as approved for the time being in writing by the Chief Inspector;

(b)

"breathing apparatus" means a helmet or face piece with necessary connections by means of which the person using it in a poisonous, asphyxiating or irritant atmosphere breathes unpolluted air, or any other approved apparatus;

(c)

"Churn" means the vessel in which alkali cellulose pulp is treated with carbon disulphide;

(d)

"dumping" means transfer of cellulose xanthate from a dry churn to a dissolver;

(e)

"efficient exhaust draught" means localised ventilation by mechanical means for the removal of any gas or vapour, so as

to prevent it from escaping into the air of any place in which work is carried on. No draught shall be deemed to be efficient if it fails to control effectively any gas or vapour generated at the point where such gas or fume originates;

(f)

"fume process" means any process in which carbon disulphide or hydrogen sulphide is produced, used or given off;

(g)

"life belt" means a belt made of leather or other suitable material which can be securely fastened round the body with a suitable length of rope attached to it, each of which is sufficiently strong to sustain the weight of a man;

(h)

"protective equipment" means apron, goggles, face shields, footwear, gloves and overalls made of suitable materials.

2. Ventilation-(1) In all work-rooms where a fume process is carried on, adequate ventilation by natural or mechanical means shall be provided so as to control in association with other control measures, the concentration of carbon-di-sulphide and hydrogen sulphide in the air of every work environment within the permissible limits.

(2)

Notwithstanding the requirements in sub-paragraph (1) an efficient exhaust draught shall be provided and maintained to control the concentration of carbon-di-sulphide and hydrogen sulphide in the following locations :

(a)

dumping hoppers of dry churns,

(b)

spinning machines,

(c)

trio-rollers and cutters used in staple fibre spinning,

(d)

hydro-extractors for yarn cakes,

(e)

after treatment process, and

(f)

spin baths.

(3)

In so far as the spinning machines and tri-tollers and cutters used in staple fibre spinning are concerned they shall be, for the purpose of ensuring the effectiveness of the exhaust draught to be provided as required in sub-paragraph (1) enclosed as fully as practicable and provided with suitable shutters in sections to enable the required operations to be carried out without giving rise to undue quantities of Carbon-di-sulphide and hydrogen sulphide escaping to the work environment.

(4)

No dry churn shall be opened after completion of reaction without initially exhausting the residual vapours of carbon-di-sulphide by operation of a suitable and efficient arrangement for exhausting the vapours which shall be continued to be operated as long as the churn is kept opened.

(5)

Wherever any ventilation apparatus normally required for the purpose of meeting the requirements in sub-paragraphs (2), (3) and (4) is ineffective, falls or is stopped for any purpose whatsoever, all persons shall be required to leave the work areas where the equipment or processes specified in the above said sub-paragraphs are in use, as soon as possible, and in any case not later than fifteen minutes after such an occurrence.

(6)

(i)

All ventilating systems provided for the purposes as required in sub-paragraphs (2), (3), and (4) shall be examined and inspected once in every week by a responsible person. It shall be thoroughly examined and tested by a competent person once in every period of twelve months. Any defects found by such examinations or test shall be rectified forthwith.

(ii)

A register containing particulars of such examinations and tests, and the state of the systems and the repairs or alternations, if any, found to be necessary shall be kept and shall be available for inspection by an Inspector.

3. Waste from spinning machines-Waste yarn from the spinning machines shall be deposited in suitable containers provided with close fitting covers. Such waste shall be disposed off as quickly as possible after decontamination.

4. Lining of dry churns - The inside surface of all dry churns shall be coated with a non-sticky paint so that cellulose xanthate will not stick to the surface of the churn. Such coating shall be maintained in good condition.

5. Air monitoring-(1) To ensure the effectiveness of the control measures, monitoring of carbon-di-sulphide and hydrogen sulphide in air shall be carried out once at least in every shift and the record of the results so obtained shall be entered in a register specially maintained for the purposes.

(2)

For the purpose of the requirement in sub-paragraph (1) instantaneous gas detector tubes shall not be used. Samples shall be collected over a duration of not less than ten minutes and analysed by an approved method. The locations where such monitoring is to be done shall be as directed by the Inspector.

(3)

If the concentration of either carbon-di-sulphide or hydrogen sulphide exceeds the permissible limits for such vapour or gas as laid down in Rule 17-B, suitable steps shall be taken for controlling the concentrations in air of such contaminants. A report of such occurrences shall be sent to the Chief Inspector forthwith.

6. Prohibition to remain in fume process room-No person during his intervals for meal, or rest, shall remain in any room wherein fume process is carried on.

7. Prohibition relating to employment of young persons-No young person shall be employed or permitted to work in any fume process or in any room in which any such process is carried on.

8. Protective equipment-(1) The occupier shall provide and maintain in good condition protective equipment as specified in the Table given below for use of persons employed in the processes referred to therein.

Table

Process

Protective equipment

1.

Dumping

Overalls, face-shields, gloves and footwear-all made of suitable material

2.

Spinning

Suitable aprons, gloves and foot-wear

3.

Process involving or likely to involve contact with viscose solution

Suitable gloves and footwear

4.

Handling of sulphur

Suitable chemical goggles

5.

Any other process involving contact with hazardous chemicals

Protective equipment as may be directed by the Chief Inspector by an order in writing.

(2)

A suitable room, rooms or lockers shall be provided exclusively for the storage of all the protective equipment supplied to workers and no such equipment shall be stored at any place other than the room, rooms or lockers so provided.

9. Breathing apparatus-(1) There shall be provided in every factory, where fume progress is carried on, sufficient supply of-

(a)

breathing apparatus;

(b)

oxygen and suitable appliances for the administration; and

(c)
life belts.

(2)

(i)

The breathing apparatus and other appliances referred to in sub-paragraph (1) shall be maintained in good condition and kept in appropriate locations so as to be readily available.

(ii)

The breathing apparatus and other appliances referred to in Clauses (a) and (b) of sub-paragraph (1) shall be cleaned and disinfected at suitable intervals and thoroughly inspected once every month by a responsible person.

(iii)

A record of the maintenance and of the condition of the breathing apparatus and other appliances referred to in sub-paragraph (1) shall be entered in a register provided for that purpose which shall be readily available for the inspection by an Inspector.

(3)

Sufficient number of workers shall be trained and periodically retrained in the use of breathing apparatus and administering artificial respiration so that at least two such trained person would be available during all the working hours in each room in which fume process is carried on.

(4)

Breathing apparatus shall be kept properly labelled in clean, dry, light proof cabinets and if liable to be affected by fumes, shall be protected by placing them in suitable containers.

(5)

No person shall be employed to perform any work specified in sub-paragraph (1) for which breathing apparatus is necessary to be provided under that sub-paragraph, unless he has been fully instructed in the proper use of that equipment.

(6)

No breathing apparatus provided in pursuance of sub-paragraph (1) which has been worn by a person shall be worn by another person, unless it has been thoroughly cleaned and disinfected since last being worn and the person has been fully instructed in the proper use of that equipment.

10. Electric fittings-All electric fittings in any room in which carbon-di-sulphide is produced, used or given off or is likely to be given off in the work environment, other than a spinning room, shall be of flame-proof construction and all electric conductors shall either be enclosed in metal conduits or be lead-sheathed.

11. Prohibition relating to smoking, etc.- No person shall smoke or carry matches, fire or naked light, other means of producing a naked light or spark in a room in which fume process is carried on. A notice in the language understood by the majority of the workers shall be posted in prominent locations in the plant prohibiting smoking and carrying of matches, fire or naked light or other means of producing naked light or spark into such room :

Provided that fire, naked light or other means of producing a naked light or spark may be carried on in such room only when required for the purposes of the process itself under the direction of a responsible person.

12. Washing and bathing facilities-(1) There shall be provided and maintained in a clean state and in good repair for the use of all workers employed in the processes covered by this Schedule, adequate washing and bathing places having a constant supply of water under cover at the rate of one such place for every twenty-five persons employed.

(2)

The washing places shall have stand pipes placed at intervals of not less than one metre.

(3)

Not less than, one-half of the total number of washing places shall be provided with bath rooms.

(4)

Sufficient supply of clean towels made of suitable material shall be provided :

Provided that such towels shall be supplied individually for each worker, if so ordered by the Inspector.

(5)

Sufficient supply of soap and nail brushes shall be provided.

13. Rest-room-(1) A rest-room shall be provided for the workers engaged in doffing operations of filament yarn spinning process.

(2)

Such rest-room shall be provided with fresh air supply and adequate sitting arrangement.

14. Cautionary notice and instructions-(1) The following cautionary notice shall be prominently displayed in each fume process room-

"Cautionary Notice :

1. Carbon disulphide (CS₂) and Hydrogen sulphide (H₂S) which may be present in this room are hazardous to health.
2. Follow safety instructions.
3. Use protective equipment and breathing apparatus as and when required.
4. Smoking is strictly prohibited in this area."

This notice shall be in a language understood by the majority of the workers and displayed where it can be easily and conveniently read. If any worker is illiterate, effective step shall be taken to explain carefully to him the contents of the notice so displayed.

(2)

Arrangements shall be made to instruct each worker employed in any room in which a fume process is carried on regarding the health hazards connected with their work and the preventive measures and methods to protect themselves. Such instructions shall be given on his first employment and repeated periodically.

(3)

Simple and special instructions shall be framed to ensure that effective measures will be carried out in case of emergency involving escape of carbon disulphide and hydrogen sulphide. These instructions shall be displayed in the concerned areas, and workers shall be instructed and trained in the actions to be taken in such emergencies.

15. Medical facilities and records of examinations and tests (1) - The occupier of each factory to which this Schedule applies, shall-

(a)

employ a qualified medical officer for medical surveillance of the workers employed in the fume process whose employment shall be subject to the approval of the Chief Inspector of Factories; and

(b)

provide to the said medical officer all the necessary facilities for the purpose referred to in Clause

(2)

The record of medical examination and appropriate tests carried out by the said medical officer shall be maintained in a separate register approved by the Chief Inspector of Factories which shall be kept readily available for inspection by the Inspector.

16. Medical examination by the Certifying Surgeon-(1) Every worker employed in the fume process shall be examined by a Certifying Surgeon within fifteen days of his first employment. Such examination shall include tests for estimation of exposure co-efficient (iodine azide test on urine), and cholesterol, as well as electrocardiogram (ECG) and Central Nervous System (CNS) tests. No worker shall be allowed to work after fifteen days of his first employment in the factory unless certified fit for such employment by the Certifying Surgeon.

(2)

Every worker employed in the fume process shall be re-examined by a Certifying Surgeon at least once in every twelve calendar months. Such examination shall, wherever the Certifying Surgeon considers appropriate, include all the tests as specified in subparagraph (1).

(3)

The Certifying Surgeon, after examining a worker, shall issue a Certificate of Fitness in Form 30. The record of re-examinations carried out shall be entered in the certificate and the certificate shall be kept in the custody of the Manager of the factory. The record of each examination carried out under sub-paragraphs (1) and (2) including the nature and the results of the tests, shall also be entered by the Certifying Surgeon in a health register in Form 31.

(4)

The Certificate of Fitness and the health register shall be kept readily available for inspection by the Inspector.

(5)

If at any time the Certifying Surgeon is of the opinion that, a worker is no longer fit for employment in the fume process on the ground that continuance therein would involve special danger to the health of the worker, he shall make a record of his findings in the said certificate and the health register. The entry of his findings in those documents shall also

include the period for which he considers that the said person is unfit for work in the fume process.

(6)

No person, who has found unfit to work as said in subparagraph (5) above shall be re-employed or permitted to work in the fume process, unless the Certifying Surgeon, after further examination again certifies him fit for employment in such process.

17. Exemptions - If in respect of any factory, the Chief Inspector is satisfied that owing to the exceptional circumstances or in frequency of the processes or for any other reason, all or any of the provisions of this Schedule is not necessary for protection of the workers in the factory the Chief Inspector may, by a certificate in writing which he may at his discretion revoke at any time, exempt such factory from all or any of such provisions subject to such conditions, if any, as he may specify therein.

XXVI

Highly flammable liquids and flammable compressed gases

1. Application-This Schedule shall be applicable to all factories where highly flammable liquids or flammable compressed gases are manufactured, stored, handled or used.

2. Definitions-For the purpose of this Schedule-

(a)

"highly flammable liquid" means any liquid including its solution, emulsion or suspension which when tested in a manner specified by Sections 14 and 15 of the Petroleum Act, 1934 (30 of 1934) gives off flammable vapours at a temperature less than 32 degrees centigrade;

(b)

"flammable compressed gas" means flammable compressed gas as defined in Rule 2 of the Static and Mobile Pressure Vessels (Unfired) Rules, 1981 framed under the Indian Explosives Act, 1884.

3. Storage-(1) Every flammable liquid or flammable compressed gas used in every factory shall be stored in suitable fixed storage tank or in suitable closed vessel located in a safe position under the ground, in the open or in a store room of adequate fire resistant construction.

(2)

Except as necessary for use, operation or maintenance every, vessel or tank which contains or had contained a highly flammable liquid or flammable compressed gas shall be always kept closed and all reasonably practicable steps shall be taken to contain or immediately drain off to a suitable container any spill or leak that may occur.

(3)

Every container, vessel, tank, cylinder, or store room used for storing highly flammable liquid or flammable compressed gas shall be clearly and in bold letters marked "Danger-Highly Flammable Liquid" or "Danger -Flammable Compressed Gas".

4. Enclosed systems for conveying highly flammable liquids-Wherever it is reasonably practicable highly flammable liquids shall be conveyed within a factory in totally enclosed systems consisting of pipe lines, pumps and similar appliances from the storage tank or vessel to the point of use enclosed systems shall be so designed, installed, operated and maintained as to avoid leakage or the risk of spilling.

5. Preventing formation of flammable mixture with air-Wherever there is a possibility for leakage or spilling of highly flammable liquid or flammable compressed gas from an equipment, pipe line, valve, joint or other part of a system all practicable measures shall be taken to contain, drain off or dilute such spilling or leakage as to prevent formation of flammable mixture with air.

6. Prevention of ignition-(1) In every room, work place or other location where highly flammable liquid or flammable combustible was is stored, conveyed, handled or used or where there is danger of fire or explosion from accumulation of highly flammable liquid or flammable compressed gas in air, all practicable measures shall be taken to exclude the sources of ignition such precautions shall include the following :

(a)

All electrical apparatus shall either be excluded from the area of risk or they shall be of such construction and so installed and maintained as to prevent the danger of their being a source of ignition;

(b)

effective measures shall be adopted for prevention of accumulation of static charges to a dangerous extent;

(c)

no person shall wear or be allowed to wear any foot wear having iron or steel nails or any other exposed ferrous materials which is likely to cause sparks by friction;

(d)

smoking, lighting or carrying of matches, lighters or smoking materials shall be prohibited;

(e)

transmission belts with iron fasteners shall not be used; and

(f)

all other precautions, as are reasonably practicable shall be taken to prevent initiation of ignition from all other possible sources such as open flames, frictional sparks, overheated surfaces of machinery or plant, chemical or physical-chemical reaction and radiant heat.

7. Prohibition of smoking-No person shall smoke in any piece where highly flammable liquid or flammable compressed gas is present in circumstances that smoking would give rise to a risk of fire. The occupier shall take all practicable measures to ensure compliance with this requirement including display of a bold notice indicating prohibition of smoking at every place which this requirement applies.

8. Fire fighting-In every factory where highly flammable liquid or flammable compressed gas is manufactured, stored, handled or used, appropriate and adequate means of fighting a fire shall be provided. The adequacy and suitability of such means which expression includes the fixed and portable fire extinguishing systems, extinguishing material procedures and the process of fire fighting, shall be to the standards and levels prescribed by the Indian Standards applicable, and in any case not inferior to the stipulations under Rule 61.

9. Exemptions-If in respect of any factory, the Chief Inspector is satisfied that owing to the exceptional circumstances or infrequency of the processes or for any other reason, all or any of the provisions of this Schedule is not necessary for protection of the workers in the factory, the Chief Inspector may by a certificate in writing, which he may at his discretion revoke at any time, exempt such factory from sit or any of such provisions-subject to such conditions, if any, as he may specify there.

Rules prescribed under Section 81

97.

[Notification of accidents and dangerous occurrences.

[Substituted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/22.7.1987.]

(1)

When any accident which results in the death of any person or which results in such bodily injury to any person as is likely to cause his death, or any dangerous occurrence specified in the Schedule below takes place in a factory, the Manager of the factory shall forthwith report by telephone, special messenger or telegram to the Inspector and Chief Inspector followed by a Notice in Form No. 18 in case of an accident [in case of an accident causing death or bodily injury to any person or in case of dangerous occurrence which has not resulted in bodily injury to any person.]

[Substituted vide Orissa Gazette Part III/5.7.1968.]

within twelve hours of the accident or the dangerous occurrence.

(2)

Reports as mentioned in Sub-rule (1) shall also be sent to-

(a)

the District Magistrate or the Sub-divisional Officer;

(b)

the Officer-in-charge of the nearest Police-station; and

(c)

the relatives of the injured or deceased person.

(3)

When any accident or dangerous occurrence specified in the Schedule referred to in Sub-rule (1) takes place in a factory and it causes such bodily injury to any person and prevents the person injured from working for a period of forty-eight hours or more immediately following the accident or the dangerous occurrence, as the case may be, the Manager of the factory shall send a notice thereof to the Inspector in Form No. 18 within twenty-four hours after the expiry of forty-eight hours from the time of the accident or the dangerous occurrence ;

Provided that if in the case of an accident, death occurs to any person injured by such accident after the reports and

notice referred to in the foregoing sub-rules have been sent, the Manager of the factory shall forthwith send a notice thereof by telephone, special messenger or telegram to the authorities and persons mentioned in Sub-rules (1) and (2) and also have this information confirmed in writing within twelve hours of the death ;

Provided further that if the period of disability from working for forty-eight hours or more referred to in Sub-rule (3) does not Occur immediately following the accident, but later, or occurs in more than one spell, the report referred to shall be sent to the Inspector in the prescribed Form 18 within twenty-four hours immediately following the hour when the actual total period of disability from working resulting from accident becomes forty-eight hours.

The following classes of occurrences constitute dangerous occurrences, whether or not they are attended by personal injury or disablement ;

(a)

bursting of a plant used for containing or supplying steam under pressure greater than atmospheric pressure;

(b)

collapse or failure of a crane, derrick, winch, hoist or other appliances used in raising or lowering persons or goods, or any part thereof, or the overturning of a crane;

(c)

explosion, fire, bursting out, leakage or escape of any molten metal, or hot liquor or gas causing damage to any room or place in which persons are employed, or fire in rooms of cotton pressing factories when a cotton opener is in use;

(d)

explosion of a receiver or container used for the storage at a pressure greater than atmospheric pressure of any gas or gases (including air) or any liquid or solid resulting from the compression of gas;

(e)

collapse or subsidence of any floor, gallery, roof, bridge, tunnel, chimney, wall, building or any other structure.]

Rule prescribed under Section 69

98.

Notice of poisoning or disease.

- A notice in Form No. 19 should be sent forthwith both to the Chief Inspector and to the Certifying Surgeon, by the Manager of a factory in which there occurs a case of lead, phosphorus mercury, manganese, arsenic, carbon bisulphide or benzene poisoning ; or poisoning by nitrous fumes, or by halogens or halogeen derivatives of the hydrocarbons of the aliphatic series, or of chrome ulceration, anthrax, silicosis, toxic anaemia, toxic jaundice, primary opitheliomatous cancer of the skin, or pathological manifestations due to radium or other radio-active substances or X-rays.

Chapter-X Supplemental

Rule prescribed under Section 107

99.

Procedure in appeal.

(1)

An appeal presented under Section 107 shall lie to the Chief Inspector, or in cases where the order appealed against is an order passed by that officer, to the State Government or to such authority as the State Government may appoint in this behalf and shall be in the form of a memorandum setting forth concisely the grounds of objection to the order and bearing Court-fees stamp in accordance with Article 11 of Schedule II to the Court-fees Act, 1870, and shall be accompanied by a copy of the order appealed against.

(2)

Appointment of assessors-On receipt of the memorandum of appeal, the appellate authority shall if it thinks fit or if the appellant has requested that the appeal should be heard with the aid of assessors, call upon the body declared under Sub-rule (3) to be representative of the industry concerned, to appoint an assessor within a period of 14 days. If an assessor is nominated by such body, the appellate authority shall appoint a second assessor itself. It shall then fix a date for the hearing of the appeal and shall give due notice of such date to the appellant and to the Inspector whose order is appealed against, and shall call upon the two assessors to appear upon such date to assist in the hearing of the appeal.

(3)

The appellant shall state in the memorandum presented under Sub-rule (1) whether he is a member of one or more of the following bodies

1. [.....]

*2

*3.....

*4.....]

[The name of registered association of which the appellant is a member should be mentioned.]

The body empowered to appoint the assessor shall-

(a)

if the appellant is a member of one of such bodies, be that body;

(b)

if he is a member of two such bodies, be the body which the appellant desires should appoint such assessor ; and

(c)

if the appellant is not a member of any of the aforesaid bodies or if he does not state in the memorandum which of such bodies he desires should appoint the assessor, be the body which the appellate authority considers as the best fitted to represent the industry concerned.

(4)

Remuneration of assessors-An assessor appointed in accordance with the provisions of Sub-rules (2) and (3) shall receive for the hearing of the appeal, a fee to be fixed by the appellate authority, subject to a maximum of fifty rupees per diem. He shall also receive the actual travelling expenses. The fees and travelling expenses shall be paid to the assessor by Government ; but where assessors have been appointed at the request of the appellant and the appeal has been decided wholly or partly against him the appellate authority may direct that the fees and travelling expenses of the assessor shall be paid in whole/in part by the appellate authority.

Rule prescribed under Section 108

100.

Display of notices.

- The abstract of the Act and of the Rules required to be displayed in every factory shall be in Form No. 20.

Rules prescribed under Section 110

101.

[Returns.

[Substituted vide Orissa Gazette Extraordinary No.1089/27.7.1987-SRO No. 501/42.7.1987.]

- The Manager of every factory shall furnish the following returns to the Inspector and the Chief Inspector of Factories and or to any other officer appointed by the State Government in this behalf-]

(1)

Annual return-On or before the 31st January of each year in [Combined Annual Returns]

[Substituted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

[The manager shall furnish information in the relevant portions of the Combined Annual Returns]

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

, in duplicate.

(2)

[* * *]

[Omitted vide O.G.E.No. 1416, dated 24.9.2006-SRO 532/2006/26.9.2006.]

Rule prescribed under Section 108

102.

Service of notices.

- The despatch by post under registered cover of any notice or order shall be deemed sufficient service on the occupier, owner or Manager of a factory of such notice or order.

Rules prescribed under Section 112

103.

Information required by the Inspector.

- The occupier, owner or Manager of a factory shall furnish any information that an Inspector may require for the purpose of satisfying himself whether any provision of the Act has been complied with or whether any order of an Inspector has been duly carried out. Any demand by an Inspector for any such information, if made, during the course of

an inspection, shall be complied forthwith if the information is available in the factory, or, if made in writing, shall be complied with within seven days of the receipt thereof.

104.

[Combined Muster-roll-cum-Register of Wages]

[Substituted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

- The Manager of every factory shall maintain a [Combined Muster-roll-cum-Register of Wages]

[Substituted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

of all the workers employed in the factory in [Form No. 29]

[Substituted vide Orissa Gazette Part III-No.4/1963-SRO No.41/83/6.1.1983.]

showing (a) the name of each worker, (b) the nature of his work, and (c) the daily attendance of the worker ;

Provided that if the daily attendance is noted in the register of adult workers in Form No. 12, or the particulars required under this rule are noted in any other register, separate muster-roll required under this rule need not be maintained.

104A.

- All registers and records required to be maintained at the factories under the Factories Act, 1948, shall be maintained in English or in Oriya, in addition to any other language in which such registers and records are maintained.

105.

Register of accidents and dangerous occurrences.

- The Manager of every factory shall maintain a register of all accidents and dangerous occurrences which occur in the factory in Form No. 26 showing the-

(a)

Name of injured person (if any)

(b)

Date of accident or dangerous occurrence.....

(c)

Date of report on Form No. 18 to Inspector.....

(d)

Nature of accident or dangerous occurrence.....

(e)

Date of return of injured person to work.....

(f)

Number of days of absence from work of injured person.....

106.

Maintenance of inspection book.

- The Manager of every factory shall maintain a bound inspection book and shall produce it when so required by the Inspector or Certifying Surgeon.

107.

The occupier or Manager of every factory shall report to the Inspector any intended closure of the factory or any section or department thereof immediately after it is decided to do so intimating the reasons for the closure, the number of workers in the register on the date of the report, the number of workers likely to be affected by the closure and the probable period of the closure. An intimation should also be sent to the Inspector, as soon as the factory or the section or the department of the factory, as the case may be actually closed down and starts working again.

[Form No.1]

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

(Prescribed under Rule 3)

Application for permission to construct/extend or take into use any building/premises as a factory

1.

Applicant's Name

:

Age

:

Father's Name

:

Permanent address-

:

Village/Plot No./Street/Lane

:

P.O.

:

P.S.

:

Town/City/District

:

State

:

PIN

:

Calling

:

2.

Full name and postal address of the factory

:

3.

Address for correspondence

:

4.

Location of the Factory -

:

State

:

District

:

Sub-division

:

P.S. :

:

Near of village or town, nearest Rly. Station

:

5.

Particulars of plants to be installed (Separate sheet where necessary be annexed)

:

6.

(a) Number of persons proposed to be engaged

Men

Women

(In case of extension, increase of number of persons due to extension and No. of persons engaged in existing portion be mentioned separately)

(b) Amount of power proposed to be installed(The list of machines with K.W. rating of their prime movers be annexed. In case of extension, such list for existing portions and for

extension be mentioned separately).

7.

Proposed date of commencement of construction

8.

Particulars of no objection Certificate/Consent letter of
Orissa State Pollution Control Board, Bhubaneswar/Local
Authority.

(Attested copy to be enclosed)

9.

Amount of fee paid..... Chalan No..... Date.....

Treasury/Bank name.....

Date.....

Place.....

(Signature of applicant)

With Seal

Note - This application shall be accompanied by the following documents

(a)

A flow chart of the manufacturing process supplemented by a brief description of the process in its various stages.

(b)

Plans, in duplicate, drawn to scale, showing

(i)

the site of the factory and immediate surroundings including adjacent building and other structures, roads, drains, etc;
and

(ii)

the Plan elevation and necessary cross Sections of the various buildings, indicating all relevant details relating to natural lighting, ventilation and means of escape in case of fire. The plans shall also clearly indicate the position of the plant and machinery, aisles and passage way; and

(c)

Such other particulars as the Chief Inspector may require.)

[Form 1-A]

[Inserted vide Orissa Gazette Extraordinary No. 1089/29.7.1981-SRO No. 501/87/22.7.1987.]

[Prescribed under Rule 3-A]

Form of Certificate of Stability

1. Name of the factory.....

2. Village, town and district in which the factory is situated.....

3. Full postal address of the factory.....

4. Name of the occupier of the factory

5. Nature of manufacturing process to be carried on in the factory

6. Number of floors on which workers will be employed.....

I certify that I have inspected the building/buildings, the plans of which have been approved by the Chief Inspector in his letter No.....dated and examined the various parts including the foundations with special reference to the machinery, plant, etc., that have been installed. I am of the opinion that the building/buildings which has/have been constructed/ reconstructed/extended/taken into use is/are in accordance with the plans approved by the Chief Inspector in his letter mentioned above, that it/they is/are structurally sound and that its/their stability will not be endangered by its/their use as a factory/part of a for which the machinery plant, etc., factory for the manufacture of installed are intended.

Signature.....

Qualification.....

Address.....

Date.....

Note-Where the competent person is a person employed by a company or association the name and address of such

company of association shall be given.]

[Form-I-AA]

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

Combined Application Form for Establishment of Industries

[See Rule-3(i)]

1. This format is to be used for submission to the State Government for Assistance to set up industries, under Orissa Industries (Facilitation) Act, 2004 as amended from time to time.

2. The copy of Industrial Entrepreneur Memorandum (IEM) of Government of India as per Press note No.4 of 1998, dated the 15th June 1998 may be submitted for Large & Medium/Mega industries duly attested by Authorised Signatory of the Industrial Unit.

3. The application should be submitted to the Secretariat for High Level Clearance Authority/State Level Single Window Clearance Authority/ District Level Clearance Authority along with a crossed demand draft for Rs /drawn in favour of the ".....", payable at the Bank Branch.

For Official Use only

Serial No.

Date

_____ Date

_____ Month

_____ Year

Details of Bank Draft

Amounts Rs.

Draft No.

Draft Date

_____ Date

_____ Month

_____ Year

Drawn on

_____ (Name of the Bank)

Payable at

Part A ? General information

1.

Name of Unit

2.

Address for Communication

Telephone _____

PIN _____

FAX _____

E-mail _____

3.

Name, age, father's name and permanent address of the Occupier

Telephone _____

PIN _____

FAX _____

E-mail _____

4.

Category of Unit- (SSI-1, ANC-2, SSSBE-3, TINY-4, EOU-5, L&M-6, MEGA-7)

5.

Location of the unit -

Place/Town :

Tahasil : _____

District : _____

6.

Type of Organisation (Proprietary-1, Partnership-2, Limited Company-3, Cooperative-4, Others-5)

7.

Nature of Activity (Manufacturing/Assembly-01, Processing-02, Job Work-04, Repairing/Servicing-08)

8.

Main items of manufacture/activities (Addition sheet, if required, to be attached)

NIC Code*

Name

(i) _____

(ii) _____

9.

Investment in Fixed Assets (Rs. in lakh)

(i) Land

(ii) Building

(iii) *Plant and Machinery

(Details to be attached)

(a) Indigenous _____

(b) Imported _____

Sub Total

(iv) Other fixed assets

Total

* Should exclude items whose value are not taken into account while computing the investment details in annexure I.

10.

Employment

(i) Managerial & Office Staff

(ii) Supervisory & Workers

11.

Date of Commencement of Production (expected)

12.

Whether the unit is seasonal-1, Continuous-2

13.

Whether the unit will work on General-1, Two shift-2, Round the clock-3

Date _____

Signature of Applicant/Occupier (Authorised Person)

Name of Proprietor/Partner/Managing Director

Details of Plant & Machinery (to be attached if required) Indigenous

Sl. No.

Name of the Machinery

Kilowatt rating

Value (Rs. in '000)

Sub total

Imported

Sl. No.

Name of the Machinery

Value (Rs. in '000)

Sub total

Total _____

Signature of Applicant(Authorised person)

Name of Proprietor/Partner/Managing Director

Annexure-I

Computation of Value of plant & Machinery for determination of SSI status

I. For determining the SSI status the investment in plant & machinery only limits to rupees one crore (Rupees five crores in specialized items; details of items given below)

II. In calculating the value of plant & machinery for the purpose of determination of SSI status, the original price thereof, irrespective of whether the plant & machinery are new or second hand, shall be taken into account.

III. In calculating the value of plant & machinery, the followings shall be excluded, namely; (R)

(i)

The cost of equipments such as tools, jigs, dies moulds and spare parts for maintenance and the cost of consumable stores;

(ii)

The cost of installation of plant & machinery;

(iii)

The cost of Research and Development (R, & D.) equipment and pollution control equipment;

(iv)

The cost of generation sets, extra transformer etc. installed by the undertaking as per the regulation of the State Electricity Board;

(v)

The bank charges and service charges paid to the National Small Industries Corporation of the State Small Industries Corporation;

(vi)

The cost involved in procurement or installation of cables, wiring, bus, bars, electrical control canels (not those mounted on individual machines), oil circuits breakes/miniature circuit breakers etc. which are necessarily to be used for providing electrical power to the plant and machinery/safety measures;

(vii)

The cost of gas producer plant;

(viii)

Transportation charges (excluding of taxes e.g. sales tax, excise etc.) for indigenous machinery from the place of manufacturing to the site of the factory;

(ix)

Charges paid for technical know-how for erection of plant and machinery;

(x)

Cost of such storage tanks which store raw materials, finished products only and are not linked with the manufacturing process; and

(xi)

Cost of fire fighting equipments;

IV. In the case of imported machinery, the following shall be included in calculating the value, namely : (R)

(i)

Import duty (excluding miscellaneous expenses and transportation from the port to the site of the factory, demurrage paid at the port);

(ii)

The shipping charges;

(iii)

Customs charges;

(iv)

Customs clearance charges; and

(v)

Sales Tax;

List of specialised items in SSI Sector having investment of Rs. 5 crores in Plant & Machinery (R)

Produce Code

Name of the items

(1)

(2)

260101

Cotton cloth knitted

260102

Cotton vests knitted

260103

Cotton socks knitted

260104

Cotton undergarments knitted

260106

Cotton shawls knitted

260199

Other cotton knitted wears

260201

Woolen cloth knitted

260202

Woolen vests knitted

260203

Woolen socks knitted

260204

Woolen scarves knitted

206205

Woolen undergarments knitted

260206

Woolen caps knitted

260207

Woolen shawls knitted

260208

Woolen gloves

260207

Woolen mufflers knitted

260299

Other woolen knitted wears.

Art silk/man made Fibre Hosiery

260310

Synthetic knitted socks and stocking

260302

Synthetic knitted under wears such as vest, briefs and drawer.

260304

Synthetic knitted outwears such as jersey slipovers, pullover, cardigans and jackets.

260308

Synthetic knitted children wear such baby suits, knicker, frock, underwear and outerwear.

26030901

Synthetic knitted fabrics except high pile fabric made by silver knitting, and synthetic knitted blankets.

260311

Synthetic knitted swim wear such as trunk and costume.

260312

Synthetic knit wear such as scarf, muffler, shawl, cap, ties, blouse and jean.

260313

Synthetic knitted shirt, T-shirt, Collar shirt and sports-skirts

260314

Synthetic knitted hose

260315

Synthetic knitted gas mantle fabric

260316

Other synthetic knitwear

343101

Hacksaw frames

343102

Pliers

343103

Screw drivers

343104

Spanners

343106

Hammers

343108

Anvils

343109

Wood working saws

343111

Wrenches

343112

Knives and shearing blades (all types including those of metal, paper, bamboo and wood for manual operations

343113

Nail pullers

343114

Chisels

343115

Pincers

343116

Wire cutters

343199

Other hand tools for blacksmithy, carpentry, hand forging, foundry etc."

Stationery Sector

319911

Writing inks and fountain pen inks

387101

Ball point pens

387103

Fountain pens

387104

Pen nibs

387105

Fountain pens and ball pens components excluding metallic tips.

387201

Pencils

387401

Hand stapling machine

387501

Paper pins

387601

Carbon paper

38760210

Typewriter ribbon for mechanical typewriters

387901

Hand numbering machines

387903

Pencil sharpeners

387907

Pen holders

Drugs and Pharmaceuticals Sector

31060101

Para amino phenol-Indi.Grade

310628

Pyrazolones

310650

Benzyl benzoate

310658

Niacinamide

313125

Paracetamol

31315801

Methyl parabens and sodium salt starting from para hydroxy benzoic acid.

31315901

Ethyl parabens and sodium salt starting from para hydroxy benzoic acid.

31319501

Propyle parabens and sodium salt starting from para hydroxy benzoic acid.

3131960

Calcium gluconate

310126

Aluminium hydroxide gel.

Part B ? Information on Infrastructure Required

1.

Extent of Land required (in Square Meters)

Existing

Proposed

(i)

(a) Own

(b) IDCO Land

(c) Government Land

(d) Acquisition of Private Agricultural Ltd.

(e) Acquisition of Private Industrial Land

(f) Land taken on Rent/Lease

(g) And other category of Land

(Forest Land, Schedule area etc. including unidentified land, please specify)

Total

*In case of conversion of agricultural land for industrial purpose, is the applicant entitled for exemption of premium as per provision of IPR.

(a) Built up Area

(b) Open Area

2.

Power (in KVA/KW)

Existing

Proposed

(a) Source of Power

_____ Single phase-1, Three Phase-2 _____

(i) Electricity Company

(ii) Others

(iii) Own Generation

(iv) DG Set

Total

(b) In case of Electricity Company CR No. if addition to
existing supply.

(c) Purpose (Commercial/Industrial/Water Supply/Temporary)

3.

Water

(a) Requirement (in K. Ltrs. per day)

Existing

Proposed

(i) Industrial Use

(ii) Domestic Use

(iii) Others

Total

(b) Source of water supply

Existing

Proposed

(i)

(ii)

(iii)

Total

(c) Plot No. Khata No. & Mouza (in case of ground water)

(d) Particulars of land (for laying of pipeline)

4.

Communication

(a) Roadways to be used

(b) (i) Distance from Railhead (to be used)

(ii) Details

of Rail sidings (if required)

(c) Port to be used

(d) Airport to be used

5.

Mines (if required)

Place :

Date :

Signature of Proprietor/Managing Partner/Managing Director/Authorised Signatory in full on behalf of M/s.....

Part C ? (Additional particulars required by OSPCB to issue Consent for Establishment under Air and Water Act)

1.

Particulars of human habitation within 500 mtrs. of the

factory (Pl. tick which ever is applicable) :

Human Settlement/agriculture/ highway/river stream/forest/
sanctuary/Park/pond/lake/dam/estuary/sea/hills/mountain/industries.

2.

Name of the raw-materials and chemicals used per month :

{|

Sl. No.

Raw Materials/chemicals

Quantity used per month

1

2

3

4

5

|-

| 3.

| Water required/treatment/disposal :

|

|-

|

|

|

Sl. No.

Purpose

Sources (River/ well/ ground water/ others)

Qty./ day

Waste Type

Water Qty. (KL/day)

Treatment Planned

Point/placed of final discharge (land/ sever/ drain/ surface water/soak pit)

1.

Mfg.

2.

Process

3.

Boiler feed

4.

Cooling

5.

Washing

6.

Domestic Others

Total

| -

| 4.

| Details of solid waste generated :

|

| -

|

|

Sl. No.

Source of generation

Qty/ day

Nature (lumps/ granules/ slurry/sludge/ dust)

Mode of disposal

Type of waste (organic/ inorganic/ash/ glass/metal etc.)

1

Mfg. Process

2

Effluent treatment

3

Air pollution control device.

4

Others

| -

| 5.

| Proposal for waste water re-circulation/re-use type and quantity.

| -

| 6.

| Sources of air pollution and control measures proposed :

| -

|

| (i)

|

|-

|

| (ii)

|

|-

|

| (iii)

|

|-

| 7.

| Fuel Consumption

|

|-

|

|

Sl. No.

Fuel consumption (Qty/day)

Coal

Diesel

Furnace Oil

Natural Gas

Others Gas (Specify)

a

Daily consumption

b

Calorific value

c

Ash content %

d

Sulphur content %

e

Other (Specify)

|-

| 8.

| No of persons residing in the factory premises :

|-

| 9.

| Details of STACK

| STACK Nos.

|-

|

| a Attached to

| :1234

|-

|

| b Fuel type

| :

|-

|

| c Fuel quantity

| :

| -

|

| d Material of construction

| :

| -

|

| e Stack height

|

| -

|

| (i) Above the roof (in mtrs)

| :

| -

|

| (ii) Above the ground (in mtrs)

| :

| -

|

| f Diameters/size, in meters

| :

| -

|

| g Gas quantity (m³/hr.)

| :

| -

|

| h Gas temperature (0 C)

| :

| -

|

| i Exit gas velocity, m/sec.

| :

| -

| 10.

| List of Reaction Vessels/Boilers/Furnace/Heating Chambers/Kiln
etc.:

| -

|

|

Name

Nos.

Capacity

Stack height from Ground level (mtrs.)

| -

| 11.

| No of DG sets to be installed and individual capacity :

| -

| 12.

| Other types of pollutions and control measures :

|

| -

|
|

Type

Control Measures

1. Thermal
2. Odour
3. Radio active

|}

Place :

Date :

Signature of Proprietor/Managing

Partner/Managing Director/Authorised Signatory in full on behalf of M/s.....

Part D ? (Additional particulars required by the Commercial Tax Department for issue of Regn. Nos. under Orissa Sales Tax (O.S.T.)/Central Sales Tax (C.S.T.)/Orissa Entry Tax (O.E.T.)/Orissa State Tax on Professions, Trades, Callings & Employment (O.S.T., P.T., C. & E.) Acts and Enrolments No. under O.S.T., P.T. C. & E. Act)

1. Registration under the Acts; Sections/Rules (Put a tick mark whichever is applicable)

O.S.T. Act

U/S 9

U/S 9-A

U/S 9-C

O.E.T. Act

U/S 4

O.S.T., P.T.,

C. & E. Act

U/S 4(1)/6(1)

U/S 5 (1)/8(2)

For both

(For Registration)

(For Enrolment)

2. Particulars of all Other places of Business/Sales outlets/Branches/ Godowns/Warehouses etc.

Sl. No.

Type of Business (Branches/ Godowns/ Warehouses
etc.)

Name & full address

Tel. No.

FAX

E-mail

a

b

3. Particulars of bank accounts :

Sl.

No.

Bank

Branch

Address

Account No.

a

b

c

4. Particulars of immovable properties owned by the dealer/promoter (whether in Orissa or elsewhere in India). In case of Partnership, particulars in respect of all the partners should be furnished.

Description

Location

Nature and extent of proprietary right

Estimated value

5. Particulars of maintenance of accounts :

(a)

Language used :

English/Oriya/Hindi/Others (Please Specify)

(b)

Accounting Year :

Jan-Dec./Apr.Mar/Jul-Jun/Any other period

(c)

Periodicity of closure :

Monthly/Quarterly/Half-yearly/Yearly

6. Particulars of registration certificates, if any, under the Orissa Sales Tax Act and the Central Sales Tax Act held by the dealer/promoter or any partner or any of the member or any Director or any other person associated with business carried on by the dealer/promoter.

Sl. No.

Name of the dealer/ promoter

OSTRC Number/ CSTRC Number

Date of Issue

Name of the Circle under which the dealer/
promoter is presently assessed

Name & dealer/ Address of promoter the
Proprietor/ Partner/ Chairman/ Managing Director

Remarks

1

2

3

7. Registration if any made in the concerned Sales Tax Act of any other State of India (Reference No. to be given)

Sl. No.

Name of the dealer/ promoter

Name of the State where registered

Registration No.

Name of the Circle

Remarks

1

2

3

4

5

6

8. Sales Tax dues, if any, outstanding against the dealer/promoter or any partner, any member or any Director or any person associated with business carried on by the dealer/promoter.

Year to which the dues relate

Whether under OST Act or CST Act

RC Number

Amount outstanding

Reasons for outstanding

Signature of the person against whom the dues are
outstanding

1
2
3
4
5
6

9. The Gross Turnover of the business (including that at its branches) during the period not exceeding twelve months, commencing from..... and ending on..... is Rs..... (in case of application U/S 9 or U/S 9-A of the OST Act).

10. Details of the goods being dealt or proposed to be dealt in, which fall under any of the schedules under the OET Act, 1999.

Sl. No.

Description of Goods

Date of start of business in case of scheduled goods

11. Class of Employer, Put tick mark below the appropriate heading whichever is applicable. (For the purpose of O.S.T., P.T. C. & E. Act):

Individual

Firm

Company

Corporation

Society

Club

Association

12. Number of employees for which deduction of tax will be effected U/S 5 of the Act (For the purpose of O.S.T., P.T., C. & E Act.):

Class of persons

Rate of Tax

Number of Employees

Amount payable every month

Monthly Salaries/Wages

(i)

Do not exceed Rs.5000/-.

(ii)

Exceeds Rs.5000/- but do not exceed Rs.6000/-.

(iii)

Exceeds Rs.6000/- but do not exceed Rs.8000/-.

(iv)

Exceeds Rs.8000/- but do not exceed Rs. 10000/-.

(v)

Exceeds Rs. 10000/- but do not exceed Rs.15000/-.

(vi)

Exceeds Rs.15000/- but do not exceed Rs.20000/-.

(vii)

Exceeds Rs.20000/-

13. Amount of tax payable by the applicant under O.S.T., P.T. C. & E. Act per annum Rs (if the applicant is himself an assessee under the O.S.T., P.T. C. & E. Act.)

14. Income Tax PAN No. of the dealer/promoter and persons having interest in the business.

(a)

PAN No. of the dealer/promoter

(b)

PAN No. of the persons having interest in the business

Sl. No.

Name

PAN No.

15. Name and address of the two reference :

Sl. No.

Name

Residential address

Phone

Office

Residence

Place

Date :

Signature of Proprietor/Managing Partner/Managing Director/Authorised Signatory in full of behalf of M/s.....

The Central Sales Tax (Registration & Turnover) Rules, 1957

Form-A

(See rule 3)

Application for registration under Section 7(1)/7(2) of the Central Sales Tax Act, 1956

To

I, *..... son of.**..... on behalf of the dealer carrying on the business known as within the State of hereby apply for a certificate of registration under Section 7(1)/7(2) of the Central Sales Tax Act, 1956, and give the following particulars for this purpose; (R)

1.

Name of the person deemed to be the Manager in relation to the business of the dealer in the said State :

2.

Status or relationship of the person who makes this application (e.g., manager, partner, proprietor, director, officer-in-charge of the Government business).

3.

Name of the principal place of the business in the said State and address thereof.

4.

Name(s) of the other place(s) in the said State in which business is carried on and address of every such place:

5.

Complete list of the warehouses in the said State in which the goods relating to the business are warehoused and address of every such warehouse.

6.

List of the places of business in each of the other States together with the address of every such place (if separate application for registration has been made, or separate registration obtained under the Central Sales Tax Act, 1956, in respect of any such place of business, particulars thereof should be given in details.)

7.

**The business is

Wholly

Mainly

Partly

Partly

Partly

8.

Particulars relating to the registration,
licence, permission, etc. issued under any law for the timing in
force of the dealer. :

9.

We are members of ***

10.

We keep our accounts in language
and the script.

*** Name(s) and address(es) of the proprietor of
the :

11.

Business/partners of the business/ all person
having any interest in the business together with their age,
father's name etc.

{|

Sl. No.

Name in full

Father's husband's name

Age

Extent of interest in the business

Present address

Permanent address

Signature^

Signature^ and address of witness attesting
signature in Col.8

1

2

3

4

5

6

7

8

9

|-

| 12.

| Business in respect of which this application is
made, was first started on

|

|-

| 13.

| The first sale in the course of interstate trade
was affected on

|

|-

| 14.

| We observe the **** calendar and for
purposes of accounts our year runs from the (English date)
++ day of (Indian date) day of to be (English

date/India date)..... day of

|

|-

| 15.

| We make up our accounts sales to date at the end
of every month/quarter/ half-year/year.

|

|-

| 16.

| The following goods or classes of goods are
purchased by the dealer in the course of inter-State trade or
commerce for-

|

|-

|

| (a)

| [resale]

|

|-

|

| (b)

| use in the manufacture or processing of goods
for sale.....

|

|-

|

| (c)

| use in mining.....

|

|-

|

| (d)

| use in the generation or distribution of
electricity or any other form of power.....

|

|-

|

| (e)

| use in the packing of goods for
sale/resale.....

|

|-

| 17.

| We manufacture, Process, or extract in mining
the following classes of goods or generate or distribute the
following form of power.....

|

|-

| 18.

| The above statements are true to the best of my
knowledge and belief.

|
|}

Name of the applicant in full..

Signature.....

Status in relation to the dealer.

Date.....

Strike out portion or paragraph whichever is not applicable.

Here enter the authority specified in the general or special order issued by the Central Government under Section 7(1) of the Act.

* Here enter the name and style under which the business is carried on

* Here enter the name of the State in which the application for registration is made.

** Enter here whether business is wholly agriculture, horticulture, mining, manufacturing, wholesale, distribution, retail distribution, contracting or catering, etc, or any combination of two or more of them.

++ Here enter the name of the Chamber of Commerce. Trade Association or commercial body of which the dealer is a member.

*** To be filled in if the applicant is not a company.

^ Signature of each of the persons concerned should be obtained and attested.

**** Enter here English, Bengali, Fasli, Hijra, Marwari or other calendar followed.

++ In filling of these entries dealers who do not observe the English calendar should give the dates accordingly to their own calendar and the corresponding date of the English calendar.

Here name the goods or classes of goods against each category.

I. The words "incorporated under the Companies Act, 1956 (1 of 1956), or under any other law" were omitted by G.S.R. 26(E), dated 1.2.1974.

II. Substituted By G.S.R. 896, dated 23.9.1958.

List of Clearance(s) under Combined Application Form for Establishment & Enclosure(s) Required

(Please indicate Y or N or NA in the box for 'Yes' or 'No' or 'Not Applicable' as the case may be against the respective clearances required)

Provisional Registration _____

1. Detail Project Report in case of investment in Plant & Machinery more than Rs.40 lakh and Project Profile for others. IDCO/government Land _____

1. Land documents like Registration/lease/rent Deed (if existing).

2. Building plan drawn to scale indicating set backs.

3. Detailed Land Use Plan.

4. Fees (if any).

Factories And Boilers _____

1. Plans of factory buildings drawn to the scale (in duplicate) showing

* Site of the factory

* Immediate surrounding buildings, roads, rain, etc.

* Elevation and necessary cross sections of various buildings, natural lighting, ventilation and means of escape in case of fire.

* Position of the plant & machineries aisles and passage ways.

2. A flow chart of manufacturing process with details

* Chemicals used at various stages

* Removal of dust, fumes, gases, trade wastes and effluents

3. In case of existing building, certificate of stability issued by a person possessing a degree in Civil or Structural Engineering.

4. Amount of Fee paidChallan Number Dated..... Treasury/Bank name (for fees structure, refer the Orissa Gazette Extraordinary No.357, dated 26.3.1998.

Pollution Control _____

1. Land documents like Registration/tease/rent Deed (if existing).

2. Layout map of factory building along with list of pollution control/monitoring equipments.

3. Project report indicating the proposed capital investment in Pollution Control Measures.
4. Site Plant/Location map/Lay-out plant showing the location of stacks (Chimneys), effluent treatment plant, effluent disposal area, air pollution control devices, hazardous waste treatment and disposal areas.
5. Flow chart of manufacturing of process for each product with quantity of emission/discharge of pollutants.
6. DD No..... Dated..... for Rs..... drawn on in favour of OSPCB towards consent to establish fee under Water and AIR Act separately.

Commercial Tax _____

1. Memorandum and Articles of Association and certificate of incorporation, partnership deed and registration certificate.
2. Purchase/leased/rental deed of the premises.
3. Attested true copies of documents in respect of immovable properties owned by the partners/owners.
4. PAN No.
5. Two copies of recent passport size photograph of the only applicant.
6. Two sheets containing specimen signature of the applicant duly attested by the Gazetted Officer (No photographs and specimen signature are required in case of Cost, societies and Co-op. societies.)
7. A DD/Crossed cheque for Rs towards issue of Registration Certificates and Security Deposit.

Electricity Supply _____

1. Site plan with proposed location details
2. Estimation for connection
3. Security Deposit based on load factor.
4. Prescribed Form for execution of agreement with Division Officer of Electricity Supply Company duly signed by the authorized signatory of the unit.

Water Supply _____

1. Lay-out drawing of the premises showing the holding/ward/plot No., point of connection, length and diameter of the pipe/sewer lines and position of fixtures, inspection chambers and existing sewer lines and manholes in indelible ink. This drawing should be signed by registered PHD contractor and the owner.
2. Update Municipal holding receipt.
3. Approved building drawings - in duplicate, attested by the authorized signatory of the unit (original should be produced for verification and return).
4. Record of Rights of land in original to be produced for verification.
5. Non-refundable fees for scrutiny of plan and supervision as per the chart.

Clearance From Local Development Authorities _____

1. Site plan of the land (in duplicate) (refer Rule 527 of OMR 1953)
2. Building plan showing ground plan of each floor elevations and sections of the building signed by the Architect/licenced Builder/an Engineer/a Surveyor (refer Rule 529 to 549 of OMR 1953).
3. Specification of work as specified in Appendix II of IMR 1953 (in duplicate)
4. A certificate from the Executive Officer/Director of Town Planning or other Officer as authorised stating that the building site is in accordance with development plan of the Municipality duly approved by the Council.

Clearance From Local Bodies _____

No additional document required.

Clearance From Jurisdictional Fire Officer _____

Building plan indicating location of fire fighting equipment arrangements.

Approval for Tourism Related Projects _____

No additional document required.

Approval for Setting up of it Industries _____

No additional document required

Signature of Proprietor/Managing Partner/ Managing Director/Authorised Signatory in full on behalf of M/s.....

Part E ? Special Clearances

Special Clearances as Given Below, if Required (Separate form in duplicate as available with Nodal Agency to be attached)

Clearance;

1. Licence for storage of minerals

2. Licence for storage of explosives
3. Licence under Drug & Cosmetics
4. Licence for Compounding, Blending & Bottling of Foreign Liquor

Signature of Proprietor/Managing Partner/Managing Director/Authorised Signatory in full on behalf of M/s.....

Sl. No. _____

Acknowledgement

Received the Combined Application form No from M/s in complete shape containing pages for obtaining for following clearances for establishment.

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.
- 7.
- 8.

Place :

Date :

Authorised Representative of Nodal Agency for District/State level Authority

II

Combined Application Form for Operation of Industries

[See Rule 3(2)]

1. This format is to be used for submission to the State Government for Assistance to operate industries, under industrial Facilitation Act, 2004 as amended from time to time.
2. The application should be submitted to the Secretariat for High Level Clearance Authority/State Level Single Window Clearance Authority/District Level Single Window Clearance Authority in duplicate along with a crossed demand draft for Rs /drawn in favour of the ".....", payable at the State Bank of India..... Branch.....

For official use only

Serial Number

Date _____ Date _____ Month _____

Year _____

1.

Details of Bank Draft

Amount of Rs.

Draft No.

Draft Date

DateMonthYear

Drawn on

(Name of the Bank)

Payable at

(i)

Name and Address for correspondence of the

Occupier/Promoter/Industrial Undertaking in full. (BLOCK LETTERS)

Name of the Undertaking

Promoter/Occupier

Area

Town

Tehsil/Taluk

District

State

PIN Code

Telephone

FAX

E-mail

(ii)

Register of Companies Registration Number (if registered)

(iii)

Status of the Occupier/Promoter/Industrial Undertaking

(1)

Status of the Occupier/Promoter/Industrial Undertaking (Please tick the appropriate box)

_____ Non-Resident Indian

_____ Proprietorship

_____ Women

_____ Partnership

_____ Scheduled Caste

_____ Private Limited Company

_____ Scheduled Tribe

_____ Public Limited Company

_____ Minority

_____ Others

* Please enclose documents such as

(i) List of Partners/Directors

(ii) Resolution of Partners/Directors nominating one of the Partners/ Directors as Occupier.

(iii) Partnership deed/Memorandum and Articles of Association.

(2)

The name, father's name and address of the manager

Name :

Father's Name :

Address :

(3)

Indicate whether this proposal is for (Please tick the appropriate box)

- ☐ Establishment of a New Undertaking
☐ Change of Location
☐ Effecting Substantial Expansion
☐ Change of Ownership/Name of Company
☐ Manufacture of New Articles
☐ Graduation to Medium Scale
☐ Others*

*Please specify in a separate sheet.

(4)

Whether the proposal is in lieu of any other proposal already acknowledged by any of the Nodal Agencies under the Act-

Yes _____ No _____

(If, yes, indicate the previous reference number and date, attach the previous reference in original)

Reference No.....Date.....

(iv)

Location

Place/Town

Tehsil

District

State

PIN Code

(v)

Scale/Size Industrial Undertaking (Please put (?) in appropriate box)

- ☐ Project Cost < Rs. 50 crores
☐ Project Cost > Rs. 50 crores but < Rs. 1000 crores
☐ Project Cost > Rs. 1000 crores

(2)

Please indicate whether the location is

(a) Within 25 Km. from the periphery of a City having Population above one million according to 1991 Census

Yes _____ No _____

(b) Located in an industrial area/industrial Estate

Yes _____ No _____

(vi)

Item(s) of Manufacture : In case of more than one item supplementary sheets may be used. (Specimen of supplementary sheet is enclosed).

(1) Item of Manufacture*

(a) National Industrial Classification of all Economic

The Orissa Factories Rules, 1950

Activity (NIC), 1987-NIC Code.

(b) Item

Description

(c) Annual Capacity

(d) Existing Capacity (if applicable)

(e) Total Capacity after Expansion

(f) Unit of Capacity

* Not to be filled if no manufacturing is envisaged.

(2) Description of Activities to be undertaken (if, no manufacturing envisaged)

(3) By-Products/Co-Products

NIC Code

Item

Description

Annual Capacity

Existing Capacity, (if applicable)

Total Capacity after expansion

Unit of Capacity

NIC Code

Item

Description

Annual Capacity

Existing Capacity, (if applicable)

Total Capacity after expansion

Unit of Capacity

NIC Code

Item

Description

Annual Capacity

Existing Capacity, (if applicable)

Total Capacity after expansion

Unit of Capacity

(4)

Raw Material (including Components, Intermediates and Packing Materials) per annum.

ITEM(S)

QUANTITY

UNIT

VALUE

(vii)

Whether the item(s) of manufacture/by-product/co-product is covered in Schedule-I (Reserved for Public Sector), Schedule-II (Under compulsory Licensing) or schedule-III (Reserved for manufacture in Small Scale Sector) of Notification No.477(E), dated 25.7.1991/as amended from time to time.

Schedule-I

Schedule-II

Schedule-III

Yes _____

Yes _____

Yes _____

No _____

No _____

No _____

(viii)

Investment

Actual Investment

(a) Land (for rented premises capitalised value of the same to be indicated)

(b) Building

(c) Plant & Machinery

(i) Indigenous

(ii) Imported

(a) CIF Value

(b) Landed Cost

(iii) Total [(i) + (ii) (b)]

(d) Working Capital

(e) Others, if any

Total;

(ix)

Financing Pattern

Actual

(Amount in Rupees)

Total Equity

(i) Resident Indian

(ii) Non-Resident Indian

(iii) Foreign

Total Borrowings-

(i) Public Financial Institution

(ii) Public Borrowing

(iii) Other Sources

Promoter's Contribution

(1) Whether Foreign Technology/Agreement is obtained.

(Please tick appropriate box)

Yes _____ No _____

(if yes, please indicate the details)

(x)

Extent of Land acquired (in Square Meters)

Actual

1. Own

2. IDCOL Land

3. Government Land

4. Agricultural Converted Land

5. Rented

6. Others, if any

Total;

(a) Built up Area

(b) Open Area

(xi)

Power (in KVA/KW)

1. Electricity Company

2. Others

3. Own Generation

4. DG Set

Total;

(xii)

Water Requirement (in K. Ltrs. per day)

1. Industrial Use

2. Domestic Use

3. Others

Total :

(xiii)

Employment

(a) Supervisory

(b) Non-Supervisory

Total :

(xiv)

Date of Commencement of Commercial Production

Date _____

Month _____

Year _____

Declaration

I/We hereby further declare that the above statements are true and correct to the best of my/our knowledge and belief.

Place :

Date :

Signature of Proprietor/Managing Partner/ Managing Director/Authorised Signatory in full/Occupier on behalf of M/s.....

Signature of Manager.....

Sl. No _____

Acknowledgement

Received the Combined Application Form No..... from M/s.....in complete shape containing..... pages for obtaining for following clearances for operation.

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.
- 7.
- 8.

Place :

Date :

Authorised Representative of Nodal Agency for District/State Level Authority

Specimen

Supplementary Sheet Referred to in Column VI*

VI.

Item(s) of Manufacture

(1)

Item of Manufacture:

(a) Item Code (NIC Code) _____

(b) Item

Description _____

(c) Annual Capacity

(d) Unit of Capacity

(2)

By-Product/Co-Products:

NIC Code _____

Item

Description _____

Annual Capacity

Unit of Capacity

NIC Code _____

Item

Description _____

Annual capacity

Unit of Capacity

Place :

Date :

Signature of Proprietor/Managing Partner/
Managing Director/Authorised Signatory
in full on behalf of M/s.....

* To be filled wherever applicable

Part B ? (Additional particulars required by OSPCB/Dir. F & B to issue Consent for Operation under Air and Water Act/Boilers)

1.

Particulars of human habitation within 500 mtrs. of the factory

(Pl. tick which ever is applicable) :

Human Settlement/agriculture/ highway/river stream/forest/
sanctuary/Park/pond/lake/dam/estuary/sea/hills/mountain/industries.

2.

Name of the raw-materials and chemicals used per month :

{|

Sl. No.

Raw Materials/chemicals

Quantity used per month

1

2

3

4

5

|-

| 3.

| Water required/treatment/disposal :

|

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| {|

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| Sl. No.

| Purpose

| Sources (River/ well/ ground water/ others)

| Qty./ day

| Waste Water

| Treatment Planned

| Point/placed of final discharge (land/ sever/
drain/ surface water/soak pit)

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| Type

| Qty. (KL/day)

|-

| 1.

| Mfg.

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}
4.
Details of solid waste generated :
-
{
-
Sl. No.
Source of generation
Qty/ day
Nature (lumps/ granules/ slurry/sludge/ dust)
Mode of disposal
Type of waste (organic/ inorganic/ash/
glass/metal etc.)
-
1
Mfg. Process
-
2
Effluent treatment
-
3
Air pollution control device.
-
4
Others
}
-
5.
Proposal for waste water re-circulation/re-use type and
quantity.

| -

| 6.

| Sources of air pollution and control measures proposed :

| -

|

| (i)

|

| -

|

| (ii)

|

| -

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| (iii)

|

| -

| 7.

| Fuel Consumption

|

| -

|

| {

| -

| Sl. No.

| Fuel consumption (Qty/day)

| Coal

| Diesel

| Furnace Oil

| Natural Gas

| Others Gas (Specify)

| -

| a

| Daily consumption

|

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|

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|

| -

| b

| Calorific value

|

|

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|

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| -

| c

| Ash content %

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| d
| Sulphur content %
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| e
| Other (Specify)
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}
8.
No of persons residing in the factory premises :
-
9.
Working season/operation:
Whole year/Seasonal (Specify the period)
-
10.
Details of STACK
-
Sl. No.
Description
STACK No.
(a)
Attached to
1
2
3
4
(b)
Fuel type
(c)
Fuel quantity
(d)
Material of construction
(e)
Stack height
(i) Above the roof (in mtrs)

(ii) Above the ground (in mtrs)

(f)

Diameters/size, in meters

(g)

Gas quantity (m³/hr.)

(h)

Gas temperature (°C)

(i)

Exit gas velocity, m/sec.

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| 11.

| List of Reaction Vessels/Boilers/Furnace/Heating Chambers/Kiln
etc.:

|-

|

| {

|-

| Name

| Nos.

| Capacity

| Stack height from Ground level (mtrs.)

|-

|

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| }

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| 12.

| No of DG sets to be installed and individual capacity :

|-

| 13.

| Other types of pollutions and control measures :

|

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| {

|-

| Sl. No.

| Type

| Control Measures

|-

| 1

| Thermal

|

|-

| 2

| Odour

|

|-

| 3

| Radio active

|

|}

|}

Place :

Date :

Signature of Proprietor/Managing

Partner/Managing Director/Authorised Signatory in full on behalf of M/s.....

List of Clearance(s) under Combined Application Form for Operation & Enclosure(s) Required

(Please indicate Yes - Y or No - N the box)

Permanent Registration Certificate _____

1. Documents indicating date of power supply
2. Invoice for first purchase of raw materials
3. Documents indicating date of first investment
4. Attested copies of O.S.T. & C.S.T. registration certificate
5. Copy of Agreement with Power Supply Company

Factories and Boilers _____

1. Plans of factory buildings drawn to the scale (in duplicate) showing
 - * Site of the factory
 - * Immediate surrounding buildings, roads, drains, etc.
 - * Elevation and necessary cross sections of various buildings, natural lighting, ventilation and means of escape in case of fire.
 - * Position of the plant & machineries, aisles and passage ways.
2. A flow chart of manufacturing process with details
 - * Chemicals used at various stages
 - * Removal of dust, fumes, gases, trade wastes and effluents
3. In case of existing building, certificate of stability issued by a person possessing a degree in Civil or Structural Engineering.
4. Amount of fee paid Rs (Rupees).....Challan No.....Dated.....Treasury/Bank names..... (for fees structure, refer the Orissa Gazette, Extraordinary No.357. dated 26.3.1998).

Pollution Control _____

1. Land documents like Registration/lease/rent Deed (if existing)
2. Layout map of factory building along with list of pollution control/ monitoring equipments.
3. Project report indicating the proposed capital investment in Pollution Control Measures.
4. Site Plant/Location map/Lay-out plant showing the location of stacks (Chimneys), effluent treatment plant, effluent disposal area, air pollution control devices, hazardous waste treatment and disposal areas.
5. Flow chart of manufacturing of process for each product with quantity of emission/discharge of pollutants.
6. DD No..... Dated..... for Rs..... drawn on..... in favour of OSPCB towards consent to establish fee under Water and AIR Act separately.

Signature of Proprietor/Managing Partner/ Managing Director/Authorised Signatory in full on behalf of M/s.....

Form 2

[Prescribed under Rules 4 and 12]

Application for registration and grant for renewal of licence for the year and notice of occupation specified in Sections 6 and 7

(To be submitted in duplicate)

1. Full name of the factory with factory licence number if already registered from before.....
2. (a) Full postal address and situation of the factory.....
(b)

Full address to which communications relating to the factory should be sent

3. Nature of manufacturing process/processes-

(a)

carried on in the factory during the last twelve months (in the case of factories already in existence).....

(b)

to be carried on in the factory during the next twelve months (in the case of all factories).....

4. Names and values of principal products manufactured during the last twelve months.....

5. (i) Maximum number of workers proposed to be employed on any one day during the year.....

(ii)

Minimum number of workers employed on any one day during the last twelve months.....

(iii)

Number of workers to be ordinarily employed in the factory.....

6. (i) Nature and total amount of power (H. P.) installed or proposed to be installed.....

(ii)

Maximum amount of power (H. P.) proposed to be used.....

7. Full name and residential address of the person who shall be the Manager of the factory for the purposes of the Act.....

8. Full name and residential address of the occupier i.e.,-

(i)

The proprietor of the factory in case of private firm/proprietary concern.....

(ii)

Directors in case of public limited liability company/firm.....

(iii)

Where a Managing Agent has been appointed the name of Managing Agents and Directors thereof.....

(iv)

Share-holders in case a private company where no Managing Agents have been appointed.....

(v)

The Chief Administrative Head in case of a Government of local Fund factory.....

9. Full name and address of the owner of the premises or building (including the precincts thereof) referred to in Section 93.....

10. In the case of a factory constructed or extended after the date of the commencement of the rules-

(a)

reference number and date of approval of the plans for site whether for old or new building and for construction or extension of a factory by the State Government/Chief Inspector.....

(b)

reference number and date of approval of the arrangements, if any, made for the disposal of trade waste and effluents and the note of the authority granting such approval.....

11. Amount of fee Rs.....(Rupees)

(i)

Paid in.....Treasury on.....

(ii)

Vide Challan No.....(enclosed).

Signature of occupier

Date.....

Signature of Manager

Date.....

Note-1. This Form should be completed in block letter or typed.

2. If the power is not used at the time of filling up this Form, but is introduced later the fact should be communicated to the Chief Inspector immediately.

3. If any of the persons named against item 8 is minor the fact should be clearly stated.

4. In the case of a factory, where under the proviso to Sub-sections (1) and (2) of Section 100, a person has been nominated as the occupier, information required in item 8 should be supplied only in respect of that person.

5. In the case of a factory where a Managing Agent or Agents have been appointed as occupiers under the Indian Companies Act, 1913 (VII of 1913), information required in item 8 should be supplied only in respect of that person or

persons.

[Form 3]

[Substituted vide Orissa Gazette Part III/1972-L.E.H. Notfn. No. 13837/2.7.1971.]

[See Rule 12-A]

Notice of change of Manager

1. Name of the factory with current licence number.....
2. Postal address.....
3. Name of the outgoing Manager.....
4. Name of the new Manager with postal address
5. His father's name with postal address.....
6. Date and time of transfer of charge (forenoon or afternoon).....

Signature of new Manager

Signature of Occupier;

Form 4

[Prescribed under Rule 5]

Registration and licence to work a factory

Registration No.....

Fee Rs.

Serial No.....

Licence is hereby granted to valid only for the premises described below for use as a factory employing not more than persons in any one day during the year and using motive power not exceeding H.P., subject to the provisions of the Factories Act, 1948 and the rules made thereunder.

This licence shall remain in force till the 31st day of December, 20..

Chief Inspector of Factories

The 20.....

Description of the licensed premises

The licensed premises shown on Plan No.....dated ; are situated inand consist of

Date of renewal

Date of expiry

Signature of Licensing Authority

Form 5

[Prescribed under Rule 14]

Certificate of Fitness

1.

Serial No... ..

Serial No... ..

Date

Date... ..

2.

Name

I hereby certify that I have personally

examined (name) son/daughter of

... . residing at who is desirous of being

employed in a factory, and that his/her age as nearly as can be

ascertained from my examination, is years, and that

he/she is fit for employment in factory as an adult/child.

His/Her descriptive marks are

... ..

3.

Father's name... ..

4.
Sex... ..

5.
Residence... ..

6.
Date of birth if available and/or certified age... ..
... ..

7.
Physical fitness

8.
Descriptive marks... ..

9.
Reasons for -
(1) refusal of certificate
or
(2) certificate being revoked... ..
Thumb Impression.
Thumb Impression.
Initials of Certifying Surgeon
Certifying Surgeon.
Note - Exact details of cause of physical disability should be clearly stated.
Form 5-A
[Prescribed under Sub-rule 87-A]
Sl. No.
Name of the child certified
Name of the factory
Reference to Folio No. of the Form No. 5
(Certificate of Fitness)
Nature of certificate issued (i.e. original/
renewal of duplicate)
Fees realised
Amount deposited
Treasury Challan No. and date
Remarks
1
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Form 6
[Prescribed under Rule 22]
Humidity Register
Department -
Hygrometer. Distinctive mark or number
Position in department
Date, Year, Month, Day
Reading of Hygrometer.

Between 7 and 9 a.m.

Between 11 a.m. and 2 p.m. (but not in the rest period).

Between 4 and 5.30 p.m.

If no humidity insert none.

Remarks

Dry bulb

Wet bulb

Dry bulb

Wet bulb

Dry bulb

Wet bulb

1st -

2nd -

3rd -

4th -

5th -

6th -

7th -

8th -

9th -

10th -

11th -

12th -

13th -

14th -

15th -

16th -

17th -

18th -

19th -

20th -

21st -

22nd -

23rd -

24th -

25th -

26th -

27th -

28th -

29th -

30th -

31th -

(Signed)

Certified that the above entries are correct

(Signed)

[Form 7]

[Deleted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

[Form 7-A]

[Inserted vide Orissa Gazette Part III/2.12.1977.]

[Prescribed under Rule 55]

Report of examination of hoist or lift

Occupier (or owner) of premises.....

Address

1. (a) Type of hoist or lift and identification number or description

(b)

Date of construction or reconstruction (if ascertained).....

2. Design and construction :

Are all parts of the hoist or lift of good mechanical construction, sound material and adequate strength (so far as ascertainable) ?

3. Maintenance :

Are the following parts of the hoist or lift properly maintained and in good working order ? If not, state what defects have been found-

(a)

Enclosure of hoistway or liftway.....

(b)

Landing gates and cage-gate(s).....

(c)

Interlocks and the landing gates and cage-gate(s).....

(d)

Other gate fastenings.....

(e)

Cage and platform and fittings, guides, buffers, interior of the hoistway or liftway.....

(f)

Overrunning devices

(g)

Suspension ropes or chain and their attachments.....

(h)

Safety gear, i.e., arrangements for preventing fall of platform or cage brakes... ..

(i)

Brakes.....

(j)

Worms or spur gearing

(k)

Other electrical equipment.....

(l)

Other parts.....

4. What parts (if any) were inaccessible.....

5. Repairs, renewal or alterations (if any) required and the period within which they should be executed.....

6. Maximum safe working load subject to repairs, renewals or alterations (if any) specified in item 5.....

7. Others.....

I/We certify that on.....I/we thoroughly examined this hoist or lift and that the above is a correct report of the result.

Signature.....

Countersignature.....

If employed by a company/ association, give name and address

Qualification.....

Address.....

Date.....

Note-Details of any renewals or alteration required should be given in 5 above.]

[Form 8]

[Substituted vide Orissa Gazette Part III/1976-SRO No. 917/76/ 27.8.1976.]

[Prescribed under Rule 56]

Report of examination of pressure vessel or plant

1. Name of occupier (or factory).....
 2. Situation and address of factory..
 3. Name, description and distinctive number of pressure vessel or plant.....
 4. Name and address of manufacture and reference to the test certificate or certificate of competent person.....
 5. Nature of process in which it is used.....
 6. Particulars of pressure vessel or plant-
 - (a)
Date of construction.....
 - (b)
Thickness of walls.....
 - (c)
Date on which the pressure vessel or plant was first taken into use.....
 - (d)
Maximum permissible working pressure.....
 - (e)
Design pressure, if known (the history should be briefly given and the examiner should state whether he has seen the last previous report).....
 7. Date of last hydrostatic test (if any) and pressure applied.....
 8. Is the pressure vessel or plant in open, or otherwise exposed to weather or to damp ?
 9. What parts are if any, inaccessible ?
 10. What examination and tests were made ? (specify pressure if hydrostatic test was carried out)
 11. Condition of pressure vessel or plant (state any defects materially affecting the maximum permissible working pressure or the safe working of the pressure vessel or plant) ExternalInternal.....
 12. Are the required fittings and appliances provided in accordance with the Rules ?
 13. Are all fittings and appliances properly maintained and in good condition? Have the pressure settings been checked and corrected ?
 14. Repairs (if any) required ; and period within which they should be executed ; and any other condition which the person making the examination thinks it necessary to specify for securing safe working.....
 15. Maximum permissible working pressure, calculated from dimensions and from the thickness and other data ascertained by the present examination, due allowance being made for conditions of working if unusual or exceptionally severe (state minimum thickness of walls measured during the examination).
 16. Where repairs affecting the maximum working pressures are required state the working pressure :
 - (a)
Before the expiration of period specified in 14.....
 - (b)
After the expiration of such period if the required repairs have not been completed.....
 - (c)
After the completion of the required repairs.....
 17. Other observations.....
- I certify that on the pressure vessel or plant described above was thoroughly cleansed and (so far as its construction permits) made accessible for thorough examination and for such tests as were necessary for thorough examination and that on the said date, I thoroughly examined this pressure vessel or plant, including its fittings, and that the above is a true report of my examination.
- Signature.....
- Qualification.....
- Address.....
- Date.....
- If employed by a company or association, give name and address
- Form 9
- [Prescribed under Rule 78]

Register of compensatory holidays

Sl. No.

Number in the register of workers

Name

Group or Relay no.

No. and date of exempting order.

Year.

1

2

3

4

5

6

Weekly rest days lost due to the exemption in-

Date of compensatory holidays given in -

Lost rest days carried to the next year.

Remarks.

January to March

April to June.

July to September.

October to December.

January to March.

April to June.

July to September.

October to December.

7

8

9

10

11

12

13

14

15

16

Form-10

Combined Register of Overtime Working and Payment

Sl. No.

Name of the Employee/ Father's name/ Husband's
name

Sex

Designation

Emp. No/ Sl. No. in register of employees

Particulars of O.T. Worked

Department

Date

Hours

Normal rate of the wages per hour/ day

Overtime rate of wages per hour

Total O.T. earning

Signature of the employee

Signature of the paying authority

Date on which O.T. wages paid

Signature of the Manager

Form 10-A

[Prescribed under Rule 79-C]

1. Name of worker.....

2. Department or Section.....

3. Number in Register (Badge or Muster-Roll No.)

4. Date on which overtime work has been done....

5. Hours of overtime work, from.....to..... production in case piece workers

6. Normal working hours/normal rate of wages.....

7. Overtime rate of wages Rs.....

8. Overtime wage.....

Signature of Manager

Form No.11

(Prescribed under Rules 80 & 86)

Notice of period of work

Name of factory.....

Period of work.

Men (adult)

Groups

Total number of men employed.

A

B

C

D

E

Relays

1

2

3

1

2

3

1

2

3

1

2

3

1

2

3

On working days

From 6 A.M. to 2 P.M. from 2 P.M.

To 10 A.M. From 12 midnight To 6 A.M.

From.....

To.....

On partial working days

From.....

To.....

Women (adult)

Children

Total number of women employed

Total number of children employed

F

G

H

I

J

K

L

M

N

1

2

3

1

2

3

1

2

3

1

2

3

1

2

3

1

2

1

2

1

2

1

2

Description of Group

Remarks

Group letter

Nature of work

ABCDE

Date on which this notice first exhibited

(Signed)

Manager

N.B. : - "1" - 1st shift

"2" - 2nd shift

"3" - 3rd shift

"4" - 4th shift

Form No.12

(Prescribed under Rules 81 & 87)

Register of workers (Adult & Child)

Name of Address.....

Factory

Workers distinguishing

number [P.F. code number]

Name

Father's Name

Home Address

Residential Address

Date of first

employment

Age at the time of

employment

No. of certificate and

its date in case of child.

Village

P.S.

District

1

2

3

4

5

6

7

8

9

10

Token number giving

reference to certificate (in case of child)

Nature of work

If working under an

exemption state corresponding Rules

Number of general

certificate of fitness if an adolescent

Letter of group as in

Form No.11

Rate of wage per

Remark

Date of discharge

Time

Pieces

Total weekly hours

11

12

13

14

15

16

17

18

19

20

[Form 13]

[Deleted vide O.G.E. No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

[Form 14]

[Deleted vide O.G.E. No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

Form 15

[Prescribed under Rules 88 and 89]

Register of leave with wages

Name of Factory.....

Serial No.....

Adult/Child.....

Department.....

Name.....

Serial No. in Register of Adult/child workers.....

Father's name.....

Date of entry into service.....

Date of discharge.....

Date and amount of payment made in lieu of leave due.....

Calendar year of service

Wage period from.... to....

Number of days worked during the calendar year

Leave of credit

Wage earned during the wage period

Number of days or work performed

Number of days of lay-off

Number of days of maternity leave

Number of days of leave enjoyed

Total of Cols. 4 to 7

Balance of leave from preceding year

Leave earned during the year during o the year mentioned in Col. 1

1

2

3

4

5

6

7

8

9

10

Total of Cols. 9 and 10

Whether leave in accordance with scheme under

Sec. 79(8) was refused

Leave enjoyed from.... to....

Balance of leave to credit

Normal rate of wages

Cash equipment of advantage on accruing through consessional sale of foodgrains and other articles

Rate of wages for the leave (Total of Cols. 15

and 16)

Remarks

11

12

13

14

15

16

17

18

[Form 16]

[Deleted vide Orissa Gazette Part III/25.7.1958-Notification No. 4970/19.7.1958.]

Form 17

[Prescribed under Rule 14]

Health Register

(In respect of persons employed in occupations declared to be dangerous operations under Section 87)

Name of Certifying Surgeon :

(a)

Shri.....From.....To.....

(b)

Shri.....From.....To.....

(c)

Shri.....From.....To.....

Serial No.

Works No.

Name of workers.

Sex.

Age (last birthday).

Date of employment on present work.

Date of leaving or transfer to other work.

Reason of leaving or transfer or discharge.

Nature of job occupation.

1

2

3

4

5

6

7

8

9

Raw material or by-products handled.

Date of medical examination by Certifying Surgeon

If suspended from works, state period of
suspension with detailed reasons.

Re-certified fit to resume duty on (with
signature of Certifying Surgeon).

If Certificate of unfitness or suspension issued
to worker.

Signature, with date, of Certifying Surgeon.

Result of Medial Examination.

- 10
- 11
- 12
- 13
- 14
- 15

Note - (i) Column 8 - Detailed summary of reasons for transfer or discharge should be stated.

(ii)

Column 11 - Should be expressed as fit/unfit/suspended.

[Form No. 18]

[Substituted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

Notice of accidents/dangerous occurrence (resulting/not resulting in death or bodily injury)

[Prescribed under Rule 97]

1.

(i) Name of Occupier/Manager

:

(ii) E.S.I. Employers'/Employee Code Number

:

2.

Name and address of the factory :

:

3.

Name of principal products manufactured

:

4.

Specify the exact place where the accident/dangerous occurrence took place

:

5.

Name and address of the injured person

:

6.

(a) Sex

:

(b) Age

:

(c) Occupation of the injured person

:

7.

Local E.S.I. office of which the injured person is attached

:

8.

Date, shift and hour of accident or dangerous occurrence

:

9.

(a) Hour at which the injured person started work on the day of accident or dangerous occurrence

:

(b) Whether wages in full or part are payable to him for the day of accident or dangerous occurrence

:

10.

Cause of accident or dangerous occurrence

:

(a) If caused by machinery-

(i) give name of the machine or dangerous occurrence.

(ii) state whether it was moved by mechanical power that time.

(b) State exactly what the injured person was doing at that time.

(c) In your opinion, was the injured person, at that time or accident or dangerous occurrence.

(i) acting in contravention of provisions of any law applicable to him, or

(ii) acting contravention of any orders given by or on behalf of his employer, or

(iii) acting without instruction from his employer

(d) In case reply to the item(s) (i), (c) (ii) or (c) (iii) is in the affirmative, state whether the act was done, for the purpose of or in connection with the employers trade or business.

11.

In case the accident or dangerous occurrence happened while meeting emergency, state-

:

(i) Its nature

(ii) whether the injured person at the time of accident was employed for the purpose of his employer's trade or business in or about the premises at which the accident took place.

12.

Describe briefly how the accident/ dangerous occurrence occurred :

:

13.

Name and address of witness :

:

1.

2.

3.

14.

Nature and extent of injury (e.g. fatal, loss of limbs, fracture, of limbs, scald or scratch and followed by sepsis and loss of eye-sight, etc.)

:

15.

(a) If the accident is not fatal, state whether the injured person was disable for more than forty-eight hours, (b) Date and hour of return to work

:

16.

(a) Physician, dispensary or hospital from whom or in which

the injured person received or is receiving treatment.

(b) Name of dispensary/Panel doctor elected by the injured, person.

17.

(i) Has the injured person died ?

(ii) If so, date of death

I certify that, to the best of my knowledge and belief, the particulars are correct in every respect.

Signature (Manager)

(This space is to be completed by the Inspector of Factories)

District

Date of receipt.....

No. of accidents or dangerous occurrence

Causation

Other particulars (e.g. fatal, leg injury, arm injury, etc.)

Date of investigation :-

Result of investigation :-

N.B. Strike out which are not applicable.

[Form 18-A]

[Deleted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

Form 19

[Prescribed under Rule 98]

Notice of poisoning or disease

(To be filled in by the Chief Inspector)

No. of case.....

Remarks.....

(See Instruction on reverse)

1.

Name of factory.....

Factory particulars

2.

Address of factory.....

3.

Address of the office or private residence of occupier

4.

Nature of industry.....

Person affected

5.

Name and works number of patient.....

6.

Address of patient.....

7.

Sex and age of patient.....

8.

Precise occupation of patient.....

General

9.

Nature of poisoning or disease from which particulars patient is suffering.....

10.

Has the case been reported to the Certifying Surgeon ?

Signature of Factory Manager

Date.....

Notice of poisoning or disease

Please refer to Section 89 of Factories Act, 1948 and Rule 98 of Orissa Factories Rules, 1950.

Form 20

[Prescribed under Rule 100]

Abstract of the Factories Act, 1948 and the Orissa Factories Rules, 1950

(To be fixed in a conspicuous convenient place at or near the main entrance to the factory)

Interpretation-"Factory" means any premises including the precincts thereof-

(i)

whereon ten or more workers are working or were working, on any day of the preceding twelve months, and in any part of which a manufacturing process is being carried on with the aid of power or is ordinarily so carried on; or

(ii)

whereon twenty or more workers are working, or were working on any day of the preceding twelve months, and in any part of which a manufacturing process is being carried on without the aid of power, or is ordinarily so carried on, but does not include a. mine subject to the operation of the Indian Mines Act, 1923 (IV of 1923), or a railway running shed.

"Worker" means a person employed, directly or through any agency, whether for wages or not, in any manufacturing process, or in cleaning any part of the machinery or premises used for a manufacturing process, or in any other kind of work incidental to or connected with, the manufacturing process, or the subject of the manufacturing process.

"Manufacturing process" means any process for making, altering, repairing, ornamenting, finishing, packing, oiling, washing, cleaning, breaking up, demolishing or otherwise treating or adapting any article or substance with a view to its use, sale, transport, delivery or disposal, or pumping oil, water or sewage, or generating, transforming or transmitting power, or printing by letter press, lithography, photogravure or other similar work or bookbinding, which is carried on by way of trade or for purposes of gain, or incidentally to another business so carried on, or constructing, reconstructing, repairing, refitting, finishing or breaking up ships or vessels.

Working hours, Holidays, Intervals for Rest, etc.

1. Hours of work (Adults) [Sections 51 and 54]-No adult worker shall be required or allowed to work in factory for more than 48 hours in any week and for more than 9 hours in any day.

2. Relaxation of hours of work (Adults) (Section 64]-The ordinary limits on working hours of adults may be relaxed in certain special cases, e.g., workers engaged on urgent repairs ; in preparatory or complementary work which must necessarily be carried on outside the limits laid down for the general working of the factory ; in work which is necessarily so intermittent that the intervals during which they do not work while on duty ordinarily amount to more than the intervals for rest ; in work which for technical reasons must be carried on continuously throughout the day in working or supplying articles of prime necessity which must be made or supplied everyday ; in a manufacturing process which cannot be carried on except during fixed seasons, or not at time dependent on the irregular action of natural forces ; in engine rooms or boiler houses or in attending to power plant or transmission machinery.

Except in the case of urgent repairs, the relaxation shall not exceed the following limits :

(i)

the total number of hours of work on any day shall not exceed ten;

(ii)

the total number of hours of overtime work shall not exceed 50 for any one quarter;

(iii)

the spread over inclusive of intervals for rest shall not exceed 12 hours in any one day.

In the case of any or all adult workers in any factory, the ordinary limits on working hours of adults may be relaxed, for a period or periods not exceeding in the aggregate 3 months in any year, to enable the factory to deal with an exceptional pressure of work.

3. Payment for over-time [Section 59]-Where a worker works in a factory for more than 9 hours in any day or for more than 48 hours in any week he shall, in respect of over time work, be entitled to wages at the rate of twice his ordinary rate of wages.

4. Exemption of supervisory staff [Section 64 and Chapter-VI of the Act]-Working hours of adults does not apply to persons holding positions of supervision or management or employed in a confidential position in a factory.

5. Weekly holiday (Adults) (Section 52)- No adult worker shall be required or allowed to work in a factory on the first day of the week unless he has, or will have, a holiday for a whole day on one of the three days immediately before or after the said day, and the Manager of the factory has, before the said day or the substituted day, whichever is earlier, delivered, a notice at the office of the Inspector of his intention to require the Worker to work on the said day and of the day which is to be substituted, and displayed a notice to that effect in the factory :

Provided that no substitution shall be made which will result in any worker working for more than ten days consecutively without a holiday for a whole day.

Where a worker in a factory, as a result of exemption from the ordinary provision relating to weekly holidays is deprived of any of the weekly holidays, he shall be allowed, within the month in which the holidays were due to him or within the two months immediately following that month, compensatory holidays of equal number to the holidays so lost.

6. Intervals for rest (Adults) [Sections 55 and 56]-The periods of work of adult workers in a factory each day shall be so fixed that no period shall exceed 5 hours before he has had an interval for rest of at least half an hour and that inclusive of his intervals for rest they shall not spread over more than 10 hours in any day or, with permission of the Chief Inspector in writing, 12 hours.

7. Prohibition of double employment [Sections 60, 71 and 99]-No child or except in certain circumstances an adult worker, shall be/required or allowed to work in any factory on any day on which he has already been working in any other factory.

If a child works in a factory on any day on which he has already been working in another factory, the parents or guardian of the child or the person having custody of or control over him or obtaining any direct benefit from his wages shall be punishable with fine, which may extend to Rs. 50 unless it appears to the Court that the child so worked without the consent or connivance of such parent, guardian or person.

8. Prohibition of employment of children under Section 67- No child who has not completed his fourteenth year shall be required or allowed to work in any factory.

9. Hours of work (Children) [Section 71]-No child shall be employed or permitted to work in any factory for more than 4 hours in any day and between the hours of 7 p. m. and 6 a. m. The periods of work of all children employed in a factory shall be limited to two shifts which shall not overlap or spread over more than 5 hours each and each child shall be employed in only one of the relays.

The provision relating to weekly holidays shall also apply to child workers and no exemption from this provision may be granted in respect of any child.

10. Prohibition of employment of women [Section 66]-No woman shall in any circumstances be employed in any factory for more than 9 hours in any day or between the hours of 7 p.m. to 6. a.m.

Leave with wages

11. Leave with wages [Sections 79, 80 and 83 and Rules]-(1) Every worker who has worked for a period of 240 days or more in factory during a calendar year shall be allowed during the subsequent calendar year, leave with wages-

(i)

If an adult, one day for every twenty days of work performed by him during the previous calendar year;

(ii)

If a child, one day for every fifteen days of work performed by him during the previous calendar year.

For the purpose of computation of the period of 240 days or more,

(a)

any day of lay-off, by agreement or contract or as permissible under the Standing Orders ;

(b)

in the case of a female worker, maternity leave for any number of days not exceeding twelve weeks ; and

(c)

the leave earned in the year prior that in which the leave is enjoyed;

shall be deemed to be days on which the worker has worked in a factory but he shall not earn leave for these days.

The leave admissible, shall be exclusive of all holidays whether occurring during or at either end of the period of leave.

(2)

For the leave allowed to him a worker shall be paid at a rate equal to the daily average of his total full time earnings for the days on which he worked during the month immediately preceding his leave, exclusive of any overtime and bonus but inclusive of dearness allowance and the cash equivalent of the advantage accruing the concessional sale to the

worker of foodgrains and other articles.

(3)

A worker whose service commences, otherwise than on the first day of January shall be entitled to leave with wages at the rate of, if an adult, one day for every twenty days of work performed by him and if a child one day for fifteen days or of work performed by him if he has worked for two-thirds of the total number of days in the remainder of the calendar year.

(4)

If a worker is discharged during the course of the year, he shall be entitled to leave with wages even if he has not worked for the entire period entitling him to earn leave.

(5)

In calculating leave under this section, fraction of leave of half a day or more shall be treated as one full day's leave, and fraction of less than half a day shall be omitted.

(6)

If a worker does not in any one calendar year take the whole of the leave allowed to him, any leave not taken by him shall be added to the leave to be allowed to him in the succeeding calendar year :

Provided that the total number of days of leave that may be carried forward to a succeeding year shall not exceed thirty in the case of an adult or forty in the case of a child;

Provided further that a worker, who has applied for leave with wages but has not been given such leave in accordance with any scheme laid down, shall be entitled to carry forward the unavailed leave without any limit.

(7)

A worker may at any time apply in writing to the Manager of a factory not less than fifteen days before the date on which he wishes his leave to begin, to take all the leave or any portion thereof allowable to him during the calendar year :

Provided that the application shall be made not less than thirty days before the date on which the worker wishes his leave to begin, if he is employed in a public utility service as defined in Clause (n) of Section 2 of the Industrial Disputes Act, 1947 (XIV of 1947) :

Provided further that the number of times in which leave may be taken during any year shall not exceed three.

(8)

If a worker wants to avail himself of the leave with wages due to him to cover a period of illness, he shall be granted such leave even if the application for leave is not made within the time specified and in such a case wages as admissible shall be paid not later than fifteen days, or in the case of a public utility service not later than thirty days from the date of application for leave.

If the employment of a worker who is entitled to leave is terminated by the occupier before he has taken the entire leave to which he is entitled, or if having applied for and having not been granted such leave, the worker quits his employment before he has taken the leave, the occupier of the factory shall pay him the amount payable in respect of the leave not taken, and such payment shall be made where the employment of the worker is terminated by the occupier, before the expiry of the second working day after such termination, and where a worker who quits his employment, on or before the next pay day.

The Manager shall maintain a leave with wages register in the prescribed Form No. 15 and shall provide each worker with a book called the "Leave Book" in the prescribed Form No. 16. The Leave Book shall be the property of the workers and the Manager or his agent shall not demand it except to make entries of the dates of holidays, or interruptions in service and shall not keep it for more than a week at a time. If a worker loses his Leave Book, the Manager shall provide him with another copy on payment of one anna and shall complete it from his record.

Health

12. Cleanliness [Section 11]-Except in cases specially exempted, all inside walls and partitions, all ceilings or tops of rooms and all wall sides and tops of passages and staircases in a factory shall be kept white-washed or colour-washed. The white-washing or colour washing shall be carried out at least once in every period of fourteen months. The floors of every work-room shall be cleaned at least once in every week by washing or using disinfectant, where necessary, or some other method.

13. Disposal of wastes and effluents [Section 12]-Effective arrangements shall be made in every factory for the disposal of waste and effluents due to the manufacturing process carried on therein.

14. Ventilation and temperature [Section 13]-Effective and suitable provision shall be made in every factory for securing

and maintaining in every work-room adequate ventilation by the circulation of fresh air and such a temperature as will secure to workers therein reasonable conditions or comfort and prevent injury to health.

15. Overcrowding [Section 76]-Unless exemption has been granted there shall be in every work-room of a factory in existence on the 1st April, 1949 at least 350 cubic feet and of a factory built after this date at least 500 cubic feet of space for every worker employed therein and for this purpose no account shall be taken of any space which is more than 14 feet above the level of the floor of the room.

16. Lighting [Section 17]-In every part of a factory where workers are working or passing, there shall be provided and maintained sufficient and suitable lighting, natural or artificial or both.

17. Drinking water [Section 18]-In every factory effective arrangements shall be made to provide and maintain at suitable points, conveniently situated for all workers employed therein a sufficient supply of wholesome drinking water.

In every factory wherein more than 250 workers are ordinarily employed the drinking water shall, during the hot weather, be cooled by ice or other effective methods. The cooled drinking water shall be supplied in every canteen, lunch room and rest room and also at conveniently accessible points throughout the factory.

18. Latrines and urinals [Section 19 and Rules]-In every factory sufficient latrine and urinal accommodation of the prescribed type (separate enclosed accommodation for male and female workers) shall be provided conveniently situated and accessible to workers at all times while they are at the factory. Every latrine shall be under cover and so partitioned off as to secure privacy and shall have a proper door and fastenings. Sweepers shall be employed whose primary duty it would be to keep clean latrines, urinals and washing places.

19. Spittoons [Section 20]-In every factory, there shall be provided a sufficient number of spittoons of the type prescribed in convenient places and they shall be maintained in a clean and hygienic condition. No person shall spit within the premises of a factory except in the spittoons provided for the purpose. Whoever spits in contraventions of this provision shall be punishable with fine not exceeding five rupees.

Safety

20. Fencing of machinery [Section 21]-In every factory dangerous parts of machines, e.g., every moving part of a prime mover and every flywheel connected to a prime mover, etc., shall be securely fenced by safeguards of substantial construction which shall be kept in position while the parts of machinery they are fencing are in motion or in use.

21. Work on or near machinery in motion [Section 22]-No woman or child shall be allowed in any factory to clean, lubricate or adjust any part of the machinery while that part is in motion, or to work between moving parts or between fixed and moving parts of any machinery which is in motion.

22. Employment of young persons on dangerous machinery [Section 23]-No young person shall work at any machine declared to be dangerous unless he has been fully instructed as to the dangers arising in connection with the machine and the precautions to be observed and has received sufficient training in work at the machine or is under adequate supervision by a person who has a thorough knowledge and experience of the machine.

23. Casing of new machinery [Section 26]-In all machinery driven by power and installed in any factory after the 1st April, 1949, every set screw, bolt or key on any revolving shaft, spindle, wheel or pinion shall be so sunk, encased or otherwise effectively guarded as to prevent danger ; all spur, worm and other toothed or friction gearing which does not require frequent adjustment while in motion shall be completely encased, unless it is so situated as to be as safe as it would be, if it were completely encased.

Whoever sells or lets on hire or as agent of a seller or hirer, causes or procures to be sold or let on hire, for use in a factory any machinery driven by power which does not comply with these provisions, shall be punishable with imprisonment for a term which may extend to three months or with fine which may extend to five hundred rupees or with both.

24. Prohibition of employment of women and children near cotton openers [Section 27]-No woman or child shall be employed in any part of a factory for pressing cotton in which a cotton opener is at work.

25. Excessive weights-[Section 34]-No woman or young person shall be unaided by another person lift, carry or move by hand or on head, any material, article, tool or appliance exceeding the following limits :

Adult female

...

65 lbs.

Adolescent male

...

65 lbs.

Adolescent female

...

45 lbs.

Male child

...

35 lbs.

Female child

...

30 lbs.

26. Protection of eyes [Section 35]-Effective screens or protection of persons which involve risk of suitable goggles shall be provided for the employed in or in the vicinity of processes injury to the eyes from particles or fragments thrown off in the course of the process or which involve risk of injury to the eyes by reason of exposure to excessive light.

27. Precautions in case of fire [Section 36]-Every factory shall be provided with adequate means of escape in case of fire for the persons employed therein. The doors affording exit from any room shall, unless they are of the sliding type be constructed to open outwards. Every window, door or other exit affording a means of escape in case fire, other than the means of exit in ordinary use, shall be distinctively marked. Effective and clearly audible means of giving warning in case of fire to every person employed in the factory shall be provided. Effective measures shall be taken to ensure that wherein more than twenty workers are ordinarily employed in any place above the ground floor, or wherein explosive or highly inflammable materials are used or stored, all the workers are familiar with the means of escape in case of fire and have been adequately trained in the routine to be followed in such case.

Welfare

28. Washing facilities [Section 42]-In every factory adequate and suitable facilities for washing shall be provided and maintained for the use of the workers therein. Such facilities shall include soap and nail brushes or other suitable means of cleaning and the facilities shall be conveniently accessible and shall be kept in a clean and orderly condition.

If female workers are employed, separate facilities shall be provided and so enclosed or screened that the interiors are not visible from any place where persons of the other sex work or pass.

29. Facilities for storing and drying clothing [Section 43 and' Rules]-In the case of certain dangerous operation, e. g. lead processes, liming and tanning of raw hides and skins etc., suitable places for keeping clothing not worn during working hours and for the drying of wet clothing shall be provided and maintained.

30. Facilities for sitting [Section 44]-In every factory suitable arrangements for sitting shall be provided and maintained for all workers obliged to work in a standing position in order that they may take advantage of any opportunities for rest which may occur in the course of their work.

31. First-aid and Ambulance Room [Section 45]-There shall in every factory be provided and maintained so as to be readily accessible during all working hours first-aid boxes of cupboards equipped with the prescribed contents. All such boxes and cupboards shall be kept in the charge of a responsible person who is trained in first-aid treatment and who shall always be available during the working hours of the factory.

In every factory wherein more than 500 workers are employed there shall be provided and maintained an ambulance room of the prescribed size and containing the prescribed equipment. The ambulance room shall be in charge of a qualified medical practitioner assisted by at least one qualified nurse and such other staff as may be prescribed.

32. Canteens [Section 46 and Rules]-In specified factories where in more than 250 workers are ordinarily employed, a canteen or canteens shall be provided and maintained by the occupier for the use of the workers. Food, drink and other items served in the canteen shall be sold on a nonprofit basis and the prices charged shall be subject to the approval of a Canteen Managing Committee which shall be appointed by the Manager and shall consist of an equal number of persons nominated by the occupier and elected by the workers. The number of elected workers shall be in the proportion of 1 for every 1,000 workers employed in the factory provided that in no case shall be more than 5 or less than 2 workers on the Committee. The Committee shall be consulted from time to time-on to the quality and quantity of foodstuffs to be served in the canteen, the arrangement of the menus, etc.

33. Shelters, rest-rooms and lunch-rooms [Section 47]-In every factory wherein more than 150 workers are ordinarily employed, adequate and suitable shelters or rest-rooms and suitable lunch-room, with provision for drinking water, where workers can eat meals brought by them shall be provided and maintained for the use of the workers.

34. Creches [Section 48 and Rules]-In every factory wherein more than 50 women workers are ordinarily employed there shall be provided and maintained a suitable room or rooms for the use of children under the age of six years of such women. The creche shall be adequately furnished and in particular there shall be one suitable cot or a cradle with the necessary bedding for each child, at least one chair or equivalent seating accommodation for the use of the mother while she is feeding or attending to her child and a sufficient supply of suitable toys for older children.

There shall be in or adjoining the creche a suitable wash-room for the washing of the children and their clothing. An adequate supply of clean clothes, soap and clean towels shall be made available for each child while it is in the creche. At least half a point of clean pure milk shall be available for each child on everyday it is accommodated in the creche and the mother of such a child shall be allowed in the course of her daily work suitable intervals to feed the child. For children above two years of age, there shall be provided, in addition, an adequate supply of wholesome refreshment. A suitable fenced and shady open air play-ground shall be provided for the older children.

35. Welfare Officers [Section 49]-In every factory wherein 500 or more workers are ordinarily employed the occupier shall employ in the factory such number of Welfare Officers as may be prescribed.

Special Provisions

36. Dangerous operations [Section 87 and Rules]-Employment of women, adolescents and children is prohibited or restricted in certain operations declared to be dangerous e. g., manufacture of aerated water, electroplating manufacture and repair of electric accumulators, glass manufacture, grinding or glazing of metals, manufacture and treatment of lead and certain compounds of lead, generating petrol gas from petrol, sand-blasting and liming and tanning of raw hides and skins.

37. Notice of accidents [Section 88 and Rules]-Where in any factory an accident occurs which causes death or which causes bodily injury by reasons of which he is prevented from working for a period of 48 hours or more, immediately following the accident or which, though not attended by personal injury or disablement, is one of the following types :

(i)

bursting of a vessel used for containing steam under pressure greater than atmospheric pressure other than plant which comes within the scope of the Indian Boilers Act;

(ii)

collapse or failure of a crane, derrik, winch, hoist or other appliances used in raising or lowering persons or goods or any part thereof, or the overturning of a crane;

(iii)

explosion or fire causing damage to any room or place in which persons are employed, or fire in rooms of cotton pressing factories where a cotton opener is in use;

(iv)

explosion of a receiver or container used for the storage at a pressure greater than atmospheric pressure of any gas or gases (including air) or any liquid or solid resulting from the compression of gas;

(v)

collapse or subsidence of any floor, gallery, roof, bridge, tunnel, chimney wall or building forming part of a factory or within the compound or curtilage of factory.

The Manager of the factory shall forthwith send notice thereof to the Chief Inspector. If the accident is fatal or of such a serious nature that it is likely to prove fatal, notice shall also be sent to the District Magistrate or the Sub-divisional Officer and the Officer-in-charge of the nearest police-station.

38. Notice of certain diseases [Section 89 and Rules]-Where any worker in a factory contracts any of the following diseases the Manager of the factory shall send notice thereof forthwith both to the Chief Inspector and the Certifying Surgeon.

Lead, phosphorus, mercury, manganese, arsenic, carbon bisulphide or benzene poisoning ; or poisoning by nitrous fumes, or by halogens or halogen derivatives or the hydrocarbons of the aliphatic series ; or of chrome ulceration, anthrax, silicosis, toxic anaemia, toxic jaundice, primary opitheliomatous cancer of the skin, or pathological manifestations due to radium or other radio active substances or X-rays.

39. No charge for facilities and conveniences [Section 1147]-No fee or charge shall be realised from any worker in respect of any arrangements or facilities to be provided or any equipments or appliances to be supplied by the occupier under the provisions of the Act.

40. Powers of Inspectors [Sections 9 and 82]-Inspectors have power re-inspect factories any time and may require the

production of Registers, certificates etc., prescribed under the Act and the Rules.

Any Inspector may institute proceedings on behalf of any worker to recover any sum required to be paid by an employer under the provisions relating to leave with wages, which the employer has not paid.

41. Obligations of workers [Sections 97 and 117]-No worker in a factory-

(i)
shall wilfully interfere with or misuse any appliance, convenience or other things provided in a factory for the purposes of securing the health safety or welfare of the workers therein;

(ii)
shall wilfully and without any reasonable cause do anything likely to endanger himself or others; and

(iii)
shall wilfully neglect to make use of any appliance or other thing provided in the factory for the purpose of securing the health or safety of the workers therein.

If any worker employed in a factory contravenes any of these provisions or any rules or orders made thereunder, he shall be punishable with imprisonment for a term which may extend to three months, or with fine which may extend to Rs. 100 or with both.

If any worker employed in a factory contravenes any provision of the Act or any Rules or orders made thereunder imposing any duty or liability on workers he shall be punishable with fine which may extend to Rs. 20.

42. Certificates of Fitness [Sections 68, 70 and 98]-No child who has completed his fourteenth year or an adolescent shall be required or allowed to work in any factory unless a Certificate of Fitness granted with reference to him is in the custody of the Manager of the factory and such child or adolescent carries, while he is at work, a token giving a reference to such certificate. Any fee payable for such a certificate shall be paid by the occupier and shall not be recoverable from the young person, his parents or guardian.

An adolescent who has been granted a Certificate of Fitness to work in a factory as an adult and who while at work in a factory carries a token giving reference to the certificate shall be deemed to be an adult for all the purposes of the provisions of the Act relating to the working hours of adults and the employment of young persons. An adolescent who has not been granted a Certificate of Fitness to work in a factory as an adult shall, notwithstanding his age, be deemed to be a child for all the purposes of the Act.

Whoever knowingly uses or attempts to use, as a Certificate of Fitness granted to himself a certificate granted to another adolescent to work in a factory as an adult, or who having procured such a certificate knowingly allows it to be used or an attempt to use it to be made, by another person, shall be punishable with imprisonment for a term which may extend to one month or with fine which may extend to Rs. 50 or with both.

43. Registers, notices and returns [Sections 61, 63, 72, 74, 79, 80 and 110] -A register of adult workers in the prescribed Form No. 12 and a register of child workers in the prescribed Form No. 14 shall be maintained by the Manager of every factory.

A notice of periods of work for adults and children in the prescribed Form Nos. 11 and 13 shall be correctly maintained and displayed in every factory. No adult worker or child shall be required or allowed to work in any factory otherwise than in accordance with their respective notices of periods of work displayed in the factory.

The owners, occupiers or Managers of factories shall submit the prescribed periodical returns to the Inspector regularly.
[Form-21]

Combined Annual Returns

A. General Particulars

1. (a) Name and full address of the Factory/Establishment (including Building and other construction of work/Motor Transport undertakings)

Factory/Establishment

Regd. Administrative/Head Office

Name :AddressTelFax-E-mail-Website-

(b)
Name and Residential address of the Proprietor/Partner/Directors/Employers/ Principal/Employer/Occupier (tick whichever is applicable)

Sl. No.

NameFather's name

Designation

Residential Address

Tel./Mobile/E-mail

(c)

Name and Residential Address of the person responsible for the day to day conduct and control of business.

Name

Residential Address

Tel./Mobile/E-mail

(d)

Name & Residential Address of the Occupier and Mgr. as named under the Factories Act, 1948.

Sl. No.

Name

Designation

Res.Address

Tel./Mobile/ E-mail

2. Date of commencement of Manufacturing/Business/Estt./Factories/Construction of works.

(a)

Nature/Type of Industries/Essts.

(b)

Particulars of Products Manufactured/Services Rendered

Name of the Product/Services

Annual Installed Capacity

Quantity Manufactured

Percentage achieved

Value

(c)

Registration and License

Regd. No.

License No.

(i)

Factories Act, 1948

(ii)

Contract Labour (R & A) Act, 1970

(iii)

OS and CE Act, 1956

(iv)

ISMW (R & CE) Act, 1979

(v)

MTW Act, 1961

(d)

Building and other Construction Workers (RECS) Act, 1996

No. of workmen/employees/employed.

Category

Male

Female

Adolescent/ Adult

Child

Total No. of Employees

Un-skilled

Semi-skilled

Skilled

Highly skilled

ITI/Diploma

Degree-Engg.

Executive

Probationer/ Trainees

3. Particulars of Employment/Payment in Factories/Estts./Motor Transport Undertakings/Building Construction of work.

(a)

{

|

| No. of Person on Roll as on 1st January

| No. of person on Roll as on 31st December

| No. of days Factory/ Estt. / Building & other
construction works/ Carried on

| No. of days Factories/ Estt./ Closed

| No. of Mandays worked during the year

| No. of manhours worked including O.T. during the
year

| Total amount of Salary/ Wages paid including O.T.

Wages & allowances

|

|

|

|

|

|

|

|

|}

(b)

Average Number of Employment during the year

Men

Women

Total

(c)

No. of employees discharged/dismissed/terminated/retrenched/resigned or retired during the year

Men

Women

Total

In respect of Minimum Wages & Payment of Wages etc. Particulars of deduction made from salary (wages) under MW and PW Act

No. of Employees involved

Total Amount of deduction made

1. Illness

2. Damages/Loss

3. Breach of Contract

4. Others

5. Total

In respect of the Factories Act/Orissa Shops & Commercial Establishment Act, 1956/P/O.I.E. (N & I) II. Act, 1972

7. Particulars of Earned Leave with Wages/National Festival Holidays with Wages :

Total No. of persons employed

No. of Employees eligible for Earned Leave

No. of employees availed/ granted Earned Leave

No. of employees paid wages/ Salary in lieu of

Earned Leave

No. of person who were paid wages for the NFH
(separate figure for each day may be furnished)

1. Man 2. Woman

(i) 26th January (ii) 1st May (iii) 15th August (iv)

2nd October (v) (vi) (vii) (viii) Total

8. Payment of Bonus paid during the year

Name of the Accounting year

Total No. of employees

No. of employees eligible for Bonus

Percentage of Bonus/ Exgratia declared

Total amount of Bonus/ Exgratia paid

Date of payment

1

2

3

4

5

6

Relating to the Factories Act

9. Does the Factory carry on hazardous process under Section 2(cb)/Dangerous Operation under Section 81 of Factories Act, 1948 ?

(i)

Whether Health and Safety Policy prepared and published

Yes/No

(ii)

Whether occupational Health Centre provided

Yes/No

(iii)

Whether Medical Officer appointed

Yes/No

(iv)

Whether Ambulance Van Provided

Yes/No

(v)

Average number of persons employed daily in hazardous process/dangerous operation.

10. Safety and Welfare Officers (a)

No. of Officers required to be appointed

No. of Officer actually appointed

(i) Safety Officers as per Section 40B

of the Factories Act.

(ii) Welfare Officers as per Section 49 of the Factories Act

(b)

Whether the following Welfare measures are provided ?

(i)

Ambulance Room as per Section 45 (A)

Yes/No

(ii)

Canteen as per Section 46 (I)

Yes/No

(iii)

Whether the canteen is run departmentally or through contractor Departmentally/Contractor.

Yes/No

(iv)

Creche as per Section 48 (I)

Yes/No

(v)

Shelters, Rest Rooms and Lunch Rooms as per Section 47 (I)

Yes/No

11. Particulars of Accidents, Mandays lost and others;

(i)

Total No. of accidents that have taken place in the year

(ii)

Number of employees involved in such accidents (Men- Women-)

(iii)

Total number of mandays lost in such accident.

(iv)

No. of employees returned to work within 48 hours of the accident

(v)

No. of employees returned to work after 48 hours of the accident

(Reportable accident)

(a)

Without Permanent/Partial/Total Disablement

(b)

With Permanent/Partial/Total disablement

(vi)

Number of employees involved in accidents which either immediately or later within 7 days resulted in death.

Maternity Benefit Act:

12. (a) Relating to Maternity Benefits :-

(i)

Total No. of women workers who worked for a period of 160 days in the last 12 months immediately preceding the date of delivery.

(ii)

No. of women workers discharged/dismissed in the last 12 months

(iii)

No. of women workers for whom pre-natal confinement and postnatal confinement is provided by the employer with free of cost.

(iv)

No. of women workers died

(a)

Before delivery

(b)

After delivery

(b)

Leave/additional leave details

Item

No. of women applied for leave

Leave sanctioned

Leave rejected

(i) Mis-carriage(ii) Illness (additional leave under

Sec.10)

(c)

Maternity Benefit Paid

Item

No. of claim received

No. of Leave sanctioned

No. of claims rejected

Total benefit paid in Rupees

(i) Confinement(ii) Mis-carriage(iii) Illness(iv)

Medical Bureaus

Relating to Contract Labour (R & A) Act

13. (a) Contract Labour :

Name & Address of the Contractor/ Contractors

Period of contract From/To

Nature of work/ operation in which contract

labour were employed Deptt. / Section

No. of person employed

Maximum No. of contract workman employed on any

day during the year

No. of days worked

No. of Man days worked

(i)(ii)(iii)(iv)

Total

(b)

Whether contract has provided ?

(i)

Canteen

Yes/No

(ii)

Rest Room

Yes/No

(iii)

Drinking Water

Yes/No

(iv)

Creche

Yes/No

(v)

First Aid

Yes/No

(vi)

Remarks

Relating to Building and other Construction Workers (RE & CS) Act.

14. Particulars of accident that took place during the year-

(i)

The total No. of accident.

(ii)

The number of accidents resulting in disablement of building workers for less than 48 hours, the number of building workers involved and the number of man-days lost.

(iii)

The number of accidents resulting in disablement of building worked beyond 48 hours but not resulting in any permanent

partial or permanent total disablement, the number of building workers involved and the number of man-days lost on account of such accident.

(iv)

The number of accidents resulting on permanent partial or total disablement, the number of building workers involved and the number of man-days lost on account of such accident.

(v)

The number of accidents resulting in deaths of building workers and the number of resultant deaths.

15. Inter State Migrant Workmen (RE & CS) Act

In respect of Principal Employer

(i)

Number of contractors who worked in the establishment during the year with details :

Name & Address of the Contractor

Period of Contract From To

Name of work

Maximum number of workers supplied by each contractor

No. of days worked

No. of mandays worked

Signature of Occupier/Employer/Manager

[Form 22]

[Deleted vide O.G.E.No. 1415. dated 24.9.2006-SRO 532/2006/26.9.2006.]

Form 23

Registration Register

Registration No.

Date of registration

Name of the factory

District and postal address

Name of the occupier with the address

Name of the Manager with address

Nature of industry

Nature and amount of power used and the number of persons

Remarks

1

2

3

4

5

6

7

8

9

[Form 24]

[Substituted vide Orissa Gazette Part III-No. 4 of 1983-SRO No. 41/83/6.1.1983.]

[Prescribed under Rule 96]

Report of examination and test of dust extraction - Suppression system

1. Description of system

2. Hood

(a)

Serial No. of hood.....

(b)

Contaminant capture.....

(c)

Capture velocities (at points to be specified).....

Design value

Actual value

(d)

Volume exhausted at hood.....

(e)

Hood static pressure.....

3. Total pressure drop at-

(a)

Joints.....

(b)

Other points of system (to be specified).....

4. Transport velocities in dust (at points along dusts to be specified).....

5. Air cleaning device-

(a)

Type used

(b)

Velocity at inlet

(c)

Static pressure at inlet

(d)

Velocity at outlet

(e)

Static pressure at outlet

6. Fan-

(a)

Type used

(b)

Volume handled

(c)

Static pressure

(d)

Pressure drop at outlet of fan.....

7. Fan motor-

(a)

Type

(b)

Speed and horse power

8. Particulars of defect, if any, disclosed during test in any of the above components.

I certify that on this day of the above dust extraction system was thoroughly cleaned and (so far as its construction permits) made accessible for thorough examination. I further certify that on the said date, I thoroughly examined the above dust extraction system including its components and fittings and that the above is a true report of my examination.

Signature

Qualification

Address

Date.....

Form 25

[Rule 96]

Certificate of Fitness for dangerous operations

Serial No.....

I certify that I have personally examined (name)..... son of (father's name).....residing at.....(address) who is desirous of being employed as.....(name of factory) in.....(department and process) and that as nearly as can be ascertained from my examination, is fit/unfit for employment at the above noted factory.

2. He is fit to be employed and may be employed on some other non- hazardous operations such as.....

3. He may be produced for further examination after a period of.....

4. He is advised following further examination.....

5. He is advised following further treatment.....

6. The serial No. of the previous certificate is

L.T.I. of person examined.....

Signature of Certifying Surgeon

Note 1. The counterfoil should be retained by the Certifying Surgeon and maintained in a bound book or in a file.

2. The para which does not apply may be cancelled.

1. Serial No

2. Name of person examined

3. Father's name

4. Sex

5. Address

6. Name of the factory in which employed/in which wishes to employed

7. Process of department in which employed/wishes to employed

8. Whether certificate granted

9. Whether declared unfit and certificate refused

10. Reference number of previous certificate granted or refused

L. T. I. of person examined

Signature of Certifying Surgeon

Form 26

[Prescribed under Rule 105]

Register of accidents and dangerous occurrences

Name of injured person (if any)

Date of accident of dangerous occurrence

Date of report (in Form No. 18 to Inspector)

Nature of accident or dangerous occurrence

Date of return of injured person to work

Number of days the injured person was absent from work

1

2

3

4

5

6

[Form 27]

[Deleted vide O.G.E. No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

Form 28

[Prescribed under Rule 94]

I hereby require that in the event of my death before resuming work }he balance of my pay due for the period of leave with wages not availed of shall be paid to.....who is my.....and resides at

Signature or L.T.I. of the worker

Form-29

Combined Muster Roll-cum-Register of Wages

Name and Address of theFactory Establishment

Name and Address of the Contractor (if any)/

Place of work

Name of Address of the Principal employer

Month/Year

Sl. No.

12

Name of the employee Father/ Husband name

Sex M/F

Date of Birth

Emp No./Sl. No. in Register of employees

Degn/ Deptt.

Date of joining

ESI No.

P.F. No.

ATTENDANCE Units of work done (if piece rated)

No. of payable days/ Total units of work done

Name of N & FH for which wages have been paid

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

26

27

28

29

30

31

Month & Year

EARNINGS

Basic
DA/ VDA
HRA
Conv. allow.
Med. allow.
ATT/ allow.- bonus
Spl. all
OT
Misc Earnings
Others
Total
ESI
DEDUCTIONS
PF
PT
TDS
Socy
Insurance
Sal. Adv.
Fine
Damage
Others
Total
Net payable
Date of payment
Complete Signature of the Employer/Principal Employer/Authorised Signatory
Form 30

[Prescribed under [* * *]]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/22.7.1987.]
Rule 96]

Certificate of Fitness

Sl. No.....

Date.....

I certify that I have personally examined (name)..... son of (father's name)..... residing at (address)..... who is desirous of being employed as..... designation) in (process, department and factory) and that his age, as nearly as can be ascertained from my examination is..... years, and that he is my opinion fit/unfit for employment in the above mentioned factory as mentioned above.

2. He may be produced for further examination after a period of.....

3. The serial No. of the previous certificate is.....

Signature/Left hand thumb impression of the person examined

Date.....

Signature of the Certifying Surgeon

I Certify that I examined the person mentioned
above on

I extend this certificate until (if certificate
is not extended) the period for which the worker is considered
unfit for worker is considered unfit for work is to be mentioned

Signs and symptoms observed during examination

Signature of the Certifying Surgeon

Form 31

[Prescribed under [* * *]]

[Deleted vide Orissa Gazette Extraordinary No. 1089/29.7.1987-SRO No. 501/22.7.1987.]

Rule 96]

Health Register

Sl. No.

Deptt./Works

Name of work

Sex

Age (at last birthday)

Date of employment

Date of leaving or transfer to other work with
reasons for discharge or transfer

Nature of job or occupation

Raw materials, products or by products likely to
be exposed to

1

2

3

4

5

6

7

8

9

Dates of medical examination and the result
thereof

Signs and symptoms observed during examination

Nature of tests and results thereof

If declared unfit for work state period of
suspension with reasons in details

Whether certificate of unfit issued to the worker

Re-certified fit to resume duty on

Signature of the Certifying Surgeon with date

Date

Result

10

11

12

13

14

15

16

17

[Form No. 31-A]

[Inserted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]

Health Record

(Pre-employment/Periodical)

[Prescribed under Rule 62-I]

1. Name of the factory

2. Name of the Employee

3. Employee Distinguishing Number :

4. Age of the employee :

Identification mark :
Nature of the job :
5. Date of employment :
6. Length of service in years :
7. General Survey :
Health :- Good/Fair/Poor
Height :- Cms.
Weight :- Kg.
8. Blood group
9. Eye Vision
Normal/Abnormal
Use of glass :- Yes/No
10. Hearing : Normal/Abnormal
11. Respiratory system and Chest Measurement
Inspiration
Expiration
Respiration rate/min.
Remarks, if any
12. Cardiovascular system
Pulse rate
B.P.
Heart Sound
Remarks, if any
13. Abdomen Tenderness : Yes/No
14. Nervous system
History of Fits : Yes/No
Epilepsy : Yes/No
Remarks on Mental Health
15. Locomoter System : Normal/Abnormal
16. Skin condition : Normal/Abnormal
Remarks on any skin Disease Noticed :-
17. Hearnias : Present/Absent
18. Hydrocele : Present/Absent
19. Present Complain, if any
20. Summary of Findings :
Heart disease
Hypertension
Diabetes
T.B.
Epilepsy
Poisoning
Others
Occupational disease, if any :
21. Recommendation, if any for any further investigation.
Signature of the Employee
Signature of the Medical Officer
[Form 32]
[Deleted vide O.G.E.No. 1415, dated 24.9.2006-SRO 532/2006/26.9.2006.]
Form 33
[Prescribed under Rule 56-A]
Report of examination of water sealed gas-holder

1. Name of occupier of factory-.....
2. Situation and address of factory.....
3. Name, description, distinguishing number of letter and, type of gasholder.....
4. Name and address of the manufacturer.....
5. (a) Number of lifts.....
(b)
Maximum capacity in cubic meters (cm).....
(c)
Pressure thrown by holder when full of gas.....
6. Particulars of gas to be stored in the holder.....
7. Particulars as to the condition of-
(a)
crown.....
(b)
side sheeting, including grips and cups.....
(c)
guiding mechanism (Roller carriages, rollers, pins, guide rails or ropes).....
(d)
tank.....
(e)
other structure, if any (columns, framing and bracing).....
8. Particulars as to the position of the lifts at the time of examination.....
9. Particulars as to whether the tank and lifts were found sufficiently levelled for safe working and if not, as to steps taken to remedy the defect.....
10. Date of examination and by whom it was carried out
11. Condition of vessel-
(1)
External
(2)
Internal
12. Are all fittings, appliances properly maintained and in a good condition? Repairs if any required and period within which they should be executed; and any other condition which the person making the examination thinks it necessary for safe working.....
13. Other observations.....

I certify that on.....: the gasholder described above was thoroughly examined and such of the tests as were necessary made on the same day and that the above is a true report of my examination.

Signature.....

Qualification.....

Address.....

Date.....

If employed by a Company or Association, give name and address.

14. A copy of the report in Form 33 shall be kept in the register and both the registers and the report shall be readily available for inspection.

[Form [34]

[Inserted vide Orissa Gazette Extraordinary No. 1/1.1.2004-SRO 718-2003-LE/23.12.2003.]

(See Rule 2-A)

(Form of Application for grant of certificate of competency to a person)

1. Name
2. Father's name
3. Date of birth
4. Permanent Address

5. Name of the Organisation

(if not self-employed)

6. Designation

7. Educational qualification (copies of testimonials to be attached)

8. Details of professional experience (in chronological order)

Name of the Organisation

Period of service

Designation

Area of responsibility

(1)

(2)

(3)

(4)

9. Membership, if any of professional bodies

10. (i) Details of facilities (examination, testing etc. at his disposal)

(ii)

Arrangements for calibrating and maintaining the accuracy of the facilities.

11. Purpose for which competency Certificate is sought (Section or Sections of the Act should be stated).

12. Whether the applicant has been declared as a competent person under any statute (If so, the details)

13. Any other relevant information ..

14. Declaration by the applicant ..

I.....hereby declare that the Information furnished above is true, I undertake-

(a)

that in the event of any change in the facilities at my disposal (either addition or deletion) or my leaving the aforesaid organisation, I will promptly inform the Chief Inspector.

(b)

to maintain the facilities in good working order, calibrate periodically as per manufacturers instructions or as per National Standards; and

(c)

to fulfil and abide by all the conditions stipulated in the Certificate of competency and instructions issued by the Chief Inspector from time to time.

Place & date

Signature of the applicant

Declaration by the Institution (if employed)

I.....certify that Shri.....whose details are furnished above, is in our employment and nominate him on behalf of the organisation for the purposes of being declared as a competent person under the Act, I also undertake that I will-

(a)

notify the Chief Inspector in case the competent person leaves our employment;

(b)

provide and maintain in good order all facilities at his disposal as mentioned above;

(c)

notify the Chief Inspector any change in the facilities (either addition or deletion);

Signature.....

Designation.....

Tel. No.....

Date.....

Official Seal

[Form [35]

[Inserted vide Orissa Gazette Extraordinary No. 1/1.1.2004-SRO 718-2003-LE/23.12.2003.]

(See Rule 2-A)

CP (O) No. Date

Certificate of Recognition as Competent Person

[Issued in pursuance of Section 2(ca) of the Factories Act, 1948]

The Chief Inspector of Factories and Boilers, Orissa in exercise of the power's conferred under Section 2(ca) of the Factories Act and Rules made thereunder, hereby recognise *.....represented by

..... to be a competent person for the purpose of carrying out test, examination inspection and certifications for

*.....used in factories subject to the conditions overleaf.

The jurisdiction extends all over Orissa/is restricted to M/s.....

This certificate is valid from

Official Seal

Chief Inspector of Factories and Boilers, Orissa

Revalidation Details

From

To

Signature of authority

(1)

(2)

(3)

* Name of Institution

** Name of the Competent Person

*** (a) Building

(b)

Hoists

(c)

Lifts

(d)

Chains

(e)

Lifting Machines

(f)

Ropes

(g)

Lifting Tackles

(h)

Pressure Plant

(i)

Ventilation System

(j)

Confined space

(k)

Plants & equipments of dangerous processes as applicable.

This certificate is issued subject to the conditions stipulated hereunder

(i)

tests examinations and inspections shall be carried out in accordance with the provisions of the Act and the Rules made thereunder and that prescribed in National Standard.

(ii)

tests, examinations and inspections shall be carried out under direct supervision of the Competent person or by a person so authorised by an institution recognised to be a Competent Person;

(iii)

the Certificate of Competency issued in favour of a person shall stand cancelled if the person leave's the organisation mentioned in this application;

(iv)

the institution recognised as a Competent Person shall keep the Chief inspector informed of the names, designation and qualifications of the person authorised by it to carry out tests, examination and inspections;

(v)

the Competent Person should be physically present at the time of testing and examination;

(vi)

records of daily work done should be maintained in a log book incorporating therein the details regarding the date, the work done, observations made, directives given etc;

(vii)

copies of examination on certificates in all cases where defects are noticed and repairs are ordered or any conditions imposed on its use are to be marked to the Inspector of Factories concerned;

(viii)

application for renewal of certificate along with a brief account of work done during the period of validity of the certificate may be made at least one month before the certificate expires together with fees prescribed for the purposes;

(ix)

this recolonisation is subject to constant review and liable to be cancelled if deficiencies come to notice.

Related AI tags, queries and research notes

Translation